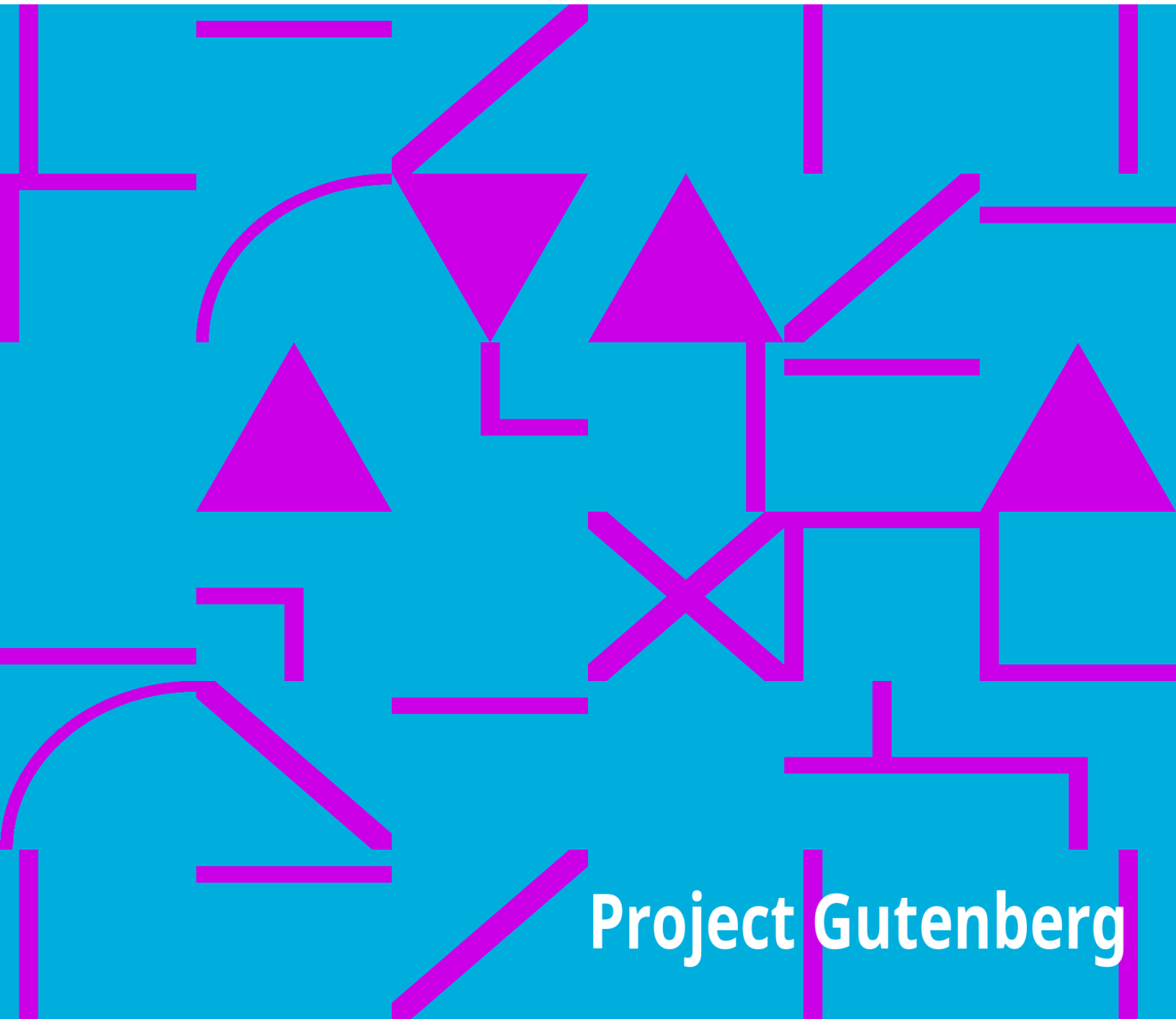


Ten Thousand a-Year. Volume 1.

Samuel Warren



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THOUSAND A-YEAR. VOLUME 1. ***

TEN THOUSAND A-YEAR.



TEN THOUSAND A-YEAR.

BY

SAMUEL WARREN, F.R.S.

VOL. I.

BOSTON:
LITTLE, BROWN, AND COMPANY.
1900.

University Press:
JOHN WILSON AND SON, CAMBRIDGE.

To Emily,

A LITTLE BLUE-EYED LAUGHING IMAGE OF PURITY

AND HAPPINESS,

THESE VOLUMES ARE INSCRIBED

AS A SLIGHT MEMORIAL OF A FATHER'S AFFECTION

FOR AN ONLY DAUGHTER. *October, 1841.*

TRANSCRIBER'S NOTES

The author provided thirty-three notes to the text. They are indicated by numbers in square brackets, as[[1](#)]. These are links to the note text, which is at the end of the document.

Four minor typographical errors were corrected in transcription. These are shown by a dotted underscore beneath the corrected word. Hover the mouse over the word to see the original text.

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PUBLISHERS' PREFACE.

The fact that a well-printed edition of this notable story has not been in print either in England or America since its original publication in 1841 is a sufficient reason for the present edition.

It includes the valuable notes in which the author elucidated the "many legal topics contained in the work, enabling the non-professional reader to understand more easily the somewhat complex and elaborate *plot* of the story."

Of the story itself it is hardly necessary to speak. Always deservedly popular, it has been widely read for nearly fifty years in England and America, has been translated into French and German, and has only required to be presented in a pleasing form, with readable type and good paper, to insure it the circulation which it deserves.

BOSTON, 1889.

PREFACE TO THE FIRST EDITION.

The Author of this Work begs gratefully to express his conviction that no small share of any success which it may have met with, is attributable to the circumstance of its having had the advantage of an introduction to the public through the medium of *Blackwood's Magazine*—a distinguished periodical, to which he feels it an honor to have been, for a time, a contributor.

One word, only, he ventures to offer, with reference to the general character and tendency of "TEN THOUSAND A-YEAR." He has occasionally observed it spoken of as "an amusing and laughable" story; but he cannot help thinking that no one will so characterize it, who may take the trouble of reading it throughout, and be capable of comprehending its scope and object. Whatever may be its defects of execution, it has been written in a grave and earnest spirit; with no attempt whatever to render it acceptable to *mere* novel-readers; but with a steadfast view to that development and illustration, whether humorously or otherwise, of principles, of character, and of conduct, which the author had proposed to himself from the first, in the hope that he might secure the approbation of persons of sober, independent, and experienced judgment.

Literature is not the author's profession. Having been led, by special circumstances only, to commence writing this work, he found it impossible to go on, without sacrificing to it a large portion of the time usually allotted to repose, at some little cost both of health and spirits. This was, however, indispensable, in order to prevent its interference with his professional avocations. It has been written, also, under certain other considerable disadvantages—which may account for several imperfections in it during its

original appearance. The periodical interval of leisure which his profession allows him, has enabled the author, however, to give that revision to the whole, which may render it worthier of the public favor. He is greatly gratified by the reception which it has already met with, both at home and abroad; and in taking a final and a reluctant leave of the public, ventures to express a hope, that this work may prove to be an addition, however small and humble, to the stock of healthy English literature.

LONDON, *October* 1841.

For the beautiful verses entitled "PEACE," (at [page 266](#), Vol. I.) the author is indebted to a friend—
(W. S.)

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TEN THOUSAND A-YEAR.

CHAPTER I.

About ten o'clock one Sunday morning, in the month of July 18—, the dazzling sunbeams, which had for several hours irradiated a little dismal back attic in one of the closest courts adjoining Oxford Street, in London, and stimulated with their intensity the closed eyelids of a young man—one TITTLEBAT TITMOUSE—lying in bed, at length awoke him. He rubbed his eyes for some time, to relieve himself from the irritation occasioned by the sudden glare they encountered; and yawned and stretched his limbs with a heavy sense of weariness, as though his sleep had not refreshed him. He presently cast his eyes towards the heap of clothes lying huddled together on the backless chair by the bedside, where he had hastily flung them about an hour after midnight; at which time he had returned from a great draper's shop in Oxford Street, where he served as a shopman, and where he had nearly dropped asleep, after a long day's work, in the act of putting up the shutters. He could hardly keep his eyes open while he undressed, short as was the time required to do so; and on dropping exhausted into bed, there he had continued, in deep unbroken slumber, till the moment of his being presented to the reader.—He lay for several minutes, stretching, yawning, and sighing, occasionally casting an irresolute glance towards the tiny fireplace, where lay a modicum of wood and coal, with a tinder-box and a match or two placed upon the hob, so that he could easily light his fire for the purposes of shaving, and breakfasting. He stepped at length lazily out of bed, and when he felt his feet, again yawned and stretched himself. Then he lit his fire, placed his bit of a kettle on the top of it, and returned to bed, where he lay with his eye fixed on the fire, watching the crackling blaze insinuate itself through the wood and coal. Once, however, it began to fail,

so he had to get up and assist it, by blowing, and bits of paper; and it seemed in so precarious a state that he determined not again to lie down, but sit on the bedside: as he did, with his arms folded, ready to resume operations if necessary. In this posture he remained for some time, watching his little fire, and listlessly listening to the discordant jangling of innumerable church-bells, clamorously calling the citizens to their devotions. The current of thoughts passing through his mind, was something like the following:—

"Heigho!—Lud, Lud!—Dull as ditch water!—This is my only holiday, yet I don't seem to enjoy it!—for I feel knocked up with my week's work! (A yawn.) What a life mine is, to be sure! Here am I, in my eight-and-twentieth year, and for four long years have been one of the shopmen at Tag-rag & Co.'s, slaving from half-past seven o'clock in the morning till nine at night, and all for a salary of thirty-five pounds a-year, and my board! And Mr. Tag-rag—eugh! what a beast!—is always telling me how high he's raised my salary!! Thirty-five pounds a-year is all I have for lodging, and turning out like a gentleman! 'Pon my soul! it *can't* last; for sometimes I feel getting desperate—such strange thoughts come into my mind!—Seven shillings a-week do I pay for *this* cursed hole—(he uttered these words with a bitter emphasis, accompanied by a disgustful look round the little room)—that one couldn't swing a cat in without touching the four sides!—Last winter three of our gents (*i. e.* his fellow-shopmen) came to tea with me one Sunday night; and bitter cold as it was, we four made this cussed dog-hole so hot, we were obliged to open the window!—And as for accommodation—I recollect I had to borrow two nasty chairs from the people below, who on the next Sunday borrowed my only decanter, in return, and, hang them, cracked it!—Curse me, say I, if this life is worth having! It's all the very vanity of vanities—as it's said somewhere in the Bible—and no mistake!

Fag, fag, fag, all one's days, and—what for? Thirty-five pounds a-year, and '*no advance!*' (Here occurred a pause and revery, from which he was roused by the clangor of the church-bells.) Bah, bells! ring away till you're all cracked!—Now do you think *I'm* going to be mewed up in church on this the only day out of the seven I've got to sweeten myself in, and sniff fresh air? A precious joke that would be! (A yawn.) Whew!—after all, I'd almost as lieve sit here; for what's the use of my going out? Everybody I see out is happy, excepting me, and the poor chaps that are like me!—Everybody laughs when they see me, and know that I'm only a tallow-faced counter-jumper—I know that's the odious name we gents go by!—for whom it's no use to go out—for one day in seven can't give one a bloom! Oh, Lord! what's the use of being good-looking, as *some* chaps say I am?"—Here he instinctively passed his left hand through a profusion of sandy-colored hair, and cast an eye towards the bit of fractured looking-glass which hung against the wall, and had, by faithfully representing to him a by no means ugly set of features (despite the dismal hue of his hair) whenever he chose to appeal to it, afforded him more enjoyment than any other object in the world, for years. "Ah, by Jove! many and many's the fine gal I've done my best to attract the notice of, while I was serving her in the shop—that is, when I've seen her get out of a carriage! There has been luck to many a chap like me, in the same line of speculation: look at Tom Tarnish—how did he get Miss Twang, the rich pianoforte-maker's daughter?—and *now* he's cut the shop, and lives at Hackney, like a regular gentleman! Ah! that *was* a stroke! But somehow it hasn't answered with *me* yet; the gals don't take! How I have set my eyes to be sure, and ogled them!—*All* of them don't seem to dislike the thing—and sometimes they'll smile, in a sort of way that says I'm safe—but it's been no use yet, not a bit of it!—My eyes! catch me, by the way, ever nodding again to a lady on the Sunday, that had

smiled when I stared at her while serving her in the shop—after what happened to me a month or two ago in the Park! Didn't I feel like damaged goods, just then? But it's no matter, women are so different at different times!—Very likely I mismanaged the thing. By the way, what a precious puppy of a chap the fellow was that came up to her at the time she stepped out of her carriage to walk a bit! As for good looks—cut me to ribbons (another glance at the glass) no; I a'n't afraid *there*, neither—but—heigho!—I suppose he was, as they say, born with a golden spoon in his mouth, and had never so many a thousand a-year, to make up to him for never so few brains! He was uncommon well-dressed, though, I must own. What trousers!—they stuck so natural to him, he might have been born in them. And his waistcoat, and satin stock—what an air! And yet, his figure was nothing *very* out of the way! His gloves, as white as snow; I've no doubt he wears a pair of them a-day—my stars! that's three-and-sixpence a-day; for don't I know what *they* cost?—Whew! if I had but the cash to carry on that sort of thing!—And when he'd seen her into her carriage—the horse he got on!—and what a tip-top groom—that chap's wages, I'll answer for it, were equal to my salary! (Here was another pause.) Now, just for the fun of the thing, only suppose luck was to befall *me*! Say that somebody was to leave me lots of cash—many thousands a-year, or something in that line! My stars! wouldn't I go it with the best of them! (Another long pause.) Gad, I really should hardly know how to begin to spend it!—I think, by the way, I'd buy a *title* to set off with—for what won't money buy? The thing's often done; there was a great pawn-broker in the city, the other day, made a baronet of, all for his money—and why shouldn't I?" He grew a little heated with the progress of his reflections, clasping his hands with involuntary energy, as he stretched them out to their fullest extent, to give effect to a very hearty yawn. "Lord, only think how it would sound!—

"SIR TITTLEBAT TITMOUSE, BARONET;" or, "LORD TITMOUSE!!"

"The very first place I'd go to, after I'd got my title, and was rigged out in Tight-fit's tip-top, should be—our cursed shop! to buy a dozen or two pair of white kid. Ah, ha! What a flutter there would be among the poor pale devils as were standing, just as ever, behind the counters, at Tag-rag and Co.'s when my carriage drew up, and I stepped, a tip-top swell, into the shop. Tag-rag would come and attend to me himself! No, he wouldn't—pride wouldn't let him. I don't know, though: what wouldn't he do to turn a penny, and make two and nine-pence into three and a penny? I shouldn't *quite* come Captain Stiff over him, I think, just at first; but I should treat him with a kind of an air, too, as if—hem! 'Pon my life! how delightful! (A sigh and a pause.) Yes, I should often come to the shop. Gad, it would be half the fun of my fortune! How they would envy me, to be sure! How one should enjoy it! I wouldn't think of *marrying* till—and yet I won't say either; if I got among some of them out-and-outers—those first-rate articles—that lady, for instance, the other day in the Park—I should like to see her cut me as she did, with ten thousand a-year in my pocket! Why, she'd be running after *me*!—or there's no truth in novels, which I'm sure there's often a great deal in. Oh, of course, I might marry whom I pleased! Who couldn't be got with ten thousand a-year? (Another pause.) I think I should go abroad to Russia directly; for they tell me there's a man lives there who could dye this cussed hair of mine any color I liked—and—egad! I'd come home as black as a crow, and hold up my head as high as any of them! While I was about it, I'd have a touch at my eyebrows"—— Crash here went all his castle-building, at the sound of his tea-kettle, hissing, whizzing, sputtering, in the agonies of boiling over; as if the intolerable heat of the fire had driven desperate the poor creature placed upon it, which instinctively tried thus to extinguish the cause of its anguish. Having taken

it off, and placed it upon the hob, and put on the fire a tiny fragment of fresh coal, he began to make preparations for shaving, by pouring some of the hot water into an old tea-cup, which was presently to serve for the purposes of breakfast. Then he spread out a bit of crumpled whity-brown paper, in which had been folded up a couple of cigars, bought over-night for the Sunday's special enjoyment—and as to which, if he supposed they had come from any place beyond the four seas, I imagine him to have been slightly mistaken. He placed this bit of paper on the little mantel-piece; drew his solitary well-worn razor several times across the palm of his left hand; dipped his brush, worn, within half an inch, to the stump, into the hot water; presently passed it over so much of his face as he intended to shave; then rubbed on the damp surface a bit of yellow soap—and in less than five minutes Mr. Titmouse was a shaved man. But mark—don't suppose that he had performed an extensive operation. One would have thought him anxious to get rid of as much as possible of his abominable sandy-colored hair. Quite the contrary! Every hair of his spreading whiskers was sacred from the touch of steel; and a bushy crop of hair stretched underneath his chin, coming curled out on each side of it, above his stock, like two little horns or tusks. An imperial—*i. e.* a dirt-colored tuft of hair, permitted to grow perpendicularly down the under-lip of puppies—and a pair of promising mustaches, poor Mr. Titmouse had been compelled to sacrifice some time before, to the tyrannical whimsies of his vulgar employer, Mr. Tag-rag, who imagined them not to be exactly suitable appendages for counter-jumpers. Thus will it be seen that the space shaved over on this occasion was somewhat circumscribed. This operation over, he took out of his trunk an old dirty-looking pomatum pot. A modicum of its contents, extracted on the tips of his two forefingers, he stroked carefully into his eyebrows; then spreading some on the palms of his hands, he rubbed it

vigorously into his stubborn hair and whiskers for some quarter of an hour; afterwards combing and brushing his hair into half a dozen different dispositions—so fastidious in that matter was Mr. Titmouse. Then he dipped the end of a towel into a little water, and twisting it round his right forefinger, passed it gently over his face, carefully avoiding his eyebrows, and the hair at the top, sides, and bottom of his face, which he then wiped with a dry corner of the towel; and no farther did Mr. Tittlebat Titmouse think it necessary to carry his ablutions. Had he, however, been able to "see himself as others saw him," in respect of those neglected regions which lay somewhere behind and beneath his ears, he might not, possibly, have thought it superfluous to irrigate them with a little soap and water; but, after all, he knew best; it might have given him cold: and besides, his hair was very thick and long behind, and might perhaps conceal anything that was unsightly. Then Mr. Titmouse drew from underneath the bed a bottle of "incomparable blacking," and a couple of brushes; with great labor and skill polishing his boots up to a wonderful degree of brilliancy. Having replaced his blacking implements under the bed and washed his hands, he devoted a few moments to boiling about three tea-spoonfuls of coffee, (as it was styled on the paper from which he took, and in which he had bought, it—whereas it was, in fact, *chiccory*.) Then he drew forth from his trunk a calico shirt, with linen wristbands and collar, which had been worn only twice—*i. e.* on the preceding two Sundays—since its last washing—and put it on, taking great care not to rumple a very showy front, containing three rows of frills; in the middle one of which he stuck three "studs," connected together with two little gilt chains, looking exceedingly stylish—especially when coupled with a span-new satin stock, which he next buckled round his neck. Having put on his bright boots, (without, I am really sorry to say, any stockings,) he carefully insinuated his legs into a pair of white trousers, for

the first time since their last washing; and what with his short straps and high braces, they were so tight that you would have feared their bursting if he should have sat down hastily. I am almost afraid that I shall hardly be believed; but it is a fact, that the next thing he did was to attach a pair of spurs to his boots:—but, to be sure, it was not *impossible* that he might intend to ride during the day. Then he put on a queer kind of under-waistcoat, which in fact was only a roll-collar of rather faded pea-green silk, and designed to set off a very fine flowered damson-colored silk waistcoat; over which he drew a massive mosaic-gold chain, (to purchase which he had sold a serviceable silver watch,) which had been carefully wrapped up in cotton wool; from which soft depository, also, he drew HIS RING, (those must have been sharp eyes which could tell, at a distance, and in a hurry, that it was not diamond,) which he placed on the stumpy little finger of his red and thick right hand—and contemplated its sparkle with exquisite satisfaction. Having proceeded thus far with his toilet, he sat down to his breakfast, spreading upon his lap the shirt which he had taken off, to preserve his white trousers from spot or stain—his thoughts alternating between his late waking vision and his purposes for the day. He had no butter, having used the last on the preceding morning; so he was fain to put up with dry bread—and very dry and teeth-trying it was, poor fellow—but his eye lit on his ring! Having swallowed two cups of his *quasi*-coffee, (eugh! such stuff!) he resumed his toilet, by drawing out of his other trunk his blue surtout, with embossed silk buttons and velvet collar, and an outside pocket in the left breast. Having smoothed down a few creases, he put it on:—then, before his little vulgar fraction of a looking-glass, he stood twitching about the collar, and sleeves, and front, so as to make them sit well; concluding with a careful elongation of the wristbands of his shirt, so as to show their whiteness gracefully beyond the cuff of his coat-sleeve—

and he succeeded in producing a sort of white boundary line between the blue of his coat-sleeve and the red of his hand. At that useful member he could not help looking with a sigh, as he had often done before—for it was not a handsome hand. It was broad and red, and the fingers were thick and stumpy, with very coarse deep wrinkles at every joint. His nails also were flat and shapeless; and he used to be continually gnawing them till he had succeeded in getting them down to the quick—and they were a sight to set one's teeth on edge. Then he extracted from the first-mentioned trunk a white pocket handkerchief—an exemplary one, that had gone through four Sundays' show, (not *use*, be it understood,) and yet was capable of exhibition again. A pair of sky-colored kid gloves next made their appearance: which, however, showed such barefaced marks of former service as rendered indispensable a ten minutes' rubbing with bread-crumbs. His Sunday hat, carefully covered with silver-paper, was next gently removed from its well-worn box—ah, how lightly and delicately did he pass his smoothing hand round its glossy surface! Lastly, he took down a thin black cane, with a gilt head, and full brown tassel, from a peg behind the door—and his toilet was complete. Laying down his cane for a moment, he passed his hands again through his hair, arranging it so as to fall nicely on each side beneath his hat, which he then placed upon his head, with an elegant inclination towards the left side. He was really not bad-looking, in spite of his sandy-colored hair. His forehead, to be sure, was contracted, and his eyes were of a very light color, and a trifle too protuberant; but his mouth was rather well-formed, and being seldom closed, exhibited very beautiful teeth; and his nose was of that description which generally passes for a Roman nose. His countenance wore generally a smile, and was expressive of—self-satisfaction: and surely any expression is better than none at all. As for there being the slightest trace of *intellect* in it, I should be

misleading the reader if I were to say anything of the sort. In height, he was about five feet and a quarter of an inch, *in his boots*, and he was rather strongly set, with a little tendency to round shoulders:—but his limbs were pliant, and his motions nimble.

Here you have, then, Mr. Tittlebat Titmouse to the life—certainly no more than an average sample of his kind; but as he is to go through a considerable variety of situation and circumstance, I thought you would like to have him as distinctly before your mind's eye as it was in my power to present him.—Well—he put his hat on, as I have said; buttoned the lowest two buttons of his surtout, and stuck his white pocket handkerchief into the outside pocket in front, as already mentioned, anxiously disposing it so as to let a little appear above the edge of the pocket, with a sort of careful carelessness—a graceful contrast to the blue; drew on his gloves; took his cane in his hand; drained the last sad remnant of infusion of chiccory in his coffee-cup; and, the sun shining in the full splendor of a July noon, and promising a glorious day, forth sallied this poor fellow, an Oxford Street Adonis, going forth conquering and to conquer! Petty finery without, a pinched and stinted stomach within; a case of Back *versus* Belly, (as the lawyers would have it,) the plaintiff winning in a canter! Forth sallied, I say, Mr. Titmouse, as also, doubtless, sallied forth that day some five or six thousand similar personages, down the narrow, creaking, close staircase, which he had no sooner quitted than he heard exclaimed from an opposite window, "My eyes! *a'n't* that a swell!" He felt how true the observation was, and that at that moment he was somewhat out of his element; so he hurried on, and soon reached that great broad disheartening street, apostrophized by the celebrated Opium-Eater,^[1] with bitter feeling, as—"Oxford Street!—stony-hearted stepmother! Thou that listenest to the sighs of orphans, and drinkest the tears of children!" Here, though his spirits were not just then

very buoyant, our poor little dandy breathed more freely than when he was passing through the wretched crowded court (Closet Court) which he had just quitted. He passed and met hundreds who, like himself, seemed released for a precious day's interval from miserable confinement and slavery during the week; but there were not very many of them who could vie with him in elegance of appearance—and that was indeed a luxurious reflection! Who could do justice to the air with which he strutted along! He felt as happy, poor soul, in his little ostentation, as his Corinthian rival in tip-top turn-out, after twice as long, and as anxious, and fifty times as expensive, preparations for effective public display! Nay, *my* poor swell was in some respects greatly the superior of such an one as I have alluded to. Mr. Titmouse *did*, to a great degree, bedizen his back—but at the expense of his belly; whereas, the Corinthian exquisite, too often taking advantage of station and influence, recklessly both pampers his luxurious appetite within, and decorates his person without, at the expense of innumerable heart-aching creditors. I do not mean, however, to claim any real merit for Mr. Titmouse on this score, because I am not sure how he would act if he were to become possessed of his magnificent rival's means and opportunities for the perpetration of gentlemanly frauds on a splendid scale.—But we shall perhaps see by and by.

Mr. Titmouse walked along with leisurely step; for haste and perspiration were vulgar, and he had the day before him. Observe, now, the careless glance of self-satisfaction with which he occasionally regards his bright boots, with their martial appendage, giving out a faint clinking sound as he heavily treads the broad flags; his spotless trousers, his tight surtout, and the tip of white handkerchief peeping *accidentally* out in front! A pleasant sight it was to behold him in a chance rencontre with some one genteel enough to be recognized—as he stood, resting on his left leg; his left arm stuck upon

his hip; his right leg easily bent outwards; his right hand lightly holding his ebon cane, with the gilt head of which he occasionally tapped his teeth; and his eyes, half closed, scrutinizing the face and figure of each "*pretty gal*" as she passed, and to whom he had a delicious consciousness that he appeared an object of interest! This was indeed HAPPINESS, as far as his forlorn condition could admit of his enjoying happiness.—He had no particular object in view. A tiff over-night with two of his shopmates, had broken off a party which they had agreed the Sunday preceding in forming, to go that day to Greenwich; and this trifling circumstance had a little soured his temper, depressed as had been his spirits before. He resolved, on consideration, to walk straight on, and dine somewhere a little way out of town, by way of passing the time till four o'clock, at which hour he intended to make his appearance in Hyde Park, "to see the swells and the fashions," which was his favorite Sunday occupation.

His condition was, indeed, forlorn in the extreme. To say nothing of his *prospects* in life—what was his present condition? A shopman with thirty-five pounds a-year, out of which he had to find his clothing, washing, lodging, and all other incidental expenses—the chief item of his board—such as it was—being found him by his employers! He was five weeks in arrear to his landlady—a corpulent old termagant, whom nothing could have induced him to risk offending, but his overmastering love of finery; for I grieve to say, that this deficiency had been occasioned by his purchase of the ring he then wore with so much pride! How he had contrived to pacify her—lie upon lie he must have had recourse to—I know not. He was indebted also to his poor washerwoman in five or six shillings for at least a quarter's washing; and owed five times that amount to a little old tailor, who, with huge spectacles on his nose, turned up to him, out of a little cupboard which he occupied in Closet Court, and which Titmouse had to

pass whenever he went to or from his lodgings, a lean, sallow, wrinkled face, imploring him to "settle his small account." All the cash in hand which he had to meet contingencies between that day and quarter-day, which was six weeks off, was about twenty-six shillings, of which he had taken one for the present day's expenses!

Revolving these somewhat disheartening matters in his mind, he passed easily and leisurely along the whole length of Oxford Street. No one could have judged from his dressy appearance, the constant smirk on his face, and his confident air, how very miserable that poor little dandy was; but three-fourths of his misery were really occasioned by the impossibility he felt of his ever being able to indulge in his propensities for finery and display. Nothing better had he to occupy his few thoughts. He had had only a plain mercantile education, as it is called, *i. e.* reading, writing, and arithmetic; beyond an exceedingly moderate acquaintance with these, he knew nothing whatever; not having read anything except a few inferior novels, and plays, and sporting newspapers. Deplorable, however, as were his circumstances —

"Hope springs eternal in the human breast."

And probably, in common with most who are miserable from straitened circumstances, he often conceived, and secretly relied upon, the possibility of some unexpected and accidental change for the better. He had heard and read of extraordinary cases of LUCK. Why might he not be one of the LUCKY? A rich girl might fall in love with him—that was, poor fellow! in his consideration, one of the least unlikely ways of luck's advent; or some one might leave him money; or he might win a prize in the lottery;—all these, and other accidental modes of getting rich, frequently occurred to the well-regulated mind of Mr. Tittlebat Titmouse; but he never once thought of one

thing, viz. of determined, unwearying industry, perseverance, and integrity in the way of his business, conducing to such a result!

Is his case a solitary one?—Dear reader, *you* may be unlike poor Tittlebat Titmouse in every respect except *one*!

On he walked towards Bayswater; and finding that it was yet early, and considering that the farther he went from town the better prospect there would be of his being able, with little sacrifice of appearances, to get a dinner consistent with the means he carried about with him, viz. one shilling, he pursued his way a mile or two beyond Bayswater; and, sure enough, came at length upon a nice little public-house on the roadside, called the Square-toes Arms. Very tired, and very dusty, he first sat down in a small back room to rest himself; and took the opportunity to call for a clothes-brush and shoe-brush, to relieve his clothes and boots from the heavy dust upon them. Having thus attended to his outer man, as far as circumstances would permit, he bethought himself of his inner man, whose cravings he presently satisfied with a pretty substantial mutton-pie and a pint of porter. This fare, together with a penny (which he felt *forced* to give) to the little girl who waited on him, cost him tenpence; and then, having somewhat refreshed himself, he began to think of returning to town. Having lit one of his two cigars, he sallied forth, puffing along with an air of quiet enjoyment. Dinner, however humble, seldom fails, especially when accompanied by a fair draught of tolerable porter, in some considerable degree to tranquillize the animal spirits; and that soothing effect began soon to be experienced by Mr. Titmouse. The sedative *cause* he erroneously considered to be the cigar he was smoking; whereas in fact the only tobacco he had imbibed was from the porter. But, however that might be, he certainly returned towards town in a calmer and more cheerful humor than that in which he had quitted it an hour or two before.

As he approached Cumberland Gate, it was about half-past five; and the Park might be said to be at its *acme* of fashion, as far as that could be indicated by a sluggish stream of carriages, three and four abreast—coroneted panels in abundance—noble and well-known equestrians of both sexes, in troops—and some hundreds of pedestrians of the same description. So continuous was the throng of carriages and horsemen, that Titmouse did not find it the easiest matter in the world to dart across to the footpath in the inner circle. That, however, he presently safely accomplished, encountering no more serious mischance than the muttered "D—n your eyes!" of a haughty groom, between whom and his master Mr. Titmouse had presumed to intervene. What a crowd of elegant women, many of them young and beautiful, (who but such, to be sure, would have become, or been allowed to become, pedestrians in the Park?) he encountered, as he slowly sauntered on, all of them obsequiously attended by brilliant beaux! Lords and ladies were here manifestly as plentiful as plebeians in Oxford Street. What an enchanted ground!—How delicious this soft crush and flutter of aristocracy! Poor Titmouse felt at once an intense pleasure, and a withering consciousness of his utter insignificance. Many a sigh of dissatisfaction and envy escaped him; yet he stepped along with a tolerably assured air, looking everybody he met straight in the face, and occasionally twirling about his little cane with an air which seemed to say—"Whatever opinion *you* may form of me, I have a very good opinion of myself." Indeed, was he not as much a man—an Englishman—as the best of them? What was the real difference between Count Do-'em-all and Mr. Tittlebat Titmouse? Only that the Count had dark hair and whiskers, and owed more money than Mr. Titmouse's creditors could be persuaded to allow *him* to owe! Would to Heaven—thought Titmouse—that any *one* tailor would patronize *him* as half a dozen had patronized the Count! If

pretty ladies of quality did not disdain a walking advertisement of a few first-rate tailors, like the Count, why should they turn up their noses at an assistant in an extensive wholesale and retail establishment in Oxford Street, conversant with the qualities and prices of the most beautiful articles of female attire? Yet alas, they *did* so!— He sighed heavily. Leaning against the railing in a studied attitude, and eying wistfully each gay and fashionable equipage, with its often lovely, and sometimes haughty enclosure, as it rolled slowly past him, Mr. Titmouse became more and more convinced of a great practical truth, viz. that the only real distinction between mankind was that effected by money. Want of money alone had placed him in his present abject position. Abject indeed! By the great folk, who were passing him on all sides, he felt, well-dressed as he believed himself to be, that he was no more noticed than as if he had been an ant, a blue-bottle fly, or a black beetle! He looked, and sighed—sighed, and looked—looked, and sighed again, in a kind of agony of vain longing. While his only day in the week for breathing fresh air, and appearing like a gentleman in the world, was rapidly drawing to a close, and he was beginning to think of returning to the dog-hole he had crawled out of in the morning, and to the shop for the rest of the week; the great, and gay, and happy folk he was looking at, were thinking of driving home to dress for their grand dinners, and to lay out every kind of fine amusement for the ensuing week: and that, moreover, was the sort of life they led every day in the week! He heaved a profound sigh. At that moment a superb cab, with a gentleman in it dressed in great elegance, and with very keen dark eyes, and striking nose and whiskers, came up with a cab of still more exquisite structure and appointments, and at which Titmouse gazed with unutterable feelings of envy—in which sat a young man, evidently of consequence; very handsome, with splendid mustaches; perfectly well-dressed; holding

the reins and whip gracefully in hands glistening in straw-colored kid gloves—and between the two gentlemen ensued the following low-toned colloquy, which it were to be wished that every such sighing simpleton (as Titmouse must, I fear, by this time appear to the reader) could have overheard.

"Ah, Fitz!" said the former-mentioned gentleman to the latter, who suddenly reddened when he perceived who had addressed him. The manner of the speaker was execrably familiar and presumptuous—but how could the embarrassed *swell* help himself?—"When did you return to town?"

"Last night only"——

"Enjoyed yourself, I hope?"

"Pretty well—but—I—suppose you"——

"Sorry for it," interrupted the first speaker in a lower tone, perceiving the vexation of his companion; "but can't help it, you know."

"When?"

"To-morrow at nine. Monstrous sorry for it—'pon my soul, you really must look sharp, Fitz, or the thing won't go on much longer."

"Must it be, really?" inquired the other, biting his lips—at that moment kissing his hand to a very beautiful girl, who slowly passed him in a coroneted chariot—"must it really be, Joe?" he repeated, turning towards his companion a pale and bitterly chagrined countenance.

"Poz, 'pon my life. Cage clean, however, and not very full—just at present"——

"Would not *Wednesday*!"—inquired the other, leaning forward towards the former speaker's cab, and whispering with an air of intense earnestness. "The fact is, I've engagements at C——'s on Monday and Tuesday nights with one or two country cousins, and I *may* be in a condition—eh? you understand?"

His companion shook his head distrustfully.

"Upon my word and honor as a gentleman, it's the fact!" said the other, in a low vehement tone.

"Then—say Wednesday, nine o'clock, A.M. You understand? No mistake, Fitz!" replied his companion, looking him steadily in the face as he spoke.

"None—honor!"—After a pause—"Who is it?"

His companion took a slip of paper out of his pocket, and in a whisper read from it—"Cab, harness, &c., £297, 10s."

"A villain! It's been of only three years' standing," interrupted the other, in an indignant mutter.

"Between ourselves, he *is* rather a sharp hand. Then, I'm sorry to say there's a Detainer or two I have had a hint of"——

The swell uttered an execration which I dare not convey to paper—his face distorted with an expression of mingled disgust, vexation, and hatred; and adding, "Wednesday—nine"—drove off, a picture of tranquil enjoyment.

I need hardly say that *he* was a fashionable young spendthrift, and the other a sheriff's officer of the first water—the genteelest *beak* that ever was known or heard of—who had been on the look-out for him several days, and with whom the happy youngster was doomed to spend some considerable time at a cheerful residence in Chancery Lane, bleeding gold at every pore the while:—his only chance of avoiding which, was, as he had truly hinted, an honorable attempt on the purses of two hospitable country cousins, in the meanwhile, at C——'s! And if he did not succeed in that enterprise, so that he *must* go to cage, he lost the only chance he had for some time of securing an exemption from such annoyance, by entering Parliament to protect the liberties of the people—an eloquent and resolute champion of freedom in trade, religion, and everything else; and an

abolitionist of everything, including, especially, negro slavery and imprisonment for debt^[2]—two execrable violations of the natural rights of mankind.

But I have, for several minutes, lost sight of the admiring Titmouse.

"Why," thought he, "am *I* thus spited by fortune?—The only thing she's given *me* is—nothing!—*D—n everything!*" exclaimed Mr. Titmouse aloud, at the same time starting off, to the infinite astonishment of an old peer, who had been for some minutes standing leaning against the railing, close beside him; who was master of a magnificent fortune, "with all appliances and means to boot;" with a fine grown-up family, his eldest son and heir having just gained a Double First, and promising wonders; possessing many mansions in different parts of England; a reputation for exquisite taste and accomplishment; and being the representative of one of the oldest families in England; but who at that moment loathed everything and everybody, including himself, because the minister had the day before intimated to him that he could not give him a vacant ribbon, for which he had applied, unless he could command two more votes in the Lower House, and which at present his lordship saw no earthly means of doing. Yes, the Earl of Cheviotdale and Mr. Tittlebat Titmouse were both miserable men; both had been hardly dealt with by fortune; both were greatly to be pitied; and both quitted the Park, about the same time, with a decided misanthropic tendency.

Mr. Titmouse walked along Piccadilly with a truly chopfallen and disconsolate air. He very nearly felt dissatisfied even with his personal appearance! Dress as he would, no one seemed to care a curse for him; and, to his momentarily jaundiced eye, he seemed equipped in only second-hand and shabby finery; and then he was really such a *poor* devil!—Do not, however, let the reader suppose that this was an unusual mood with Mr.

Titmouse. No such thing. Like the Irishman who "married a wife for to make him *un-aisy*;" and also not unlike the moth that *will* haunt the brightness which is her destruction; so poor Titmouse, Sunday after Sunday, dressed himself out as elaborately as he had done on the present occasion, and then always betook himself to the scene he had just again witnessed, and which had once again excited only those feelings of envy, bitterness, and despair, which I have been describing, and which, on every such occasion, he experienced with, if possible, increased intensity.

What to do with himself till it should be time to return to his cheerless lodgings he did not exactly know; so he loitered along at a snail's pace. He stood for some time staring at the passengers, their luggage, and the coaches they were ascending and alighting from, and listening to the strange medley of coachmens', guards', and porters' vociferations, and passengers' greetings and leave-takings—always to be observed at the White Horse Cellar. Then he passed along, till a street row, near the Haymarket, attracted his attention and interested his feelings; for it ended in a regular set-to between two watermen attached to the adjoining coach-stand. Here he conceived himself looking on with the easy air of a swell; and the ordinary penalty (paying for his footing) was attempted to be exacted from him; but he had nothing to be picked out of any of his pockets except that under his very nose, and which contained his white handkerchief! This over, he struck into Leicester Square, where, (he was in luck that night,) hurrying up to another crowd at the farther end, he found a man preaching with infinite energy. Mr. Titmouse looked on, and listened for two or three minutes with apparent interest; and then, with a countenance in which pity struggled with contempt, muttered, loud enough to be heard by all near him, "poor devil!" and walked off. He had not proceeded many steps, before it occurred to him that a friend—one Robert

Huckaback, much such another one as himself—lived in one of the narrow, dingy streets in the neighborhood. He determined to take the chances of his being at home, and if so, of spending the remainder of the evening with him. Huckaback's quarters were in the same ambitious proximity to heaven as his own; the only difference being, that they were a trifle cheaper and larger. He answered the door himself, having only the moment before returned from *his* Sunday's excursion,—*i. e.* the Jack Straw's Castle Tea-Gardens, at Highgate, where, in company with several of his friends, he had "spent a jolly afternoon." He ordered in a glass of negus from the adjoining public-house, after some discussion, which ended in an agreement that he should stand treat that night, and Titmouse on the ensuing Sunday night. As soon as the negus had arrived, accompanied by two sea-biscuits, which looked so hard and hopeless that they would have made the nerves thrill within the teeth of him that meditated attempting to masticate them, the candle was lit; Huckaback handed a cigar to his friend; and both began to puff away, and chatter pleasantly concerning the many events and scenes of the day.

"Anything stirring in to-day's 'Flash?'" inquired Titmouse, as his eye caught sight of a copy of that able and interesting Sunday newspaper, the "SUNDAY FLASH," which Huckaback had hired for the evening from the news-shop on the ground-floor of his lodgings.

Mr. Huckaback removed his cigar from his mouth, and holding it between the first and second fingers of his right hand, in a knowing style, with closed eyes and inflated cheeks, very slowly ejected the smoke which he had last inhaled, and rose and got the paper from the top of the drawers.

"Here's a mark of a beastly porter-pot that's been set upon it, by all that's holy! It's been at the public-house! Too bad of Mrs. Coggs to send it me up in this state!" said he, handling it as though its touch were contamination.—

(He was to pay only a halfpenny for the perusal of it.) "Faugh! how it stinks!"

"What a horrid beast she must be!" exclaimed Titmouse, after, in like manner as his friend, expelling his mouthful of smoke. "But, since better can't be had, let's hear what news is in it. Demmee! it's the only paper published, in my opinion, that's worth reading!—Any fights astirring?"

"Haven't come to them yet; give a man *time*, Titty!" replied Huckaback, fixing his feet on another chair, and drawing the candle closer to the paper. "It says, by the way, that the Duke of Dunderhead is certainly making up to Mrs. Thumps, the rich cheesemonger's widow;—a precious good hit that, isn't it? You know the Duke's as poor as a rat!"

"Oh! *that's* no news. It's been in the papers for I don't know how long. Egad, 't will quite set him up—and no mistake. Seen the Duke ever?"

"Ye—es! Oh, several times!" replied Huckaback. This was a lie, and Huckaback knew that it was.

"Deuced good-looking, I suppose?"

"Why—middling; I should say middling. Know *some* that needn't fear to compare with *him*—eh! Tit?"—and Huckaback winked archly at his friend, meaning him, however, to consider the words as applicable to the speaker.

"Ah, ha, ha!—a pretty joke! But come, that's a good chap!—You can't be reading both of those two sheets at once—give us the other sheet, and set the candle right betwixt us!—Come, fair's the word among *gents*, you know!"

Huckaback thus appealed to, did as his friend requested; and the two gentlemen read and smoked for some minutes in silence.

"Well—I shall spell over the advertisements now," said Titmouse, very emphatically; "there's a pretty lot of them—and I've read everything else—"

(though precious little there is, *here* besides!)—So, here goes!—One *may* hear of a prime situation, you know—and I'm quite sick of Tag-rag!"

Another interval of silence ensued. Huckaback was deep in the ghastly but instructive details of a trial for murder; and Titmouse, after having glanced listlessly over the entertaining first sheet of advertisements, was on the point of laying down his half of the paper, when he suddenly started in his chair, turned very pale, and stammered—

"Hollo!—hollo, Hucky!—Why"——

"What's the matter, Tit?—eh?" inquired Huckaback, greatly astonished.

For a moment Titmouse made no answer, but, dropping his cigar, fixed his eyes intently on the paper, which began to rustle in his trembling hands. What occasioned this outbreak, with its subsequent agitation, was the following advertisement, which appeared in the most conspicuous part of the "SUNDAY FLASH:"—

"NEXT OF KIN—Important.—The next of kin, if any such there be, of GABRIEL TITTEBAT TITMOUSE, formerly of WHITEHAVEN, cordwainer, and who died somewhere about the year 1793, in London, may hear of something of the GREATEST POSSIBLE IMPORTANCE to himself, or herself, or themselves, by immediately communicating with Messrs. QUIRK, GAMMON, and SNAP, Solicitors, Saffron Hill. No time is to be lost. 9th July 18—.—*The third advertisement.*"

"By George! Here *is* a go!" exclaimed Huckaback, almost as much flustered as Titmouse over whose shoulder he had hastily read the above paragraph.

"We aren't dreaming, Hucky—are we?" inquired Titmouse, faintly, his eyes still glued to the newspaper.

"No—by George! Never was either of us fellows so precious wide awake in our lives before! that I'll answer for!" Titmouse sat still, and turned paler even than before.

"Read it up, Huck!—Let's hear how it *sounds*, and then we shall believe it!" said he, handing the paper to his friend.

Huckaback read it aloud.

"It sounds like something, don't it?" inquired Titmouse, tremulously, his color a little returning.

"Uncommon!—If this isn't *something*, then there's nothing in anything any more!" replied Huckaback, solemnly, at the same time emphatically slapping the table.

"No!—'Pon my soul! but do you really think so?" said Titmouse, seeking still further confirmation than he had yet derived from his senses of sight and hearing.

"I do, by jingo!" repeated Huckaback—"What a go it is!—Well, my poor old mother used to say, 'depend on it, wonders never *will* cease;' and curse me if she ever said a truer word!"

Titmouse again read over the advertisement; and then picking up and relighting his fragment of cigar, puffed earnestly in silence for some moments.

"Such things never happens to such a poor devil of a chap as me!" exclaimed Huckaback, with a sigh.

"What *is* in the wind, I wonder?" muttered Titmouse. "Who knows—hem!—who knows?—But now, *really*"—— he paused, and once more read over the pregnant paragraph.—"It can't—no, curse me, it *can't* be"—— he added, looking very serious.

"What, Tit? *What* can't be?" interrupted Huckaback, eagerly.

"Why, I've been thinking—but what do *you* think, eh?—it can't *hardly* be a cursed hoax of the chaps in the premises at Tag-rag's?"

"Bo!—Is there any of 'em flush enough of money to do the thing? And how should they think it would ever come to be seen by you?—Then, besides, there isn't a chap among them that could come up to the composing a piece of composition like that—no, not for all a whole year's salary—there isn't, by George! You and I couldn't do it, and, of course, *they* couldn't!"

"Ah! I don't know," said Titmouse, doubtfully. "But—honor!—do you really now think there's anything in it?"

"I do—I'm blowed if I don't, Tit!" was the sententious answer.

"Tol de rol, de rol, de rol, de rol—diddl'em—daddl'em—bang!" almost shouted Titmouse, jumping up, snapping his fingers, and dancing about in a wild ecstasy, which lasted for nearly a minute.

"Give me your hand, Hucky," said he presently, almost breathless. "If I *am* a made man—tol de rol, lol de rol, lol de rol, lol!—you see, Huck!—if I don't give you the handsomest breastpin you ever saw? No paste! real diamond!—Hurrah! I will, by jingo!"

Huckaback grasped and squeezed his hand. "We've always been friends, Tit—haven't we?" said he, affectionately.

"My room won't hold me to-night!" continued Titmouse; "I'm sure it won't. I feel as if I was, as you may say, swelling all over. I'll walk the streets all night: I couldn't sleep a wink for the life of me! I'll walk about till the shop opens. Oh, faugh! how nasty! Confound the shop, and Tag-rag, and everything and everybody in it! Thirty-five pounds a year? See if I won't spend as much in cigars the first month!"

"Cigars! Is that your go? Now, *I* should take lessons in boxing, to begin with. It's a deuced high thing, you may depend upon it, and you can't be fit

company for swells without it, Tit! You can't, by Jove!"

"Whatever you like, whatever you like, Hucky!" cried Titmouse—adding, in a sort of ecstasy, "I'm sorry to say it, but how *precious* lucky that my father and mother's dead, and that I'm an only child—too-ra-laddy, too-ra-laddy!" Here he took such a sudden leap, that I am sorry to say he split his trousers very awkwardly, and that sobered him for a moment, while they made arrangements for cobbling it up as well as might be, with a needle and thread which Huckaback always had by him.

"We're rather jumping in the dark a-bit, aren't we, Tit?" inquired Huckaback, while his companion was repairing the breach. "Let's look what it all means—here it is." He read it all aloud again—"greatest possible importance!"—what *can it* mean? Why the deuce couldn't they speak out plainly?"

"What! in a newspaper? Lord, Hucky! how many Titmouses would start up on all sides, if there isn't some already indeed! I wonder what '*greatest possible importance*' can mean, now!"

"Some one's left you an awful lot of money, of course"——

"It's too good to be true"——

"Or you may have made a *smite*; you a'n't such a bad-looking fellow, when you're dressed as you are now—you a'n't indeed, Titty!" Mr. Titmouse was quite flustered with the mere supposition, and also looked as sheepish as his features would admit of.

"E-e-e-eh, Hucky! how ve-ry silly you are!" he simpered.

"Or you may be found out heir to some great property, and all that kind of thing.—But when do you intend to go to Messrs. What's-their-name? I should say, the sooner the better. Come, you've stitched them trousers well enough, now; they'll hold you till you get home, (you do brace up uncommon tight!) and I'd take off my straps, if I was you. Why shouldn't

we go to these gents now? Ah, here they are—Messrs. Quirk, Gammon, and Snap, solicitors."

"I wonder if they're great men? Did you ever hear of them before?"

"Haven't I! Their names is always in this same paper; they are every day getting people off out of all kinds of scrapes—they're the chaps *I* should nat'rally go to if I anyhow got wrong—ahem!"

"But, my dear fellow—*Saffron Hill!*—Low that—devilish low, 'pon my soul! Never was near it in my life."

"But they live there to be near the thieves. Lud, the thieves couldn't do without 'em! But what's that to you! You know 'a very dirty ugly toad has often got a jewel in his belly,' so Shakspeare or some one says. Isn't it enough for *you*, Tit, if they can make good their advertisement? Let's off, Tit—let's off, I say; for you mayn't be able to get there to-morrow—your employers!"——

"My employers! Do you think, Hucky, I'm going back to business after this?"

"Come, come, Titty—not so fast—suppose it all turns out moonshine, after all"—quoth Huckaback, seriously.

"Lord, but I *won't* suppose anything of the sort! It makes me sick to think of nothing coming of it!—Let's go off at once, and see what's to be done!"

So Huckaback put the newspaper into his pocket, blew out the candle, and the two started on their important errand. It was well that their means had been too limited to allow of their indulging to a greater extent than a glass of port-wine negus (that was the name under which they had drunk the "*publican's* port"—*i. e.* a warm sweetened decoction of oak bark, logwood shavings, and a little brandy) between them; otherwise, excited as were the feelings of each of them by the discovery of the evening, they must in all probability have been guilty of some piece of extravagance in the streets. As

it was, they talked very loudly as they went along, and in a tone of conversation pitched perhaps a little too high for their present circumstances, however in unison it might be with the expected circumstances of *one* of them.

In due time they reached the residence of which they were in search. It was a large house, greatly superior to all its dingy neighbors; and on a bright brass plate, a yard long at least, and a foot wide, stood the awe-inspiring words, "QUIRK, GAMMON, & SNAP, SOLICITORS."

"Now, Tit," whispered Huckaback, after they had paused for a second or two—"now for it—pluck up a sperrit—ring!"

"I—I—'pon my life—I feel all of a sudden uncommon funky—I think that last cigar of yours wasn't"——

"Stuff, Tit—ring! ring away! Faint heart never wins!"

"Well, it *must* be done: so—here goes at any rate!" he replied; and with a short nervous jerk, he caused a startling clatter within, which was so distinctly audible without, that both of them instinctively *hemmed*, as if to drown the noise which was so much greater than they had expected. In a very few moments they heard some one undoing the fastenings of the door, and the gentlemen looked at one another with an expression of mingled expectation and apprehension. A little old woman at length, with a candle in her hand, retaining the heavy door-chain in its fastening, peered round the edge of the door at them.

"Who are you?" she exclaimed crustily.

"Is this Messrs.—What is it, Huck?—Oh! Messrs. Quirk & Co.'s?" inquired Titmouse, tapping the end of his cane against his chin, with a desperate effort to appear at his ease.

"Why, where's your eyes?" she replied angrily, "I should think you might have seen what was wrote on this here plate—it's large enough, one should

have thought, to be read by them as *can* read—Is your's Newgate business? Because if——"

"We want—Give us the paper, Hucky"—he added, addressing his companion, who produced it in a moment; and Titmouse would have proceeded to possess the old lady of all his little heart, when she cut him short by saying snappishly—"They aren't none on 'em in; nor never is on Sundays—so you'll just call to-morrow if you wants 'em. What's your names?"

"Mr. Tittlebat Titmouse," answered that gentleman, with a very particular emphasis on every syllable.

"Mr. *who*?" exclaimed the old woman, opening her eyes very wide, and raising her hand to the back of her ear. Mr. Titmouse repeated his name more loudly and distinctly.

"Tippetytippety—what's that?"

"No, no!" exclaimed Titmouse, peevishly; "I said, Mr. Tit-el-bat Titmouse!—will that suit you?"

"Tick-a-tick-a-tick?—Well, gracious! if ever I heard such a name. Oh!—I see!—you're making a fool of me! Get off, or I'll call a constable in!—Get along with you, you couple of jail-birds! Is this the way"——

"I tell you," interposed Mr. Huckaback, angrily, "that this gentleman's name is Mr. Tittlebat Titmouse; and you'd better take care what you're at, old woman, for we've come on business of *wital consequence*!"

"I dare say it'll keep, then, till to-morrow," tartly added the old woman.

The friends consulted for a moment, and then Titmouse asked if he might come in and write a letter to Messrs. Quirk and Co.

"No indeed!" said she; "how do I know who you are? There's a public-house close by, where you may write what you like, and bring it here, and they'll get it the first thing in the morning. So that's what you may take

away with you!"—with which the complaisant old janitrix shut the door in their faces.

"Huck, 'pon my life, I am afraid there's nothing in it," said Titmouse, despondingly, to his friend—both of them remaining rooted to the spot.

"Oudacious old toad!" muttered Huckaback, very indignantly.

"Hucky—I'm *sure* there's nothing in it!" exclaimed Titmouse, after a long pause, looking earnestly at his friend, hoping to draw from him a contrary opinion.

"I—I own I don't half like the looks of it," replied Huckaback, putting his newspaper into his pocket again; "but we'll try if we can't write a letter to sound 'em, and so far take the old creature's advice. Here's the public-house she told us of. Come, let's see what's to be done!"

Titmouse, greatly depressed, followed his friend; and they soon provided themselves with two glasses of stout, and after a little difficulty, with implements for writing. That they made good use of their time and materials, let the following epistle prove. It was their joint composition, and here is an exact copy of it:—

"*To Messrs. QUIRK, GAMMON and SNAP.*

"SIR,

"Your Names being Put In an Advertisement in This present *Sunday Flash*, Newspaper of To Day's Date, Mr. T. T. Begs To inform Your respectable House I feel Uncommon anxious To speak with them On This *truly interesting subject*, seeing It mentions The Name Of Gabriel Tittlebat Titmouse, which Two last Names Of That Deceased Person *my Own Name Is*, which can Any Day (As soon As Possible) call and *prove* To you, By telling you The Same, *truly*. He being Engaged in Business During the week Very close, (for The Present,) I hope that If they Have Anything particular To say To Him, they will write To me without The

least Delay, and please address T. T., At Tag-rag and Co.'s, No. 375, Oxford Street, Post-Paid, which will ensure Its Being duly Taken In By my Employers, and am,

"Gents,
"Your's to Command,

"TITTLEBAT TITMOUSE.

"P. S.—My Friend, which Is With me writing This, (Mr. Robert Huckaback,) can prove who I am If necessiated so to do.

"N. B.—Shall have no objections to do the Liberal Thing if anything suitable Turns Up Of It.

"T. T.
"(Sunday Evening, 9/7/18—.

"Forgot to Say, am The only Child of my Honored Parents, one of which (my Mother) Died; before I knew them In Lawful Wedloc, and Was 27 last Birth Day, Never having Seen your Advertisement Till This Night, w^h, if Necessary *can Prove*.)"

This perspicuous and truly elegant performance having been thrice subjected to the critical examination of the friends, (the paragraph concerning Huckaback having been inserted at the instance of that gentleman, who wished to be mixed up from the beginning with so promising an affair,) was then folded up, and directed to "Messrs. Quirk and Co.," a great straggling wet wafer having been first put upon it. It was safely deposited, a few minutes afterwards, with the old lady at Messrs. Quirk, Gammon, and Snap's; and then the two West-End gentlemen hastened away from that truly plebeian part of the town! Under three different gas-lights did they stop, take out the newspaper, and spell over the advertisement; by which ingenious processes they at length succeeded in satisfying themselves that there *was* something in it—a fact of which, upon the old woman shutting the door in their faces, it may be recollected they

had had grievous misgivings. They parted, however, with a considerable abatement of the excitement with which they had set out on their voyage of discovery.

Mr. Titmouse did not, on reaching his room, take off and lay aside his precious Sunday apparel with his accustomed care and deliberation. On the contrary, he peeled it off, as it were, and threw himself on the bed as quickly as possible, in order that he might calmly revolve the immense event of the day in his little mind, which it had agitated like a stone thrown into a stagnant pool by the roadside. Oh, how restless was he!—not more so could he have been had he lain between horse-hair sheets. He repeatedly got up and walked about two or three little steps, which were all that his room admitted of. At the very first peep of daylight he started out of bed, got out of his pocket the newspaper which Huckaback had lent him, strove to decipher the advertisement, and then sank into bed again—but not to sleep, till four or five o'clock; having nevertheless to rise at half-past six, to resume his detested duties at Tag-rag and Co.'s, whose shop he assisted in opening at seven o'clock, as usual. When he and his shopmates were sitting together at breakfast, he could not for the life of him help letting out a little, vaguely and mysteriously, about "something that *might* happen in the course of the day;" and thereby succeeded in satisfying his experienced companions that he expected the visit of a policeman, for some *row* he had been concerned in over-night.—Well:—eight, nine, ten o'clock wore away heavily, and nothing transpired, alas! to vary the monotonous duties in which Mr. Titmouse was engaged; bale after bale, and package after package, he took down and put up again, at the bidding of pretty, capricious customers; silk, satin, bombazines, crapes, muslins, ribbons, gloves, he assisted in displaying, disposing of, or replacing as usual; but it was clear that his powerful understanding could no longer settle itself, as before, upon

his responsible and arduous duties. Every other minute he cast a feverish furtive glance towards the door. He almost dropped, at one time, as a postman crossed from the opposite side of the street, as if to enter their shop—then passing on immediately, however, to the next door. Not a person, in short, entered the premises, whom he did not scrutinize narrowly and anxiously, but in vain. No—buying and selling was the order of the day, as usual!—Eleven o'clock struck, and he sighed. "You don't seem well," said a pretty young woman, to whom, in a somewhat absent manner, he was exhibiting and describing the qualities of some cambric. "Oh—ye—es, uncommon!" he replied; "never better, ma'am, than when so well employed!" accompanying the latter words with what he conceived to be a very arch, but which was in fact a very impudent, look at his fair customer. At that moment a voice called out to him from the farther end of the shop, near the door—"Titmouse! Wanted!"

"Coming!" he shouted, turning as white as the cambric he held in his hands—which became suddenly cold; while his heart went thump, thump, as he hastily exclaimed to the astonished lady, "Excuse me, ma'am, if you please—Jones," addressing the shopman next him, "will you attend to this lady?" and he hastened whither he had been called, amid a prevalent grin and "hem!" from his companions on each side, as he passed along the shop, till he reached the spot where stood the stranger who had inquired for him. He was of a slight and gentlemanly figure, above the average height. His countenance was very striking: he was dressed with simplicity—somewhat carelessly perhaps; and appeared somewhere about thirty-six or thirty-seven years of age. He bowed slightly as Titmouse approached him, and an air of very serious surprise came over his expressive countenance.

"Mr. Titmouse?" he inquired blandly.

"Ye-e-s, sir, at your service," replied Titmouse, trembling involuntarily all over. The stranger again slightly inclined towards him, and—still more slightly—touched his hat; fixing on him, at the same time, an inquisitive penetrating eye, which really abashed, or rather perhaps alarmed him.

"You left—you favored us by leaving—a note at our office last night, sir, addressed to Messrs. Quirk, Gammon, and Snap?" he inquired, lowering his voice to a whisper.

"Yes, sir, hoping it was no"——

"Pray, Mr. Titmouse, can we be alone for about five or ten minutes?"

"I—I—don't exactly know, *here*, sir; I'm afraid—against the rules of the house—but I'll ask. Here *is* Mr. Tag-rag.—May I step into the cloak-room with this gentleman for a few minutes, sir?" he continued, addressing his imperious employer, who, with a pen behind his right ear, his left hand in his breeches pocket, and his right hand impatiently tweedling about his watch-seals, had followed Titmouse, on hearing him inquired for in the manner I have described, and stood at a yard or two's distance, eying the two with a truculent dissatisfied look, wondering what on earth any one *could* want with one of *his* young men.

As Mr. Tag-rag will be rather a prominent figure on my canvas, I may as well here give the reader a slight preparatory sketch of that gentleman. He was about fifty-two years old; a great tyrant in his little way; a compound of ignorance, selfishness, cant, and conceit. He knew nothing on earth except the price of his goods, and how to make the most of his business. He was of middle size, with a tendency to corpulence; and almost invariably wore a black coat and waistcoat, a white neck handkerchief very primly tied, and gray trousers. He had a dull, gray eye, with white eyelashes, and no eyebrows; a forehead which seemed ashamed of his face, it retreated so far and so abruptly back from it; his face was pretty deeply pitted with the

small-pox; his nose—or rather semblance of a nose—consisted of two great nostrils looking at you—as it were, impudently—out of the middle of his face; there was a perfect level space from cheek-bone to cheek-bone; his gray whiskers, trimly and closely cut, came in points to each corner of his mouth, which was large, shapeless, and sensual-looking. This may serve, for the present, to give you an idea of the man who had contrived to excite towards himself the hatred and contempt of everybody over whom he had any control—with whom in fact he had anything to do.

"You know quite well, sir, we never allow anything of the sort," was his short reply, in a very disagreeable tone and manner, to Titmouse's modest request.

"May I beg the favor of a few minutes' private conversation with Mr. Titmouse," said the stranger, politely, "on a matter of the last importance to him? My name, sir, is Gammon, and I am a solicitor of the firm of Quirk, Gammon, and Snap"——

"Why, sir," answered Tag-rag, somewhat cowed by the calm and gentlemanly, but at the same time decisive manner of Mr. Gammon—"it's really very inconvenient, and decidedly against the rules of the house, for any of my young men to be absent on business of their own during *my* business hours; but—I suppose—what must be must be—I'll give him ten minutes—and he'd better not stay longer," he subjoined fiercely—looking significantly first at his watch, and then at Titmouse. "It's only for the sake of my other young men, you know, sir. In a large establishment like ours, we're obliged, you know, sir," &c. &c. &c., he added, in a low cringing tone, deprecatory of the contemptuous air with which he *felt* that Mr. Gammon was regarding him.

That gentleman, with a slight bow, and a sarcastic smile, presently quitted the shop, accompanied by Titmouse, who scarce knew whether his

head or heels were uppermost.

"How far do you live from this place, Mr. Titmouse?" inquired Mr. Gammon, as soon as they had got into the street.

"Not four minutes' walk, sir; but—hem!"—he was flustered at the idea of showing so eminent a person into his wretched room—"Suppose we were to step into this tavern here, sir—I dare say they have a room at our service"——

"Pray, allow me to ask, Mr. Titmouse—have you any private papers—family writings, or things of that sort, at your rooms?"

Titmouse seemed considering.

"I—I think I have, sir," he replied—"one or two—but they're of no consequence."

"Are you a *judge* on that point, Mr. Titmouse?" inquired Mr. Gammon, with a smile; "pray let us, my dear sir, at once proceed to your rooms—time is very short and valuable. I should vastly like to look at these same insignificant papers of yours!"

In less than two minutes' further time, Mr. Gammon was sitting at Titmouse's little rickety round table, at his lodgings, with a sheet of paper before him, and a small pencil-case in his hand, asking him a number of questions concerning his birth and family connections, and taking down his answers very carefully. Mr. Titmouse was surprised at the gentleman's knowledge of the family history of the Titmouses. As for papers, &c., Mr. Titmouse succeeded in producing four or five old letters and memoranda from the bottom of his trunk, and one or two entries, in faded ink, on the fly-leaf of a Bible of his father's, which he did not recollect having opened before for very many years, and of which said entries, till pressed on the subject by Mr. Gammon, he had been hardly aware of even the existence. With these several documents Mr. Gammon was so much struck that he

proposed to take them away with him, for better and more leisurely examination, and safer custody, at their office; but Mr. Titmouse significantly hinted at his very recent acquaintance with Mr. Gammon, who, he intimated, was at liberty to come and make exact copies of them whenever he pleased, in his (Mr. Titmouse's) presence.

"Oh, certainly—yes," replied Mr. Gammon, slightly coloring at the distrust implied by this observation; "I applaud your caution, Mr. Titmouse. By all means keep these documents, and most carefully; because, (I do not say that they *are*,) but it is quite possible that they may become rather valuable—to *you*."

"Thank you, sir; and now, hoping you'll excuse the liberty," said Titmouse, with a very anxious air, "I should most uncommonly like to know what all this means—what is to turn up out of it all?"

"The law, my dear sir, is proverbially uncertain"——

"Oh, Lord! but the law can surely give one a *hint*"——

"*The law never hints*," interrupted Mr. Gammon, impressively, with a bland smile.

"Well then, how did you come, sir, to know that there ever was such a person as Mr. Gabriel Titmouse, my father? And what can come from *him*, seeing he was only a bit of a shoemaker—unless he's *heir* to something?"

"Ah, yes—exactly; those are very interesting questions, Mr. Titmouse—very!"——

"Yes, sir; and them and many more I was going to ask long ago, but I saw you were"——

"Sir, I perceive that we have positively been absent from your place of business nearly an hour—your employers will be getting rather impatient."

"Meaning no offence, sir—bother *their* impatience! *I'm* impatient, I assure you, to know what all this means. Come, sir, 'pon my life I've told

you everything! It isn't quite fair!"

"Why, certainly, you see, Mr. Titmouse," said Gammon, with an agreeable smile—(it was that smile of his which had been the making of Mr. Gammon)—"it is only candid in me to acknowledge that your curiosity is perfectly reasonable, and your frankness very obliging; and I see no difficulty in admitting at once, that *I have* had a—motive"——

"Yes, sir—and all that—*I* know, sir,"—hastily interrupted Titmouse, but without irritating or disturbing the placid speaker.

"And that we waited with some anxiety for the result of our advertisement."

"Ah, you can't escape from *that*, you know, sir!" interposed Titmouse, with a confident air.

"But it is a maxim with us, my dear sir, never to be premature in anything, especially when it may be—very prejudicial; you've really no idea, my dear Mr. Titmouse, of the world of mischief that is often done by precipitancy in legal matters; and in the present stage of the business—the *present* stage, my dear sir—I really do see it necessary not to—do anything premature, and without consulting my partners."

"Lord, sir!" exclaimed Titmouse, getting more and more irritated and impatient as he reflected on the length of his absence from Tag-rag & Co.'s.

"I quite feel for your anxiety—so perfectly natural"——

"Oh, dear sir! if you'd only tell me the *least bit*"——

"If, my dear sir, I were to disclose just now the exact object we had in inserting that advertisement in the papers"——

"How did you come to know of it at all, sir? Come, there can't be any harm in *that* anyhow"——

"Not the least, my dear sir. It was in the course of business—in the course of business."

"Is it money that's been left me—or—anything of that sort?"

"It quite pains me, I assure you, Mr. Titmouse, to suppose that our having put this advertisement into the papers may have misled you, and excited false hopes—I think, by the way"—added Gammon, suddenly, as something occurred to him of their previous conversation, which he was not quite sure of—"you told me that that Bible had been given you by your father."

"Oh yes, sir! yes—no doubt of it; surely *that* can't signify, seeing he's dead, and I'm his only son?" asked Titmouse, quickly and eagerly.

"Oh, 'tis only a circumstance—a mere circumstance; but in business, you know, Mr. Titmouse, every little helps—and you really, by the way, have no recollection of your mother, Mr. Titmouse?"

"No, sir, I said so! And—meaning no offence, sir—I can't abide being put off in this kind of way,—I must own!—See what I have told you—you've told *me* nothing at all. I hope you haven't been only making me a cat's-paw of? 'Pon my soul, I *hate* being made a cat's-paw of, sir!"

"Good heavens, Mr. Titmouse! how can you imagine it? Matters in some degree connected with one or two former members of your family, are at this moment the object of some little of our anxiety"——

"Not meaning it rudely, sir—please to tell me at once, plainly, am I to be the better for anything you're now about, or was that advertisement all fudge?"

"That may or may not be, sir," answered Mr. Gammon, in the same imperturbable manner, drawing on his gloves, and rising from his chair. "In justice to yourself, and other parties concerned"——

"Oh! is anybody to *share* in it?" exclaimed Titmouse, alarmedly.

"I am sure," said Gammon, smiling, "that you will give us credit for consulting your best interests, if they should prove to be in any degree

concerned in our present inquiries! We should, in that event, sincerely desire to advance them. But—it is *really*," looking at his watch, "upwards of an hour since we quitted your place of business—I fear I shall get into disgrace with that respectable gentleman, your employer. Will you favor us with a call at our office to-morrow night, when the business of the day is over? When do you quit at night?"

"About half-past nine o'clock, sir; but really—to-morrow night! Couldn't I come to-night, sir?"

"Not to-night, I fear, my dear sir. We have a very important engagement. Let us say to-morrow night, at a quarter past ten—shall we say that hour?" inquired Mr. Gammon, with an imperative smile.

"Well, sir, if not before—yes—I'll be with you. But I *must* say"—— quoth Titmouse, with a sulky disconcerted air.

"Good-day, Mr. Titmouse," said Mr. Gammon—they were by this time in Oxford Street again.—"Good-day, my dear sir—good-day—to-morrow night, as soon after ten as possible—eh? Good-by."

This was all that Mr. Titmouse could get out of Mr. Gammon, who, hailing a coach off the stand beside them, got in, and it was soon making its way eastward. What a miserable mixture of doubts, hopes, and fears, had he left Titmouse! He felt as if he were a squeezed orange; he had told everything he knew about himself, and got nothing in return out of the smooth, imperturbable, impenetrable Mr. Gammon, but empty civilities.—"Lord, Lord!" thought Titmouse, as Mr. Gammon's coach turned the corner; "what would I give to know half about it that that gent knows! But Mr. Tag-rag! by Jove! what *will* he say? It's struck twelve. I've been more than an hour away—and he gave me ten minutes! Sha'n't I catch it?"

And he did. Almost the very first person whom he met, on entering the shop, was his respected employer; who, plucking his watch out of his fob,

and looking furiously at it, motioned the trembling Titmouse to follow him to the farther end of the long shop, where there happened to be then no customers.

"Is this your ten minutes, sir, eh?"

"I am sorry"——

"Where may you have been, sir, all this while?"

"With that gentleman, sir, and I really did not know"——

"You didn't know, sir! Who cares what you know, or don't know? *This*, at any rate, you know—that you ought to have been back fifty-five minutes ago, sir. You do, sir! Isn't your time my property, sir? Don't I pay for it, sir? An hour!—in the middle of the day! I've not had such a thing happen this five years! I'll stop it out of your salary, sir."

Titmouse did not attempt to interrupt him.

"And pray what have you been gossiping about, sir, in this disgraceful manner?"

"Something that he wanted to say to me, sir."

"You low puppy!—do you suppose I don't see your impertinence? I *insist*, sir, on knowing what all this gossiping with that fellow has been about?"

"Then you *won't* know, sir, that's flat!" replied Titmouse, doggedly; returning to his usual station behind the counter.

"I *sha'n't*!!" exclaimed Mr. Tag-rag, almost aghast at the presumption of his inferior.

"No, sir, you *sha'n't* know a single word about it."

"Sha'n't know a single word about it! Vastly good, sir!!—Do you know whom you're talking to, sir? Do you really know in whose presence you are, sir?" inquired Mr. Tag-rag, nearly trembling with rage.

"Mr. Tag-rag, I presume, of the firm of Tag-rag and Co.," replied Titmouse, looking him full in the face.—One or two of his companions near him, almost turned pale at the audacity he was displaying.

"And who are *you*, sir, that dare to presume to bandy words with *ME*, sir?" inquired Tag-rag, his deeply pitted face having turned quite white, and his whole body quivering with rage.

"Tittlebat Titmouse, at your service," was the answer, in a glib tone, and with a sufficiently saucy air; for Titmouse then felt that he had passed the Rubicon.

"You heard that, I hope?" inquired Tag-rag, with forced calmness, of a pale-faced young man, the nearest to him.

"Ye—es, sir," was the meekly reluctant answer.

"This day month you leave, sir!" said Mr. Tag-rag, solemnly—as if conscious that he was passing a sort of sentence of death upon the presumptuous delinquent.

"Very well, Mr. Tag-rag—anything that pleases you pleases your humble servant. I *will* go this day month, and welcome—I've long wished—and now, p'r'aps," he added significantly—"it's rather convenient than otherwise"——

"Then you *sha'n't* leave, sir," said Tag-rag, furiously.

"But I will, sir. You've given me warning; and, if you haven't, now I give *you* warning," replied Titmouse; turning, however, very pale, and experiencing a certain sudden sinking of the heart—for this was a serious and most unlooked-for event, and for a while put out of his head all the agitating thoughts of the last few hours. Poor Titmouse had enough to bear—what with the delicate raillery and banter of his refined companions for the rest of the day, find the galling tyranny of Mr. Tag-rag, (who dogged him about all day, setting him about the most menial and troublesome

offices he could, and constantly saying mortifying things to him before customers,) and the state of miserable suspense in which Mr. Gammon had thought fit to leave him; I say that surely all this was enough for him to bear without having to encounter at night, as he did, on his return to his lodgings, his blustering landlady, who vowed that if she sold him out and out she would be put off no longer—and his pertinacious and melancholy tailor, who, with sallow unshaven face, told him of five children at home, all ill of the small-pox, and his wife in an hospital—and he *implored* a payment on account. This sufferer succeeded in squeezing out of Titmouse seven shillings on account, and his landlady extorted ten; which staved off a distress—direful word!—for some week or two longer; and so they left him in the possession of eight shillings or so, to last till next quarter-day—six weeks off! He sighed heavily, barred his door, and sat down opposite his little table, on which was nothing but a solitary thin candle, and on which his eyes rested unconsciously, till the stench of it, burning right down into the socket, roused him from his wretched revery. Then he unlocked his box, and took out his Bible and the papers which had been produced to Mr. Gammon, and gazed at them with intense but useless scrutiny. Unable to conjecture what bearing they could have upon himself or his fortunes, he hastily replaced them in his box, threw off his clothes, and flung himself on his bed, to pass a far more dismal night than he had known for years.

He ran the gantlet at Messrs. Tag-rag and Co.'s all Tuesday as he had done on the day preceding. One should have supposed that when his companions beheld him persecuted by their common tyrant, whom they all equally hated, they would have made common cause with their suffering companion, or at all events given no countenance to his persecution; yet it was far otherwise. Without stopping to analyze the feeling which produced it, (and which the moderately reflective reader may easily analyze for

himself if so disposed,) I am grieved to have to say, that when all the young men saw that Tag-rag would be gratified by their *cutting* poor Titmouse, who, with all his little vanities, fooleries, and even selfishness, had never personally offended or injured any of them—they did cut him; and, when Tag-rag observed it, his miserable mind was unspeakably gratified with what they had done: and he spoke to all of them with unusual blandness; to the sinner, Titmouse, with augmented bitterness and sternness.

CHAPTER II.

A few minutes after ten o'clock that night, a gentle ringing at the bell of Messrs. Quirk, Gammon, and Snap's office, announced the arrival of poor Titmouse. The door was quickly opened by a very fashionably dressed clerk, who seemed in the act of quitting for the night.

"Ah—Mr. Titmouse, I presume?" he inquired, with a kind of deference in his manner to which Titmouse had never been accustomed.

"The same, sir—Tittlebat Titmouse."

"Oh! allow me, sir, to show you in to Messrs. Quirk, Gammon, and Snap; I know they're expecting to see you. It's not often they're here so late! Walk in, sir"—— With this he led the way to an inner room, and opening a green-baize door in the farther side of it, announced and showed in Mr. Titmouse, and left him—sufficiently flustered. Three gentlemen were sitting at a large table, on which he saw, by the strong but circumscribed light of two shaded candlesticks, were lying a great number of papers and parchments. The three gentlemen rose when he entered, Mr. Quirk and Mr. Snap involuntarily starting on first catching sight of the figure of Titmouse: Mr. Gammon came and shook hands with him.

"Mr. Titmouse," said he, with a very polite air, "let me introduce you to Mr. Quirk"—(This was the senior partner, a short, stout elderly gentleman, dressed in black, with a shining bald crown fringed with white hair, and sharp black eyes, and who looked very earnestly, nay, with even a kind of dismay, at him)—"and Mr. Snap"—(This was the junior partner, having recently been promoted to be such after ten years' service in the office, as managing clerk: he was about thirty, particularly well dressed, slight, active, and with a face like a terrier—so hard, sharp, and wiry!) Of Mr. Gammon

himself, I have already given the reader a slight notion. He appeared altogether a different style of person from both his partners. He was of most gentlemanly person and bearing—and at once acute, cautious, and insinuating—with a certain something about the eye, which had from the first made Titmouse feel uneasy on looking at him.

"A seat, sir," said Mr. Quirk, rising, and placing a chair for him, on which he sat down, they resuming theirs.

"You are punctual, Mr. Titmouse!" exclaimed Mr. Gammon, kindly; "more so than, I fear, you were yesterday, after our long interview, eh? Pray what did that worthy person, Mr. Rag-bag—or whatever his name is—say on your return?"

"Say, gents?"—(he tried to clear his throat, for he spoke somewhat more thickly, and his heart beat more perceptibly than usual)—"Meaning no offence—I'm ruined by it, and no mistake."

"Ruined! I'm sorry to hear it," interposed Mr. Gammon, with a concerned air.

"I am, indeed, sir. Such a towering rage as he has been in ever since; and he's given me warning to go on the 10th of next month." He thought he observed a faint smile flit over the faces of all three. "He has, indeed!"

"Dear me, Mr. Titmouse!—Did he allege any reason for dismissing you?" keenly inquired Mr. Quirk.

"Yes, sir"——

"What might it have been?"

"Stopping out longer than I was allowed, and refusing to tell him what this gentleman and I had been talking about."

"Don't think that'll do; sure it won't!" briskly exclaimed Mr. Snap; "no just cause of dismissal that," and he jumped up, whisked down a book from the shelves behind him, and eagerly turned over the leaves.

"Never mind that now, Mr. Snap," said Mr. Quirk, rather petulantly; "surely we have other matters to talk about to-night!"

"Asking pardon, sir, but I think it *does* matter to me, sir," interposed Titmouse; "for on the 10th of next month I'm a beggar—being next door to it *now*."

"Not quite, we trust," said Mr. Gammon, with a benignant smile.

"But Mr. Tag-rag said he'd make me as good as one."

"That's evidence to show malice," again eagerly interjected Mr. Snap, who was a second time tartly rebuffed by Mr. Quirk; even Mr. Gammon turning towards him with a surprised—"Really, Mr. Snap!"

"So Mr. Tag-rag said he'd make you a beggar?" inquired Mr. Quirk.

"He vowed he would, sir!—He did, as true as the gospel, sir!"

"Ha, ha, ha!" laughed Mr. Quirk and Mr. Gammon—but such a laugh!—not careless or hearty, but subdued, and with a dash of deference in it. "Well—it perhaps *may* not signify much, by that time;" said Mr. Quirk, and laughed again, followed by the soft laugh of Mr. Gammon, and a kind of sharp quick sound, like a bark, from Mr. Snap.

"But, gents, you'll excuse me if I say I think it *does* signify to *me*, and a'n't any laughing matter, by any means!" quoth Titmouse, earnestly, and coloring with anger. "Without being rude, I'd rather come to business, if there's any to be done, without so much laughing at one."

"Laughing at you! my dear sir,—no, no!" exclaimed all three in a breath—"laughing *with* you," said Mr. Quirk!—"By the time you mention, you may perhaps be able to laugh at Mr. Rag-bag, and everybody else, for"—

[—"No use mincing matters?" he whispered, in a low tone, to Mr. Gammon, who nodded, but in apparently very reluctant acquiescence, and fixed his eyes earnestly on Titmouse.]

"I really think we are warranted, sir, in preparing you to expect by that time—that is, you will understand, sir, if our efforts are successful in your behalf, and if you yield yourself implicitly in all things to our guidance—that is *absolutely essential*—a prospect—we say at present, you will observe, *only* a prospect—of a surprising and splendid change in your circumstances!" Titmouse began to tremble violently, his heart beat rapidly, and his hands were bedewed with a cold moisture.

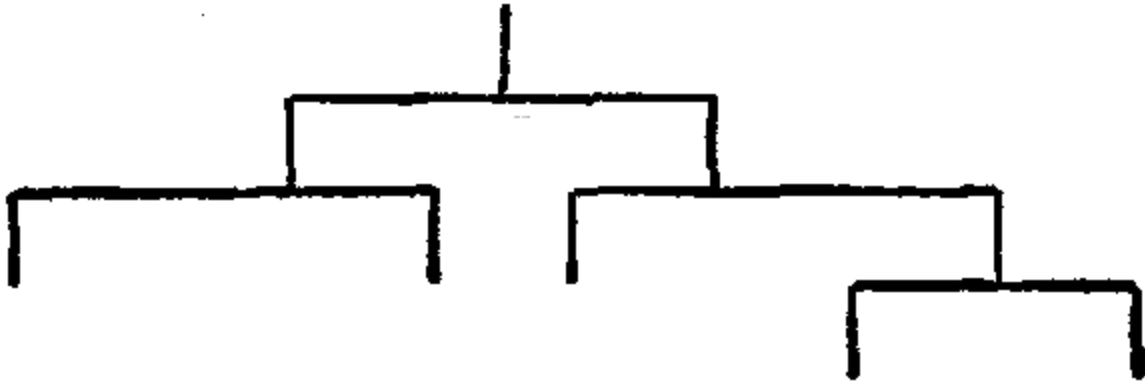
"I hear, gents," said he, thickly; and he also heard a faint ringing in his ears.

"It's not impossible, sir, in plain English," continued Mr. Quirk, himself growing a little excited with the important communication which trembled on the tip of his tongue, "that you may at no distant time (if you really turn out to be the person we are in search of) be put into possession of an estate of somewhere about Ten Thousand a-year"——

The words seemed to have struck Titmouse blind—as he saw nothing for some moments; then everything appeared to be swimming around him, and he felt a sort of faintness or sickness stealing over him. They had hardly been prepared for their communication's affecting their little visitor so powerfully. Mr. Snap hastened out, and in again, with a glass of water; and the earnest attentions of the three soon restored Mr. Titmouse to his senses. It was a good while, however, before he could appreciate the little conversation which they now and then addressed to him, or estimate the full importance of the astounding intelligence which Mr. Quirk had just communicated, "Beg pardon—but may I make free to ask for a little brandy and cold water, gents? I feel all over in a kind of tremble," said he, some little time afterwards.

"Yes—by all means, Mr. Titmouse," replied Mr. Quirk—"Mr. Snap, will you be kind enough to order Betty to bring in a glass of cold brandy and

water from the Jolly Thieves, next door?"—Snap shot out, gave the order, and returned in a trice. The old woman in a few minutes' time followed, with a large tumbler of dark brandy and water, quite hot, for which Mr. Gammon apologized, but Mr. Titmouse said he preferred it so—and soon addressed himself to the inspiriting mixture. It quickly manifested its influence, reassuring him wonderfully. As he sat sipping it, Messrs. Quirk, Gammon, and Snap being engaged in an earnest conversation, of which he could not comprehend a word, he had leisure to look about him, and observed that there was lying before them a large sheet of paper, at which they all of them often and earnestly looked, filled with marks, so—



with writing at the ends of each of them, and round and square figures. When he saw them all bending over and scrutinizing this mysterious object, it puzzled him (and many a better head than his has a pedigree puzzled before) sorely, and he began to suspect it was a sort of conjuring paper!—

"I hope, gents, that paper's all right—eh?" said he, supported by the brandy, which he had nearly finished. They turned towards him with a smile of momentary surprise, and then—

"We hope so—a vast deal depends on it," said Mr. Quirk, looking over his glasses at Titmouse. Now what *he* had hinted at, as far as he could venture to do so, was a thought that glanced across his as yet unsettled brain, that there might have been invoked more than *mere earthly*

assistance; but he prudently pressed the matter no farther—that was all Messrs. Quirk, Gammon, and Snap's look-out; *he* had been no party to anything of the sort, nor would he knowingly. He also observed the same sheets of paper written all over, which Mr. Gammon had filled up at his (Titmouse's) room, the night before; and several new, and old-looking, papers and parchments. Sometimes they addressed questions to him, but found it somewhat difficult to keep his attention up to anything that was said to him for the wild visions which were chasing one another through his heated brain; the passage of which said visions was not a little accelerated by the large tumbler of brandy and water which he had just taken.

"Then, in point of fact," said Mr. Quirk, as Messrs. Gammon and Snap simultaneously sat down, after having been for some time standing poring over the paper before Mr. Quirk. "This Tittlebat Titmouse's title must have accrued in 18—. That's the point—eh, Gammon?"

"Precisely so," said Mr. Gammon, calmly.

"To be sure," confidently added Snap; who having devoted himself exclusively all his life to the sharpest practice of the criminal law, knew about as much of real property law as a snipe—but it would not have done to appear ignorant, or taking no part in the matter, in the presence of the heir-at-law, and the future great client of the House.

"Well, Mr. Titmouse," at length said Mr. Quirk, with a sort of grunt, laying aside his glasses—"if *you* turn out to be the Titmouse we have been speaking of, you are likely, through our immense exertions, to become one of the luckiest men that ever lived! We may be mistaken, but it appears to us that we shall by and by be able to put you into possession of a very fine estate in Yorkshire, worth some £10,000 or £12,000 a-year at the least!"

"You—don't—say—so!" exclaimed Titmouse, elevating his hands and opening his eyes with amazement—"Oh, gents, I do believe we're all

dreaming! Is it all true, indeed?"

"It is, Mr. Titmouse—and we are very proud and happy indeed to be the honored instruments of establishing your rights, my dear sir," said Mr. Gammon, in a most impressive manner.

"Then all the money that's been spent this ten or twelve years has been *my* money, has it?"

"*If* we are right, it is undoubtedly as you say," answered Mr. Quirk, giving a quick apprehensive glance at Mr. Gammon.

"Then there'll be a jolly reckoning for some one, shortly—eh? My stars!"

"My dear Mr. Titmouse," said Mr. Gammon, gravely, "you have no more than a just regard for your own interests. There *will* be a reckoning, and a very terrible one ere long, for somebody—but we've a vast deal to go through, and a vast deal of money to be spent, before we come to discuss *that* matter! Only let us have the unspeakable happiness of seeing you once fairly in possession of your estates, and our office shall know no rest till you have got all you may be entitled to—even to the uttermost farthing!"

"Oh, never fear our letting them rest!" said Mr. Quirk, judiciously accommodating himself to the taste and apprehension of his excited auditor—"Those that must give up the goose, must give up the giblets also—ha, ha, ha!" Messrs. Gammon and Snap echoed the laugh, duly tickled with the joke of the head of the firm.

"Ha, ha, ha!" laughed Mr. Titmouse, immensely excited by the conjoint influence of the brandy, and the news of the night; "capital! capital! hurrah! Such goings on there will be! You're all of the right sort, gents, I see! 'Pon my life, law for ever! There's *nothing* like it! Let's all shake hands, gents! Come, if you please, all together! all friends to-night!" And the little fellow grasped each of the three readily-proffered right hands of Messrs. Quirk,

Gammon, and Snap, with an energy that was likely to make all the high contracting parties to that quadruple alliance, remember its ratification.

"And is it all a *ready-money* affair, gents?—or *rent*, and all *that* kind of thing?" he inquired, after many eloquent expressions of delight.

"Why, almost entirely the latter," answered Mr. Quirk, "except the accumulations."

"Then, 'pon my soul—I'm a great landlord, am I?"

"Indeed, my dear Mr. Titmouse, you are—(that is, unless we have made a blunder such as—I will say—our house is not *often* in the habit of making)—and have two very fine houses, one in town and the other in the country."

"Capital! delightful! I'll live in both of them—we'll have *such* goings on!—And is it *quite* up to the mark of £10,000 a-year?"

"We really entertain no doubt at present that it is"——

"And such as that I can spend all of it, every year?"

"Certainly—no doubt of it—not the least. The rents are paid with most exemplary punctuality—at least," added Mr. Gammon, with a captivating, an irresistible smile, and taking him affectionately by the hand—"at least they *will* be, as soon as we have them fairly in *our* management."

"Oh, *you're* to get it all in for me, are you?" he inquired briskly. The three partners bowed, with the most deprecatingly-disinterested air in the world; intimating that, for *his* sake, they were ready to take upon themselves even *that* troublesome responsibility.

"Capital! couldn't be better! couldn't be better! Ah, ha, ha—you've caught the goose, and must bring me its eggs. Ah, ha, ha! a touch in *your* line, old gent!" said he, slapping Mr. Quirk's knee.

"Ha, ha, ha! excellent! ah, ha, ha!" laughed the three partners at the wit of their new client. Mr. Titmouse joined them, and snapped his fingers in the air. Then he added suddenly—

"Lord—by the way—I've just thought of Tag-rag and Company's—I seem as if I hadn't seen or heard of those gents for Lord knows how long! Only fancy old Tag-rag making me a beggar on the 10th of next month—ha, ha, ha!—I sha'n't see *that* infernal hole any more, anyhow!"

["There!" whispered Mr. Gammon, suddenly and apprehensively, in the ear of Mr. Quirk, "you hear that? A little wretch! We have been perfectly insane in going so far already with him! Is not this what I predicted?"—"I don't care," said Mr. Quirk, stubbornly. "Who first found it out, Mr. Gammon? and who's to be at the expense and responsibility? Pshaw! I know what I'm about—I'll make him knuckle down—never fear me! Caleb Quirk a'n't a man to be trifled with!"]

"*That*," continued Titmouse, snapping his fingers with an air of defiance—"for Mr. Tag-rag! *That* for Mother Squallop—Ah, ha, gents! It won't do to go back to that—eugh!—eh? will it?—you know what I mean! Fancy Mr. Tittlebat Titmouse—or Mr. Tittlebat Titmouse, *Esquire*—standing behind"——

The partners looked rather blank at this unexpected sally.

"We would venture to suggest, Mr. Titmouse," said Mr. Gammon, seriously, "the *absolute necessity* there is for everything on your part, and our parts, to go on as quietly as before, for a little time to come: to be safe and successful, my dear sir, we must be very—very *secret*."

"Oh, I see, gents! I see; mum—mum's the word, for the present! But, I *must* say, if there is any one whom I want to hear of it, sooner than another, it's"——

"Rag-bag and Co., I suppose! ha, ha, ha!" interrupted Mr. Gammon, his partners echoing his gentle laugh.

"Ha, ha, ha! Cuss the cats—that's it—ha, ha, ha!" echoed Mr. Titmouse; who, getting up out of his chair, could not resist capering to and fro,

sticking his hands on his hips, in something of the attitude of a hornpipe dancer, whistling and humming by turns, and indulging in various other wild antics.

"And now, gents—excuse me, but, to do a bit of business—when am I to *begin* scattering the shiners, eh?" he inquired, interrupting a low-toned, but somewhat vehement conversation, between the two senior partners; while Snap sat silently eying him like a terrier a rat coming within his reach!

"Oh, of course, sir!" replied Mr. Gammon, rather coldly, "very—considerable—delay is unavoidable. All we have done, as yet, is to discover that, as far as we are advised, and can judge, you will turn out to be the right owner; but—as we've already intimated—very extensive and expensive operations must be immediately commenced, before you can be put into possession. There are some who won't be persuaded to *part* with £10,000 a-year, Mr. Titmouse, for the mere asking!" added Mr. Gammon, with an anxious and bitter smile.

"The devil there are! *Who* are they that want to keep me any longer out of what's my own?—what's justly mine? Eh? I want to know! Haven't they kept me out long enough?—hang 'em! Put 'em in prison directly—don't spare 'em—the villains!"

"They'll probably, ere long, find their way in that direction—for how," replied Mr. Quirk, "he's ever to make up, poor devil, the mesne profits"——

"*Mean* profits?—is that all you call them, gents? 'Pon my life, it's rogue's money—villain's profits! So don't spare him—d—n him!—he's robbed the fatherless, which I am, and an orphan. Keep me out of what's mine, indeed! Curse me if he shall, though!"

"My dear Mr. Titmouse," said Gammon, very gravely, "we are getting on too fast—dreadfully too fast. It will never do, matters of such immense importance as these cannot be hurried on, or talked of, in this way"——

"I like that, sir!—I do, by Jove!"—exclaimed Titmouse, scornfully.

"You will really, if you go on in this wild way, Mr. Titmouse, make us regret the trouble we have taken in the affair, and especially the promptness with which we have communicated to you the extent of your *possible* good fortune."

"Beg pardon, I'm sure, gents, but mean no offence: am monstrous obliged to you for what you've done for me—but, by Jove, it's taken me rather a-back, I own, to hear that I'm to be kept so long out of it all! Why can't you offer him, whoever he is that has my property, a slapping sum to go out at once? Gents, I'll own to you I'm most uncommon low—never so low in my life—devilish low! Done up, and yet it seems a'n't to get what's justly mine! What am I to do in the meanwhile? Consider *that*, gents!"

"You are rather excited just now, Mr. Titmouse," said Mr. Quirk, seriously; "suppose we now break up, and resume our conversation to-morrow, when we are all in better and calmer trim?"

"No, sir, thanking you all the same; but I think we'd better go on with it now," replied Titmouse, impetuously. "Do you think I can stoop to go back to that nasty, beastly shop, and stand behind that odious counter?—I'd almost as lieve go to the gallows!"

"Our *decided* opinion, Mr. Titmouse," said Mr. Quirk, emphatically—his other partners getting graver and graver in their looks—"that is, if our opinion is worth offering"——

"That, by Jove! remains to be seen," said Titmouse, with a pettish shake of the head.

"Well, such as it is, we offer it you; and it is, that for many reasons you must continue, for a little while longer, in your present situation"——

"What! own Tag-rag for my master—and I worth £10,000 a-year?" interrupted Titmouse, furiously.

"My dear sir, you've not *got* it yet," said Mr. Quirk, with a very bitter smile.

"Do you think you'd have told me what you have, if you weren't sure that I *should*, though? No, no! you've gone too far, by Jove!—but I shall burst, I shall! Me to go on as before!—they use me worse and worse every day. Gents, you'll excuse me—I hope you will; but business is business, gents—it is; and if you won't do mine, I must look out for them that will—'pon my soul, I must, and"—If Mr. Titmouse could have seen, or having seen, appreciated, the looks which the three partners interchanged, on hearing this absurd, ungrateful, and insolent speech of his—the expression that flitted across their shrewd faces; that was, of intense contempt for him, hardly overmastered and concealed by a vivid perception of their own interest, which was, of course, to *manage*, to soothe, to conciliate him!

How the reptile propensities of his mean nature had thriven beneath the sudden sunshine of unexpected prosperity!—See already his selfishness, truculence, rapacity, in full play!

"So, gents," said he, after a long and keen expostulation with them on the same subject, "I'm really to go to-morrow morning to Tag-rag and Co.'s, and go on with the cursed life I led there to-day, all as if nothing had happened—ha, ha, ha!—I do so like that!"

"In your present humor, Mr. Titmouse, it would be in vain to discuss the matter," said Mr. Quirk, sternly. "Again I tell you that the course we have recommended is, in our opinion, the proper one; excuse me if I add, that you are entirely in our hands—and if I ask you—what *can* you do but adopt our advice?"

"Why, hang me if I won't employ somebody else—that's flat! S' elp me, Heaven, I will! So, good-night, gents; you'll find that Tittlebat Titmouse isn't to be trifled with!" So saying, Mr. Titmouse clapped his hat on his

head, bounced out of the room, and, no attempt being made to stop him, he was in the street in a twinkling.

Mr. Gammon gazed at Mr. Quirk with a look, the significance of which the astounded old gentleman thoroughly understood—'twas compounded of triumph, reproach, and apprehension.

"Did you ever see such a little beast!" exclaimed Mr. Quirk, with an air of disgust, turning to Mr. Snap.

"Beggar on horseback!" exclaimed Snap, with a bitter sneer.

"It won't do, however," said Mr. Quirk, with a most chagrined and apprehensive air, "for him to go at large in his present frame of mind—he may ruin the thing altogether"——

"As good as £500 a-year out of the way of the office," quoth Snap.

"It cannot be helped *now*," said Mr. Gammon, with a sigh of vexation, turning to Mr. Quirk, and seizing his hat—"he must be managed—so I'll go after him instantly, and bring him back at all hazards; and we must really try and do something for him in the meanwhile, to keep him quiet till the thing's brought a little into train." So out went after Titmouse, Mr. Gammon, from whose lips dropped persuasion sweeter than honey;[\[3\]](#) and I should not be surprised if he were to succeed in bringing back that little stubborn piece of conceited stupidity.

As soon as Mr. Titmouse heard the street door shut after him with a kind of *bang*, he snapped his fingers once or twice, by way of letting off a little of the inflammable air that was in him, and muttered, "Pretty chaps those, upon my soul!" said he, disdainfully. "I'll expose them all! I'll apply to the lord-mayor—they're a pack of swindlers, they are! This is the way they treat *me*, who've got a title to £10,000 a-year! To be sure"—He stood still for a moment—and another moment—and another—and then dismay came quickly over him; for the thought suddenly occurred to his partially

obfuscated intellect—what *hold* had he got on Messrs. Quirk, Gammon, and Snap?—what *could* he do?—or rather, what *HAD* he done?

Ah—the golden vision of the last few hours was fading away momentarily, like a dream! Each second of his deep and rapid reflection, rendered more impetuous his desire and determination to return and make his peace with Messrs. Quirk, Gammon, and Snap. By submission for the present, he could get the whip-hand of them hereafter! He was in the act of turning round towards the office, when Mr. Gammon gently laid his hand upon the shoulder of his repentant client.

"Mr. Titmouse! my dear sir," said Mr. Gammon, softly, "what is the matter with you? How could we so misunderstand each other?"

Titmouse's small cunning was on the *qui vive*, and he saw and followed up his advantage. "I am going," said he, in a resolute tone, "to speak to some one else in the morning."

"Ah, to be sure!" replied Mr. Gammon, with a smile of utter unconcern—"I supposed as much—'tis a matter which of course, however, signifies nothing to any one—but yourself. You will take any steps, my dear sir, that occur to you, and act as you may be advised!"

"Monstrous kind of you, 'pon my life! to come and give me such good advice!" exclaimed Titmouse, with a sneer—but consciously baffled.

"Oh, don't mention it!" said Gammon, coolly; "I came out of pure good-nature, to assure you that our office, notwithstanding what has passed, entertains not the slightest personal ill feeling towards you, in thus throwing off our hands a fearfully expensive, and most harassing enterprise—which we have feared from the first had been too rashly undertaken"——

"Hem!" exclaimed Titmouse, involuntarily, once or twice.

"So good-night, Mr. Titmouse—good-night! God bless you! and think hereafter of all this as a mere idle dream—as far as *we* are concerned!" Mr.

Gammon, in the act of returning to the door, extended his hand to Mr. Titmouse, whom he instantly perceived to be melting rapidly.

"Why, sir," quoth Titmouse, with a mixture of embarrassment and alarm, "if I thought you all meant the correct thing—hem! I say, the *correct* thing by me—I shouldn't so much mind a little disappointment for the time; but you must own, Mr. Gammon, it is very hard being kept out of one's own so long—honor, now! isn't it?"

"True, very true, Mr. Titmouse. Very hard it is, indeed, to bear, and we all felt deeply for you, and would have set everything in train"——

"*Would have!* oh my stars!"——

"Yes, my dear Mr. Titmouse, we *would* have done it, and believed we could have brought you through every difficulty—over every obstacle, prodigious though they are, and almost innumerable."

"Why—you—don't—hardly—quite—mean to say you've given it all up?—What, already! 'Pon my life! Oh Lord!" exclaimed Titmouse, in evident trepidation.

Mr. Gammon had triumphed over Mr. Titmouse! whom, nothing loath, he brought back, in two minutes' time, into the room which Titmouse had just before so insolently quitted. Mr. Quirk and Mr. Snap had now *their* parts to perform in the little scene which they had determined on enacting. They were in the act of locking up desks and drawers, evidently on the move, and received Mr. Titmouse with an air of cold surprise.

"Mr. Titmouse again!" exclaimed Mr. Quirk, taking his gloves out of his hat. "Back again!—This, sir, is quite an unexpected honor!"

"Leave anything behind?" inquired Mr. Snap, affecting to look about him—"don't see anything"——

"Oh no, sir! No, sir!" exclaimed Titmouse, with eager anxiety. "This gent, Mr. Gammon, and I, have made it all up, gents! I'm not angry any more—

not the least, 'pon my soul I'm not—and quite forgive you—and no mistake!"

"*Angry!—Forgive!!* Mr. Titmouse!" echoed Mr. Quirk, with an air sternly ironical. "We are under great obligations to you for your forbearance!"

"Oh, come, gents!" said Titmouse, more and more disturbed, "I *was* too warm, I dare say, and—and—I ask your pardon, all of you, gents! I won't say another word if you'll but buckle to business again—quite exactly in your own way—because you see"——

"It's growing *very* late," said Mr. Quirk, coldly, and looking at his watch; "however, after what you have said, probably at some future time, when we've *leisure* to look into the thing"——

Poor Titmouse was near dropping on his knees, in mingled agony and fright.

"May I be allowed to say," interposed the bland voice of Mr. Gammon, anxiously addressing himself to Mr. Quirk, "that Mr. Titmouse a few minutes ago assured me, outside there, that if you, as the head of the firm, could only be persuaded to permit our house to take up his case again"——

"I did—I did indeed, gents! so help me——!" interrupted Mr. Titmouse, eagerly backing with an oath the ready lie of Mr. Gammon.

Mr. Quirk, with a stern countenance, drew his hand across his chin musingly, and stood silently for a few moments, apparently irresolute.

"Well," said he at length, but very coldly, "since that is so, probably we may be induced to resume our heavy labors in your behalf; and if you will favor us with a call to-morrow night, at the same hour, we may have, by that time, made up our minds as to the course we shall think fit to adopt."

"Lord, sir, I'll be here as the clock strikes, and as meek as a mouse; and pray, have it all your own way for the future, gents—do!"—cried Titmouse, clasping his hands together on his breast.

"Good-night, sir—good-night!" exclaimed the partners, stiffly—motioning him towards the door.

"Good-night, gents!" said Titmouse, bowing very low, and feeling himself at the same time being—bowed *out*! As he passed out of the room, he cast a lingering look at their three frigid faces, as if they were angels sternly shutting him out from Paradise. What misery was his, as he walked slowly homeward, with much the same feelings (now that the fumes of the brandy had somewhat evaporated, and the reaction of excitement was coming on, aggravated by a recollection of the desperate check he had received) as those of a sick and troubled man, who, suddenly roused out of a delicious dream, drops into wretched reality, as it were out of a fairyland, which, with all its dear innumerable delights, is melting overhead into thin air—disappearing, *forever*!

Closet Court had never looked so odious to him as it did on his return from this memorable interview. Dreadfully distressed and harassed, he flung himself on his bed for a moment, directly he had shut his door, intending presently to rise and undress; but Sleep, having got him prostrate, secured her victory. She waved her black wand over him, and—he awoke not completely till about eight o'clock in the morning. A second long-drawn sigh was preparing to follow its predecessor, when he heard the clock strike eight, and sprang off the bed in a fright; for he ought to have been at the shop an hour before. Dashing a little water into his face, and scarce staying to wipe it off, he ran down-stairs, through the court, and along the street, never stopping till he had found his way into—almost the very arms of the dreaded Mr. Tag-rag; who, rarely making his appearance till about half-past nine, had, as the deuce would have it, happened to come down an hour and a half earlier than usual on that particular morning, the only one out of

several hundreds on which Titmouse had been more than ten minutes beyond his time.

"Yours ve-ry respectfully, Mr. Titmouse—Thomas Tag-rag!" exclaimed that personage, with mock solemnity, bowing formally to his astounded and breathless shopman.

"I—I—beg your pardon, sir; but I wasn't very well, and overslept myself," stammered Titmouse.

"Ne-ver mind, Mr. Titmouse! ne-ver mind!—it don't much signify, as it happens," interrupted Mr. Tag-rag, bitterly; "you've just got an hour and a half to take this piece of silk, with my compliments, to Messrs. Shuttle and Weaver, in Dirt Street, Spitalfields, and ask them if they aren't ashamed to send it to a West-end house like mine; and bring back a better piece instead of it! D' ye *hear*, sir?"

"Yes, sir—but—am I to go before my breakfast, sir?"

"Did I say a word about breakfast, sir? You heard my orders, sir; you can attend to them or not, Mr. Titmouse, as you please!"

Off trotted Titmouse *instanter*, without his breakfast; and so Tag-rag gained one object he had had in view. Titmouse found this rather trying: a four-mile walk before him, with no inconsiderable load under his arm; having, moreover, had nothing to eat since the preceding evening, when he had partaken of a delicate repast of thick slices of bread, smeared slightly over with somewhat high-flavored salt butter, and moistened with a most astringent decoction of *quasi* tea-leaves sweetened with brown sugar, and discolored with sky-blue milk. He had not even a farthing about him wherewith to buy a penny roll! As he went disconsolately along, so many doubts and fears buzzed impetuously about him, that they completely darkened his little soul, and bewildered his petty understanding. *Ten Thousand a-Year!*—it could never be meant for the like of *him*! He soon

worked himself into a conviction that the whole thing was infinitely too good to be true; the affair was desperate; it had been all moonshine; for some cunning purpose or another, Messrs. Quirk, Gammon, and Snap, had been—ah, here he was within a few yards of their residence, the scene of last night's tragic transactions! As he passed Saffron Hill, he paused, looked up towards the blessed abode,

"Where centred all his hopes and fears,"—

uttered a profound sigh, and passed slowly on towards Smithfield. The words "*Quirk, Gammon, and Snap*," seemed to be written over every shop-window which he passed—their images filled his mind's eye. What could they be at? They had been all very polite and friendly at first—and of their own seeking; but he had affronted them. How coldly and proudly they had parted with him over-night, although they had professed themselves reconciled to him! It was evident that they would stand no nonsense—they were great lawyers; so he must (if they really would allow him to see them again) eat humble pie cheerfully till he had got all that they had to give him. How he dreaded the coming night! Perhaps they intended civilly to tell him that, since seeing him, they would have nothing more to do with him; they would get the estate for themselves, or some one else who would be more manageable! They had taken care to tell him nothing at all about the nature of his pretensions to this grand fortune. Oh, how crafty they were—they had it all their own way!—But what, after all, had he really done? The estates were his, if they were really in earnest—his and no one's else; and why should he be kept out of them at their will and pleasure? Suppose he were to say he would give them all he was entitled to for £20,000 down, in cash? Oh no; on second thoughts, that would be only two years' income! But on the other hand—he dared hardly even propose it to his thoughts—still, suppose it *should* really all turn out true! Goodness gracious!—that day two months he might be riding about in his carriage in the Parks, and poor devils looking on at *him*, as he now looked on all those who now rode there. There he would be, holding up his head with the best of them, instead of slaving as he was that moment, carrying about that cursed bundle—ough! how he shrunk with disgust as he changed its position, to relieve his

aching right arm! Why was his mouth to be stopped—why might he not tell his shopmates? What would he not give for the luxury of telling it to the odious Tag-rag? If he *were* to do so, Mr. Tag-rag, he was sure, would ask him to dinner the very next Sunday, at his country house at Clapham!—Ah, ha!—Thoughts such as these so occupied his mind, that he did not for a long while observe that he was walking at a rapid rate towards the Mile-end road, having left Whitechapel church nearly half a mile behind him! The possible master of £10,000 a-year was nearly dropping with fatigue, and sudden apprehension of the storm he should have to encounter when he first saw Mr. Tag-rag after so unduly prolonged an absence on his errand. He was detained for a cruel length of time at Messrs. Shuttle and Weaver's; who, not having the exact kind of silk required by their imperious customer at that moment on their premises, had some difficulty in obtaining it, after having sent for it to one or two neighboring manufactories; by which means it came to pass that it was two o'clock before Titmouse, completely exhausted, had returned to Tag-rag and Company's. The gentlemen of the shop had finished their dinners.

"Go up-stairs and get your dinner, sir!" exclaimed Tag-rag, sternly, after having received Messrs. Shuttle and Weaver's obsequious message of apologies and hopes.

Titmouse having laid down his heavy bundle on the counter, went upstairs hungry enough, and found himself the sole occupant of the long close-smelling room in which his companions had been recently dining. His dinner was presently brought to him by a slatternly slipshod servant-girl. It was in an uncovered basin, which appeared to contain nothing but the leavings of his companions—a savory intermixture of cold potatoes, broken meat, (chiefly bits of fat and gristle,) a little hot water having been thrown over it to make it appear warm and fresh—(faugh!) His plate (with a small

pinch of salt upon it) had not been cleaned after its recent use, but evidently only hastily smeared over with a greasy towel, as also seemed his knife and fork, which, in their disgusting state, he was fain to put up with—the table-cloth on which he might have wiped them, having been removed. A hunch of bread that seemed to have been tossing about in the pan for days, and half a pint of turbid table-beer, completed the fare set before him; opposite which he sat for some minutes, too much occupied with his reflections to commence his repast. He was in the act of scooping out of the basin some of its inviting contents, when—"Titmouse!" exclaimed the voice of one of his shopmates, peering in at him through the half-opened door, "Mr. Tag-rag wants you! He says you've had plenty of time to finish your dinner!"

"Oh, tell him, then, I'm only just beginning my dinner—eugh! such as it is," replied Titmouse, sulkily.

In a few minutes' time Mr. Tag-rag himself entered the room, stuttering with fury—"How much longer, sir, may it be your pleasure to spend over your dinner, eh?"

"Not another moment, sir," answered Titmouse, looking with unaffected loathing and disgust at the savory victuals before him; "if you'll only allow me a few minutes to go home and buy a penny roll instead of all this"—

"Ve—ry good, sir! Ve—ry parti—cu—larly good, Mr. Titmouse," replied Tag-rag, with ill-subdued rage; "anything else that I can make a *leetle* memorandum of—against the day of—your leaving us?"

This hint of twofold terror, *i. e.* of withholding on the ground of misconduct the wretched balance of salary which might be then due to him, and of also giving him a damning character—dispelled the small remains of Titmouse's appetite, and he rose to return to the shop, involuntarily clutching his fist as he brushed close past the tyrant Tag-rag on the stairs, whom he would have been delighted to pitch down head-foremost. If he

had done so, none of his fellow-slaves below, in spite of their present sycophancy towards Tag-rag, would have shown any particular alacrity in picking up their common oppressor. Poor Tittlebat resumed his old situation behind the counter; but how different his present, from his former air and manner! With his pen occasionally peeping pertly out of his bushy hair over his right ear, and his yard-measure in his hand, no one, till the previous Monday morning, had been more cheerful, smirking, and nimble than Tittlebat Titmouse: alas, how chopfallen now! None of his companions could make him out, or guess what was in the wind; so they very justly concluded that he had been doing something dreadfully disgraceful, the extent of which was known to Tag-rag and himself alone. Their jeers and banter were giving place to cold distrustful looks, which were far more trying to bear. How he longed to be able to burst upon their astounded minds with the pent-up intelligence that was silently racking and splitting his little bosom! But if he did—the terrible firm of Quirk, Gammon, and Snap—Oh! the very thought of them glued his lips together. There was *one*, however, of whom he might surely make a confidant—the excellent Huckaback, with whom he had had no opportunity of communicating since Sunday night. That gentleman was as close a prisoner at the establishment of DIAPER and SARSENET, in Tottenham-court Road, as Titmouse at Messrs. Tag-rag's, of which said establishment he was, by the way, quite as great an ornament as Titmouse of Messrs. Tag-rag's. They were of about the same height, and equals in vulgar puppyism of manners, dress, and appearance; but Titmouse was certainly the better-looking. With equal conceit apparent in their faces, that of Huckaback, square, flat, and sallow, had an expression of ineffable impudence, made a lady shudder, and a gentleman feel a tingling sensation in his right toe. About his small black eyes there was a glimmer of low cunning;—but he is not of sufficient importance to be

painted any further. When Titmouse left the shop that night, a little after nine, he hurried to his lodgings, to make himself as imposing in his appearance before Messrs. Quirk, Gammon, and Snap, as his time and means would admit of. Behold, on a table lay a letter from Huckaback. It was written in a flourishing mercantile hand; and here is a *verbatim* copy of it:

"DEAR TIT,

"Hope you are well, which is what I can only middling say in respect of me. Such a row with my governors as I have had to-day! I thought that as I had been in the House near upon Eighteen Months at £25 per annum, I might nat'rally ask for £30 a-year (which is what my Predecessor had) when, would you believe it, Mr. Sharpeye (who is going to be taken in as a Partner,) to whom I named the thing, ris up in rage against me, and I were had up into the counting-house, where both the governors was, and they gave it me in such a way that you never saw nor heard of; but it wasn't all on their own side, as you know me too well to think of. You would have thought I had been a-going to rob the house. They said I was most oudacious, and all that, and ungrateful, and what would I have next? Mr. Diaper said times was come to such a pitch!! since when he was first in the business, for salaries, says he, is ris to double, and not half the work done that was, and no gratitude—(cursed old curmudgeon!) He said if I left them just now, I might whistle for a character, except one that I should not like; but if he don't mind I'll give him a touch of law about that—which brings me to what happened to-day with *our* lawyers, Titty, the people at Saffron Hill, whom I thought I would call in on to-day, being near the neighborhood with some light goods, to see how affairs was getting on, and stir them up a bit"—

This almost took Titmouse's breath away——

—"feeling most *interested* on your account, as you know, dear Tit, I do. I said I wanted to speak to one of the gentlemen on business of wital importance; whereat I was quickly shown into a room where two gents was sitting. Having put down my parcel for a minute on the table, I said I was a very partic'lar friend of yours, and had called in to see how things went on about the advertisement; whereat you never saw in your life how struck they looked, and stared at one another in speechless silence, till they said to me, what concerned me about the business? or something of that nature, but in such a way that *ris* a *rage* in me directly, all for your sake, (for I did not like the looks of things;) and says I, I said, we would let them know we were not to be *gammoned*; whereat up rose the youngest of the two, and ringing the bell, he says to a tight-laced young gentleman with a pen behind his ear, 'Show this fellow to the door,' which I was at once; but, in doing so, let out a little of my mind to them. They're no better than they should be, you see if they are; but when we touch the property, we'll show them who is their masters, which consoles me. Good-by, keep your sperrits up, and I will call and tell you more about it on Sunday. So farewell (I write this at Mr. Sharpeye's desk, who is coming down from dinner directly, the beast!)—Your true friend,

"R. HUCKABACK.

"P. S.—Met a young Jew last night with a lot of prime cigars, and (knowing he *must* have stole them—betwixt you, and I, and the Post—they looked so good at the price,) I bought one shilling's worth for me, and two shillings' worth for you, your salary being higher, and to say nothing of your chances."

All that part of the foregoing letter which related to its gifted writer's interview with Messrs. Quirk, Gammon, and Snap, Titmouse read in a kind of spasm—he could not draw a breath, and felt a choking sensation coming over him. After a while, "I may spare myself," thought he, "the trouble of rigging out—Huckaback has done my business for me with Messrs. Quirk, Gammon, and Snap!—Mine will only be a walk in vain!" And this cursed call of Huckaback's, too, to have happened after what had occurred last night between Titmouse and them!! and so urgently as he had been enjoined to keep the matter to himself! Of course, Huckaback would seem to have been sent by him; seeing he appeared to have assumed the hectoring tone which Titmouse had tried so vainly over-night, and now so bitterly repented of; and he had no doubt grossly insulted the arbiters of Titmouse's destiny, (for he knew Huckaback's impudence)—he had even said that he (Titmouse) would not be GAMMONED by them! But time was pressing—the experiment must be made; and with a beating heart he scrambled into a change of clothes—bottling up his wrath against the unconscious Huckaback till he should see that worthy. In a miserable state of mind he set off soon after for Saffron Hill at a quick pace, which soon became a trot, and often sharpened into a downright run. He saw, heard, and thought of nothing, as he hurried along Oxford Street and Holborn, but Quirk, Gammon, Snap, and Huckaback, and the reception which the last-mentioned gentleman might have secured for him—if, indeed, he was to be received at all. The magical words, *Ten Thousand a-year*, had not disappeared from the field of his troubled vision; but how faintly and dimly they shone!—like the Pleiades coldly glistening through intervening mists far off—oh! at what a stupendous, immeasurable, and hopeless distance! Imagine those stars gazed at by the anguished and despairing eyes of the bereaved lover, madly believing one of them to contain HER who has just

departed from his arms, and from this world, and you may form a notion of the agonizing feelings—the absorbed contemplation of one dear, dazzling, but distant object, experienced on this occasion by Mr. Titmouse. No, no; I don't mean seriously to pretend that so grand a thought as this *could* be entertained by his little optics intellectual; you might as well suppose the tiny eye of a black beetle to be scanning the vague, fanciful, and mysterious figure and proportions of Orion, or a kangaroo to be perusing and pondering over the immortal *Principia*. I repeat, that I have no desire of the sort, and am determined not again foolishly to attempt fine writing, which I now perceive to be entirely out of my line. In language more befitting me and my subject, I may be allowed to say that there is no getting the contents of a quart into a pint pot; that Titmouse's mind was a half-pint—and it was brim-full. All the while that I have been going on thus, however, Titmouse was hurrying down Holborn at a rattling rate. When at length he had reached Saffron Hill, he was in a bath of perspiration. His face was quite red; he breathed hard; his heart beat violently; he had got a stitch in his side; and he could not get his gloves on his hot and swollen hands. He stood for a moment with his hat off, wiping his reeking forehead, and endeavoring to recover himself a little, before entering the dreaded presence to which he had been hastening. He even fancied for a moment that his eyes gave out sparks of light. While thus pausing, St. Andrew's Church struck ten, half electrifying Titmouse, who bolted up Saffron Hill, and was soon standing opposite the door. How the sight of it smote him, as it reminded him of the way in which, on the preceding night, he had bounced out of it! But that could not now be helped; so *ring* went the bell; as softly, however, as he could; for he recollected that it was a very loud bell, and he did not wish to offend. He stood for some time, and nobody answered. He waited for nearly two minutes, and trembled, assailed by a thousand vague fears. He might

not, however, have rung loudly enough—so—again, a little louder, did he venture to ring. Again he waited. There seemed something threatening in the great brass plate on the door, out of which "QUIRK, GAMMON, AND SNAP" appeared to look at him ominously. While he thought of it, by the way, there was something very serious and stern in all their faces—he wondered that he had not noticed it before. What a drunken beast he had been to go on in their presence as he had! thought he; then Huckaback's image flitted across his disturbed fancy. "Ah!" thought he, "that's the thing!—that's it, depend upon it: this door will never be opened to *me* again—he's done for me!" He breathed faster, clinched his fist, and involuntarily raised it in a menacing way, when he heard himself addressed—"Oh! dear me, sir, I *hope* I haven't kept you waiting," said the old woman whom he had before seen, fumbling in her pocket for the door-key. She had been evidently out shopping, having a plate in her left hand, over which her apron was partially thrown. "Hope you've not been ringing long, sir!"

"Oh dear! no ma'am," replied Titmouse, with anxious civility, and a truly miserable smile—"Afraid I may have kept *them* waiting," he added, almost dreading to hear the answer.

"Oh no, sir, not at all—they've all been gone since a little after nine; but there's a letter I was to give you!" She opened the door; Titmouse nearly dropping with fright. "I'll get it for you, sir—let me see, where did I put it?—Oh, in the clerk's room, I think." Titmouse followed her in. "Dear me—where can it be?" she continued, peering about, and then snuffing the long wick of the candle, which she had left burning for the last quarter of an hour, during her absence. "I *hope* none of the clerks has put it away in mistake! Well, it isn't *here*, anyhow."

"Perhaps, ma'am, it's in their *own* room," suggested Titmouse, in a faint tone.

"Oh, p'r'aps it is!" she replied. "We'll go and see"—and she led the way, followed closely by Titmouse, who caught his breath spasmodically as he passed the green-baize door. Yes, there was the room—the scene of last night was transacted there, and came crowding over his recollection—there was the green-shaded candlestick—the table covered with papers—an arm-chair near it, in which, probably, Mr. Quirk had been sitting only an hour before to write the letter they were now in quest of, and which might be to forbid him their presence forever! How dreary and deserted the room looked, thought he as he peered about it in search of the dreaded letter!

"Oh, here it is!—well, I never!—who could have put it here, now? I'm sure I didn't. Let me see—it was, no doubt"—said the old woman, holding the letter in one hand and putting the other to her head.

"Never mind, ma'am," said Titmouse, stretching his hand towards her—"now we've got it, it don't much signify." She gave it to him. "Seem *particularly* anxious for me to get it—did they, ma'am?" he inquired, with a strong effort to appear unconcerned—the dreaded letter quite quivering, the while, in his fingers.

"No, sir—Mr. Quirk only said I was to give it you when you called. B'lieve they sent it to you, but the clerk said he couldn't find your place out; by the way, (excuse me, sir,) but yours *is* a funny name! How I heard 'em laughing at it, to be sure! What makes people give such queer names? Would you like to read it here, sir?—you're welcome."

"No, thank you, ma'am—it's of not the *least* consequence," he replied, with a desperate air; and tossing it with attempted carelessness into his hat, which he put on his head, he very civilly wished her good-night, and departed—very nearly inclined to sickness, or faintness, or something of the sort, which the fresh air might perhaps dispel. He quickly espied a lamp at a corner, which promised to afford him an uninterrupted opportunity of

inspecting his letter. He took it out of his hat. It was addressed—simply, "Mr. Titmouse, *Cocking Court*, Oxford Street," (which accounted, perhaps, for the clerk's having been unable to find it;) and having been opened with trembling eagerness, thus it read:—

"Messrs. Quirk, Gammon, and Snap, present their compliments to Mr. Titmouse, and are anxious to save him the trouble of his intended visit this evening.

"They exceedingly regret that obstacles (which it is to be hoped, however, may not prove *ultimately* insurmountable) exist in the way of their prosecuting their intended inquiries on behalf of Mr. Titmouse.

"Since their last night's interview with him, circumstances, which they could not have foreseen, and over which they have no control, have occurred, which render it unnecessary for Mr. T. to give himself any more anxiety in the affair—at least, not until he shall have heard from Messrs. Q. G. and S.

"If anything of importance *should* hereafter transpire, it is not improbable that Mr. T. may hear from them.

"They were favored, this afternoon, with a visit from Mr. T.'s friend—a Mr. Hucklebottom."

"*Saffron Hill, Wednesday Evening, 12th July 18—.*"

When poor Titmouse had finished reading over this vague, frigid, and disheartening note a second time, a convulsive sob or two pierced his bosom, indicative of its being indeed swollen with sorrow; and at length, overcome by his feelings, he cried bitterly—not checked even by the occasional exclamations of one or two passers-by. He could not at all control himself. He felt as if he could have almost relieved himself, by banging his head against the wall! A tumultuous feeling of mingled grief

and despair prevented his thoughts, for a long while, from settling on any one idea or object. At length, when the violence of the storm had somewhat abated, on concluding a third perusal of the death-warrant to all his hopes, which he held in his hand, his eye lit upon the strange word which was intended to designate his friend Huckaback; and it instantly changed both the kind of his feelings, and the current in which they had been rushing. Grief became rage; and the stream foamed in quite a new direction—namely, towards Huckaback. That accursed fellow he considered to be the sole cause of the direful disaster which had befallen him. He utterly lost sight of one circumstance, which one might have imagined likely to have occurred to his thoughts at such a time—viz. his own offensive and insolent behavior over-night to Messrs. Quirk, Gammon, and Snap. Yet so it was:—yes, upon the devoted (but unconscious) head of Huckaback, was the lightning rage of Tittlebat Titmouse doomed to descend. The fire that was thus quickly kindled within, soon dried up the source of his tears. He crammed the letter into his pocket, and started off at once in the direction of Leicester Square, breathing rage at every step—*viresque acquirens eundo*. His hands kept convulsively clinching together as he pelted along. Hotter and hotter became his rage as he neared the residence of Huckaback. When he had reached it, he sprang up-stairs; knocked at his *quondam* friend's door; and on the instant of its being—doubtless somewhat surprisedly—opened by Huckaback, who was undressing, Titmouse sprang towards him, let fly a goodly number of violent blows upon his face and breast—and down fell Huckaback upon the bed behind him, insensible, and bleeding profusely from his nose.

"There! there!"—gasped Titmouse, breathless and exhausted, discharging a volley of oaths and opprobrious epithets at the victim of his fury. "Do it again! You will, won't you? *You'll* go—and meddle again in other people's

—you—— cu-cu-cursed officious"—but his rage was spent—the paroxysm was over; the silent and bleeding figure of Huckaback was before his eyes; and he gazed at him, terror-stricken. What had he done! He sank down on the bed beside Huckaback—then started up, wringing his hands, and staring at him in an ecstasy of remorse and fright. It was rather singular that the noise of such an assault should have roused no one to inquire into it; but so it was. Frightened almost out of his bewildered senses, he closed and bolted the door; and addressed himself, as well as he was able, to the recovering of Huckaback. After propping him up, and splashing cold water into his face, Titmouse at length discovered symptoms of restoration to consciousness, which he anxiously endeavored to accelerate, by putting to the lips of the slowly-reviving victim of his violence some cold water, in a tea-cup. He swallowed a little; and soon afterwards, opening his eyes, stared on Titmouse with a dull eye and bewildered air.

"What's been the matter?" at length he faintly inquired.

"Oh, Hucky! so glad to hear you speak again. It's I—I—Titty! I did it! Strike me, Hucky, as soon as you're well enough! Do—kick me—anything you choose! I won't hinder you!" cried Titmouse, sinking on his knees, and clasping his hands together, as he perceived Huckaback rapidly reviving.

"Why, what *is* the matter?" repeated that gentleman, with a wondering air, raising his hand to his nose, from which the blood was still trickling. The fact is, that he had lost his senses, probably from the suddenness, rather than the violence of the injuries which he had received.

"I did it all—yes, I did!" continued Titmouse, gazing on him with a look of agony and remorse.

"Why, I can't be awake—I can't!" said Huckaback, rubbing his eyes, and then staring at his wet and blood-stained shirt-front and hands.

"Oh yes, you are—you are!" groaned Titmouse; "and I'm going *mad* as fast as I can! Do what you like to me! Kick me if you please! Call in a constable! Send me to jail! Say I came to rob you—anything—blow me if I care what becomes of me!"

"Why, what *does* all this jabber mean, Titmouse?" inquired Huckaback, sternly, and apparently meditating reprisals.

"Oh, yes, I see! Now you *are* going to give it me! but I won't stir. So hit away, Hucky."

"Why—are you mad?" inquired Huckaback, grasping him by the collar rather roughly.

"Yes, quite! Mad!—ruined!—gone to the devil all at once!"

"And what if you are? What did it matter to *me*? What brought you here?" continued Huckaback, in a tone of increasing vehemence. "What have I done to offend you? How *dare* you come *here*? And at this time of night, too? Eh?"

"What, indeed! Oh lud, oh lud, oh lud! Kick me, I say—strike me! You'll do me good, and bring me to my senses. *Me* to do all this to you! And we've been such precious good friends always. I'm a brute, Hucky—I've been mad, stark mad, Hucky—and that's all I can say!"

Huckaback stared at him more and more; and began at length to suspect how matters stood—namely, that the Sunday's incident had turned Titmouse's head—he having also, no doubt, heard some desperate bad news during the day, smashing all his hopes. A mixture of emotions kept Huckaback silent. Astonishment—apprehension—doubt—pride—pique—resentment. He had been *struck*—his blood had been drawn—by the man there before him on his knees, formerly his friend; now, he supposed, a madman.

"Why, curse me, Titmouse, if I can make up my mind what to do to you!" he exclaimed, "I—I suppose you are going mad, or gone mad, and I must forgive you. But get away with you—out with you, or—or—I'll call in"——

"Forgive me—forgive me, dear Hucky! Don't send me away—I shall go and drown myself if you do."

"What the d—l do I care if you do? You'd much better have gone and done it before you came here. Nay, be off and do it *now*, instead of blubbering here in this way."

"Go on! go on!—it's doing me good—the worse the better!" sobbed Titmouse.

"Come, come," said Huckaback, roughly, "none of this noise here. I'm tired of it!"

"But, pray, don't send me away from you. I shall go straight to the devil if you do! I've no friend but you, Hucky. Yet I've been such a villain to you!—But it quite put the devil into me, when all of a sudden I found it was *you*."

"Me!—Why, what *are* you after?" interrupted Huckaback, with an air of angry wonder.

"Oh dear, dear!" groaned Titmouse; "if I've been a brute to you, which is quite true, *you've* been the *ruin* of me, clean! I'm clean done for, Huck. Cleaned out! You've done my business for me; knocked it all on the head!—I sha'n't never hear any more of it—they've said as much in their letter—they say you called to-day"——

Huckaback now began to have a glimmering notion of his having been, in some considerable degree, connected with the mischief of the day—an unconscious agent in it. He audibly drew in his breath, as it were, as he more and more distinctly recollected his visit to Messrs. Quirk, Gammon,

and Snap; and adverted more particularly to his *threats*, uttered, too, in Titmouse's name, and as if by his authority. Whew! here was a kettle of fish.

Now, strange and unaccountable as, at first thought, it may appear, the very circumstance which one should have thought calculated to assuage his resentment against Titmouse—namely, that he had really *injured* Titmouse most seriously, (if not indeed irreparably,) and so *provoked* the drubbing which had just been administered to him—had quite the contrary effect. Paradoxical as it may seem, matter of clear mitigation was at once converted into matter of aggravation. Were the feelings which Huckaback then experienced, akin to that which often produces hatred of a person whom one has injured? May it be thus accounted for? That there is a secret satisfaction in the mere consciousness of being a sufferer—a martyr—and that, too, in the presence of a person whom one perceives to be aware that he has wantonly injured one; that one's bruised spirit is soothed by the sight of his remorse—by the consciousness that he is punishing himself infinitely more severely than *we* could punish him; and of the claim one has obtained to the *sympathy* of everybody who sees, or may hear of one's sufferings, (that rich and grateful balm to injured feeling.) But when, as in the case of Huckaback, feelings of this description (in a coarse and small way, to be sure, according to his kind) were suddenly encountered by a consciousness of his having *deserved* his sufferings; when the martyr felt himself quickly sinking into the culprit and offender; when, I say, Huckaback felt an involuntary consciousness that the gross indignities which Titmouse had just inflicted on him, had been justified by the provocation—nay, had been far less than his mischievous and impudent interference had deserved;—and when feelings of this sort, moreover, were sharpened by a certain tingling sense of physical pain from the blows which he had received—the result

was, that the sleeping lion of Huckaback's courage was very nearly awakening.

"*I've half a mind, Titmouse*"—said Huckaback, knitting his brows, fixing his eyes, and appearing inclined to raise his arm. There was an ominous pause for a moment or two, during which Titmouse's feelings also underwent a slight alteration. His allusion to Huckaback's ruinous insult to Messrs. Quirk, Gammon, and Snap, unconsciously converted his remorse into rage, which it rather, perhaps, resuscitated. Titmouse rose from his knees. "Ah!" said he, in quite an altered tone, "you *may* look fierce! you may!—you'd better strike me, Huckaback—do! Finish the mischief you've begun this day! Hit away—you're quite safe"—and he secretly prepared himself for the mischief which—did not come. "You *have* ruined me! you have, Huckaback!" he continued with increasing vehemence; "and I shall be cutting my throat—nay," striking his fist on the table, "I will!"

"You don't say so!" exclaimed Huckaback, apprehensively. "No, Titmouse, don't—don't think of it; it will all come right yet, depend on't; you see if it don't!"

"Oh, no, it's all done for—it's all up with me!"

"But *what's* been done?—let us hear," said Huckaback, as he passed a wet towel to and fro over his ensanguined features. It was by this time clear that the storm which had for some time given out only a few faint fitful flashes or flickerings in the distance, had passed away. Titmouse, with many grievous sighs, took out the letter which had produced the paroxysms I have been describing, and read it aloud. "And only see how they've spelled your name, Huckaback—look!" he added, handing his friend the letter.

"How *partic'lar* vulgar!" exclaimed Huckaback, with a contemptuous air, which, overspreading his features, half-closed as was his left eye, and

swollen as were his cheek and nose, would have made him a queer object to one who had leisure to observe such matters. "And so *this* is all they say of *me*," he continued. "How do you come to know that I've been doing you mischief? All I did was just to look in, as respectful as possible, to ask how you was, and they very civilly told me you was very well, and we parted"——

"Nay, now, that's a lie, Huckaback, and you know it!" interrupted Titmouse.

"It's true, so help me——!" vehemently asseverated Huckaback.

"Why, perhaps you'll deny that you wrote and told me all you said," interrupted Titmouse, indignantly, feeling in his pocket for Huckaback's letter, which that worthy had at the moment quite forgotten having sent, and on being reminded of it, he certainly seemed rather nonplussed. "Oh—ay, if you mean *that*—hem!"—he stammered.

"Come, you *know* you're a liar, Huck—but it's no good now: liar or no liar, it's all over."

"The pot and kettle, anyhow, Tit, as far as that goes—hem!—but let's spell over this letter; we haven't studied it yet; I'm a hand, rather, at getting at what's said in a letter!—Come"—and they drew their chairs together, Huckaback reading over the letter slowly, alone; Titmouse's eyes travelling incessantly from his friend's countenance to the letter, and so back again, to gather what might be the effect of its perusal.

"There's a glimpse of daylight yet, Titty!" said Huckaback, as he concluded reading it.

"No! But is there really? Do tell me, Hucky"——

"Why, first and foremost, how uncommon polite they are, (except that they haven't manners enough to spell my name right)"——

"Really—and so they are!" exclaimed Titmouse, rather elatedly.

"And then, you see, there's another thing—if they'd meant to give the thing the go-by altogether, what could have been easier than to say so?—but they haven't said anything of the sort, so they don't *mean* to give it all up!"

"Lord, Huck! what would I give for such a head as yours! What you say is quite true," said Titmouse, still more cheerfully.

"To be sure, they do say there's an *obstacle*—an obstacle, you see—nay, it's obstacles, which is several, and that"—— Titmouse's face fell.

"But they say again, that it's—it's—curse their big words—they say it's—to be got over in time."

"Well—that's something, isn't it?"

"To be sure it is; and a'n't anything better than nothing? But then, again, here's a stone in the other pocket—they say there's a *circumstance*!—don't you hate circumstances, Titty?—I do."

"So do I!—What does it mean? I've often heard— isn't it a *thing*? And that may be—anything."

"Oh, there's a great dif—hem! And they go on to say it's happened since you was there"——

"Curse me, then, if that don't mean *you*, Huckaback!" interrupted Titmouse, with returning anger.

"No, that can't be it; they said they'd no control over the circumstance;—now they *had* over me; for they ordered me to the door, and I went; a'n't that so, Titty?—Lord, how my eye *does* smart, to be sure!"

"And don't I smart all over, inside and out, if it comes to that?" inquired Titmouse, dolefully.

"There's nothing particular in the rest of the letter—only uncommon civil, and saying if anything turns up you shall hear."

"I could make that out myself—so there's nothing in that"—said Titmouse, quickly.

"Well—if it *is* all over—what a pity! Such things as we could have done, Titty, if we'd got the thing—eh?"

Titmouse groaned at this glimpse of the heaven he seemed shut out of forever.

"Can't you find anything—nothing at all comfortable-like, in the letter?" he inquired with a deep sigh.

Huckaback again took up the letter and spelled it over.

"Well," said he, striving to give himself an appearance of thinking, "there's something in it that, after all, I don't seem quite to get to the bottom of—they've seemingly taken a deal of pains with it!"

[And undoubtedly it *was* a document which had been pretty well considered by its framers before being sent out; though, probably, they had hardly anticipated its being so soon afterwards subjected to the scrutiny of such acute intellects as were now engaged upon it.]

"And then, again, you know they're lawyers; and do *they* ever write anything that hasn't got more in it than anybody can find out? These gents that wrote this, they're a trick too keen for the thieves even—and how can we—hem!—but I wonder if that fat, old, bald-headed gent, with sharp eyes, was Mr. Quirk"——

"To be sure it was," interrupted Titmouse, with a half shudder.

"Was it? Well, then, I'd advise Old Nick to look sharp before he tackles that old gent, that's all!"

"Give me Mr. Gammon for my money," said Titmouse, sighing, "such an *uncommon* gentlemanlike gent—he's quite taken to me"——

"Ah, that, I suppose, was him with the black velvet waistcoat, and pretty white hands! But *he* can look stern, too, Tit! You should have seen him ring, when—hem!—But what was I saying about the letter? Don't you see they say they'll be sure to write if anything turns up?"

"So they do, to be sure! Well—I'd forgot that!" interrupted Titmouse, brightening up.

"Then, isn't there their advertisement in the *Flash*? They hadn't their eye on anything when they put it there, I dare say!—They can't get out of *that*, anyhow!"

"I begin to feel all of a sweat, Hucky; I'm sure there's something in the wind yet!" said Titmouse, drawing nearer still to his comforter. "And more than that—would they have said half they did to me last night"——

"Eh! hollo, by the way! I've not heard of what went on last night! So you went to 'em? Well—tell us all that happened—and nothing but the truth, be *sure* you don't; come, Titty!" said Huckaback, snuffing the candle, and then turning eagerly to his companion.

"Well—they'd such a number of queer-looking papers before them, some with old German-text writing, and others with zigzag marks—and they were so uncommon polite—they all three got up as I went in, and made me bows, one after the other, and said, 'Yours most obediently, Mr. Titmouse,' and a great many more such things."

"Well—and then?"

"Why, Hucky, so help me——! and 'pon my soul, that old gent, Mr. Quirk, told me"—Titmouse's voice trembled at the recollection—"he says, 'Sir, you're the real owner of Ten Thousand a-year, and no mistake!'"

"Lawks!" ejaculated Huckaback, opening wider and wider his eyes and ears as his friend went on.

"And a title—a *lord*, or something of that sort—and you've a great many country seats; and there's been £10,000 a-year saving up for you ever since you was born—and heaps of interest besides!—'pon my soul he did!"

"Lord, Tit! you take my breath away," gasped Huckaback, his eyes fixed intently on his friend's face.

"Yes; and they said I might marry the most beautifulest woman that ever my eyes saw, for the asking."

"You'll forget poor Bob Huckaback, Tit!" murmured his friend, despondingly.

"Not I, Huckaback—if I get my rights, and you know how to behave yourself!"

"Have you been to Tag-rag's to-day, after hearing all this?"

[The thermometer seemed to have been here plunged out of hot water into cold—Titmouse was down at zero in a trice.]

"Oh!—that's it! 'Tis all gone again! What a fool I am! We've clean forgot this cursed letter—and that leads me to the end of what took place last night. That cursed shop was what we split on!"

"Split on *the shop*! eh? What's the meaning of that?" inquired Huckaback, with eager anxiety.

"Why, that's the thing," continued Titmouse, in a faltering tone, and with a depressed look—"That was what I wanted to know myself; for they said I'd better go back!! So I said, 'Gents,' said I, 'I'll be—— if I'll go back to the shop any more;' and I snapped my fingers at them—so! (for you know what a chap I am when my blood's up.) And they all turned gashly pale—they did, upon my life—you never saw anything like it! And one of them said then, in a humble way, 'Wouldn't I please to go back to the shop, just for a day or two, till things is got to rights a bit.' 'Not a day nor a minute!' says I, in an immense rage. 'We think you'd better, really,' said they. 'Then,' says I, 'if that's your plan, curse me if I won't cut with you all, and I'll employ some one else!' and—would you believe me?—out I went, bang! into the street!!"

"You *did*, Tit!!" echoed Huckaback, aghast.

"They shouldn't have given me so much brandy and water as they did; I didn't well know what I was about, what with the news and the spirits!"

"And you went into the street?" inquired Huckaback, with a kind of horror.

"I did, by Jove, Hucky!"

"They'd given you the sperrits to see what kind of chap you'd be if you got the property—only to try you, depend on it!"

"Lord! I—I dare say they did!" exclaimed Titmouse, elevating his head with sudden amazement, totally forgetting that same brandy and water he had asked for—"and me never to think of it at the time."

"Now are you quite sure you wasn't in a *dream* last night, all the while?"

"Oh, dear, I wish I had been—I do, indeed, Hucky!"

"Well—you went into the street—what then?" inquired Huckaback, with a sigh of exhausted attention.

"Why, when I'd got there, I could have bitten my tongue off, as one may suppose; but, just as I was a-turning to go in again, who should come up to me but Mr. Gammon, saying, he humbly hoped there was no offence."

"Oh, glorious! So it was all set right again, then—eh?"

"Why—I—I can't quite exactly say that much, either—but—when I went back, (being obligated by Mr. Gammon being so pressing,) the other two was sitting as pale as death; and though Mr. Gammon and me went on our knees to the old gent, it wasn't any use for a long time; and all that he could be got to say was, that perhaps I might look in again to-night—(but they first made me swear a solemn oath on the Bible never to tell any one anything about the fortune)—and then—you went, Huckaback, and you did the business; they of course concluding I'd sent you!"

"Oh, bother! that can't be. Don't you see how civilly they speak of me in their letter? They're afraid of me, you may depend on it. By the way, Tit, how much did you promise to come down, if you got the thing?"

"*Come down!*—I—really—by Jove, I didn't think of such a thing! No—I'm sure I didn't"—answered Titmouse, as if new light had burst in upon him.

"Why, Tit, I never see'd such a goose! That's it, depend upon it—it's the whole thing! That's what they're driving at, in the note!—Why, Tit, where *was* your wits? D' ye think such gents as them—great lawyers, too—will work for nothing?—You must write at once and tell them you will come down handsome—say a couple of hundreds, besides expenses—Gad! 'twill set you on your pins again, Titty!—Rot me! now I think of it, if I didn't dream last night that you was a Member of Parliament or something of that sort."

"A member of Parliament! And so I shall, if all this turns up well—I shall be *that* at least!" replied Titmouse, exultingly.

"You see if my dream don't come true! You see, Titty, I'm *always* a-thinking of you, day and night. Never was two fellows that was such close friends as we was from the very beginning of knowing each other!"

[They had been acquainted with each other about half a year.]

"Hucky, what a cruel scamp I was to behave to you in the way I did—curse me, if I couldn't cry to see your eye bunged up in that way!"

"Pho! dear Titty, I knew you loved me all the while"—whined Huckaback, "and meant no harm; you wasn't yourself when you did it—and besides, I deserved ten times more! If you had killed me I should have liked you as much as ever!"

"Give us your hand, Hucky! Let's forgive one another!" cried Titmouse, excitedly; and their hands were quickly locked together.

"If we don't mismanage the thing, we shall be all right yet, Titty; but you won't do anything without speaking to *me* first—will you, Titty?"

"The thoughts of it all going right again is enough to set me wild, Hucky—But what shall we do to set the thing going again?"

"*Quarter past one!*" quivered the voice of the paralytic watchman beneath, startling the friends out of their exciting colloquy; his warning being at the same time silently seconded by the long-wicked candle, burning within half an inch of its socket. They hastily agreed that Titmouse should immediately write to Messrs. Quirk, Gammon, and Snap, a proper [*i. e.* a most abject] letter, solemnly pledging himself to obey their injunctions in everything for the future, and offering them a handsome reward for their exertions, if successful.

"Well—good-night, Huck! good-night," said Titmouse, rising. "I'm not the least sleepy—I sha'n't sleep a wink all night long! I shall sit up to write my letter—you haven't got a sheet of paper here, by the way?—I've used all mine." [That was, he had, some months before, bought a sheet to write a letter, and had so used it.]

Huckaback produced a sheet, somewhat crumpled, from a drawer. "I'd give a hundred if I had them!" said he; "I sha'n't care a straw for the hiding I've got to-night—though I'm a *leetle* sore after it, too—and what the deuce am I to say to-morrow to Messrs. Diaper"——

"Oh, you can't hardly be at a loss for a lie that'll suit *them*, surely!—So good-night, Hucky—good-night!"

Huckaback wrung his friend's hand, and was in a moment or two alone. "Haven't my fingers been itching all the while to be at the fellow!" exclaimed he, as he shut the door. "But, somehow, I've got too soft a sperrit, and can't bear to hurt any one;—and then—if the chap gets his £10,000 a-year—why—hem! Titty a'n't such a bad fellow, in the main, after all."

If Titmouse had been many degrees higher in the grade of society, *he would still have met with his Huckaback*;—a trifle more polished, perhaps,

but hardly more quicksighted or effective than, in his way, had been the vulgar being he had just quitted.

Titmouse hastened homeward. How it was he knew not; but the feelings of elation with which he had quitted Huckaback did not last long; they rapidly sank, in the cold night-air, lower and lower, the farther he got from Leicester Square. He tried to recollect *what it was* that had made him take so very different a view of his affairs from that with which he had entered Huckaback's room. He had still a vague impression that they were not desperate; that Huckaback had told him so, *and somehow proved it*; but how he now knew not—he could not recollect. As Huckaback had gone on from time to time, Titmouse's little mind seemed to himself to comprehend and appreciate what was being said, and to gather encouragement from it; but *now*—consume it!—he stopped—rubbed his forehead—what the deuce *was* it? By the time that he had reached his own door, he felt in as deplorable and despairing a humor as ever. He sat down to write his letter at once; but, after many vain efforts to express his meaning—his feelings being not in the least degree relieved by the many oaths he uttered—he at length furiously dashed his pen, point-wise, upon the table, and thereby destroyed the only implement of the sort which he possessed. Then he tore, rather than pulled off, his clothes; blew out his candle with a furious *puff*; and threw himself on his bed—but in so doing banged the back of his head against the back of the bed—and which of the two suffered more, for some time after, probably Mr. Titmouse was best able to tell.

Hath, then—oh, Titmouse! fated to undergo much!—the blind jade Fortune, in her mad vagaries—she, the goddess whom thou hast so long foolishly worshipped—at length cast her sportful eye upon thee, and singled thee out to become the envy of millions of admiring fools, by reason of the pranks she will presently make thee exhibit for her amusement? If this be

indeed, as at present it promises, her intent, she truly, to me calmly watching her movements, appears resolved first to wreak her spite upon thee to the uttermost, and make thee pass through intense sufferings! Oh me! Oh me! Alas!

CHAPTER III.

The means by which Messrs. Quirk, Gammon, and Snap, became possessed of the important information which had put them into motion, as we have seen, to find out by advertisement one yet unknown to them, it will not be necessary for some time to explain. Theirs was a keen house, truly, and dealing principally in the criminal line of business; and they would not, one may be sure, have lightly committed themselves to their present extent, namely, in inserting such an advertisement in the newspapers, and, above all, going so far in their disclosures to Titmouse. Their prudence in the latter step, however, was very questionable to themselves even; and they immediately afterwards deplored together the precipitation with which Mr. Quirk had communicated to Titmouse the nature and extent of his possible good fortune. It was Mr. Quirk's own doing, however, and done after as much expostulation as the cautious Gammon could venture to use. I say they had not *lightly* taken up the affair; they had not "acted unadvisedly." They were fortified, first, by the opinion of Mr. MORTMAIN, an able and experienced conveyancer, who thus wound up an abstrusely learned opinion on the voluminous "case" which had been submitted to him:—

"...Under all these circumstances, and assuming as above, I am decidedly of opinion that the title to the estates in question is at this moment not in their present possessor, (who represents the younger branch of the Dreddlington family,) but in the descendants of Stephen Dreddlington, through the female line; which brings us to Gabriel Tittlebat Titmouse. This person, however, seems not to have been at all aware of the existence of his rights, or he could hardly have been

concerned in the pecuniary arrangements mentioned at fol. 33 of the case. Probably something may be heard of his heir by making careful inquiry in the neighborhood where he was last heard of, and issuing advertisements for his heir-at-law; care, of course, being taken not to be so specific in the terms of such advertisements as to attract the notice of A. B., (the party now in possession.) If such person should, by the means above suggested, be discovered, I advise proceedings to be commenced forthwith, under the advice of some gentleman of experience at the common-law bar.

"MOULDY MORTMAIN.

"Lincoln's Inn, January 19, 18—."

This was sufficiently gratifying to the "house;" but, to make assurance doubly sure, before embarking in so harassing and expensive an enterprise—one which lay a good deal, too, without the sphere of their practice, which as already mentioned, was chiefly in criminal law—the same *case* (without Mr. Mortmain's opinion) was laid before a young conveyancer, who, having much less business than Mr. Mortmain, would, it was thought, "look into the case fully," though receiving only one-third of the fee which had been paid to Mr. Mortmain. And Mr. FUSSY FRANKPLEDGE—that was his name—*did* "look into the case fully;" and in doing so, turned over two-thirds of his little library;—and also gleaned—by note and verbally—the opinions upon the subject of some half-dozen of his "learned friends;" to say nothing of the magnificent air with which he indoctrinated his eager and confiding pupils upon the subject. At length his imp of a clerk bore the precious result of his master's labors to Saffron Hill, in the shape of an "opinion," three times as long as, and indescribably more difficult to understand than, the opinion of Mr. Mortmain; and which if it demonstrated anything beyond the prodigious *cram* which had been undergone by its

writer for the purpose of producing it, demonstrated this—namely, that neither the party indicated by Mr. Mortmain, nor the one then actually in possession, had any more right to the estate than the aforesaid Mr. Frankpledge; but that the happy individual so entitled was some third person. Messrs. Quirk and Gammon, a good deal flustered hereat, hummed and hawed on perusing these contradictory opinions of counsel learned in the law; and the usual and proper result followed—*i. e.* a "CONSULTATION," which was to solder up all the differences between Mr. Mortmain and Mr. Frankpledge, or, at all events, strike out some light which might guide their clients on their adventurous way.

Now, Mr. Mortmain had been Mr. Quirk's conveyancer (whenever such a functionary's services had been required) for about twenty years; and Quirk was ready to suffer death in defence of any opinion of Mr. Mortmain. Mr. Gammon swore by Frankpledge, who had been at school with him, and was a "rising man." Mortmain belonged to the old school—Frankpledge steered by the new lights. The former could point to some forty cases in the Law Reports, which had been ruled in conformity with his previously given opinion, and some twenty which had been overruled thereby; the latter gentleman, although he had been only five years in practice, had written an *opinion* which had led to a suit—which had ended in a difference of opinion between the Court of King's Bench and the Common Pleas; the credit of having done which was, however, some time afterward, a little bit tarnished by the decision of a Court of Error, without hearing the other side, *against* the opinion of Mr. Frankpledge. But——

Mr. Frankpledge quoted so many cases, and went to the bottom of everything, and gave so much for his money—and was so civil!—

Well, the consultation came off, at length, at Mr. Mortmain's chambers, at eight o'clock in the evening. A few minutes before that hour, Messrs. Quirk

and Gammon were to be seen in the clerk's room, in civil conversation with that prim functionary, who explained to them that *he* did all Mr. Mortmain's drafting—pupils were so idle; that Mr. Mortmain did not score out much of what he (the aforesaid clerk) had drawn; that he noted up Mr. Mortmain's new cases for him in the reports, Mr. M. having so little time; and that the other day the Vice-Chancellor called on Mr. Mortmain—with several other matters of that sort, calculated to enhance the importance of Mr. Mortmain; who, as the clerk was asking Mr. Gammon, in a good-natured way, how long Mr. Frankpledge had been in practice, and where his chambers were—made his appearance, with a cheerful look and a bustling gait, having just walked down from his house in Queen's Square, with a comfortable bottle of old port on board. Shortly afterwards Mr. Frankpledge arrived, followed by his little clerk, bending beneath two bags of books, (unconscious bearer of as much law as had well-nigh split thousands of learned heads, and broken tens of thousands of hearts, in the making of, being destined to have a similar but far greater effect in the applying of,) and the consultation began.

As Frankpledge entered, he could not help casting a sheep's eye towards a table that glistened with *such* an array of "papers," (a tasteful arrangement of Mr. Mortmain's clerk before every consultation;) and down sat the two conveyancers and the two attorneys. I devoutly wish I had time to describe the scene at length; but greater events are pressing upon me. The two conveyancers fenced with one another for some time very guardedly and good-humoredly: pleasant was it to observe the conscious condescension of Mortmain, the anxious energy and volubility of Frankpledge. When Mr. Mortmain said anything that seemed weighty or pointed, Quirk looked with an elated air, a quick triumphant glance, at Gammon; who, in his turn, whenever Mr. Frankpledge quoted an "old case" from Bendloe, Godbolt, or

the Year Books, (which, having always piqued himself on his almost exclusive acquaintance with the modern cases, he made a point of doing,) gazed at Quirk with a smile of placid superiority. Mr. Frankpledge talked almost the whole time; Mr. Mortmain, immovable in the view of the case which he had taken in his "opinion," listened with an attentive, good-natured air, ruminating pleasantly the while upon the quality of the port he had been drinking, (the first of the bin which he had tasted,) and upon the decision which the Chancellor might come to on a case brought into court on his advice, and which had been argued that afternoon. At last Frankpledge unwittingly fell foul of a favorite crotchet of Mortmain's—and at it they went, hammer and tongs, for nearly twenty minutes, (it had nothing whatever to do with the case they were consulting upon.) In the end, Mortmain of course adhered to his points, and Frankpledge intrenched himself in his books; each slightly yielded to the views of the other on immaterial points, (or what would have appeared the use of the consultation?) but did that which both had resolved upon doing from the first, *i. e.* sticking to his original opinion. Both had talked an amazing deal of deep law, which had at least one effect, *viz.* it fairly drowned both Quirk and Gammon, who, as they went home, with not (it must be owned) the clearest perceptions in the world of what had been going on, (though, before going to the consultation, each had really known something about the case,) stood each stoutly by his conveyancer's opinion, each protesting that he had never been once misled—Quirk by Mortmain, or Gammon by Frankpledge—and each resolved to give *his* man more of the conveyancing business of the house than he had before. I grieve to add, that they parted that night with a trifle less of cordiality than had been their wont. In the morning, however, this little irritation had passed away; and they agreed, before giving up the case, to take the final opinion of Mr. TRESAYLE—the

great Mr. Tresayle. He was, indeed, a wonderful conveyancer—a perfect miracle of real-property law-learning. He had had such an enormous practice for forty-five years, that for the last ten he had never put his nose out of chambers for pure want of time, and at last of inclination; and had been so conversant with Norman French and law Latin, in the old English letter, that he had almost entirely forgotten how to write the modern English character. His opinions made their appearance in three different kinds of handwriting. First, one that none but he and his old clerk could make out; secondly, one that none but he himself could read; and thirdly, one that neither he, nor his clerk, nor any one on earth, could decipher. The use of any one of these styles depended on—the difficulty of the case to be answered. If it were an easy one, the answer was very judiciously put into No. I.; if rather difficult, it, of course, went into No. II.; and if exceedingly difficult, (and also important,) it was very properly thrown into No. III.; being a question that really ought not to have been asked, and did not deserve an answer. The fruit within these uncouth shells, however, was precious. Mr. Tresayle's law was supreme over everybody's else. It was currently reported that Lord Eldon even (who was himself slightly acquainted with such subjects) reverently deferred to the authority of Mr. Tresayle; and would lie winking and knitting his shaggy eyebrows half the night, if he thought that Mr. Tresayle's opinion on a case, and his own, differed. This was the great authority to whom, as in the last resort, Messrs. Quirk, Gammon, and Snap resolved to appeal. To his chambers they, within a day or two after their consultation at Mr. Mortmain's, despatched their case, (making no mention of the opinion which had been previously taken,) with a highly respectable fee, and a special compliment to his clerk, hoping to hear from that awful quarter within a month—which was the earliest average period within which Mr. Tresayle's opinions found their way to his

patient but anxious clients. It came at length, with a note from Mr. Prim, his clerk, intimating that they would find him, *i. e.* the aforesaid Mr. Prim, at his chambers the next morning, prepared to explain the opinion to them; having just had it read over to him by Mr. Tresayle, for it proved to be in No. II. The opinion occupied about two pages; and the handwriting bore a strong resemblance to Chinese or Arabic, with a quaint intermixture of the uncial Greek character—it was impossible to contemplate it without a certain feeling of awe! In vain did old Quirk squint at it, from all corners, for nearly a couple of hours, (having first called in the assistance of a friend of his, an old attorney of upwards of fifty years' standing;) nay—even Mr. Gammon, foiled at length, could not for the life of him refrain from a soft curse or two. Neither of them could make anything of it—(as for Snap, they never showed it to him; it was not within his province—*i. e.* the Insolvent Debtors' Court, the Old Bailey, the Clerkenwell Sessions, the Police Offices, the inferior business of the Common Law Courts, and the worrying of the clerks of the office—a department in which he was perfection itself.)

To their great delight, Mr. Tresayle took Mr. Mortmain's view of the case. Nothing could be more terse, perspicuous, and conclusive than the great man's opinion. Mr. Quirk was in raptures, and that very day sent to procure an engraving of Mr. Tresayle, which had lately come out, for which he paid 5s., and ordered it to be framed and hung up in his own room, where already grinned a quaint resemblance, in black profile, of Mr. Mortmain, cheek by jowl with that of a notorious traitor who had been hanged in spite of Mr. Quirk's best exertions. In special good-humor, he assured Mr. Gammon, (who was plainly somewhat crestfallen about Mr. Frankpledge,) that everybody must have a beginning; that even he himself (Mr. Quirk) had been once only a beginner.

Once fairly on the scent, Messrs. Quirk and Gammon soon began, secretly but energetically, to push their inquiries in all directions. They discovered that Gabriel Tittlebat Titmouse, having spent the chief portion of his blissful days as a cobbler at Whitehaven, had died in London, somewhere about the year 1793. At this point they stood for a long while, in spite of two advertisements, to which they had been driven with the greatest reluctance, for fear of attracting the attention of those most interested in thwarting their efforts. Even that part of the affair had been managed somewhat skilfully. It was a stroke of Mr. Gammon's to advertise not for "Heir-at-Law," but "*Next of Kin*," as the reader has seen. The former might have challenged the notice of unfriendly curiosity, which the latter was hardly calculated to attract. At length—at the "third time of asking"—up turned Tittlebat Titmouse, in the way which we have seen. His relationship with Mr. Gabriel Tittlebat Titmouse was indisputable; in fact, he was (to adopt his own words) that "deceased person's" son and heir-at-law.

The reader may guess the chagrin and disgust of Mr. Gammon at the appearance, manners, and character of the person whom he fully believed, on first seeing him at Messrs. Tag-rag's, to be the rightful owner of the fine estates held by one who, as against Mr. Titmouse, had no more real title to them than had Mr. Tag-rag; and for whom their house was to undertake the very grave risk and expense of instituting such proceedings as would be requisite to place Mr. Titmouse in the position which they believed him entitled to occupy—having to encounter a hot and desperate opposition at every point, from those who had nine-tenths of the law—to wit, *possession*—on their side, on which they stood as upon a rock; and with immense means for carrying on the war defensive. That Messrs. Quirk, Gammon, and Snap did not contemplate undertaking all this, without having calculated upon its proving well worthy their while, was only reasonable. They were

going voluntarily to become the means of conferring immense benefits upon one who was a total stranger to them—who had not a penny to spend upon the prosecution of his own rights. Setting aside certain difficulties which collected themselves into two awkward words, MAINTENANCE and CHAMPERTY, and stared them in the face whenever they contemplated any obvious method of securing the just reward of their enterprise and toils—setting aside all this, I say, it might turn out, only after a ruinous expenditure had been incurred, that the high authorities which had sanctioned their proceedings in point of law, had expressed their favorable opinions on a state of facts, which, however satisfactorily they looked on paper, could not be substantiated, if keenly sifted, and determinedly resisted. All this, too—all their time, labor, and money, to go for nothing—on behalf of a vulgar, selfish, ignorant, presumptuous, ungrateful puppy, like Titmouse!—Well indeed, therefore, might Mr. Gammon, as we have seen he did, give himself and partners a forty-eight hours' interval, between his interview with Titmouse and formal introduction of him to the firm, in which to consider their position and mode of procedure. The taste of his quality which that first interview afforded them all—so far surpassing all that the bitter description of him given to them by Mr. Gammon had prepared them for—filled the partners with inexpressible disgust, and would have induced them to throw up the whole affair—so getting rid both of it, and of him, together. But then, on the other hand, there were certain very great advantages, both of a professional and even directly pecuniary kind, which it would have been madness indeed for any office lightly to throw away. It was really, after all, an unequal struggle between feeling and interest. If they should succeed in unseating the present wrongful possessor of a very splendid property, and putting in his place the rightful owner, by means alone of their own professional ability, perseverance, and heavy

pecuniary outlay, (a fearful consideration, truly, but Mr. Quirk had scraped together some thirty thousand pounds!) what recompense could be too great for such resplendent services? To say nothing of the *éclat* which it would gain for their office, in the profession and in the world at large, and the substantial and permanent advantages to the firm, if, as they ought to be, they were intrusted with the general management of the property by the new and inexperienced and confiding owner—ay, but there was the rub! What a disheartening and disgusting specimen of such new owner had disclosed itself to their anxiously expecting but soon recoiling eyes—always, however, making due allowances for one or two cheering indications, on Mr. Titmouse's part, of a certain rapacious and litigious humor, which might hereafter right pleasantly and profitably occupy their energies! Their professional position, and their interests had long made them sharp observers; but when did ever before low and disgusting qualities force themselves into revolting prominence, as those of Mr. Titmouse had done, in the very moment of an expected display of the better feelings of human nature—such as enthusiastic gratitude? They had, in their time, had to deal with some pleasant specimens of humanity, to be sure; but when with any more odious and impracticable than Tittlebat Titmouse threatened to prove himself? What hold could they get upon such a character as his? Beneath all his coarseness and weakness, there was a glimmer of low cunning which might suffice to keep their superior and practised astuteness at its full stretch. These were difficulties, cheerless enough in the contemplation, truly; but, nevertheless, the partners could not bear the idea of escaping from them by throwing up the affair altogether. Then came the question—How were they to manage Mr. Titmouse?—how acquire an early and firm hold of him, so as to convert him into a *capital client*? His fears and his interests were obviously the engines with which their experienced

hands were to work; and several long and most anxious consultations had Messrs. Quirk and Gammon had on this important matter. The first great question with them was—To what extent, and when, they should acquaint him with the nature of his expectations.

Gammon was for keeping him comparatively in the dark, till success was within reach: during that interval, (which might be a long one,) by alternately stimulating his hopes and fears; by habituating him to an entire dependence on them; by persuading him of the prodigious extent of their exertions and sacrifices on his behalf—they *might* do something; mould him into a shape fit for their purposes, and persuade him that his affairs must needs go to ruin but in their hands. Something like this was the scheme of the cautious, acute, and placid Gammon. Mr. Quirk, however, (with whom, as will be hereafter shown, had originated the whole discovery,) thought thus:—tell the fellow at once the whole extent of what we can do for him, viz. turn a half-starving linen-draper's shopman into the owner of £10,000 a-year, and of a great store of ready money. This will, in a manner, stun him into submission, and make him at once and for all what we want him to be. He will immediately fall prostrate with reverent gratitude—looking at us, moreover, as three gods, who, at our will, can shut him out of heaven. "*That's* the way to bring down your bird," said Mr. Quirk; and Mr. Quirk had been forty years in practice—had made the business what it was—still held half of it in his own hands, (two-thirds of the remaining half being Gammon's, and the residue Snap's;) and Gammon, moreover, had a very distinct perception that the funds for carrying on the war would come out of the tolerably well-stored pockets of the august head of the firm. So, after a long discussion, he openly yielded his opinion to that of Mr. Quirk—cherishing, however, a very warm respect for it in his own bosom. As for Snap, that distinguished member of the firm was very little

consulted in the matter; which had not yet been brought to that stage where his powerful energies could come into play. He had of course, however, heard a good deal of what was going on; and knew that ere long there would be the copying out and serving of the Lord knows how many copies of declarations in ejectment, motions against the casual ejector, and so forth—so far at least as he was "up to" all those quaint and anomalous proceedings. It had, therefore, been at length agreed that the communication to Titmouse, on his first interview, of the full extent of his splendid expectations, should depend upon the discretion of Mr. Quirk. The reader has seen the unexpected turn which matters took upon that important occasion; and if it proved Quirk's policy to be somewhat inferior in point of discretion and long-sightedness to that of Gammon, still it must be owned that the latter had cause to admire the rapid generalship with which Mr. Quirk had obviated the consequences of his false move—not ill seconded by Snap. What could have been more judicious than his reception of Titmouse, on the occasion of his being led in again by the subtle Gammon?

The next and greatest matter was, how to obtain any hold upon such a person as Titmouse had shown himself, so as to secure to themselves, in the event of success, the remuneration to which they considered themselves entitled. Was it so perfectly clear that, if he felt disposed to resist it, they could compel him to pay the mere amount of their bill of costs?

Suppose he should turn round upon them, and have their BILL TAXED—Mr. Quirk grunted with fright at the bare thought. Then there was a slapping *quiddam honorarium* extra—undoubtedly for *that* they must, they feared, trust to the honor and gratitude of Mr. Titmouse; and a pretty taste of the quality of that animal they had already experienced! Such a disposition as *his*, to have to rely upon for the prompt settlement of a bill of thousands of pounds of costs! and, besides that, to have it to look to for the payment of at

least some five or perhaps ten thousand pounds *douceur*—nay, and this was not all. Mr. Quirk had, as well as Mr. Gammon, cast many an anxious eye on the following passages from *Blackstone's Commentaries*:—

"MAINTENANCE is an officious intermeddling in a suit that no way belongs to one, by 'maintaining' or assisting either party with money, or otherwise, to prosecute or defend it.... It is an offence against public justice, as it keeps alive strife and contention, and perverts the remedial process of the law into an engine of oppression.... The punishment by common law is fine and imprisonment, and by statute 32 Hen. VIII. c. 9, a forfeiture of £10!

"CHAMPERTY—(*campi partitio*)—is a species of Maintenance, and punished in the same manner; being a bargain with a plaintiff or defendant '*campum partiri*,' to divide the land, or other matter sued for, between them, if they prevail at law; whereupon the champertor is to carry on the suit at his own expense.... These pests of civil society, that are perpetually endeavoring to disturb the repose of their neighbors, and officiously interfering in other men's quarrels, even at the hazard of their own fortunes, were severely animadverted on by the Roman law; and they were punished by the forfeiture of a third part of their goods, and perpetual infamy."[\[4\]](#)

These were pleasant passages surely!——

Many were the conversations and consultations which the partners had had with Messrs. Mortmain and Frankpledge respectively, upon the interesting question, whether there were any mode of at once securing themselves against the ingratitude of Titmouse, and protecting themselves against the penalties of the law. It made old Mr. Quirk's bald head, even, flush all over whenever he thought of their bill being taxed, or contemplated

himself the inmate of a prison, (above all, at his advanced time of life,) with mournful leisure to meditate upon the misdeeds that had sent him thither, to which profitable exercise the legislature would have specially stimulated him by a certain *fine* above mentioned. As for Gammon, he knew there *must* be a way of doing the thing somehow or another; for his friend Frankpledge felt infinitely less difficulty in the way than Mortmain, whom he considered a timid and old-fashioned practitioner. The courts, said Mr. Frankpledge, were now setting their faces strongly against the doctrine of Maintenance, as being founded on a bygone state of things: *cessante ratione cessat et ipsa lex*, was his favorite maxim. There was no wrong without a remedy, he said; and was there not a *wrong* in the case of a poor man wrongfully deprived of his own? And how could this be *remedied*, if the old law of Maintenance stood like a bugbear in the way of humane and spirited practitioners? Was no one to be at liberty to take up the cause of the oppressed, encouraged by the prospect of an ample recompense? It might be said, perhaps—let the claimant sue *in formâ pauperis*: but then he must swear that he is not worth five pounds; and a man may not be able to take that oath, and yet be unequal to the commencement of a suit requiring the outlay of thousands. Moreover, a pretty prospect it was for such a suitor, (*in formâ pauperis*,) if he should happen to be nonsuited—to be "put to his election, whether to be whipped or pay the costs."[\[5\]](#) Thus reasoned within himself that astute person, Mr. Frankpledge; and at length satisfied himself that he had framed an instrument which would "meet the case"—that "would hold water." To the best of my recollection, it was a BOND, conditioned to pay the sum of ten thousand pounds to Messrs. Quirk, Gammon, and Snap, within two months of Titmouse's being put into possession of the rents and profits of the estate in question. The *condition* of that bond was, as its framer believed, drawn in a masterly manner; and his draft was lying before Messrs. Quirk, Gammon,

and Snap, on the Wednesday morning, (*i. e.* the day after Titmouse's interview with them,) and had succeeded at length in exciting the approbation of Mr. Quirk himself; when—whew!—down came a note from Mr. Frankpledge, to the effect that, "since preparing the draft bond," he had "had reason *slightly to modify* his original opinion," owing to his "having lit upon a LATE CASE," in which an instrument precisely similar to the one which he had prepared for his admiring clients, had been held "totally ineffectual and void both at law and in equity." I say, Mr. Frankpledge's note was to that effect; for so ingeniously had he framed it—so effectually concealed his retreat beneath a little cloud of contradictory authorities, like as the ink-fish, they say, eludeth its pursuers—that his clients cursed the law, not their draftsman; and, moreover, by prudently withholding the *name* of the "late case," he, at all events for a while, had prevented their observing that it was *senior* to some eight or ten cases which (indefatigable man!) he had culled for them out of the legal garden, and arrayed on the back of his draft. Slightly disconcerted were Messrs. Quirk and Gammon, it may be believed, at this new view of the "result of the authorities." "Mortmain is always right!" said Quirk, looking hard at Gammon; who observed simply that one day Frankpledge would be as old as Mortmain then was—by which time (thought he) I also know where—please God—you will be, my old friend, if there's any truth in the Scriptures! In this pleasant frame of mind were the partners, when the impudent apparition of Huckaback presented itself, in the manner which has been described. Huckaback's commentary upon the disgusting text of Titmouse over-night, (as a lawyer would say, in analogy to a well-known term, "Coke upon Littleton,") produced an effect upon their minds which may be easily imagined. It was while their minds were under these two soothing influences, *i. e.* of the insolence of Huckaback and the vacillation of Frankpledge, that Mr. Gammon had

penned the note to Titmouse, (surely, under the circumstances, one of extraordinary temper and forbearance,) which had occasioned him the agonies I have been attempting faintly to describe;—and that Quirk, summoning Snap into the room, had requested him to give orders for denial to Titmouse if he should again make his appearance at the office; which injunction Snap forthwith delivered in the clerk's room, in a tone and manner that were a very model of the *imperative mood*.

A day or two afterwards, Mr. Quirk, (who was a man that stuck like a limpet to a rock to any point which occurred to him,) in poring over that page in the fourth volume of *Blackstone's Commentaries*, where were to be found the passages which have been already quoted, (and which both Quirk and Gammon had long had off by heart,) as he sat one day at dinner, at home, whither he had taken the volume in question, fancied he had at last hit upon a notable crotchet, which, the more he thought of, the more he was struck with; determining to pay a visit in the morning to Mr. Mortmain. The spark of light that had twinkled till it kindled in the tinder of his mind, was struck by his hard head out of the following sentence of the text in question:

—

"A man *may*, however, maintain the suit of his near kinsman, servant, or POOR NEIGHBOR, out of *charity and compassion*, with impunity; *otherwise*, the punishment is," &c. &c.[6]

Now, it seemed to Mr. Quirk, that the words which I have placed in italics and small capitals, met the case of poor Tittlebat Titmouse exactly. He stuck to that view of the case, till he *almost* began to think that he really had a kind of a sort of a charity and compassion for poor Tittlebat—kept out of his rights—tyrannized over by a vulgar draper in Oxford Street—where, too, no doubt, he was half starved.—"It's a great blessing that one's got the

means—and the inclination, to serve one's poor neighbors"—thought Quirk, as he swallowed glass after glass of the *wine that maketh glad the heart of man*—and also *softens* it;—for the more he drank, the more and more pitiful became his mood—the more sensitive was he to compassionate suggestions; and by the time that he had finished the decanter, he was all but in tears! These virtuous feelings brought their own reward, too—for, from time to time, they conjured up, as it were, the faint rainbow image of a bond conditioned for the payment of TEN THOUSAND POUNDS!

To change the metaphor a little—by the time that old Quirk had reached his office in the morning, the heated iron had cooled. If his heart *had* retained any of the maudlin softness of the preceding evening, the following pathetic letter from Titmouse might have made a very deep impression upon it, and fixed him, in the benevolent and disinterested mind of the old lawyer, as indeed his "poor neighbor." The following is an exact copy of that lucid and eloquent composition. It had been written by Mr. Titmouse, all out of his own head; and with his own hand had he left it at the office, at a late hour on the preceding evening.

"To Messrs. QUERK, GAMON, and SNAPE.

"GENTS,

"Y^r Esteem'd Favor lies now before Me, which *must Say* have Given me Much Concern, seeing I Thought it was All Made up betwixt us That was of Such an *Unpleasant Nature* on Tuesday night (ultimo) w^h I most humbly Own (and Acknowledge) was all alone and *intirely* of My Own Fault, and Not in the Least Your's which behaved to me, Must say, In the most Respectful and superior manner that was possible to think Of, for I truly Say I never was In the Company of Such Imminent and Superior Gents before In my Life w^h will take my Oath sincerely Of, Gents. Please to consider the Brandy (w^h *do* think was *Uncommon Stiff*)

such a flustrum As I was In before, to, w^h was Evident to All of Us there then Assemblid and very natral like to be the Case Seeing I have nevir known what Peas of Mind was since I behaved in Such a *Oudacious* way w^h truly was the case I can't Deny to Such Gents as Yourselfs that were doing me such Good Fortune And Kindness to me as it would Be a Dreadful *sin and shame* (such as Trust I can never be Guilty of) to be (w^h am not) and never Can Be insensible Of, Gents do Consider all this Favorably because of my humble Amends w^h I here Make with the greatest Trouble in my Mind that I have Had Ever Since, it was all of the Sperrits I Tooke w^h made me Go On at such a Rate w^h was always (beg to Assure y^r most resp^e house) the Case Since my birth when I took Sperrits never so little Since I had the Meazles when I was 3 Years Old as I Well Recollect and hope it will be Born in Mind what is Often Said, and I'm Sure I've read it Somewhere Else that People that Is Drunk Always speaks the *Direct Contrarywise* of their True and Real Thoughts. (w^h am Certain never was any Thing Truer in my case) so as I get the Money or What not, do whatever you Like w^h are quite welcome to Do if you please, and No questions Asked, don't Mind saying by The Way It shall Be As Good as £200 note in The way of your resp^e House if I Get the Estate of w^h am much in Want of. Mr. Gamon (w^h is the most Upright gent that ever I came across in All my Life) will tell you that I Was Quite Cut up when he came After me in that kind Way and told him Then how I loved y^r Respect^e House and would do all In My power to Serve You, which see if I Don't, I was in Such a rage with that Fellow (He's only in a *Situation* in Tottenham Ct Road) Huckaback which is his true name it was an *oudacious* thing, and have given him such a Precious Good hiding last Night as you never

saw when on his Bended Knees He asked the pardon of your Respectable House, say^g nothing of Me w^h w^d not allow because I said I would Not Forgive Him because he had not injured me: But you, w^h I wonder at his *Impudence* in Calling on Professional Gents like you, if I get the Estate shall never cease to Think well of you and mean While how full of Trouble I am *Often Thinking Of Death* which is the End of Every Thing And then in that Case who will the Property Go to Seeing I Leave never a Brother or Sister Behind me. And Therefore Them That w^d Get it I Feel Sure of w^d Not do So well by you (if You will Only believe Me) So Gents. This is All at present That I will Make so Bold to trouble you With About my Unhappy Affairs Only to say That am *used* most Intolerably Bad now In The Shop quite Tyranicall And Mr. Tag-Rag as Set Them All Against Me and I shall Never Get Another Situatⁿ for want of a Char^r which he will give me say^g noth^g at Present of the Sort of Victules w^h give me Now to Eat Since Monday last, For Which am Sure the Devil must have Come In to That Gentleman (Mr. Tag-rag, he was only himself in a Situation in Holborn once, gett^g the Business by marry^g the widow w^h wonder At for he is nothing Particular to Look At.) I am y^{rs}

Humbly to Command Till Death (always Humbly Begging pardon for the bad Conduct w^h was guilty of when In Liquor Especially On an Empty Stomach, Having Taken Nothing all that Day excepting what I could not Eat,)

"Your's most Respy

"TITTLEBAT TITMOUSE.

"P. S. Will Bring That young Man with Tears In his Eyes to Beg y^r pardon Over again If You Like w^h will Solemnly Swear if Required That he did It all of His *own* Head And that Have given It him For it in

the Way That is Written Above And humbly Trust You Will make Me So happy Once more by writing To Me (if it is only a Line) To say You Have Thought No more of it T. T. No. 9 Closet Ct. Oxford Street. 14/7/18—"

This exquisitely-skilful epistle might indeed have brought tears into Mr. Quirk's eyes, if he had been *used* to the melting mood, which he was not; having never been seen actually to shed a tear but once—when five-sixths of his little bill of costs (£196, 15s. 4d.) were taxed off in an auction on a Bill of Exchange for £13.[\[Z\]](#) As it was, he tweedled the letter about in his hands for about five minutes, in a musing mood, and then stepped with it into Mr. Gammon's room. That gentleman took the letter with an air of curiosity, and read it over; at every sentence (if indeed a sentence there was in it) bursting into soft laughter.

"Ha, ha, ha!" he laughed on concluding it—"a comical gentleman, Mr. Titmouse, upon my honor!"

"Funny— isn't it rather?" interposed Mr. Quirk, standing with his hands fumbling about in his breeches pockets.

"What a crawling despicable little rascal!—ha, ha, ha!"

"Why—I don't quite say that, either," said Quirk, doubtingly—"I—don't exactly look at it in *that* light!"

"My dear sir!" exclaimed Gammon, leaning back in his chair, and laughing rather heartily, (at least for him.)

"You can't leave off that laugh of yours," said Quirk, a little tartly; "but I must say I don't see anything in the letter to laugh at so particularly. It is written in a most respectful manner, and shows a proper feeling towards the House!"

"Ay! see how he speaks of *me*!" interrupted Gammon, with such a smile!

"And doesn't he speak so of me? and all of us?"

"He'll let the house tread on him till he can tread on the house, I dare say."

"But you must own, Mr. Gammon, it shows we've licked him into shape a bit—eh?"

"Oh, it's a little vile creeping reptile now, and so it will be to the end of the chapter—of our proceedings; and when we've *done* everything—really, Mr. Quirk! if one *were* apt to lose one's temper, it would be to see such a *thing* as that put into possession of such a fortune."

"That may be, Mr. Gammon; but I really—hem!—trust—I've—a higher feeling!—To right—the injured"—— He could get no farther.

"Hem!" exclaimed Gammon.

The partners smiled at one another. A touch, or an attempted touch at *disinterestedness*!—and at Quirk's time of life!

"But he's now in a humor for *training*, at all events— isn't he?" exclaimed Quirk—"we've something now to go to work upon—gradually."

"Isn't that a leaf out of my book, Mr. Quirk?—isn't that exactly what"——

"Well, well—what does it signify?" interrupted Quirk, rather petulantly—"I've got a crotchet that'll do for us, yet, about the matter of law, and make all right and tight—so I'm going to Mortmain."

"I've got a little idea of my own of that sort, Mr. Quirk," said Gammon—"I've got an extract from Co-Litt—. I can't imagine how either of them could have missed it; and, as Frankpledge dines with me to-day, we shall talk it all over. But, by the way, Mr. Quirk, I should say, with all deference, that we'll take no more notice of this fellow till we've got some screw tight enough"——

"Why—all that may be very well; but you see, Gammon, the fellow seems the real heir, after all—and if *he* don't get it, *no one can*; and if *he* don't—we don't! eh?"

"There's a very great deal of force in that observation, Mr. Quirk—it gives one another view of the subject!"—said Gammon, emphatically:—and, tolerably well pleased with one another, they parted. If Quirk might be compared to an old file, Gammon was the *oil*!—so they got on, in the main, very well together. It hardly signifies what was the result of their interviews with their two conveyancers. The two partners met the next morning on ordinary business; and as each made no allusions whatever to the "crotchet" of the day before, it may be safely inferred that each had been satisfied by his conveyancer of having found out a mare's nest.

"I think, by the way," said Mr. Gammon to Mr. Quirk, before they parted on the previous evening, "it may be as well, all things considered, to acknowledge the receipt of the fellow's note—eh?—*Can't* do any harm, you know, and civility costs nothing—hem!"

"The very thing I was thinking of," replied Quirk, as he always did, on hearing any suggestion from Mr. Gammon. So by that night's post was despatched (post-paid) the following note to Mr. Titmouse:—

"Messrs. Quirk, Gammon, and Snap have the pleasure of acknowledging the receipt of Mr. Titmouse's polite letter of last night's date; and earnestly beg that he will not distress himself about the little incident that occurred at their office on Tuesday night, and which they assure him they have quite forgotten. They made all allowances, however their feelings suffered at the time. They beg Mr. T. will give them credit for not losing sight of his interests, to the best of their ability; obstructed as they are, however, by numerous serious difficulties. If they should be hereafter overcome, he may rest assured of

their promptly communicating with him; and till then they trust Mr. T. will not inconvenience himself by calling on, or writing to them.

Saffron Hill, 15th July 18—.

"P. S.—Messrs. Q. G. and S. regret to hear that any unpleasantness has arisen (Gammon could hardly write for laughing) between Mr. Titmouse and his friend Mr. Hicklebagle, who, they assure him, manifested a very warm interest in behalf of Mr. T., and conducted himself with the greatest propriety on the occasion of his calling upon Messrs. Q. G. and S. They happened at that moment to be engaged in matters of the highest importance; which will, they trust, explain any appearance of abruptness they might have exhibited towards that gentleman. Perhaps Mr. Titmouse will be so obliging as to intimate as much to Mr. Hickerbag."

There was an obvious reason for this polite allusion to Huckaback. Gammon thought it very possible that that gentleman might be in Mr. Titmouse's confidence, and exercise a powerful influence over him hereafter; and that influence Messrs. Quirk, Gammon, and Snap might find it well worth their while to secure beforehand.

The moment that Titmouse, with breathless haste, had read over this mollifying document, which being directed to his lodgings correctly, he obtained as soon as he had got home, after quitting Mr. Tag-rag, about ten o'clock, he hastened to his friend Huckaback. That gentleman (who seemed now virtually recognized by Messrs. Quirk, Gammon, and Snap as Titmouse's confidant) shook his head ominously, exclaiming—"Blarny, blarny!" and a bitter sneer settled on his disagreeable features, till he had read down to the postscript; the perusal of which effected a sudden change in his feelings. He declared, with a great oath, that Messrs. Quirk, Gammon, and Snap were "perfect gentlemen," and would "do the right thing after all

—Titmouse might depend upon it;" an assurance which greatly cheered Titmouse, to whose keen discernment it never once occurred to refer Huckaback's altered tone to the right cause, viz. the lubricating quality of the postscript; and since Titmouse did not allude to it, no more did Mr. Huckaback, although his own double misnomer stuck not a little in his throat. So effectual, indeed, had been that most skilful postscript upon the party at whom it had been aimed, that he exerted himself unceasingly to revive Titmouse's confidence in Messrs. Quirk, Gammon, and Snap; and so far succeeded, that Titmouse returned to his lodgings at a late hour, a somewhat happier, if not a *wiser* man than he had left them. By the time, however, that he had got into bed, having once more spelled over the note in question, he felt as despondent as ever, and thought that Huckaback had not known what he had been talking about. He also adverted to an *apparently* careless allusion by Huckaback to the injuries which had been inflicted upon him by Titmouse on the Wednesday night: and which, by the way, Huckaback determined it should be no fault of his if Titmouse easily forgot! He hardly knew why—but he disliked this particularly.—Whom had he, however, in the world, but Huckaback? In company with him alone, Titmouse felt that his pent-up feelings could discharge themselves. Huckaback had certainly a wonderful knack of keeping up Titmouse's spirits, whatever cause he fancied he might really have for depression. In short, he longed for the Sunday morning, ushering in a day of rest and sympathy. Titmouse would indeed then have to look back upon an agitating and miserable week, what with the dismal upsetting of his hopes in the manner I have described, and the tyrannical treatment which he had experienced at Tag-rag and Co.'s. His tormentor there, however, began at length, in some degree, to relax his *active* exertions against Titmouse, simply because of the exertion requisite for keeping them up. He attributed

the pallid cheek and depressed manner of Titmouse entirely to the discipline which had been inflicted upon him at the shop; and was gratified at perceiving that all his other young men seemed, especially in his presence, to have imbibed his hatred of Titmouse. What produced in Tag-rag this hatred of Titmouse? Simply what had taken place on the Monday. Mr. Tag-rag's dignity and power had been doggedly set at nought by one of his shopmen, who had since refused to make the least submission, or offer any kind of apology. Such conduct struck at the root of subordination in his great establishment. Again, there is perhaps nothing in the world so calculated to enrage a petty and vulgar mind to the highest pitch of malignity, as the cool persevering defiance of an inferior, whom it strives to *despise*, while it is only *hating*, feeling at the same time such to be the case. Tag-rag now and then, when he looked towards Titmouse, as he stood behind the counter, felt as though he could have killed the little ape. Titmouse attempted once or twice, during the week, to obtain a situation elsewhere, but in vain. He could expect no character from Tag-rag; and when the 10th of August should have arrived, what was to become of him? These were the kind of thoughts often passing through his mind during the Sunday, which he and Huckaback spent together in unceasing conversation on the one absorbing event of the last week. Titmouse, poor little puppy, had dressed himself with just as much care as usual; but as he was giving the finishing touches at his toilet, pumping up grievous sighs every half minute, the sum of his reflections might be stated in the miserable significance of a quaint saying of Poor Richard's—"How hard is it to make an empty sack stand upright!"

Although the sun shone as vividly and beautifully as on the preceding Sunday, to Titmouse's saddened eye there seemed a sort of gloom everywhere. Up and down the Park he and Huckaback walked, towards the

close of the afternoon; but Titmouse had not so elastic a strut as before. He felt empty and sinking. Everybody seemed to know what a sad pretender he was: and the friends quitted the magic circle much earlier than had been usual with Titmouse. What with the fatigue of a long day's saunter, the vexation of having had but a hasty, inferior, and unrefreshing meal, which did not deserve the name of dinner, and their unpleasant thoughts, both seemed depressed as they walked along the streets. At length they arrived at the open doors of a gloomy-looking building, into which two or three sad and prim-looking people were entering. After walking a few paces past the door—"Do you know, Huck," said Titmouse, stopping, "I've often thought that—that—there's something in *Religion*."

"To be sure there is, for those that like it—who doubts it? It's all very well in its place, no doubt," replied Huckaback, with much surprise, which increased, as he felt himself being slowly swayed round towards the building in question. "But what of that?"

"Oh, nothing; but—hem! hem!" replied Titmouse, sinking his voice to a whisper—"a touch of—religion—eh?—would not be so much amiss, just now! I feel—uncommon inclined that way, somehow, 'pon my soul!"

"Religion's all very well, Titty, dear!—for them that has much to be thankful for; but devil take me! what have either you or me to be"——

"But, Huck—how do you know but we might *get* something to be thankful for, by praying?—I've often heard of great things in that line—but—*do* come in with me, Huck!"

Huckaback stood for a moment irresolute, twirling about his cane, and looking rather distastefully towards the dingy building. "It won't answer," said he, faintly. Titmouse drew him nearer; but he suddenly started back.—"No! oh, 'tis only a meeting-house, Tit! Curse Dissenters, how I hate 'em! Isn't your precious governor one in that line? Give *me* a regular-like,

respectable church, with a proper steeple, and parson, and prayers, and an organ, and all that!"

Titmouse secretly acknowledged the force of these observations; and the intelligent and piously disposed couple, with perhaps a just, but certainly a somewhat sudden regard for orthodoxy, were not long before they had found their way into a church where evening service was being performed. They ascended the gallery stair; and seeing no reason to be ashamed of being at church, down they both went, with loud clattering steps and a bold air, into the very central seat (which happened to be vacant) in the front of the gallery. Titmouse paid a most exemplary attention to what was going on, kneeling, sitting, and standing with exact propriety, in the proper places; joining audibly in the responses, and keeping his eyes pretty steadily on the prayer-book, which he found lying there. He even rebuked Huckaback for whispering (during one of the most solemn parts of the service) that "there was an uncommon pretty gal in the next pew!"—He thought that the clergyman was a remarkable fine preacher, and said some things that he *must* have meant for him, Titmouse, in particular!

"Curse me, Hucky!" said he, heatedly, as soon as they had quitted the church, and were fairly in the street—"Curse me if—if—ever I felt so comfortable-like in my mind before, as I do now—see if I don't go again next Sunday!"

"Lord, Tit, you don't *really* mean—eh?—it's deuced dull work!"

"Hang me if I don't, though! and if anything should come of it—if I *do* but get the estate—(I wonder, now, where *Mr. Gammon* goes to church. I should like to know!—I'd go there regularly)—But if I *do* get the thing—you see if I don't"——

"Ah, I don't know; it's not much use praying for money, Tit; I've tried it myself, once or twice, but it didn't answer!"

"I'll take my oath you was staring at the gals all the while, Hucky!"

"Ah, Titty!" exclaimed Huckaback, and winked his eye, and put the tip of his forefinger to the tip of his nose, and laughed.

Titmouse continued in what he doubtless imagined to be a devout frame of mind, for several minutes after quitting the church. But close by the aforesaid church, the devil had a thriving little establishment, in the shape of a cigar-shop; in which a showily-dressed young Jewess sat behind the counter, right underneath a glaring gas-light—with a narrow stripe of greasy black velvet across her forehead, and long ringlets resting on her shoulders—bandying slang with two or three other such creatures as Titmouse and Huckaback. Our friends entered and purchased a cigar a-piece, which they lit on the spot; and after each of them had exchanged an impudent wink with the Jewess, out they went, puffing away—all the remains of their piety! When they had come to the end of their cigars they parted, each speeding homeward. Titmouse, on reaching his lodgings, sank into profound depression. He felt an awful conviction that his visit to the cigar-shop had entirely spoiled the effect of his previous attendance at the church; and that, if so disposed, (and it served him right,) he might now sit and whistle for his ten thousand a-year. Thoughts such as these drove him nearly distracted. If, indeed, he had foreseen having to go through such another week as the one just over, I think it not impossible that before the arrival of the ensuing Sunday, he might have afforded a little employment to that ancient and gloomy functionary, a coroner, and his jury. At that time, however, inquests of this sort were matter-of-fact and melancholy affairs enough; which I doubt not would have been rather a *dissuasive* from suicide, in the estimation of one who might be supposed ambitious of the *éclat* of a modern inquest; where, indeed, such strange antics are played by certain new performers as would suffice to revive the corpse, (if it were a

corpse that had ever had a spark of sense or spirit in it,) and make it kick the coroner out of the room.[\[8\]](#) But to one of so high an ambition as Tittlebat Titmouse, how delightful would it not have been, to anticipate becoming (what had been quite impracticable during life) the object of public attention after his death—by means of a flaming dissertation by the coroner on his own zeal and spirit—the nature and extent of his rights, powers, and duties;—when high doctors are brow-beaten, the laws set at defiance, and public decency plucked by the beard, and the torn and bleeding hearts of surviving relatives still further agonized by an exposure, all quivering under the recent stroke, to the gaping vulgar! Indeed, I sometimes think that the object of certain coroners, now-a-days, is twofold; first, public—to disgust people with suicide, by showing what horrid proceedings will take place over their carcasses; and secondly, private—to get the means of studying anatomy by *post mortems*, which the said coroner never could procure in his own practice; which enables us to account for some things one has lately seen, viz. that if a man come to his death by means of a wagon crushing his legs, the coroner institutes an exact examination of the structure of the *lungs* and *heart*. I take it to be getting now into a rule—the propriety whereof, some people think, cannot be doubted—namely, that bodies ought now to be opened only to prove that they ought not to have been opened; an inquest must be held, in order to demonstrate that it need not have been held, except that certain fees thereby find their way into the pocket of the aforesaid coroner, which would otherwise not have done so. In short, such a coroner as I have in my eye may be compared to a great ape squatting on a corpse, furiously chattering and spitting at all around it; and I am glad that it hath at last had wit enough first to *shut the door* before proceeding to its horrid tricks.

Touching, by the way, the *moral* of suicide, it is a way which some have of *cutting* the Gordian knot of the difficulties of life; which having been done, possibly the very first thing made manifest to the spirit, after taking its mad leap into the dark may be—how very easily the said knot might have been UNTIED; nay, that it was *on the very point* of being untied, if the impatient spirit had stayed only a moment longer!

I said it was not *impossible* that Mr. Titmouse might, under the circumstances alluded to, have done the deed which has called forth the above natural and profound reflections; but, upon the whole, it is hardly *probable*; for he knew that by doing so he would (first) irreparably injure society, by depriving it of an enlightened and invaluable member; (secondly,) inflict great indignity on his precious body, of which, during life, he had always taken the most affectionate care, by consigning it to burial in a cross-road, at night-time, with a stake run through it,[\[9\]](#) and moreover peril the little soul that had just leaped out of it, by not having any burial-service said over his aforesaid remains; and (lastly) lose all chance of enjoying Ten Thousand a-Year—at least upon the earth. I own I was a little startled (as I dare say was the pensive reader) at a passage of mournful significance in Mr. Titmouse's last letter to Messrs. Quirk, Gammon, and Snap, viz.—"How full of trouble I am, *often thinking of death*, which is the end of everything;" but on carefully considering the context, I am disposed to think that the whole was only an astute device of Titmouse's, either to rouse the fears, or stimulate the feelings, or excite the hopes of the three arbiters of his destiny to whom it was addressed. Mr. Gammon, he thought, might be thereby moved to pity; while Mr. Quirk would probably be operated upon by fears, lest the sad contingency pointed at might deprive the house of one who would richly repay their exertions; and by hopes of indefinite advantage, if they could by any means prevent its happening.

That these gentlemen really *did* keenly scrutinize, and carefully weigh every expression in that letter, ridiculous as it was, and contemptible as, I fear, it showed its writer to be, is certain; but it did not occur to them to compare with it the spirit, at least, and intention of their own answer to it. Did the latter document contain less cunning and insincerity, because it was couched in somewhat superior phraseology? They could conceal their selfish and over-reaching designs, while poor Titmouse exposed all his little mean-mindedness and hypocrisy, simply because he had not learned how to conceal it effectually. 'Twas indeed a battle for the very same object, but between unequal combatants. Each was trying to *take in* the other. If Messrs. Quirk, Gammon, and Snap despised and loathed the man to whom they exhibited such anxious courtesy, Titmouse hated and feared those whom his interests compelled him for a while to conciliate. Was there, in fact, a pin to choose between them—except perhaps that Titmouse was, in a manner, excused by his necessities? But, in the mean while—to proceed—his circumstances were becoming utterly desperate. He continued to endure great suffering at Mr. Tag-rag's during the day—the constant butt of the ridicule and insult of his amiable companions, and the victim of his employer's vile and vulgar spirit of hatred and oppression. His spirit, (such as it was,) in short, was very nearly broken. Though he seized every opportunity that offered, to inquire for another situation, he was unsuccessful; for all whom he applied to, spoke of the *strict character* they should require, "before taking a new hand into their establishment." His occupation at nights, after quitting the shop, was twofold only—either to call upon Huckaback, (whose sympathy, however, he was exhausting rapidly,) or solace his feelings by walking down to Saffron Hill, and lingering about the closed office of Messrs. Quirk, Gammon, and Snap—there was a kind of gratification even in that! He once or twice felt flustered

even on catching a glimpse of the old housekeeper returning home with a pint of porter in her hand. How he would have rejoiced to get into her good graces, and accompany her into even the kitchen—when he would be on the premises, at least, and conversing with one of the establishment, of those who he believed could, with a stroke of their pens, turn this wilderness of a world into a paradise for him! But he dared not make any overtures in that quarter, for fear of their getting to the notice of the dreaded Messrs. Quirk, Gammon, and Snap.

At length, no more than three or four shillings stood between him and utter destitution; and the only person in the world to whom he could apply for even the most trivial assistance, was Huckaback—whom, however, he knew to be really little better off than himself; and whom, moreover, he felt to be treating him more and more coldly, as the week wore on, without his hearing of any the least tidings from Saffron Hill. Huckaback evidently felt now scarcely any interest or pleasure in the visits of his melancholy friend, and was plainly disinclined to talk about his affairs. At length he quite turned up his nose with disgust, whenever Titmouse took out the well-worn note of Messrs. Quirk, Gammon, and Snap, (which was almost dropping in pieces with being constantly carried about in his pocket, taken in and out, and folded and unfolded,) for the purpose of conning over its contents, as if there might yet linger in it some hitherto undiscovered source of consolation. Poor Titmouse, therefore, looked at it on every such occasion with as eager and vivid an interest as ever; but it was glanced at by Huckaback with a half-averted eye, and a cold drawling, yawning "Ya—a—as—I see—I—dare—say!" While his impressions of Titmouse's bright prospects were thus being rapidly effaced, his smarting recollections of the drubbing he had received became more distinct and frequent, his feelings of resentment more lively, nor the less so, because the expression of them had

been stifled, (while he had considered the star of Titmouse to be in the ascendant,) till the time for setting them into motion and action, had gone by. In fact, the presence of Titmouse, suggesting such thoughts and recollections, became intolerable to Huckaback; and Titmouse's perceptions (dull as they naturally were, but a little quickened by recent suffering) gave him more and more distinct notice of this circumstance, at the precise time when he meditated applying for the loan of a few shillings. These feelings made him as humble towards Huckaback, and as tolerant of his increasing rudeness and ill-humor, as he felt abject towards Messrs. Quirk, Gammon, and Snap; for, unless he could succeed in wringing some trifling loan from Huckaback, (if he really had it in his power to advance him *anything*,) Titmouse really could not conjecture what was to become of him. Various faint but unadroit hints and feelers of his had been thrown away upon Huckaback, who did not, or would not, comprehend them. At length, however, a sudden and fearful pressure compelled poor Titmouse to speak out. Gripe, the collector, called one morning for the poor's rates due from Mrs. Squallop, and drained her of almost every penny of ready money which she had by her. This threw the good woman upon her resources to replenish her empty pocket—and down she came upon Titmouse—or rather, up she went to him; for his heart sank within him, one night on his return from the shop, having only just taken off his hat and lit his candle, as he heard the fat old termagant's well-known heavy step ascending the stairs, and approaching nearer and nearer to his door. Her loud imperative single knock vibrated through his very heart.

"Oh, Mrs. Squallop! How d'ye do, Mrs. Squallop?" commenced Titmouse, faintly, when he had opened the door; "Won't you take a chair?" with trepidation offering to the panting dame almost the only chair he had.

"No—I a'n't come to stay, Mr. Titmouse, because, d'ye see, in coorse you've got a pound, *at least*, ready for me, as you promised long ago—and never more welcome; there's old Gripe been here to-day, and had his hodious rates—(drat the poor, say I! them as can't work should starve!—rates is a robbery!)—but howsomdever he's cleaned *me* out to-day; so, in coorse, I come up to *you*. Got it, Mr. Titmouse?"

"I—I—I—'pon my life, Mrs. Squallop, I'm uncommon sorry"——

"Oh, bother your sorrow, Mr. Titmouse!—out with the needful, for I can't stop palavering here."

"I—I can't, so help me——!" gasped Titmouse, with the calmness of desperation.

"You can't! And marry, sir, why not, may I make bold to ask?" inquired Mrs. Squallop, after a moment's pause, striving to choke down her rage.

"P'r'aps you can get blood out of a stone, Mrs. Squallop; it's what *I* can't," replied Titmouse, striving to screw his courage up to the sticking place, to encounter one who was plainly bent upon mischief. "I've got two shillings—there they are," throwing them on the table; "and cuss me if I've another rap in the world; there, ma'am! take 'em, do; and drive me desperate!"

"You're a liar, then, that's flat!" exclaimed Mrs. Squallop, slapping her hand upon the table, with a violence that made the candle quiver on it, and almost fall down. "*You* have the *himperance*," said she, sticking her arms akimbo, and commencing the address she had been preparing in her own mind ever since Mr. Gripe had quitted her house, "to stand there and tell me you've got nothing in the world but them *two shillings*! Heugh! Out on you, you oudacious fellow!—you jack-a-dandy! *You* tell me you haven't got more than them two shillings, and yet turns out every Sunday morning of your life like a lord, with your pins, and your rings, and your chains, and your fine coat, and your gloves, and your spurs, and your dandy cane—

ough! you whipper-snapper! You're a cheat—you're a swindler, jack-a-dandy! You're the contempt of the whole court, you are—you jack-a-dandy! You've got all my rent on your back, and so you've had every Sunday for three months, you cheat!—you low fellow!—you ungrateful chap! You're a-robbing the widow and fatherless! Look at me, and my six fatherless children down there, you good-for-nothing, nasty, proud puppy!—eugh! it makes me sick to see you. *You* dress yourself out like my lord mayor! You've bought a gold chain with my rent, you rascally cheat! *You* dress yourself out?—Ha, ha!—you're a nasty, mean-looking, humpty-dumpty, carrot-headed"——

"You'd better not say *that* again, Mrs. Squallop," quoth Titmouse, with a fierce glance.

"Not say it again!—ha, ha! Hoighty-toighty, carrot-haired jack-a-dandy!—Why, you hop-o-my-thumb! d'ye think I won't say whatever I choose, and in my own house, and to a man that can't pay his rent? You're a Titmouse by name and by nature; there a'n't a cockroach crawling in our kitchen that a'n't more harmless than you!—You're a himperant cheat, and dandy, and knave, and a liar, and a red-haired rascal—and *that* in your teeth! (snapping her fingers.) Ough! Your name stinks in the court. You're a-taking of everybody in as will trust you to a penny's amount. There's poor old Cox, the tailor, with a sick wife and children, whom you've cheated this many months, all of his not having sperrit to summons you! But *I'll* set him upon you; you see if I don't—and I'll have my own, too, or I wouldn't give *that* for the laws!" shouted Mrs. Squallop, again furiously snapping her fingers in his face; and then pausing for breath after her eloquent invective.

"Now, what *is* the use," said Titmouse, gently, being completely cowed—"now, what good *can* it do to go on in this way, Mrs. Squallop?"

"Missus me no missus, Mr. Titmouse, but pay me my rent, you jack-a-dandy! You've got my rent on your back, and on your little finger; and I'll have it off you before I've done with you, I warrant you. I'm your landlady, and I'll sell you up; I'll have old Thumbscrew here the first thing in the morning, and distrain everything, and you, too, you jackdaw, if any one would buy you, which they won't! I'll have my rent at last: I've been too easy with you, you ungrateful chap; for, mark, even Gripe this morning says, 'Haven't you a gentleman lodger up above? get him to pay you your own,' says he; and so I will. I'm sick of all this, and I'll have my rights! Here's my son, Jem, a far better-looking chap than you, though he *hasn't* got hair like a sandy mop all under his chin, and he's obligated for to work from one week's end to another, in a paper cap and fustian jacket; and you—you painted jackanapes! But now I have got you, and I'll turn you inside out, though I know there's nothing in you! But I'll try to get at your fine coats, and spurs, and trousers, your chains and pins, and make something of them before I've done with you, you jack-a-dandy!"—and the virago shook her fist at him, looking as though she had not yet uttered even half that was in her heart towards him.

[Alas, alas, unhappy Titmouse, much-enduring son of sorrow! I perceive that you now feel the sharpness of an angry female tongue; and indeed to me, not in the least approving of the many coarse and heart-splitting expressions which she uses, it seems, nevertheless, that she hath not gone exceeding far off the mark in much that she hath said; for, in truth, in your conduct there is not a little that to me, piteously inclined towards you as I am, yet appeareth obnoxious to the edge of this woman's reproaches. But think not, O bewildered and not-with-sufficient-distinctness-discerning-the-nature-of-things Titmouse! that she hath only a sharp and bitter tongue. In

this woman behold a mother, and it may be that she will soften before you, who have plainly, as I hear, neither father nor mother. Oh me!]

Poor Titmouse trembled violently; his lips quivered; and the long pent-up tears forced their way at length over his eyelids, and fell fast down his cheeks.

"Ah, you may well cry!—you may! But it's too late!—it's my turn to cry now! Don't you think that I feel for my own flesh and blood, which is my six children? And isn't what's mine theirs? And aren't you keeping the fatherless out of their own? It's too bad of you—it is! and you know it is," continued Mrs. Squallop, vehemently.

"*They've* got a mother—a kind—good—mother—to take—care of them," sobbed Titmouse; "but there's been no one in the—the—world that cares a straw for *me*—this twenty—years!" He fairly wept aloud.

"Well, then, more's the pity for *you*. If you had, they wouldn't have let you make such a puppy of yourself—and at your landlady's expense, too. You know you're a fool," said Mrs. Squallop, dropping her voice a little; for she was a MOTHER, after all, and she knew that what poor Titmouse had just stated was quite true. She tried hard to feed the fire of her wrath, by forcing into her thoughts every aggravating topic against Titmouse that she could think of; but it became every moment harder and harder to do so, for she was consciously softening rapidly towards the weeping and miserable little object, on whom she had been heaping such violent and bitter abuse. He was a great fool, to be sure—he was very fond of fine clothes—he knew no better—he had, however, paid his rent well enough till lately—he was a very quiet, well-disposed lodger, for all *she* had known—he had given her youngest, child a pear not long ago. Really, thought Mrs. Squallop, I may have gone a *leetle* too far.

"Come—it a'n't no use crying in this way," she began in an altered tone. "It won't put money into your pocket, nor my rent into mine. You know you've wronged me, and I *must* be paid," she added, but in a still lower tone. She tried to cough away a certain rising disagreeable sensation about her throat; for Titmouse, having turned his back to hide the extent of his emotions, seemed half-choked with suppressed sobs.

"So you won't speak a word—not a word—to the woman you've injured so much?" inquired Mrs. Squallop, trying to assume a harsh tone; but her eyes were a little obstructed with tears.

"I—I—*can't* speak," sobbed Titmouse—"I—I feel ready to drop into a cold early grave!—everybody hates me"—here he paused; and for some moments neither of them spoke. "I've been kept on my legs the whole day about the town by Mr. Tag-rag, and had no dinner. I—I—wish I was *dead*! I do!—you may take all I have—here it is," continued Titmouse, with his foot pushing towards Mrs. Squallop the old hair trunk that contained all his little finery. "I sha'n't want them much longer, for I'm turned out of my situation."

This was too much for Mrs. Squallop, and she was obliged to wipe her full eyes with the corner of her apron, without saying a word. Her heart smote her for the misery she had inflicted on one who seemed quite broken down. Pity suddenly flew, fluttering his wings—soft dove!—into her heart, and put to flight in an instant all her enraged feelings. "Come, Mr. Titmouse," said she, in quite an altered tone, "never mind *me*; I'm a plain-spoken woman enough, I dare say—and often say more than I mean—for I know I a'n't over particular when my blood's up—but—lord!—I—I wouldn't hurt a hair of your head, poor chap!—for all I've said—no, not for double the rent you owe me. Come! don't go on so, Mr. Titmouse—what's the use?—it's all quite—over—I'm so sorry—Lud! if I had *really* thought"—she almost sobbed—"you'd been so—so—why, I'd have waited

till to-morrow night before I'd said a word. But, Mr. Titmouse, since you haven't had any dinner, won't you have a mouthful of something—a bit of bread and cheese I—I'll soon fetch you up a bit, and a drop of beer—we've just had it in for our suppers."

"No, thank you—I can't—I can't eat!" sobbed Titmouse.

"Oh, bother it, but you *shall*! I'll go down and fetch it up in half a minute, as sure as my name's Squallop!" And out of the room and down-stairs she bustled, glad of a moment to recover herself.

"Lord-a-mercy!" said she, on entering her room, to her eldest daughter and a neighbor who had just come in to supper—and while she hastily cut a thick hunch of bread, and a good slice of cheese—"there I've been a-rating that poor little chap, up at the top room, (my dandy lodger, you know,) like anything—and I really don't think he's had a morsel of victuals in his belly this precious day; and I've made him cry, poor soul! as if his heart would break. Pour us out half a pint of that beer, Sally—a *good* half pint, mind!—I'm going to take it up-stairs directly. I've gone a deal too far with him, I do think; but it's all of that nasty old Gripe; I've been wrong all the day through it! How I hate the sight of old Gripe! What *hodious* looking people they do get to collect the rates and taxes, to be sure!—Poor chap," she continued, as she wiped out a plate with her apron, and put into it the bread and cheese, together with a knife—"he offered me a chair when I went in, so uncommon civil-like, it took a good while before I could get myself into the humor to *give it* him as I wanted. And he's no father nor mother, (half of which has happened to *you*, Sal, and the rest will happen one of these days, you know—so you mind me while you have me!) and he's not such a very bad lodger, after all, though he *does* get a little behind-hand now and then, and though he turns out every Sunday like a lord, poor fool—as your poor dear father used to say, 'with a shining back and empty belly.'"

"But that's no reason why honest people should be kept out of their own, to feed his pride," interposed her neighbor, a skinny old widow, who had never had chick nor child, and was always behind-hand with her own rent; but whose effects were not worth distraining upon. "I'd get hold of some of his fine crincum-crancums and gimcracks, for security like, if I was you. I would, indeed."

"Why—no, poor soul—I don't hardly like: he's a vain creature, and puts everything he can on his back, to be sure; but he a'n't quite a *rogue*, neither."

"Ah, ha, Mrs. Squallop—you're such a simple soul!—Won't my fine gentleman make off with his finery after to-night?"

"Well, I shouldn't have thought it! To be sure he may! Really, there *can't* be much harm in asking him (in a proper kind of way) to deposit one of his fine things with me, by way of security—that ring of his, you know—eh?—Well, I'll try it anyhow," said Mrs. Squallop, as she set off up-stairs.

"I know what *I* should do, if so be he was a lodger of *mine*, that's all," said her visitor, significantly, (as Mrs. Squallop quitted the room,) vexed to find her supper so considerably and unexpectedly diminished, especially as to the pot of porter, which she strongly suspected would not be replenished.

"There," said Mrs. Squallop, setting down on the table what she had brought for Titmouse, "there's a bit of supper for you; and you're welcome to it, I'm sure, Mr. Titmouse."

"Thank you, thank you—I can't eat," said he, casting, however, upon the victuals a hungry eye, which belied what he said, while in his heart he longed to be left alone with them for about three minutes.

"Come, don't be ashamed—fall to work—it's good wholesome victuals," said she, lifting the table near to the edge of the bed, on the side of which he was sitting, and taking up the two shillings lying on the table—"and capital good beer, I warrant me; you'll sleep like a top after it."

"You're uncommon kind, Mrs. Squallop; but I sha'n't get a wink of sleep to-night for thinking"——

"Oh, bother your thinking! Let me begin to see you eat a bit. Well, I suppose you don't like to eat and drink before me, so I'll go." [Here arose a sudden conflict in the good woman's mind, whether or not she would act on the suggestion which had been put into her head down-stairs. She was on the point of yielding to the impulse of her own good-natured, though coarse feelings; but at last—] "I—I—dare say, Mr. Titmouse, you mean what's right and straightforward," she stammered.

"Yes, Mrs. Squallop—you may keep those two shillings; they're the last farthing I have left in the whole world."

"No—hem!—hem!—ahem! I was just suddenly a-thinking—now can't you guess, Mr. Titmouse?"

"What, Mrs. Squallop?" inquired Titmouse, meekly but anxiously.

"Why—suppose now—if it were only to raise ten shillings with old Balls, round the corner, on one of those fine things of yours—your ring, say!" [Titmouse's heart sank within him.] "Well, well—never mind—don't fear," said Mrs. Squallop, observing him suddenly turn pale again. "I—I only thought—but never mind! it don't signify—good-night! we can talk about that to-morrow—good-night—a good night's rest to you, Mr. Titmouse!" and the next moment he heard her heavy step descending the stairs. Some little time elapsed before he could recover from the agitation into which he had been thrown by her last proposal; but within five minutes of her quitting the room, there stood before him, on the table, an *empty* plate and jug.

CHAPTER IV.

"The beast! the fat old toad!" thought he, the instant that he had finished masticating what had been supplied to him by real charity and good-nature—"the vulgar wretch!—the nasty canting old hypocrite!—I saw what she was driving at all the while!—she had her eye on my ring!—She'd have me pawn it at old Balls's—ha, ha!—Catch me! that's all!—Seven shillings a-week for this nasty hole!—I'll be bound I pay nearly half the rent of the whole house—the old cormorant!—out of what she gets from me! How I hate her! More than half my salary goes into her greasy pocket! Cuss me if I couldn't have kicked her down-stairs—porter, bread and cheese, and all—while she was standing canting there!—A snivelling old beldam!—Pawn my ring!!—Lord!!"—Here he began to undress. "Ha! I'm up to her; she'll be coming here to-morrow, with that devil Thumbscrew, to distrain, I'll be sworn. Well—I'll take care of *these* anyhow;" and, kneeling down and unlocking his trunk, he took out of it his guard-chain, breast-pin, studs, and ring, carefully folded them up in paper, and depositing them in his trousers' pockets, resolved that henceforth their nightly resting-place should be—under his pillow; while during the day they should accompany his person whithersoever he went. Next he bethought himself of the two or three important papers to which Mr. Gammon had referred; and, with tremulous eagerness, read them over once or twice, but without being able to extract from them the slightest clew to their real character and bearing. Then he folded them up in a half sheet of writing-paper, which he proceeded to stitch carefully beneath the lining of his waistcoat; after which he blew out his slim candle, and with a heavy sigh got into bed. For some moments after he had blown out the candle did the image of it remain on his aching and

excited retina; and just so long did the thoughts of *ten thousand a-year* dwell on his fancy, fading, however, quickly away amid the thickening gloom of doubts, and fears, and miseries, which oppressed him. There he lies, stretched on his bed, a wretched figure, lying on his breast, his head buried beneath his feverish arms. Anon, he turns round upon his back, stretches his wearied limbs to their uttermost, folds his arms on his breast, then buries them beneath the pillow, under his head. Now he turns on his right side, then on his left—presently he starts up, and with muttered curse shakes his little pillow, flinging it down angrily. He cannot sleep—he cannot rest—he cannot keep still. Bursting with irritability, he gets out of bed, and steps to the window, which opening wide, a slight gush of fresh air cools his hot face for a moment or two. His wearied eye looks upward and beholds the moon shining overhead in cold splendor, turning the clouds to gold as they flit past her, and shedding a softened lustre upon the tiled roofs and irregular chimney-pots—the only objects visible to him. No sound is heard, but occasionally the dismal cry of disappointed cat, the querulous voice of the watchman, and the echo of the rumbling hubbub of Oxford Street. O miserable Titmouse! of what avail is it for thee thus to fix thy sorrowful lack-lustre eye upon the cold Queen of Night!

At that moment there happened to be also gazing at the same glorious object, but at some two hundred miles' distance from London, a very different person, with very different feelings, and in very different circumstances. It was one of the angels of the earth—a pure-hearted and very beautiful girl; who, after a day of peaceful, innocent, and charitable employment, and having just quitted the piano, where her exquisite strains had soothed and delighted the feelings of her brother, harassed with

political anxieties, had retired to her chamber for the night. A few moments before she was presented to the reader, she had extinguished her taper, and dismissed her maid without her having discharged more than half her accustomed duties—telling her that she should finish undressing by the light of the moon, which then poured her soft radiance into every corner of the spacious but old-fashioned chamber. Then she drew her chair to the window-recess, and pushing open the window, sat before it, only partially undressed as she was, her hair dishevelled, her head leaning on her hand, gazing upon the scenery before her with tranquil admiration. Silence reigned absolutely. Not a sound issued from the ancient groves, which spread far and wide on all sides of the fine old mansion in which she dwelt—solemn solitudes, nor yet less soothing than solemn! Was not the solitude enhanced by a glimpse she caught of a restless fawn, glancing in the distance across the avenue, as he silently changed the tree under which he slept?—Then the gentle breeze would enter her window, laden with sweet scents of which he had just been rifling the coy flowers beneath, in their dewy repose, tended and petted during the day by her own delicate hand!—Beautiful moon!—cold and chaste in thy skyey palace, studded with brilliant and innumerable gems, and shedding down thy rich and tender radiance upon this lovely seclusion—was there upon the whole earth a more exquisite countenance then turned towards thee than hers?—Wrap thy white robe, dearest Kate, closer round thy fair bosom, lest the amorous night-breeze do thee hurt, for he groweth giddy with the sight of thy charms! Thy rich tresses, half-uncurled, are growing damp—so it is time that thy blue eyes should seek repose. Hie thee, then, my love!—to yon antique couch, with its quaint carvings and satin draperies dimly visible in the dusky shade, inviting thee to sleep: and having first bent in cheerful reverence before thy Maker—to bed!—to bed!—sweet Kate, nothing disturbing thy serene

slumbers, or agitating that beautiful bosom.—Hush! hush!—now she sleeps! It is well that thine eyes are closed in sleep; for BEHOLD—see!—the brightness without is disappearing; sadness and gloom are settling on the face of nature; the tranquil night is changing her aspect; clouds are gathering, winds are moaning; the moon is gone:—but sleep on, sweet Kate—sleep on, dreaming not of dark days before thee—Oh, that thou couldst sleep on till the brightness returned!

After having stood thus leaning against the window for nearly half an hour, Titmouse, heavily sighing, returned to bed—but there he tossed about in wretched restlessness till nearly four o'clock in the morning. If he now and then sank into forgetfulness for a while, it was only to be harassed by the dreadful image of Mrs. Squallop, shouting at him, tearing his hair, cuffing him, flinging a pot of porter in his face, opening his boxes, tossing his clothes about, taking out his invaluable ornaments; by Tag-rag kicking him out of the shop; and Messrs. Quirk, Gammon, and Snap dashing past him in a fine carriage, with six horses, and paying no attention to him as he ran shouting and breathless after him; Huckaback following, kicking and pinching him behind. These were the few little bits of different colored glass in a mental kaleidoscope, which, turned capriciously round, produced those innumerable fantastic combinations out of the simple and ordinary events of the day, which we call *dreams*—tricks of the wild sisters Fancy, when sober Reason has left her seat for a while. But this is fitter for the Royal Society than the bedroom of Tittlebat Titmouse; and I beg the reader's pardon.

About six o'clock, Titmouse rose and dressed himself; and, slipping noiselessly and swiftly down-stairs, and out of the court, in order to avoid

all possibility of encountering his landlady or his tailor, soon found himself in Oxford Street. Not many people were stirring there. One or two men who passed him were smoking their morning's pipe, with a half-awakened air, as if they had only just got out of a snug bed, in which they always slept every moment that they lay upon it. Titmouse almost envied them! What a squalid figure he looked, as he paced up and down, till at length he saw the porter of Messrs. Tag-rag & Co. opening the shop-door. He soon entered it, and commenced another jocund day in that delightful establishment. The amiable Mr. Tag-rag continued unaltered.

"You're at liberty to take yourself off, sir, this very day—this moment, sir; and a good riddance," said he, bitterly, during the course of the day, after demanding of Titmouse how he dared to give himself such sullen airs; "and then we shall see how charming easy it is for gents like you to get another sitiuation, sir! Your looks and manner is quite a recommendation, sir! If I was you, sir, I'd raise my terms! You're worth double what I give, sir!" Titmouse made no reply. "What do you mean, sir, by not answering me—eh, sir?" suddenly demanded Mr. Tag-rag, with a look of fury.

"I don't know what you'd have me say, sir. What am I to say, sir?" inquired Titmouse, with a sigh.

"What, indeed! I should like to catch you! Say, indeed! Only say a word—and out you go, neck and crop. Attend to that old lady coming in, sir. And mind, sir, I've got my eye on you!" Titmouse did as he was bid; and Tag-rag, a bland smile suddenly beaming on his attractive features, hurried down towards the door, to receive some lady-customers, whom he observed alighting from a carriage; and at that moment you would have sworn that he was one of the kindest-hearted sweetest-tempered men in the world.

When at length *this* day had come to a close, Titmouse, instead of repairing to his lodgings, set off, with a heavy heart, to pay a visit to his

excellent friend Huckaback, whom he knew to have received his quarter's salary the day before, and from whom he faintly hoped to succeed in extorting some trifling loan. "If you want to learn the value of money, *try to borrow some*," says Poor Richard—and Titmouse was now going to learn that useful but bitter lesson. Oh, how disheartening was Mr. Huckaback's reception of him! That gentleman, in answering the modest knock of Titmouse, suspecting who was his visitor, opened the door but a little way, and in that little way, with his hand on the latch, he stood, with a plainly repulsive look.

"Oh! it's you, Titmouse, is it?" he commenced coldly.

"Yes. I—I just want to speak a word to you—only a word or two, Hucky, if you aren't busy?"

"Why, I was just going to go—but what d'ye want, Titmouse?" he inquired in a freezing manner, not stirring from where he stood.

"*Let me come inside a minute*," implored Titmouse, feeling as if his little heart were really dropping out of him: and, in a most ungracious manner, Huckaback motioned him in.

"Well," commenced Huckaback, with a chilling distrustful look.

"Why, Hucky, I know you're a good-natured chap—you *couldn't*, just for a short time, lend me ten shill"—

"No, curse me if I can: and that's flat!" briskly interrupted Huckaback, finding his worst suspicions confirmed.

"Why, Hucky, wasn't you only yesterday paid your salary?"

"Well!—suppose I was?—what then? You're a monstrous cool hand, Titmouse! I never!! So I'm to lend to you, when I'm starving myself! I've received such a lot, too, haven't I?"

"I thought we'd always been friends, Hucky," said Titmouse, faintly; "and so we shouldn't mind helping one another a bit! Don't you remember, I once

lent you half-a-crown?"

"Half-a-crown!—and that's nine months ago!"

"Do, Hucky, do lend me a few shillings. 'Pon my soul, I've not a sixpence in the whole world."

"Ha, ha! A pretty chap to borrow! You can pay so well! By George, Titmouse, you're a cool hand!"

"If you won't lend me, I must starve."

"Go to *my uncle's*." [Titmouse groaned aloud.] "Well—and why not? What of that?" continued Huckaback, sharply and bitterly. "I dare say it wouldn't be the first time you've done such a trick no more than me. I've been obligated to do it. Why shouldn't you? A'n't there that ring?"

"Oh, Lord! oh, Lord! that's just what Mrs. Squallop said last night!"

"Whew! *She's* down on you, is she? And you have the face to come to me!! *You*—that's a-going to be sold up, come to borrow! Lord, that's good, anyhow! A queer use that to make of one's friends;—it's a taking them in, I say!"

"Oh, Huck, Huck, if you only knew what a poor devil"——

"Yes, that's what I was a-saying; but it a'n't 'poor devils' one lends money to so easily, I warrant me; though you *a'n't* such a poor devil—you're only shamming! Where's your guard-chain, your studs, your breast-pin, your ring, and all that? Sell 'em! if not, anyhow, *pawn* 'em. Can't eat your cake and have it; fine back must have empty belly with us sort of chaps."

"If you'll only be so uncommon kind as to lend me—this once—ten shillings," continued Titmouse, in an imploring tone, "I'll bind myself, by a solemn oath, to pay you the very first moment I get what's due to me from Tag-rag & Co."—— Here he was almost choked by the sudden recollection that he had next to nothing to receive.

"You've some property in the MOON, too, that's coming to you, you know!" said Huckaback, with an insulting sneer.

"I know what you're driving at," said poor Titmouse; and he continued eagerly, "and if anything *should* ever come up from Messrs. Quirk, Gam"——

"Yough! Faugh! Pish! Stuff!" burst out Huckaback, in a tone of contempt and disgust; "*never* thought there was anything in it, and now *know* it! It's all my eye, and all that! You've been only humbugging me all this while!"

"Oh, Hucky, Hucky! You don't say so!" groaned Titmouse, bursting into tears; "you did not *always* say so."

"It's enough that I say it *now*, then; will that do?" interrupted Huckaback, impetuously.

"Oh, Lord, Lord! what is to become of me?" cried Titmouse, with a face full of anguish.

[At this moment, the following was the course of thought passing through the mind of Mr. Huckaback:—It is not *certain* that nothing will come of the fellow's affair with Messrs. Quirk, Gammon, and Snap. It was hardly likely that they would have gone as far as Titmouse represented, (lawyers as they were), unless they had seen very substantial grounds for doing so. Besides, even though Titmouse might not get ten thousand a-year, he might yet succeed in obtaining a very splendid sum of money: and if he (Huckaback) could but get a little slice out of it, Titmouse was now nearly desperate, and would promise anything; and if he could but be wheedled into giving anything in writing—Well, thought Huckaback, I'll try it however!]

"Ah, Titmouse, you're civil enough *now*, and would *promise* anything," said Huckaback, appearing to hesitate; "but supposing I were to do what you want, when you got your money you'd forget everything about it"——

"Forget my promise! Dear Hucky! only try me—do try me but once, that's all! 'Pon my precious life, ten shillings is worth more to me now than a hundred pounds may be by-and-by."

"Ay, so you say *now*; but d'ye mean to tell me, that in case I *was* now to advance you ten shillings out of my small salary," continued Huckaback, apparently carelessly, "you'd, for instance, pay me a hundred pounds out of your thousands?"

"Oh, Lord! only you try me—do try me!" said Titmouse, eagerly.

"Oh, I dare say!" interrupted Huckaback, smiling incredulously, and chinking some money in his trousers pocket. Titmouse heard it, and (as the phrase is) his teeth watered; and he immediately swore such a tremendous oath as I dare not set down in writing, that if Huckaback would that evening lend him ten shillings, Titmouse would give him one hundred pounds out of the very first moneys he got from the estate.

"Ten shillings is a slapping slice out of my little salary—I shall have, by George, to go without lots of things I'd intended getting; it's really worth ten pounds to me, just now."

"Why, dear Hucky! 'pon my life, 't is worth a hundred to *me*! Mrs. Squallop will sell me out, bag and baggage, if I don't give her something to-morrow!"

"Well, if I really thought—hem!—would you mind giving me, now, a bit of black and white for it—just (as one might say) to show you was in earnest?"

"I'll do anything you like; only let me feel the ten shillings in my fingers!"

"Well, no sooner said than done, if you're a man of your word," said Huckaback, in a trice producing a bit of paper, and a pen and ink. "So, only just for the fun of it; but—Lord! what stuff!—I'm only bargaining for a

hundred pounds of moonshine. Ha, ha! I shall never see the color of your money, not I; so I may as well say two hundred when I'm about it, as one hundred"——

"Why, hem! Two hundred, Huck, is rather a large figure; one hundred's odds enough, I'm sure!" quoth Titmouse, meekly.

"P'r'aps, Tit, you forget the *licking* you gave me the other day," said Huckaback, with sudden sternness. "Suppose I was to go to an attorney, and get the law of you, what a sight of damages I should have—three hundred pounds at least!"

Titmouse appeared even yet hesitating.

"Well, then!" said Huckaback, flinging down his pen, "suppose I have them damages yet"——

"Come, come, Hucky, 't is all past and gone, all that"——

"Is it? Well, I never! I shall never be again the same man I was before that 'ere licking. I've a sort of a—a—of a—feeling inside, as if—my breast was—I shall carry it to my grave—curse me if I sha'n't!"

[It never once occurred to Titmouse, not having his friend Mr. Gammon at his elbow, that the plaintiff in the action of *Huckaback v. Titmouse* might have been slightly at a loss for a *witness* of the assault; but something quite as good in its way—a heaven-sent suggestion—*did* occur to him.]

"Ah," said Titmouse, suddenly, "that's true; and uncommon sorry am I; but still, a hundred pounds is a hundred pounds, and a large sum for the use of ten shillings, and a licking; but never you think it's all moonshine about my business with Messrs. Quirk, Gammon, and Snap! I didn't intend to have said a word—but—you should only have heard what *I've* heard to-day from those gents; hem! but I won't split *again* either!" he added mysteriously.

"Eh? What? Heard from those gents at Saffron Hill?" interrupted Huckaback, briskly; "come, Titty, out with it—out with it; no secrets between friends, Titty!"

"No, I'll be hanged if I do—I won't spoil it all again; and now, since I've let out as much, which I didn't mean to do, I'll tell you something else—ten shillings is no use to me, I must have a pound."

"Titty, Titty!" exclaimed Huckaback, with unaffected concern.

"And I won't give more than fifty for it when I get my property either"—— [Huckaback whistled aloud, and with a significant air buttoned up the pocket which contained the money; intimating that now the negotiation was all at an end, for that Titmouse's new terms were quite out of the question;] "for I know where I can get twenty pounds easily, only I liked to come to a *friend* first."

"You aren't behaving much like a friend to one as has always been a fast friend of yours, Titty! A *pound*!—I haven't got it to part with, that's flat; so, if that's really your lowest figure, why, you must even go to your other friend, and leave poor Hucky!"

"Well, I don't mind saying only ten shillings," quoth Titmouse, fearing that he had been going on *rather* too fast.

"Ah, that's something reasonable-like, Titty! and to meet you like a friend, I'll take fifty pounds instead of a hundred; but you won't object now to—you know—a deposit; that ring of yours—well, well! it don't signify, since it goes against you; so now, here goes, a bit of paper for ten shillings, ha, ha!" and taking a pen, after a pause, in which he called to mind as much of the phraseology of money securities as he could, he drew up the following stringent document, which I give *verbatim et literatim*:—

"Know all Men That you are bound to Mr. R. Huckaback Promising the Bearer (on Demand) To Pay Fifty Pounds in cash out of the estate, if you Get it. (Value received.)

"(Witness,) 22d July 18—.

"R. HUCKABACK."

"There, Titty—if you're an honest man, and would do as you would be done by," said Huckaback, after signing his own name as above, handing the pen to Titmouse, "sign that; just to show your honor, like—for in course—bating the ten shillings I've lent you—I sha'n't ever come on you for the money—get as much as you may."

A blessed thought occurred to poor Titmouse in his extremity, viz. that there was *no stamp* on the above instrument, (and he had never seen a promissory-note or bill of exchange without one;) and he signed it instantly, with many fervent expressions of gratitude. Huckaback received the valuable security with apparently a careless air; and after cramming it into his pocket, as if it had been in reality only a bit of waste paper, counted out ten shillings into the eager hand of Titmouse; who, having thus most unexpectedly succeeded in his mission, soon afterwards departed—each of this pair of worthies fancying that he had succeeded in cheating the other. Huckaback, having very cordially shaken Titmouse by the hand, heartily damned him upon shutting the door on him; and then anxiously perused and re-perused his "security," wondering whether it was possible for Titmouse at any time thereafter to evade it, and considering by what means he could acquaint himself with the progress of Titmouse's affairs. The latter gentleman, as he hurried homeward, dwelt for a long while upon only one thought—how fortunate was the omission of his friend to have a stamp upon his security! When and where, thought he, was it that he had heard

that nothing would do without a stamp? However, he had got the ten shillings safe; and Huckaback might wait for his fifty pounds till—but in the meanwhile he, Titmouse, seemed to stand a fair chance of going to the dogs; the ten shillings, which he had just obtained with so much difficulty, were to find their way immediately into the pockets of his landlady, whom it might pacify for a day or two, and to what quarter was he now to look for the smallest assistance? What was to become of him? Titmouse was a miserable fool; but thoughts such as these, in such circumstances as his, would have forced themselves into the mind of even a fool! How could he avoid—oh, horrid thought!—soon parting with, or at least pawning, his ring and his other precious trinkets? He burst into a perspiration at the mere thought of seeing them hanging ticketed for sale in the window of old Balls! As he slowly ascended the stairs which led to his apartment, he felt as if he were following some unseen conductor to a dungeon.

He was not aware that all this while, although he heard nothing from them, he occupied almost exclusively the thoughts of those distinguished practitioners in the law, Messrs. Quirk, Gammon, and Snap. They, in common with Huckaback, had an intense desire to share in his anticipated good fortune, and determined to do so according to their opportunities. The excellent Huckaback (a model of an usurer on a small scale) had promptly and adroitly seized hold of the very first opportunity that presented itself, for securing a little return hereafter for the ten shillings, with which he had so generously parted when he could so ill afford it; while Messrs. Quirk, Gammon, and Snap were racking their brains, and from time to time, those of Messrs. Mortmain and Frankpledge, to discover some instrument strong and large enough to cut a fat slice for themselves out of the fortune they were endeavoring, for that purpose, to put within the reach of Mr. Titmouse. A rule of three mode of stating the matter would be thus: as the

inconvenience of Huckaback's parting with his ten shillings and his waiver of damages for a very cruel assault, were to his contingent gain, hereafter, of fifty pounds; so were Messrs. Quirk, Gammon, and Snap's risk, exertions, outlay, and benefit conferred on Titmouse, to their contingent gain of ten thousand pounds. The principal point of difference between them was—as to the mode of *securing* their future recompense; in which it may have been observed by the attentive reader, with respect to the precipitancy of Huckaback and the hesitating caution of Messrs. Quirk, Gammon, and Snap, that—"thus fools" (*e. g.* Huckaback) "*rushed in where angels*" (*i. e.* Messrs. Quirk, Gammon, and Snap) "*feared to tread.*" Let me not, however, for a moment, insinuate that both these parties were actuated by only one motive, *i. e.* to make a prey of this little monkey *millionnaire* that was to be. 'Tis true that Huckaback appears to have driven rather a hard bargain with his distressed friend, (and almost every one who, being similarly situated, has occasion for such services as Titmouse sought from Huckaback, will find himself called upon to pay, in one way or another, pretty nearly the same price for them;) but it was attended with one good effect;—for the specific interest in Titmouse's future prosperity, acquired by Huckaback, quickened the latter gentleman's energies and sharpened his wits in the service of his friend. But for this, indeed, it is probable that Mr. Huckaback's door would have become as hopelessly closed against Titmouse as was that of Messrs. Quirk, Gammon, and Snap. Some two or three nights after the little transaction between the two friends which I have been describing, Huckaback called upon Titmouse, and after greeting him rather cordially, told him that he had come to put him up to a trick upon the Saffron Hill people, that would tickle them into a little activity in his affairs. The trick was—the sending a letter to those gentlemen calculated to—but why attempt to characterize it? I have the original document lying before

me, which was sent by Titmouse the very next morning to Messrs. Quirk, Gammon, and Snap; and here follows a *verbatim* copy of it:—

"No. 9, Closet Court, Oxford Street.

"To Messrs. QUERK & CO.

"Gents,—Am Sorry to Trouble You, But Being Drove quite desperate at my Troubles (which have bro^t me to my Last Penny a Week ago) and Mrs. Squallop my Landlady w^d distrain on Me only that There Is nothing to distrain on, Am Determined to Go Abroad in a Week's Time, and shall Never come Any More back again with Great Grief w^h Is What I now Write To tell You Of (Hoping you will please Take No notice of It) So Need give Yourselves No Further Concern with my Concerns Seeing The Estate is Not To Be Had and Am Sorry you Sh^d Have Had so Much trouble with My Affairs w^h c^d not Help. Sh^d have Much liked The Thing, only it Was Not worth Stopping For, or Would, but Since It Was not God's Will be Done *which it Will*. Hav^g raised a Trifle On my Future Prospects (w^h am Certain There is Nothing In) from a *True Friend*" [need it be guessed at whose instance these words had found their way into the letter?] "w^h was certainly uncommon inconvenient to That Person But He w^d do Anything to Do me good As he says Am going to raise A Little More from a Gent That does *Things of That Nature* w^h will help me with Expense in Going Abroad (which place I Never mean to Return from.) Have fixed for the 10th To Go on w^h Day Shall Take leave Of Mr. Tag-rag (who on my Return Shall be glad to See Buried or in the Workhouse.) Have wrote This letter Only to Save Y^r Respectable Selves trouble w^h Trust You w^d not have Taken.

"And Remain,

"Gents,

"Y^r humble Unworthy servant,

"T. TITMOUSE.

"P. S.—Hope you will Particularly Remember me to Mr. Gamon. What is to become of me, know nothing, being so troubled. Am Humbly Determined not to employ any Gents in This matter except y^r most Respectable House, and sh^d be most Truly Sorry to Go Abroad wh^h *am really Often thinking of in Earnest*. Unless something Speedily Turns Up, favorable, T. T.—Sh^d like (By the way) to know if you sh^d be so Disposed what y^r resp^e house w^d take for my Chances Down (*Out and out*) In a Round Sum (*Ready money*). And hope if they Write It will be by Next Post or Shall be Gone Abroad."

Old Mr. Quirk, as soon as he had finished the perusal of this skilful document, started, a little disturbed, from his seat, and bustled into Mr. Gammon's room with Mr. Titmouse's open letter in his hand.—"Gammon," said he, "just cast your eye over this, will you? Really, we must look after Titmouse, or, by Jove! he'll be gone!" Mr. Gammon took the letter rather eagerly, read deliberately through it, and then looked up at his fidgety partner, who stood anxiously eying him, and smiled.

"Well, Gammon, I really think—eh? Don't you"——

"Upon my word, Mr. Quirk, this nearly equals his last letter; and it also seems to have produced on you the effect desired by its gifted writer!"

"Well, Gammon, and what of that? Because my heart don't happen to be *quite* a piece of flint, you're always"——

"You might have been a far wealthier man than you are but for that soft heart of yours, Mr. Quirk," said Gammon, with a bland smile.(!)

"I know I might, Gammon—I know it. I thank my God I'm not so keen after business that I can't feel for this poor soul—really, his state's quite deplorable."

"Then, my dear sir, put your hand into your pocket at once, as I was suggesting last night, and allow him a weekly sum."

"A—hem! hem! Gammon"—said Quirk, sitting down, thrusting his hands into his waistcoat pockets, and looking very earnestly at Gammon.

"Well, then," replied that gentleman, shrugging his shoulders, in answer to the mute appeal—"write and say you *won't*—'tis soon done, and so the matter ends."

"Why, Gammon, you see, if he goes abroad," said Quirk, after a long pause—"we lose him forever."

"Pho!—go abroad! He's too much for you, Mr. Quirk—he is indeed, ha, ha!"

"You're fond of a laugh at my expense, Gammon; it's quite pleasant—you can't think how I like that laugh of yours!"

"I beg your pardon, Mr. Quirk—but you really misunderstand me; I was laughing only at the absurd inconsistency of the fellow: he's a most transparent little fool, and takes *us* for such. Go abroad! Ridiculous pretence!—In his precious postscript he undoes all—he says he is only often *thinking* of going— pshaw!—That the wretch is in great distress, is very probable; but it must go hard with him before he either commits suicide or goes abroad, I warrant him: I've no fears on *that* score—but there is a point in the letter that may be worth considering—I mean the fellow's hint about borrowing money on his prospects."

"Yes, to be sure—the very thing that struck *me*." [Gammon faintly smiled.] "I never thought much about the *other* part of the letter—all stuff about going abroad—pho!—But to be sure, if he's trying to raise money, he may get into keen hands.—Do you really think he *has* been trying on anything of the sort?"

"Oh no—of course it's only a little lie of his—or he must have found out some greater fool than himself, which I had not supposed possible. But however that may be, I really think, Mr. Quirk, it's high time that we should take some decided step."

"Well,—yes, it may be," said Quirk, slowly—"and I must say that Mortmain encouraged me a good deal the day before yesterday."

"Well, and you know what Mr. Frankpledge"—

"Oh, as to Frankpledge—hem!"

"What of Mr. Frankpledge, Mr. Quirk?" inquired Gammon, rather tartly.

"There! there!—Always the way—but what does it signify? Come, come, Gammon, we know each other too well to quarrel!—I don't mean anything disrespectful to Mr. Frankpledge, but when Mortmain has been one's conveyancer these twenty years, and never once—hem!—but, however, he tells me that we are now standing on sure ground, or that he don't know what sure ground is, and sees no objection to our even taking preliminary steps in the matter, which indeed I begin to think it high time to do!—And as for securing ourselves in respect of any advances to Titmouse—he suggests our taking a bond, conditioned—say, for the payment of £500 or £1,000 on demand, under cover of which one might advance him, you know, just such sums as, and when we pleased; one could stop when one thought fit; one could begin with three or four pounds a-week, and increase as his prospects improved—eh!"

"You know *I've* no objection to such an arrangement; but consider, Mr. Quirk, we must have patience; it will take a long while to get our verdict, you know, and perhaps as long to *secure* it afterwards; and this horrid little wretch all the while on our hands; what the deuce to do with him, I really don't know!"

"Humph, humph!" grunted Quirk, looking very earnestly and uneasily at Gammon.

"And what I chiefly fear is this,—suppose he should get dissatisfied with the amount of our advances, and, knowing the state and prospects of the cause, should *then* turn restive?"

"Ay, confound it, Gammon, all that should be looked to, shouldn't it?" interrupted Quirk, with an exceedingly chagrined air. "I always like to look a long way a-head!"

"To be sure," continued Gammon, thoughtfully; "by that time he may have got substantial friends about him, whom he could persuade to become security to us for further and past advances."

"Nay, now you name the thing, Gammon; it was what I was thinking of only the other day:" he dropped his voice—"Isn't there one or two of our own clients, hem!"——

"Why, certainly, there's old Fang; I don't think it impossible he might be induced to do a little usury—it's all he lives for, Mr. Quirk; and the security is good in reality, though perhaps not exactly marketable."

"Nay; but, on second thoughts, why not do it myself, if anything *can* be made of it?"

"That, however, will be for future consideration. In the mean time, we'd better send for Titmouse, and manage him a little more—discreetly, eh? We did not exactly hit it off last time, did we, Mr. Quirk?" said Gammon, smiling rather sarcastically. "We must keep him at Tag-rag's, if the thing *can* be done for the present, at all events."

"To be sure; he couldn't then come buzzing about us, like a gad-fly; he'd drive us mad in a week, I'm sure."

"Oh, I'd rather give up everything than submit to it. It can't be difficult for us, I should think, to bind him to our own terms—to put a bridle in the ass's

mouth? Let us say that we insist on his signing an undertaking to act implicitly according to our directions in everything."

"Ay, to be sure; on pain of our instantly turning him to the right about. I fancy it will *do* now! It was just what I was thinking of!"

"And, now, Mr. Quirk," said Gammon, with as much of peremptoriness in his tone as he could venture upon to Mr. Quirk, "you really must do me the favor to leave the management of this little wretch to me. You see, he seems to have taken—Heaven save the mark!—a fancy to me, poor fool!—and—and—it must be owned we miscarried sadly, the other night, on a certain grand occasion—eh?"

Quirk shook his head dissentingly.

"Well, then," continued Gammon, "upon one thing I am fixedly determined; one or the other of us shall undertake Titmouse, solely and singly. Pray, for Heaven's sake, tackle him yourself—a disagreeable duty! You know, my dear sir, how invariably I leave everything of real importance and difficulty to your very superior tact and experience; but *this* little matter—pshaw!"

"Come, come, Gammon, that's a drop of sweet oil"—

Quirk might well say so, for he felt its softening, smoothing effects already.

"Upon my word and honor, Mr. Quirk, I'm in earnest. Pshaw!—and you must know it. I know you too well, my dear sir, to attempt to"—

"Certainly," quoth Quirk, smiling shrewdly, "I must say, those must get up *very* early that can find Caleb Quirk napping."—Gammon felt at that moment that for several years *he* must have been a very early riser! And so the matter was arranged in the manner which Gammon had from the first wished and determined upon, *i. e.* that Mr. Titmouse should be left entirely to his management; and, after some little discussion as to the time and

manner of the meditated advances, the partners parted. On entering his own room, Quirk, closing his door, stood for some time leaning against the side of the window, with his hands in his pockets, and his eyes instinctively resting on his banker's book, which lay on the table. He was in a very brown study, the subject on which his thoughts were busied, being the prudence or imprudence of leaving Titmouse thus in the hands of Gammon. It might be all very well for Quirk to *assert* his self-confidence when in Gammon's presence; but he did not really feel it. He never left Gammon after any little difference of opinion, however friendly, without a secret suspicion that somehow or another Gammon had been too much for him, and always gained his purposes without giving Quirk any handle of dissatisfaction. In fact, Quirk was thoroughly afraid of Gammon, and Gammon knew it. In the present instance, an undefinable but increasing suspicion and discomfort forced him presently back again into Gammon's room.

"I say, Gammon, you understand, eh?—*Fair play*, you know," he commenced, with a shy embarrassed air, ill concealed under a forced smile.

"Pray, Mr. Quirk, what may be your meaning?" inquired Gammon, with unusual tartness, with an astonished air, and blushing violently, which was not surprising; for ever since Quirk had quitted him, Gammon's thoughts had been occupied with only one question, viz. how he should go to work with Titmouse to satisfy him that he (Gammon) was the only member of the firm that had a real disinterested regard for him, and so acquire a valuable control over him! Thus occupied, the observation of Quirk had completely taken Gammon aback; and he lost his presence of mind, of course in such case his *temper* quickly following. "Will you favor me, Mr. Quirk, with an explanation of your extraordinarily absurd and offensive observation?" said he, reddening more and more as he looked at Mr. Quirk.

"You're a queer hand, Gammon," replied Quirk, with almost an equally surprised and embarrassed air, for he could not resist a sort of conviction that Gammon had fathomed what had been passing in his mind.

"What did you mean, Mr. Quirk, by your singular observation just now?" said Gammon, calmly, having recovered his presence of mind.

"Mean? Why, that—we're *both* queer hands, Gammon, ha, ha, ha!" answered Quirk, with an anxious laugh.

"I shall leave Titmouse entirely—*entirely*, Mr. Quirk, in your hands; I will have nothing henceforth whatever to do with him. I am quite sick of him and his concerns already; I cannot bring myself to undertake such an affair, and that was what I was thinking of,—when"——

"Eh? indeed! Well, to be sure! Only think!" said Quirk, dropping his voice, looking to see that the two doors were shut, and resuming the chair which he had lately quitted, "What do you think has been occurring to *me* in my own room, just now? Whether it would suit us better to throw this monkey overboard, put ourselves confidentially in communication with the party in possession, and tell him that—hem!—for a—eh? You understand—eh? a con-si-de-ra-tion—a *suitable* con-si-de-ra-tion!"

"Mr. Quirk! Heavens!" Gammon was really amazed.

"Well? You needn't open your eyes so very wide, Mr. Gammon—why shouldn't it be done? You know we wouldn't be satisfied with a trifle, of course. But suppose he'd agreed to buy our silence with four or five thousand pounds, really, it's well worth considering! Upon my soul, Gammon, it *is* a hard thing on him when one makes the case one's own!—no fault of his, and it is very hard for him to turn out, and for such a—eugh!—such a wretch as Titmouse; you'd feel it yourself, Gammon, if you were in his place, and I'm sure you'd think that four or five thous"——

"But is not Titmouse our POOR NEIGHBOR?" said Gammon, with a sly smile.

"Why, *that's* only one way of looking at it, Gammon! Perhaps the man we are going to eject does a vast deal of good with the property; certainly he bears a very high name in the county—and fancy Titmouse with ten thousand a-year!"——

"Mr. Quirk, Mr. Quirk, it's not to be thought of for a moment—not for a moment," interrupted Gammon, seriously, and even somewhat peremptorily—"nothing should persuade *me* to be any party to such"——

At this moment Snap burst into the room with a heated appearance, and a chagrined air——

"*Pitch v. Grub*——" he commenced breathlessly——

[This was a little pet action of poor Snap's: it was for slander uttered by the defendant (an hostler) against the plaintiff, (a waterman on a coach stand,) charging the plaintiff with having *the mange*, on account of which a woman refused to marry him.]

"Pitch v. Grub—just been tried at Guildhall. Witness bang up to the mark—words and special damage proved; slapping speech from Sergeant Shout. Verdict for plaintiff—but only one farthing damages; and Lord Widdrington said, as the jury had given one farthing for damages, *he* would give him another for costs,[\[10\]](#) and that would make a halfpenny; on which the defendant's attorney tendered me—a halfpenny on the spot. Laughter in court—move for new trial first day of next term, and tip his lordship a rattler in the next Sunday's *Flash*!"

"Mr. Quirk," said Gammon, sternly, "once for all, if this sort of low business is to go on, I'll leave the firm, come what will!" [It flickered across his mind that Titmouse would be a capital client to start with on his own account.] "I protest our names will quite stink in the profession."

"Good, Mr. Gammon, good!" interposed Snap, warmly; "your little action for the usury penalties the other day came off so uncommon well! the judge's compliment to you was so nice"——

"Let me tell you, Mr. Snap," interrupted Gammon, reddening——

"Pho! Come! Can't be helped—fortune of the war,"——interrupted the head of the firm,—"there's only one thing to be looked to,—*Is Pitch solvent?*—of course we've security for costs out of pocket—eh, Snap?"

Now the fact was, that poor Snap had picked up Pitch at one of the police offices, and, in his zeal for business, had undertaken his case on pure speculation, relying on the apparent strength of the plaintiff's case—Pitch being only a waterman attached to a coach stand. When, therefore, the very ominous question of Mr. Quirk met Snap's ear, he suddenly happened (at least, he chose to appear to think so) to hear himself called for from the clerk's room, and bolted out of Mr. Gammon's room rather unceremoniously.

"Snap will be the ruin of the firm, Mr. Quirk," said Gammon, with an air of disgust. "But I really must get on with the brief I'm drawing; so, Mr. Quirk, we can talk about Titmouse to-morrow!"

The brief he was drawing up was for a defendant who was going to nonsuit the plaintiff, (a man with a large family, who had kindly lent the defendant a considerable sum of money,) solely because of the *want of a stamp*.

Quirk differed in opinion with Gammon, and, as he resumed his seat at his desk, he could not help writing the words, "*Quirk and Snap*," and thinking how well such a firm would sound and work—for Snap was verily a chip of the old block!

There will probably never be wanting those who will join in abusing and ridiculing attorneys and solicitors. Why? In almost every action at law, or

suit in equity, or proceeding which may, or may not, lead to one, each client conceives a natural dislike for his opponent's attorney or solicitor. *If the plaintiff succeeds*, he hates the defendant's attorney for putting him (the said plaintiff) to so much expense, and causing him so much vexation and danger; and, when he comes to settle with his own attorney, there is not a little heart-burning in looking at his bill of costs, however reasonable. *If the plaintiff fails*, of course it is through the ignorance and unskilfulness of his attorney or solicitor! and he hates almost equally his own, and his opponent's attorney!—Precisely so is it with a successful or unsuccessful *defendant*. In fact, an attorney or solicitor is almost always obliged to be acting *adversely to some one* of whom he at once makes an enemy; for an attorney's weapons must necessarily be pointed almost invariably at our pockets! He is necessarily, also, called into action in cases when all the worst passions of our nature—our hatred and revenge, and our self-interest—are set in motion. Consider the mischief which might be constantly done on a grand scale in society, if the vast majority of attorneys and solicitors were not honorable, and able men! Conceive them, for a moment, disposed everywhere to stir up litigation, by availing themselves of their perfect acquaintance with almost all men's circumstances—artfully inflaming irritable and vindictive clients, kindling, instead of stifling, family dissensions, and fomenting public strife—why, were they to do only a hundredth part of what it is thus in their power to do, our courts of justice would soon be doubled, together with the number of our judges, counsel, and attorneys; new jails must be built to hold the ruined litigants—and the insolvent court enlarged, and in constant session throughout the year.

But not *all* of this body of honorable and valuable men are entitled to this tribute of praise. There are a few QUIRKS, several GAMMONS, and many SNAPS, in the profession of the law—men whose characters and doings often

make fools visit the sins of individuals upon the whole species; nay, there are far worse, as I have heard—but I must return to my narrative.

On Friday night, the 28th July 18—, the state of Mr. Titmouse's affairs was this; he owed his landlady £1, 9s.; his washerwoman, 6s.; his tailor, £1, 8s.—in all, three guineas; besides 10s. to Huckaback, (for Tittlebat's notion was, that on repayment at any time of 10s., Huckaback would be bound to deliver up to him the document or voucher which he had given that gentleman,) and a weekly accruing rent of 7s. to his landlady, besides some very small sums for coffee, (alias chiccory,) tea, bread, and butter, &c. To meet these serious liabilities, he had literally—*not one farthing*.

On returning to his lodgings that night, he found a line from Thumbscrew, his landlady's broker, informing him that, unless by ten o'clock on the next morning his arrears of rent were paid, he should distrain, and she would also give him notice to quit at the end of the week; that nothing could induce her to give him further time. He sat down in dismay on reading this threatening document; and, in sitting down, his eye fell on a bit of paper lying on the floor, which must have been thrust under the door. From the marks on it, it was evident that he must have trod upon it in entering. It proved to be a summons from the Court of Requests, for £1, 8s. due to Job Cox, his tailor. He deposited it mechanically on the table; and for a minute he dared hardly breathe.

This seemed something really like a *crisis*.

After a silent agony of half an hour's duration, he rose trembling from his chair, blew out his candle, and, in a few minutes' time, might have been seen standing with a pale and troubled face before the window of old Balls, the pawnbroker, peering through the suspended articles—watches, sugar-tongs, rings, brooches, spoons, pins, bracelets, knives and forks, seals, chains, &c.—to see whether any one else than old Balls were within.

Having at length watched out a very pale and wretched-looking woman, Titmouse entered to take her place; and after interchanging a few faltering words with the white-haired and hard-hearted old pawnbroker, produced his guard-chain, his breast-pin, and his ring, and obtained three pounds two shillings and sixpence on the security of them.

With this sum he slunk out of the shop, and calling on Cox, his tailor, paid his trembling old creditor the full amount of his claim (£1, 8s.) together with 4s., the expense of the summons—simply asking for a receipt, without uttering another word, for he felt almost choked. In the same way he dealt with Mrs. Squallop, his landlady—not uttering one word in reply to her profuse and voluble apologies, but pressing his lips between his teeth till the blood came from them, while his little heart seemed splitting within him. Then he walked up-stairs, with a desperate air—having just eighteen pence in his pocket—*all his ornaments gone*—his washerwoman yet unpaid—his rent going on—several other little matters unsettled; and the 10th of August approaching, when he expected to be dismissed penniless from Mr. Tag-rag's and thrown on his own resources for subsistence. When he had regained his room, and having shut the door, had re-seated himself at his table, he felt for a moment as if he could have yelled. Starvation and Despair, two fiends, seemed sitting beside him in shadowy ghastliness, chilling and palsying him—petrifying his heart within him. WHAT WAS HE TO DO? Why had he been born? Why was he so much more persecuted and miserable than any one else? Visions of his ring, his breast-pin, his studs, stuck in a bit of card, with their price written above them, and hanging exposed to his view in old Balls' window, almost frenzied him. Thoughts such as these at length began to suggest others of a dreadful nature.... The means were at that instant within his reach.... A sharp knock at the door startled him out of the stupor into which he was sinking. He listened for a

moment as if he were not certain that the sound was a real one. There seemed a ton-weight upon his heart, which a mighty sigh could lift for an instant, but not remove; and he was in the act of heaving a second such sigh, as he languidly opened the door—expecting to encounter Mr. Thumbscrew, or some of his myrmidons, who might not know of his recent settlement with his landlady.

"Is this Mr.—Tit—Titmouse's?" inquired a genteel-looking young man.

"Yes," replied Titmouse, sadly.

"Are you Mr. Titmouse?"

"Yes," he replied, more faintly than before.

"Oh—I have brought you, sir, a letter from Mr. Gammon, of the firm of Quirk, Gammon, and Snap, solicitors, Saffron Hill," said the stranger, unconscious that his words shot a flash of light into a little abyss of grief and despair before him. "He begged me to give this letter into your own hands, and said he hoped you'd send him an answer by the first morning's post."

"Yes—oh—I see—certainly—to be sure—with pleasure—how is Mr. Gammon?—uncommon kind of him—very humble respects to him—take care to answer it," stammered Titmouse, in a breath, hardly knowing whether he were standing on his head or his heels, and not quite certain where he was.

"Good-evening, sir," replied the stranger, evidently a little surprised at Titmouse's manner, and withdrew. Titmouse shut his door. With prodigious trepidation of hand and flutter of spirits, he opened the letter—an enclosure meeting his eyes in the shape of a bank-note.

"Oh Lord!" he murmured, turning white as the sheet of paper he held. Then the letter dropped from his hand, and he stood as if stupefied for some

moments; but presently rapture darted through him; a five-pound bank-note was in his hand, and it had been enclosed in the following letter:—

"35, Thavies' Inn, 29th July 18—.

"MY DEAR MR. TITMOUSE,

"Your last note addressed to our firm, has given me the greatest pain, and I hasten, on my return from the country, to forward you the enclosed trifle, out of my own personal resources—and I sincerely hope it will be of temporary service to you. May I beg the favor of your company on Sunday evening next, at seven o'clock, to take a glass of wine with me? I shall be quite alone and disengaged, and may have it in my power to make you some important communications, concerning matters in which, I assure you, I feel a very deep interest on your account. Begging the favor of an early answer to-morrow morning, I trust you will believe me, ever, my dear sir, your most faithful humble servant,

"OILY GAMMON.

"TITTLEBAT TITMOUSE, ESQ."

The first balmy drop of the long-expected golden shower had at length fallen upon the panting Titmouse. How polite—nay, how affectionate and respectful—was the note of Mr. Gammon! and, for the first time in his life, he saw himself addressed

"TITTLEBAT TITMOUSE, ESQUIRE."

If his room had been large enough to admit of it, he would have skipped round it again and again in his frantic ecstasy. Having read over several times the blessed letter of Mr. Gammon, he hastily folded it up, crumpled up the bank-note in his hand, clapped his hat on his head, blew out his

candle, rushed down-stairs as if a mad dog were at his heels, and in three or four minutes' time might have been seen standing breathless before old Balls, whom he had almost electrified by asking, with an eager and joyous air, for a return of the articles which he had only an hour before pawned with him; at the same time laying down the duplicates and the bank-note. The latter, old Balls scrutinized with most anxious exactness, and even suspicion—but it seemed perfectly unexceptionable; so he re-delivered to Titmouse his precious ornaments, and the change out of his note, *minus* a trifling sum for interest. Titmouse then started off at top speed to Huckaback; but it suddenly occurring to him as possible that that gentleman, on hearing of his good fortune, might look for an immediate repayment of the ten shillings he had recently lent to Titmouse, he stopped short—paused—and returned home. There he had hardly been seated a moment, when down he pelted again, to buy a sheet of paper and a wafer or two, to write his letter to Mr. Gammon; which having obtained, he returned at the same speed, almost overturning his fat landlady, who looked after him as though he were a mad cat scampering up and down-stairs, and fearing that he had gone suddenly crazy. The note he wrote to Mr. Gammon was so exceedingly extravagant, that, candid as I have (I trust) hitherto shown myself in the delineation of Mr. Titmouse's character, I cannot bring myself to give the aforesaid letter to the reader—making all allowances for the extraordinary excitement of its writer.

Sleep, that night and morning, found and left Mr. Titmouse the assured exulting master of TEN THOUSAND A-YEAR. Of this fact, the oftener he read Mr. Gammon's letter, the stronger became his convictions. 'Twas undoubtedly rather a large inference from small premises; but it secured him unspeakable happiness, *for a time*, at a possible cost of future disappointment and misery, which he did not pause to consider. The fact is

that logic (according to Dr. Watts, but not according to Dr. Whateley, *the right use of reason*) is not a practical art. No one regards it in actual life; observe, therefore, folks on all hands constantly acting like Tittlebat Titmouse in the case before us. His *conclusion* was—that he had become the certain master of ten thousand a-year; his *premises* were—what the reader has seen. I do not, however, mean to say, that if the reader be a youth hot from Oxford, he may not be able to prove, by a very refined and ingenious argument, that Titmouse was, in what he did above, a fine natural logician; for I recollect that some great philosopher hath demonstrated, by a famous argument, that there is NOTHING ANYWHERE: and no one that I have heard of, hath ever been able to prove the contrary.

By six o'clock the next morning, Titmouse had, with his own hand, dropped his answer into the letter-box upon the door of Mr. Gammon's chambers in Thavies' Inn; in which answer he had, with numerous expressions of profound respect and gratitude, accepted Mr. Gammon's polite invitation. A very happy man felt Titmouse as he returned to Oxford Street; entering Messrs. Tag-rag's premises with alacrity, just as they were being opened, and volunteering his assistance in numerous things beyond his usual province, with singular briskness and energy; as if conscious that by doing so he was greatly gratifying Messrs. Quirk, Gammon, and Snap, whose wishes upon the subject he knew. He displayed such unwonted cheerfulness and patient good-nature throughout the day, that one of his companions, a serious youth, in a white neckerchief, black clothes, and with a blessed countenance—the only professing pious person in the establishment—took an occasion to ask him, in a mysterious whisper, "whether he had not got *converted*:" and whether he would, at six o'clock in the morning, accompany the speaker to a room in the neighborhood, where he (the youth aforesaid) was going to conduct an exhortation and prayer

meeting! Titmouse refused—but not without a few qualms; for luck certainly seemed to be smiling on him, and he felt that he ought to be grateful for it; but then, he at length reflected, the proper place for that sort of thing would be a regular *church*—to which he accordingly resolved to go. This change of manners Tag-rag, however, looked upon as assumed only to affront *him*; seeing nothing but impertinence and defiance in all that Titmouse did—as if the nearer Titmouse got to the end of his bondage—*i. e.* the 10th of August—the lighter-hearted he grew! Titmouse resolved religiously to keep his own counsel; to avoid even—at all events for the present—communicating with Huckaback.

On the ensuing Sunday he rose very early, and took nearly twice as long a time as usual to dress—by reason of his often falling into many delicious and momentarily intoxicating reveries. By eleven o'clock he might have been seen entering the gallery of St. Andrew's Church, Holborn; where he considered that doubtless Mr. Gammon, who lived in the neighborhood, might have a seat. He asked three or four pew-openers, both below and above stairs, if they knew which was Mr. Gammon's pew—Mr. Gammon of Thavies' Inn; not dreaming of presumptuously going to the pew, but of sitting in some place which commanded a view of it. Mr. Gammon, I need hardly say, was quite unknown there—no one had ever heard of such a person; nevertheless Titmouse, (albeit a little galled at being, in spite of his elegant appearance, slipped into a back seat in the gallery,) remained to the close of the service—but his thoughts wandered grievously the whole time. Having quitted the church in a buoyant humor, he sauntered in the direction of Hyde Park. How soon might he become, instead of a mere spectator as heretofore, a partaker in its glories! The dawn of the day of fortune was on his long-benighted soul; and he could hardly subdue his excited feelings. Having eaten nothing but a couple of biscuits during the day, as the clock

struck seven he made his punctual appearance at Mr. Gammon's, with a pair of span-new white kid gloves on; and somewhat flurried, was speedily ushered, by a comfortable-looking elderly female servant, into Mr. Gammon's room. Mr. Titmouse was dressed just as he had been when first presented to the reader, sallying forth into Oxford Street. Mr. Gammon, who was sitting reading the *Sunday Flash* at a table on which stood a couple of decanters, several wine-glasses, and one or two dishes of fruit, rose and received his distinguished visitor with the most delightful affability.

"I am most happy, Mr. Titmouse, to see you in this friendly way," said he, shaking him cordially by the hand.

"Oh, don't name it, sir!" quoth Titmouse, rather indistinctly, and hastily running his hand through his hair.

"I've nothing, you see, to offer you but a little fruit and a glass of fair port or sherry. You see I am a very quiet man on Sundays!"

"Particular fond of *them*, sir," replied Titmouse, endeavoring to clear his throat; for in spite of a strong effort to appear at his ease, he was unsuccessful; so that, when Gammon's keen eye glanced at the bedizened figure of his guest, a bitter smile passed over his face, without having been observed by Titmouse. "*This*," thought he, as his eye passed from the ring glittering on the little finger of the right hand, to the studs and breast-pin in the shirt-front, and thence to the guard-chain glaring entirely outside a damson-colored satin waistcoat, and the spotless white glove which yet glistened on the left hand—"This is the writer of the dismal epistle of the other day, announcing his desperation and destitution!"

"Your health, Mr. Titmouse!—help yourself!" said Mr. Gammon, in a cheerful and cordial tone; Titmouse pouring out a glass only three-quarters full, raised it to his lips with a slightly tremulous hand, and returned Mr.

Gammon's salutation. When had Titmouse tasted a glass of wine before? a reflection occurring not only to himself, but also to Gammon, to whom it was a circumstance that might be serviceable.

"You see, Mr. Titmouse, mine's only a small bachelor's establishment, and I cannot put my old servant out of the way by having my friends to dinner"—[quite forgetting that the day before he had entertained at least six friends, including Mr. Frankpledge—but, the idea of going through a dinner *with Mr. Titmouse!*]

And now, O inexperienced Titmouse! unacquainted with the potent qualities of wine, I warn you to be cautious how you drink many glasses, for you cannot calculate the effect which they will have upon you; and, indeed, methinks that with this man you have a game to play which will not admit of much wine being drunk. Be you, therefore, on your guard; for wine is like a strong serpent, who will creep unperceivedly into your empty head, and coil himself up therein, until at length he begins to move about—and all things are as nought to you!

"Oh, sir, 'pon my honor, beg you won't name it—all one to me, sir!—Beautiful wine this, sir."

"Pretty fair, I think—certainly rather old;—but what fruit will you take—raspberries or cherries?"

"Why—a—I've so lately dined," replied Titmouse, alluding to the brace of biscuits on which he had luxuriated several hours before. He would have preferred the cherries, but did not feel quite at his ease how to dispose of the *stones* nicely—gracefully—so he took a very few raspberries upon his plate, and ate them slowly, and with a modest and timid air.

"Well, Mr. Titmouse," commenced Gammon, with an air of concern, "I was really much distressed by your last letter!"

"Uncommon glad to hear it, sir—knew you would, sir—you're so kind-hearted;—all quite true, sir!"

"I had no idea that you were reduced to such straits," said Gammon, in a sympathizing tone, but settling his eye involuntarily on the ring of Titmouse.

"Quite dreadful, sir—'pon my soul, dreadful; and such usage at Mr. Tag-rag's!"

"But you mustn't think of going abroad—away from all your friends, Mr. Titmouse."

"*Abroad*, sir!" interrupted Titmouse, with anxious but subdued eagerness; "never thought of such a thing!"

"Oh! I—I thought"——

"There isn't a word of truth in it, sir; and if you've heard so, it must have been from that audacious fellow that called on you—he's *such* a liar—if you knew him as well as I do, sir!" said Titmouse, with a confident air, quite losing sight of his piteous letter to Messrs. Quirk, Gammon, and Snap—"No, sir—shall stay, and stick to friends that stick to me."

"Take another glass of wine, Mr. Titmouse," interrupted Gammon, cordially, and Titmouse obeyed him; but while he was pouring it out, a sudden recollection of his letter flashing across his mind, satisfied him that he stood detected in a flat lie before Mr. Gammon, and he blushed scarlet.

"Do you like the sherry?" inquired Gammon, perfectly aware of what was passing through the little mind of his guest, and wishing to divert his thoughts. Titmouse answered in the affirmative: and proceeded to pour forth such a number of apologies for his own behavior at Saffron Hill, and that of Huckaback on the subsequent occasion, as Gammon found it difficult to stop, over and over again assuring him that all had been entirely forgiven

and even forgotten. When Titmouse came to the remittance of the five pounds——

"Don't mention it, my dear sir," interrupted Gammon, very blandly; "it gave me, I assure you, far greater satisfaction to send it, than you to receive it. I hope it has a little relieved you?"

"I think so, sir! I was, 'pon my life, on my very last legs."

"When things come to the worst, they often mend, Mr. Titmouse! I told Mr. Quirk (who, to do him justice, came at last into my views) that, however premature, and perhaps imprudent it might be in us to go so far, I could not help relieving your present necessities, even out of my own resources."

[Oh, Gammon, Gammon!]

"How very uncommon kind of you, sir!" exclaimed Titmouse.

"Not in the least, my dear sir—(pray fill another glass, Mr. Titmouse!) You see Mr. Quirk is quite a man of business—and our profession too often affords instances of persons whose hearts contract as their purses expand, Mr. Titmouse—ha! ha! Indeed, those who make their money as hard as Mr. Quirk, are apt to be slow at parting with it, and *very* suspicious!"

"Well, I hope no offence, sir; but really I thought as much, directly I saw that old gent."

"Ah—but *now* he is embarked, heart and soul, in the affair."

"No! *Is* he really, sir?" inquired Titmouse, eagerly.

"That is," replied Gammon, quickly, "so long as I am at his elbow, urging him on—for he wants some one who—hem! In fact, my dear sir, ever since I had the good fortune to make the discovery, which happily brought us acquainted with each other, Mr. Titmouse," [it was old Quirk, as the reader will by and by find, who had made the discovery, and Gammon had for a

long time thrown cold water on it,] "I have been doing all I could with him, and I trust I may say, have at last got the thing into shape."

"I'll take my oath, sir," said Titmouse, excitedly, "I never was so much struck with any one in all my born days as I was with you, sir, when you first came to my emp—to Mr. Tag-rag's, sir—Lord, sir, how uncommon sharp you seemed!" Gammon smiled with a deprecating air, and sipped his wine in silence; but there was great sweetness in the expression of his countenance. Poor Titmouse's doubts, hopes, and fears, were rapidly being sublimed into a *reverence* for Gammon....

"I certainly quite agree with Mr. Quirk," said Gammon, presently, "that the difficulties in our way are of the most serious description. To speak, for an instant only, of the risks we ourselves incur personally—would you believe it, my dear Mr. Titmouse?—in such a disgraceful state are our laws, that we can't gratify our feelings by taking up your cause, without rendering ourselves liable to imprisonment for Heaven knows how long, and a fine that would be ruin itself, if we should be found out!"

Titmouse continued silent, his wine-glass in his hand arrested in its way to his mouth; which, together with his eyes, was opened to its widest extent, as he stared with a kind of terror upon Mr. Gammon.—"Are we, then, unreasonable, my dear sir, in entreating you to be cautious—nay, in insisting on your compliance with our wishes, in all that we shall deem prudent and necessary, when not only your own best interests, but our characters, liberties, and fortunes are staked on the issue of this great enterprise? I am sure," continued Gammon, with great emotion, "you will feel for us, Mr. Titmouse. I see you do!" Gammon put his hand over his eyes, in order, apparently, to conceal his emotion, but really to observe what effect he had produced upon Titmouse. The conjoint influence of Gammon's

wine and eloquence not a little agitated Titmouse, in whose eyes stood tears.

"I'll do anything—anything, sir," Titmouse almost sobbed.

"Oh! all we wish is to be allowed to serve you effectually; and to enable us to do that"——

"Tell me to get into a soot-bag, and lie hid in a coal-hole, and see if I won't do it!"

"What! a coal-hole? Would you, then, even stop at Tag-rag and Co.'s?"

"Ye-e-e-e-s, sir—hem! hem! That is, till the *tenth* of next month, when my time's up."

"Ah!—ay!—oh, I understand! Another glass, Mr. Titmouse," said Gammon, pouring himself out some more wine; and observing, while Titmouse followed his example, that there was an unsteadiness in his motions of a very different description from that which he had exhibited at the commencement of the evening—at the same time wondering what the deuce they should do with him after the *tenth* of August.

"You see, *I* have the utmost confidence in you, and had so from the first happy moment when we met; but Mr. Quirk is rather sus—In short to prevent misunderstanding (as he says,) Mr. Quirk is anxious that you should give a *written* promise." (Titmouse looked eagerly about for writing materials.) "No, not now, but in a day or two's time. I confess, my dear Mr. Titmouse, if *I* might have decided on the matter, I should have been satisfied with your verbal promise; but I must say, Mr. Quirk's gray hairs seem to have made him quite—eh! you understand? Don't you think so, Mr. Titmouse?"

"To be sure! 'pon my honor, Mr. Gammon!" replied Titmouse; not very distinctly understanding, however, what he was so energetically assenting to.

"I dare say you wonder why we wish you to stop a few months longer at your present hiding-place at Tag-rag's?"

"*Can't*, possibly!—after the tenth of next month, sir," replied Titmouse, eagerly.

"But as soon as we begin to fire off our guns against the enemy—Lord, my dear sir, if they could only find out, you know, where to get at you—you would never live to enjoy your ten thousand a-year! They'd either poison or kidnap you—get you out of the way, unless you keep out of *their* way: and if you will but consent to keep snug at Tag-rag's for a while, who'd suspect where you was? We could easily arrange with your friend Tag-rag that you should"——

"My stars! I'd give something to hear you tell Tag-rag—why, I wonder what he'll do!"

"Make you very comfortable, and let you have your own way in everything—that you may rely upon!"

"Go to the play, for instance, whenever I want, and do all that sort of thing?"

"Nay, try! anything! And as for money, I've persuaded Mr. Quirk to consent to our advancing you a certain sum per week, from the present time, while the cause is going on,"—(Titmouse's heart began to beat fast,)—"in order to place you above absolute inconvenience; and when you consider the awful sums we shall have to disburse—cash out of pocket—the tongues of counsel, you know, are set on gold springs, and only gold keys open their lips!—for court-fees, and a thousand other indispensable matters, I should candidly say that four thousand pounds of hard cash out of pocket, advanced by our firm in your case, would be the very lowest." (Titmouse stared at him with an expression of stupid wonder.) "Yes—four thousand pounds, Mr. Titmouse, at the very least—the *very* least." Again he

paused, keenly scrutinizing Titmouse's features by the light of the candles, which just then were brought in. "You seem surprised, Mr. Titmouse."

"Why—why—where's all the money to come from, sir?" exclaimed Titmouse, aghast.

"Ah! that is indeed a fearful question,"—replied Gammon, with a very serious air; "but at my request, our firm has agreed to make the necessary advances; and also (for *I* could not bear the sight of your distress, Mr. Titmouse!) to supply your necessities liberally in the mean time, as I was saying."

"Won't you take another glass of wine, Mr. Gammon?" suddenly inquired Titmouse, with a confident air.

"With all my heart, Mr. Titmouse! I'm delighted that you approve of it. I paid enough for it, I can warrant you."

"Cuss me if ever I tasted such wine! Uncommon! Come—no heel-taps, Mr. Gammon—here goes—let's drink—success to the affair!"

"With all my heart, my dear sir—with all my heart. Success to the thing—amen!" and Gammon drained his glass; so did Titmouse. "Ah! Mr. Titmouse, you'll soon have wine enough to float a frigate—and indeed what not—with ten thousand a-year?"

"And all the back-rents, you know—ha, ha!"

"Yes—to be sure!—the back-rents! The sweetest estate that is to be found in all Yorkshire! Gracious, Mr. Titmouse!" continued Gammon, with an excited air—"What may you not do? Go where you like—do what you like—get into Parliament—marry some lovely woman of high rank!"

"Lord, Mr. Gammon!—you a'n't dreaming? Nor I? But now, in course, *you* must be paid handsome for your trouble!—Only say how much—Name your sum! What you please! You only get me all you've said—and I'll"——

"For my part, I wish to rely entirely on your mere word of honor. Between gentlemen, you know—my dear sir"——

"You only try me, sir."

"But you see, Mr. Quirk's getting old, and naturally is anxious to provide for those whom he will leave behind him—and so Mr. Snap agreed with him—two to one against me, Mr. Titmouse—of course they carried the day—two to one."

"Never mind that!—only say the figure, sir!" cried Titmouse, eagerly.

"A single year's income, only—ten thousand pounds will hardly"——

"Ten thousand pounds! By jingo, but that *is* a slice out of the cake! Oh, Lord!" quoth Titmouse, looking aghast.

"A mere crumb, my dear sir!—a trifle! Why, *we* are going to give *you* that sum at least every year—and indeed it was suggested to our firm, that unless you gave us at least a sum of twenty-five thousand pounds—in fact, we were recommended to look out for some other heir."

"Oh dear! oh Mr. Gammon," cried Titmouse, hastily—"it's not to be thought of, sir."

"So I said; and as for throwing it up—to be sure we shall have ourselves to borrow large sums to carry on the war—and unless we have your bond for at least ten thousand pounds, we cannot raise a farthing."

"Well—curse me, if you sha'n't do what you like!—Give me your hand, and do what you like, Mr. Gammon!"

"Thank you, Mr. Titmouse! How I like a glass of wine with a friend in this quiet way!—you'll always find me rejoiced to show"——

"Your hand! By George—Didn't I take a liking to you from the first? But to speak my mind a bit—as for Mr. Quirk—excuse me—but he's a cur—cur—cur—mudg—mudg—mudg—eon—hem!"

"Hope you've not been so imprudent, my dear Titmouse," threw in Mr. Gammon, rather anxiously, "as to borrow money—eh?"

"Devil knows, and devil cares! No stamp, I know—bang up to the mark"—here he winked an eye, and put his finger to his nose—"wide awake—Huck—uck—uck—uck! how his name sti—sticks. Your hand, Mr. Gammon—here—this, this way—what are you bobbing your head about for? Ah, ha!—The floor—'pon my life!—how funny—it's like being at sea—up, down—oh dear!"—he clapped his hand to his head.

[Pythagoras has finely observed, that a man is not to be considered dead drunk till he lies on the floor, and stretches out his arms and legs to prevent his going lower.]

See-saw, see-saw, up and down, up and down, went everything about him. Now he felt sinking through the floor, then gently rising towards the ceiling. Mr. Gammon seemed getting into a mist, and waving about the candles in it. Mr. Titmouse's head swam; his chair seemed to be resting on the waves of the sea.

"I'm afraid the room's rather close, Mr. Titmouse," hastily observed Gammon, perceiving from Titmouse's sudden paleness and silence, but too evident symptoms that his powerful intellect was for a while paralyzed. Gammon started to the window and opened it. Paler, however, and paler became Titmouse. Gammon's game was up much sooner than he had calculated on.

"Mrs. Brown! Mrs. Brown!" he called out, opening the sitting-room door—"order a coach instantly, and tell Tomkins"—that was the inn porter—"to get his son ready to go home with this gentleman—he's not very well." He was quickly obeyed. It was, in truth, "*all up*" with Titmouse—at least for a while.

As soon as Gammon had thus got rid of his distinguished guest, he ordered the table to be cleared of the glasses, and tea to be ready within half an hour. He then walked out to enjoy the cool evening; on returning, sat pleasantly sipping his tea, now and then dipping into the edifying columns of the *Sunday Flash*, but oftener ruminating upon his recent conversation with Titmouse, and speculating upon certain possible results to himself personally; and a little after eleven o'clock, that good man, at peace with all the world—calm and serene—retired to repose. He had that night rather a singular dream; it was of a snake encircling a monkey, as if in gentle and playful embrace. Suddenly tightening its folds, a crackling sound was heard; the writhing coils were then slowly unwound—and, with a shudder, he beheld the monster licking over the motionless figure, till it was covered with a viscid slime. Then the serpent began to devour his prey; and, when gorged and helpless, behold, it was immediately fallen upon by two other snakes. To his disturbed fancy, there was a dim resemblance between their heads and those of Quirk and Snap—they all three became intertwined together—and writhed and struggled till they fell over the edge of a dark and frightful precipice—he woke—thank God! it was only a dream.

CHAPTER V.

When, after his return from Mr. Gammon's chambers, at Thavies' Inn, Titmouse woke at an early hour in the morning, he was laboring under the ordinary effects of unaccustomed inebriety. His lips were perfectly parched; his tongue clave to the roof of his mouth; there was a horrid weight pressing on his aching eyes, and upon his throbbing head. His pillow seemed undulating beneath him, and everything swimming around him; but when, to crown the whole, he was roused from a momentary nap by the insupportable—the loathed importunities of Mrs. Squallop, that he would just sit up and partake of three thick rounds of hot buttered toast, and a great basin of smoking tea, which would do him so much good, and settle his stomach—at all events, if he'd only have a thimbleful of gin in it—poor Titmouse was fairly overcome!... He lay in bed all that day, during which he underwent very severe sufferings; and it was not till towards night that he began to have anything like a distinct recollection of the events of the evening which he had spent with Mr. Gammon; who, by the way, had sent one of the clerks, during the afternoon, to inquire after him. He did not get out of bed on the Tuesday till past twelve o'clock, when, in a very rickety condition, he made his appearance at the shop of Messrs. Tag-rag and Co.; on approaching which he felt a sudden faintness, arising from mingled apprehension and disgust.

"What are you doing here, sir?—You're no longer in my employment, sir," exclaimed Tag-rag, attempting to speak calmly, as he hurried down the shop, white with rage, to meet Titmouse, and planted himself right in the way of his languid and pallid shopman.

"Sir!"—faintly exclaimed Titmouse, with his hat in his hand.

"Very much obliged, sir—very! by the offer of your valuable services," said Tag-rag. "But—*that's* the way out again, sir—that!—there!—good-morning, sir—good-morning, sir!—that's the way out"—and he egged on Titmouse, till he had got him fairly into the street—with infinite difficulty restraining himself from giving the extruded sinner a parting kick! Titmouse stood for a moment before the door, trembling and aghast, looking in a bewildered manner at the shop: but Tag-rag again making his appearance, Titmouse slowly walked away and returned to his lodgings. Oh that Mr. Gammon had witnessed the scene—thought he—and so have been satisfied that it had been Tag-rag who had put an end to his service, not he himself who had quitted it!

The next day, about the same hour, Mr. Gammon made his appearance at the establishment from which Titmouse had been expelled so summarily, and inquired for Mr. Tag-rag, who presently presented himself—and recognizing Mr. Gammon, whose presence naturally suggested the previous day's transaction with Titmouse, changed color a little.

"What did you please to want, sir?" inquired Mr. Tag-rag, with a would-be resolute air, twirling round his watch-key with some energy.

"Only a few minutes' conversation, sir, if you please," said Mr. Gammon, with such a significant manner as a little disturbed Mr. Tag-rag; who, with an ill-supported sneer, bowed very low, and led the way to his own little room. Having closed the door, he, with an exceedingly civil air, begged Mr. Gammon to be seated; and then occupied the chair opposite to him, and awaited the issue with ill-disguised anxiety.

"I am *very* sorry, Mr. Tag-rag," commenced Gammon, in his usual elegant and feeling manner, "that any misunderstanding should have arisen between you and Mr. Titmouse!"

"You're a lawyer, sir, I suppose?" Mr. Gammon bowed. "Then you must know, sir, that there are always two sides to a quarrel," said Mr. Tag-rag, anxiously.

"Yes—you are right, Mr. Tag-rag; and, having already heard Mr. Titmouse's version, may I be favored with *your* account of your reasons for discharging him? For he tells us that yesterday you dismissed him suddenly from your employment, without giving him any warn"——

"So I did, sir; and what of that?" inquired Tag-rag, tossing his head with a sudden air of defiance. "Things are come to a pretty pass indeed, when a man at the head of such an establishment as mine, can't dismiss a drunken, idle, impertinent—abusive vagabond." Here Mr. Gammon somewhat significantly took out his tablets—as if to note down the language of his companion.

"Do you seriously," inquired Mr. Gammon, "charge him with being such a character, and can you *prove* your charges, Mr. Tag-rag?"

"Prove 'em! yes, sir, a hundred times over; so will all my young men!" replied Tag-rag, vehemently.

"And in a court of justice, Mr. Tag-rag?" said Mr. Gammon, emphatically.

"Oh! he is going to *law*, is he? Ah, ha! Bless my soul!—So *that's* why you're come here—ah, ha!—when you can make a silk purse out of a sow's ear, you may get your bill out of Mr. Tittlebat Titmouse!—ha, ha, ha!" laughed Tag-rag, hoping thereby to conceal how much he was really startled.

"Well—that's *our* look-out, Mr. Tag-rag: to Mr. Titmouse, his character is as valuable as Mr. Tag-rag's is to him. In short, Mr. Titmouse has placed himself in our hands, and we are resolved to go on with the case, if it cost us a hundred pounds—we are indeed, Mr. Tag-rag."

"Why—he's not a penny in the world to go to law with!" exclaimed Tag-rag, with an air of mingled wonder, scorn, and alarm.

"But you forget, Mr. Tag-rag, that if Mr. Titmouse's account of the business should turn out to be correct, it will be *your* pocket that must pay all the expenses, amounting probably to twenty times the sum which the law may award to him!"

"*Law*, sir?—It's not justice!—I hate law.—Give me common sense and common honesty!" said Mr. Tag-rag, with a little agitation.

"Both of them would condemn your conduct, Mr. Tag-rag; for I have heard a full account of what Mr. Titmouse has suffered at your hands—of the cause of your sudden warning to him, and your still more sudden dismissal of yesterday. Oh, Mr. Tag-rag! upon my honor, it won't do—not for a moment—and should you go on, rely upon what I tell you, that it will cost you dear."

"And suppose, sir," said Tag-rag, in a would-be contemptuous tone—"I should have witnesses to prove all I've said—which of us will look funny *then*, sir?"

"Which, indeed! However, since that is your humor, I can only assure you that it is very possible we may be, by the time of the trial, possessed of some evidence which will surprise you: and that Mr. Titmouse defies you to prove any misconduct on his part. We have, in short, taken up his cause, and, as you may perhaps find by and by, to your cost, we shall not easily let it drop."

"I mean no offence, sir," said Tag-rag, in a mitigated tone; "but I must say, that ever since *you* first came here, Titmouse has been quite another person. He seems not to know who I am, nor to care either—and he's perfectly unbearable."

"My dear sir, what has he *said* or *done*?—that, you know, is what you must be prepared to prove, when you come into court!"

"Well, sir! and which of us is likely to be best off for witnesses?—Think of that, sir—I've eighteen young men"——

"We shall chance that, sir," replied Gammon, shrugging his shoulders, and smiling very bitterly; "but again, I ask, what did you dismiss him for? and, sir, I request a plain, straightforward answer."

"What did I dismiss him for?—Haven't I eyes and ears?—First and foremost, he's the most odious-mannered fellow I ever came near—and—he hadn't a shirt to his back when I first took him—the ungrateful wretch!—Sir, it's at any rate not against the law, I suppose, to *hate* a man;—and if it isn't, how I HATE Titmouse!"

"Mr. Tag-rag"—said Gammon, lowering his voice, and looking very earnestly at his companion—"can I say a word to you in confidence—the strictest confidence?"

"What's it about, sir?" inquired Tag-rag, somewhat apprehensively.

"I dare say you may have felt, perhaps, rather surprised at the interest which I—in fact our office, the office of Quirk, Gammon, and Snap, in Saffron Hill—appear to have taken in Mr. Titmouse."

"Why, sir, it's *your* look-out to see how you're to be paid for what you're doing—and I dare say lawyers generally keep a pretty sharp look-out in that direction!"

Gammon smiled, and continued—"It may, perhaps, a little surprise you, Mr. Tag-rag, to hear that your present (ought I to say, your *late*?) shopman, Mr. Tittlebat Titmouse, is at this moment probably the very luckiest man—and one among the richest, too—in this kingdom."

"Why—you don't mean to say he's drawn a prize in the lottery?"—exclaimed Tag-rag, pricking up his ears, and manifestly changing color.

"Pho! my dear sir, *that* is a mere bagatelle compared with the good fortune which has just fallen to his lot. I solemnly assure you, that I believe it will very shortly turn out that he is at this moment the undoubted owner of an estate worth at least ten thousand a-year, besides a vast accumulation of ready money!"

"Ten thousand a-year, sir!—My Titmouse!—Tittlebat Titmouse!—Ten thousand a-year! it's quite impossible!" faltered Tag-rag, after a pause, having gone as pale as death.

"I have as little doubt of the fact, however, sir, as I have that you yesterday turned him out of doors, Mr. Tag-rag!"

"But"—said Mr. Tag-rag, in a low tone—"who could have dreamed it?—How was—*really*, Mr. Gammon!—how *was* I to know it?"

"That's the fact, however," said Gammon, shrugging his shoulders. Tag-rag wriggled about in his chair, put his hands in and out of his pockets, scratched his head, and continued staring open-mouthed at the bearer of such astounding intelligence. "Perhaps, however, all this is meant as a joke, sir,"—said he—"And if so—it's—it's—a very"——

"It's one of his solicitors who were fortunate enough to make the discovery, that tells you, sir," interrupted Gammon, calmly. "I repeat what I have already told you, Mr. Tag-rag, that an estate of ten thousand a-year is the very least"——

"Why, that's two hundred thousand pounds, sir!"—exclaimed Tag-rag, with an awe-struck air.

"At the very least"——

"Lord, Mr. Gammon!—Excuse me, sir, but how *did* you find it out?"

"Mere accident—a mere accidental discovery, sir, in the course of other professional inquiries!"

"And does Mr. Titmouse know it?"

"Ever since the day, Mr. Tag-rag, after that on which I called on him here!" replied Gammon, pointedly.

"You—don't—say—so!"—exclaimed Tag-rag, and then continued silent for nearly half a minute, evidently amazed beyond all power of expression.

"Well,"—at length he observed—"I *will* say this—with all his few faults—he's the most amiable young gentleman—the *very amiablest* young gentleman I—ever—came near. I always thought there was something uncommon superior-like in his looks."

"Yes—I think he *is* of rather an amiable turn," observed Gammon, with an expressive smile—"very gentlemanlike—and so intelligent"——

"Intelligent! Mr. Gammon! you should only have known him as I have known him!—Well, to be sure!—Lord! His only fault was, that he was above his business; but when one comes to think of it, how could it be otherwise? From the time I first clapped eyes on him—I—I—knew he was—a superior article—quite superior—you know what I mean, sir?—he couldn't help it, of course!—to be sure—he never was much liked by the other young men; but that was jealousy!—all jealousy; I saw that all the while." Here he looked at the door, and added in a very low tone, "Many sleepless nights has their bad treatment of Mr. Titmouse cost me!—Even I, now and then, used to look and speak sharply to him—just to keep him, as it were, down to the mark of the others—he was so uncommon handsome and genteel in his manner, sir. I remember telling my good lady the very first day he came to me, that he was a gentleman born—or ought to have been one."

Now, do you suppose, acute reader, that Mr. Tag-rag was insincere in all this? By no means. He spoke the real dictates of his heart, unaware of the sudden change which had taken place in his feelings. It certainly has an ugly look of improbability—but it was the *nature of the beast*; his eye

suddenly caught a glimpse of the golden calf, and he instinctively fell down and worshipped it. "Well—at all events," said Mr. Gammon, scarcely able to keep a serious expression on his face—"though he's not lived much like a gentleman hitherto, yet he will live for the future like a *very great gentleman*—and spend his money like one, too."

"I—I—dare say—he will!—I wonder how he *will* get through a quarter of it!—what do *you* think he'll do, sir?"

"Heaven only knows—he may very shortly do just what he likes! Go into the House of Commons, or—perhaps—have a peerage given him"——

"Lord, sir!—I feel as if I shouldn't be quite right again for the rest of the day!—I own to you, sir, that all yesterday and to-day I've been on the point of going to Mr. Titmouse's lodgings to apologize for—for—— Good gracious me! one can't take it all in at once—Ten thousand a-year!—Many a lord hasn't got more—some not half as much, I'll be bound!—Dear me, what will he do!—Well, one thing I'm *sure* of—he'll never have a truer friend than plain Thomas Tag-rag, though I've not always been a-flattering him—I respected him too much!—The many little things I've borne with in Titmouse, that in any one else I'd have—But why didn't he tell me, sir? We should have understood one another in a moment."—Here he paused abruptly; for his breath seemed suddenly taken away, as he reviewed the series of indignities which he had latterly inflicted on Titmouse—the kind of life which that amiable young gentleman had led in his establishment.

Never had the keen Gammon enjoyed anything more exquisitely than the scene which I have been describing. To a man of his practical sagacity in the affairs of life, and knowledge of human nature, nothing could appear more ludicrously contemptible than the conduct of poor Tag-rag. How differently are the minds of men constituted! How Gammon despised Tag-

rag! And what opinion has the acute reader by this time formed of Gammon?

"Now, may I take for granted, Mr. Tag-rag, that we understand each other?" inquired Gammon.

"Yes, sir," replied Tag-rag, meekly. "But do you think Mr. Titmouse will ever forgive or forget the little misunderstanding we've lately had? If I could but explain to him how I have been acting a part towards him—all for his good!"

"You may have opportunities for doing so, if you are really so disposed, Mr. Tag-rag; for I have something seriously to propose to you. Circumstances render it desirable that for some little time this important affair should be kept as quiet as possible; and it is Mr. Titmouse's wish and ours—as his confidential professional advisers—that for some few months he should continue in your establishment, and apparently in your service as before."

"In my service!—my service!" interrupted Tag-rag, opening his eyes to their utmost. "I sha'n't know how to behave in my own premises! Have a man with ten thousand a-year behind my counter, sir? I might as well have the Lord Mayor! Sir, it can't—it can't be. Now, if Mr. Titmouse chose to become a *partner* in the house—ay, there might be something in that—he needn't have any trouble—be only a sleeping partner." Tag-rag warmed with the thought. "Really, sir, that wouldn't be so much amiss—would it?" Gammon assured him that it was out of the question; and gave him some of the reasons for the proposal which he (Mr. Gammon) had been making. While Gammon fancied that Tag-rag was paying profound attention to what he was saying, Tag-rag's thoughts had shot far ahead. He had an only child—a daughter, about twenty years old—Miss Tabitha Tag-rag; and the delightful possibility of her by-and-by becoming MRS. TITMOUSE, put her

aspiring parent into a perspiration. Into the proposal just made by Mr. Gammon, Tag-rag fell with great eagerness, which he attempted to conceal—for what innumerable opportunities would it not afford him for bringing about the desire of his heart—for throwing the lovely young couple into each other's way,—endearing them to each other! Oh, delightful! It really looked almost as if it had been determined by the powers above that the thing should come to pass! If Mr. Titmouse did not dine with him, Mrs. and Miss Tag-rag, at Satin Lodge, Clapham, on the very next Sunday, it should, Tag-rag resolved, be owing to no fault of *his*.—

Mr. Gammon having arranged everything exactly as he had desired, and having again enjoined Mr. Tag-rag to absolute secrecy, took his departure. Mr. Tag-rag, in his excitement, thrust out his hand, and grasped that of Gammon, which was extended towards him somewhat coldly and reluctantly. Tag-rag attended him with extreme obsequiousness to the door; and on his departure, walked back rapidly to his own room, and sat down for nearly half an hour in a sort of turbid but delicious revery. Abruptly rising, at length, he clapped his hat on his head, and saying, as he passed along the shop, that he should soon be back, hurried out to call upon his future son-in-law, full of affectionate anxiety concerning his health—and vowing within himself, that henceforth it should be the study of his life to make his daughter and Titmouse happy! There could be no doubt of the reality of the event just communicated to him by Mr. Gammon; for he was one of a well-known firm of solicitors; he had had an interview on "important business" with Titmouse a fortnight before, and that *could* have been nothing but the prodigious event just communicated to himself. Such things had happened to others—why not to Tittlebat Titmouse? In short, Tag-rag had no doubt on the matter; and his heart really yearned towards Titmouse.

Finding that gentleman not at home, Mr. Tag-rag left a most particularly civil message, half a dozen times repeated, with Mrs. Squallop (to whom also he was specially civil,) to the effect that he, Mr. Tag-rag, would be only too happy to see Mr. Titmouse at No. 375, Oxford Street, whenever it might suit his convenience; that Mr. Tag-rag had something very particular to say to him about the unpleasant and *unaccountable*[!] occurrence of yesterday; that Mr. Tag-rag was most deeply concerned to hear of Mr. Titmouse's indisposition, and anxious to learn from himself that he had recovered, &c. &c. &c.;—all which, together with one or two other little matters, which Mrs. Squallop could not help putting together, satisfied that shrewd lady that "something was in the wind about Mr. Titmouse;" and made her reflect rather anxiously on one or two violent scenes she had had with him, and which *she* was now ready entirely to forget and forgive. Having thus done all that at present was in his power to forward the affair, the anxious and excited Tag-rag returned to his shop; on entering which, one Lutestring, his principal young man, eagerly apprised him of a claim which he had, as he imagined, only the moment before, established to the thanks of Mr. Tag-rag, by having "bundled off, neck and crop, that hodious Titmouse," who, about five minutes before, had, it seemed, had the "impudence" to present himself at the shop-door, and walk in as if nothing had happened!! [Titmouse had so presented himself in consequence of a call from Mr. Gammon, immediately after his interview with Tag-rag.]

"You—ordered—Mr. Titmouse—off!!" exclaimed Tag-rag, starting back aghast, and almost petrifying his voluble and officious assistant.

"Of course, sir," at length exclaimed that person, meekly—"after what happened yester"——

"Who authorized you, Mr. Lutestring?" inquired Tag-rag, striving to choke down the rage rising within him.

"Why, sir, I *really* supposed that"——

"You supposed!! You're a meddling, impertinent, disgusting"——

Suddenly his face was overspread with smiles, as three or four elegantly dressed customers entered, whom he received with profuse obeisances. But when their backs were turned, he directed a lightning look towards Lutestring, and retreated once more to his room, to meditate on the agitating events of the last hour. The extraordinary alteration in Mr. Tag-rag's behavior was attributed by his shopmen to his having been frightened out of his wits by the threats of Titmouse's lawyer—for such it was clear the stranger was; and more than one of them stored it up in their minds as a useful precedent against some future occasion.

Twice afterwards during the day did Tag-rag call at Mr. Titmouse's lodgings—but in vain; and on returning the third time he felt not a little disquieted. He determined, however, to call the first thing on the ensuing morning; if he should then fail of seeing Mr. Titmouse, he was resolved to go to Messrs. Quirk, Gammon, and Snap—and besides, address a very affectionate letter to Mr. Titmouse. How totally changed had become all his feelings towards that gentleman within the last few hours. The more that Tag-rag reflected on Titmouse's conduct, the more he saw in it to approve of. How steady and regular had he been in his habits! how civil and obliging! how patient of rebuke! how pleasing in his manners to the customers! Surely, surely, thought Tag-rag, Titmouse can't have been four long years in my employ without getting a—sort of a—feeling—of attachment to me—he'd have left long ago if he hadn't! It was true there *had* now and then been tiffs between them; but who could agree always? Even Mrs. Tag-rag and he, when they were courting, often fell out with one another!—Tag-rag was now ready to forget and forgive all—he had never meant any harm to Titmouse. He believed that poor Tittlebat was an orphan,

unhappy soul! alone in the wide world—*now* he would become the prey of designing strangers and adventurers. Tag-rag did not like the appearance of Gammon. No doubt that person would try and ingratiate himself as much as possible with Titmouse! Then Titmouse was remarkably good-looking. "I wonder what Tabby will think of him when she sees him!" How anxious Tittlebat must be to see her—*his* daughter! How could Tag-rag make Tittlebat's stay at his premises (for he could not bring himself to believe that on the morrow he could not set all right, and disavow the abominable conduct of Lutestring) agreeable and delightful? He would discharge the first of his young men that did not show Titmouse proper respect.—What low lodgings poor Tittlebat lived in!—Why could he not take up his quarters at Satin Lodge? They always had a nice spare bedroom. Ah! *that* would be a stroke! How Tabby could endear herself to him! What a number of things Mrs. Tag-rag could do to make him comfortable!

About seven o'clock Tag-rag quitted his premises in Oxford Street, for his country house; and, occupied with these and similar delightful and anxious thoughts and speculations, hurried along Oxford Street on his way to the Clapham stage, without thinking of his umbrella, though it rained fast. When he had taken his place on the coach-box, beside old Crack, (as he had done almost every night for years,) he was so unusually silent that Crack naturally thought his best passenger was going to become bankrupt, or compound with his creditors, or do something in that line, shortly. Mr. Tag-rag could hardly keep his temper at the slow pace old Crack was driving at—just when Mr. Tag-rag would have wished to gallop the whole way. Never had he descended with so much briskness, as when the coach at length drew up before the little green gate, which opened on the tidy little gravel walk, which led up to the little green wooden porch, which sheltered the little door which admitted you into little Satin Lodge. As Tag-rag stood

for a moment wiping his wet shoes upon the mat, he could not help observing, for the first time, by the inward light of ten thousand a-year, how *uncommon* narrow the passage was; and thinking that Satin Lodge would never *do*, when he should be the father-in-law of a man worth ten thousand a-year—but he could easily let that house then, and take a large one. As he hung his hat upon the peg, the perilous insolence of Lutestring occurred to him; and he deposited such a prodigious, but half-suppressed execration upon that gentleman's name, as must have sunk a far more buoyant sinner many fathoms deeper than usual into a certain hot and deep place that shall be nameless.

Mrs. and Miss Tag-rag were sitting in the front parlor, intending to take tea as soon as Mr. Tag-rag should have arrived. It was not a large room, but sweetly furnished, according to the taste of the owners. There was only one window, and it had a flaunting white summer curtain. The walls were ornamented with three pictures, in ponderous gilt frames, being portraits of Mr., Mrs., and Miss Tag-rag; and I do not feel disposed to say more concerning these pictures, than that in each of them the *dress* was done with elaborate exactness—the *faces* seeming to have been painted in, for the purpose of setting off and completing the picture of the dress. The skinny little Miss Tag-rag sat at the worn-out, jingling pianoforte, causing it to utter—oh, horrid and doleful sound!—"The Battle of Prague." Mrs. Tag-rag, a fat, showily dressed woman of about fifty, her cap having a prodigious number of artificial flowers in it, sat reading a profitable volume, entitled "*Groans from the Bottomless Pit to Awaken Sleeping Sinners*," by (as he was pleased to dignify himself) the Rev. DISMAL HORROR—a very rousing young dissenting preacher lately come into that neighborhood, and who had almost frightened into fits half the women and children, and one or two old men, of his congregation; giving out, among several similarly cheering

intimations, that they must all necessarily be damned unless they immediately set about making themselves as miserable as possible in this world. Only the Sunday before, he had pointed out, with awful force and distinctness, how cards and novels were the devil's traps to catch souls; and balls and theatres short and easy cuts to——!

He had proved to his trembling female hearers, in effect, that there was only one way to heaven, *i. e.* through his chapel; that the only safe mode of spending their time on earth was reading such blessed works as that which he had just published, and going daily to prayer-meetings. When, however, a Sunday or two before, he had the assurance to preach a funeral sermon, to "improve the death"—such being his impressive phrase—of a Miss Snooks, (who had kept a circulating library in the neighborhood, but had not been a member of his congregation;) and who, having been to the theatre on the Thursday night, was taken ill of a bowel attack on the Friday, and was a "*lifeless corpse* when the next Sabbath dawned"—you might have heard a beetle sneeze within any of the walls, all over the crowded chapel. Two-thirds of the women present, struck with the awful judgment upon the deceased Miss Snooks, inwardly made solemn vows never again to enter the accursed walls of a theatre or concert-room;[\[11\]](#) many determined no longer to subscribe to the circulating library, ruining their precious souls with light and amusing reading; and almost all resolved forthwith to become active members of a sort of religious tract society, which "dear Mr. Horror" had just established in the neighborhood, for the purpose of giving the sick and starving poor *spiritual* food, in the shape of tracts, (chiefly written by himself,) which might "wean their affections away from this vain world," and "fix them on better things," rejoicing, in the meanwhile, in the bitter pangs of destitution—and able to bear them! All this sort of thing Mr. Horror possibly imagined to be calculated to advance the cause of real

religion! In short, he had created a sort of spiritual fever about the place which was then just at its height in worthy Mrs. Tag-rag.

"Well, Dolly, how are you to-night?" inquired Tag-rag, with unusual briskness, on entering the room.

"Tolerable, thank you, Tag," replied Mrs. Tag-rag, mournfully, with a sigh, closing the cheerful volume she had been perusing—it having been recommended the preceding Sunday from the pulpit by its pious and gifted author, to be read and prayed over every day by every member of his congregation!

"And how are *you*, Tabby?" said Tag-rag, addressing his daughter. "Come and kiss me, you little slut—come!"

"No, I sha'n't, pa! Do let me go on with my practising," said Miss Tag-rag—and twang! twang! went those infernal keys.

"D' ye hear, Tab? Come and kiss me, you little minx"——

"Really, pa, how provoking—just as I am in the middle of the *Cries of the Wounded*! I sha'n't—that's flat."

The doting parent could not, however, be denied; so he stepped to the piano, put his arm around his dutiful daughter's neck, kissed her fondly, and then stood for a moment behind her, admiring her brilliant execution of *The Trumpet of Victory*. Having changed his coat, and put on an old pair of shoes, Mr. Tag-rag was comfortable for the evening.

"Tabby plays wonderful well, Dolly, don't she?" said Tag-rag, as the tea-things were being brought in, by way of beginning a conversation, while he drew his chair nearer to his wife.

"Ah! I'd a deal rather see her reading something serious—for life is short, Tag, and eternity's long."

"Botheration!—Stuff!—Tut!" exclaimed Tag-rag!

"You may find it out one day, my dear, when, alas! it's too late"——

"I'll tell you what, Dolly," said Tag-rag, angrily, "you're doing a great deal too much in this line of business—my house is getting like a Methodist meeting-house. I can't bear it—I can't! What the deuce is come to you all in these parts, lately?" Mr. Tag-rag, I should apprise the reader, had been induced, some three years before, to quit the Church of England and take up with Mr. Dismal Horror; but his zeal had by no means kept pace with that of his wife.

"Ah, Tag-rag," replied his wife, with a sigh, "I can only pray for you—I can do no more"——

"Oh!" exclaimed Tag-rag, with an air of desperate disgust, thrusting his hands into his pockets, and stretching his legs to their utmost extent under the table. "I'll tell you what, Mrs. T." he added after a while, "I like religion well enough—but too much of it no one can stand. Too much of one thing is good for nothing; you may choke a dog with pudding;—I sha'n't renew my sittings at Mr. Horror's."

"Oh, dear, dear pa, do! That's a love of a pa!" interposed Miss Tag-rag, twirling round on her music-stool. "All Clapham's running after him—he's quite the rage! There's the Dugginses, the Pips, the Jones, the Maggots,—and, really, Mr. Horror does preach such dreadful things, it's quite delightful to look round and see all the people with their eyes and mouths wide open—and ours is such a good pew for seeing—and Mr. Horror is such a bee—yeautiful preacher—isn't he, ma?"

"Yes, love, he is—but I wish I could see you profit by him, and preparing for death"——

"Why, ma, how *can* you go on in that ridiculous way? You know I'm not twenty yet, however old you and pa may be!"

"Well, well! poor Tabby!" here Mrs. Tag-rag's voice faltered—"a day will come, when"——

"Play me the *Devil among the Tailors*, or *Copenhagen Waltz*, or something of that sort, Tabby," said her father, furiously, "or I shall be sick!—I can't bear it! Curse Mr. Hor"——

"Well!—Oh, my!!—I never!—Mr. Tag-rag!" exclaimed his astounded wife.

"Play away, Tab, or I'll go and sit in the kitchen! They're cheerful *there*! The next time I come across Mr. Horror, if I don't give him a bit of my mind"—here he paused, and slapped his hand with much energy upon the table. Mrs. Tag-rag wiped her eyes, sighed, and resumed her book. Miss Tag-rag began to make tea, her papa gradually forgetting his rage, as he fixed his dull gray eyes fondly on the pert skinny countenance of his daughter.

"By the way, Tag," exclaimed Mrs. Tag-rag, suddenly, but in the same mournful tone, addressing her husband, "you haven't of course forgot the flowers for my new bonnet?"

"Never once thought of it," replied Tag-rag, doggedly.

"You haven't! Good gracious! what am I to go to chapel in next Sunday?" she exclaimed with sudden alarm, closing her book, "and our seat in the very front of the gallery!—bless me! I shall have a hundred eyes on me!"

"Now that you're coming down a bit, and dropped out of the clouds—or p'r'aps I should say—come up from beneath!—Dolly," said her husband, much relieved, "I'll tell you a bit of news that will, I fancy, rather"——

"Come! what is it, Tag?" she inquired with a sort of languid curiosity.

"What should you say of a chance of a certain somebody" (here he looked unutterable things at his daughter) "that shall be nameless, becoming mistress of ten thousand a-year?"

"Why"—Mrs. Tag-rag changed color—"has any one fallen in love with Tab?"

"What should you say, Mrs. T., of our Tab marrying a man with ten thousand a-year? There's for you! Isn't *that* better than all your rel—hem!"

"Oh, Tag, don't say that; but"—here she hastily turned down the leaf of *Groans from the Bottomless Pit*, and tossed that inestimable work upon the sofa—"do tell me, lovey! what *are* you talking about?"

"What indeed, Dolly!—I'm going to have him here to dinner next Sunday."

Miss Tag-rag having been listening with breathless eagerness to this little colloquy between her prudent and amiable parents, unconscious of what she was about, poured almost all the contents of the tea-pot into the sugar-basin, instead of her papa's and mamma's tea-cups.

"Have *who*, dear Tag?" inquired Mrs. Tag-rag, impatiently.

"Who? why whom but my Tittlebat Titmouse!! You've seen him, and heard me speak of him often, you know"——

"What!—*that* odious, nasty"——

"Hush, hush!" involuntarily exclaimed Tag-rag, with an apprehensive air—"That's all past and gone—I was always a little too hard on him. Well, anyhow, he's turned up all of a sudden master of ten thousand a-year. He has indeed—may this piece of toast choke me if he hasn't!"

Mrs. Tag-rag and her daughter sat in speechless wonder.

"Where did he see Tab, Taggy?" inquired at length Mrs. Tag-rag.

"Oh—I—I—why—you see—I don't exactly think *that* signifies so much—he *will* see her, you know, next Sunday."

"So, then, he's positively coming?" inquired Mrs. Tag-rag, with a fluttered air.

"Y—e—s—I've no doubt."—(I'll discharge Lutestring to-morrow, thought Tag-rag, with a sharp inward spasm.)

"But aren't we counting our chickens, Taggy, before they're hatched? If Titmouse is all of a sudden become such a catch, he'll be snapped up in a minute, you know, of course"——

"Why, you see, Dolly—we're first in the market, I'm sure of that—his attorney tells me he's to be kept quite snug and quiet under my care for months, and see no one"——

"My gracious!" exclaimed Mrs. Tag-rag, holding up both her hands—"if *that* don't look like a special interposition of Providence, now"——

"So *I* thought, Tabby, while Mr. Gammon was telling me!" replied her husband.

"Ah, Tag, there are many of 'em, if we were only to be on the look-out for them!" said Mrs. Tag-rag, excitedly.

"I *do* see it all! It's designed by Providence to get them soon together! When once Mr. Titmouse gets sight of Tabby, and gets into her company—eh! Tab, lovey! *you'll* do the rest, hem!" said Tag-rag, fondly.

"La, pa! how you *do* go on!" simpered Miss Tag-rag.

"You must do your part, Tab," said her father—"we'll do ours. He'll bite, you may depend on it, if you manage well!"

"What sort of a looking young man is he, dear pa?" inquired Miss Tag-rag, blushing, and her heart fluttering very fast.

"Oh, you *must* have seen him, sweetest"——

"How should I ever notice any one of the lots of young men at the shop, pa?—I don't at all know him."

"Well—he's the handsomest, most genteel-looking young fellow I ever came across; he's long been an ornament to my establishment, for his good looks and civil and obliging manners—quite a treasure! You should have seen how he *took* with the ladies of rank always!"——

"Dear me," interrupted Mrs. Tag-rag, anxiously addressing her daughter, "I hope, Tabby, that Miss Nix will send home your lilac-colored frock by next Sunday!"

"If she *don't*, ma, I'll take care she never makes anything more for *me*, that's poz!" replied Miss Tag-rag, earnestly.

"We'll call there to-morrow, love, and hurry her on," said her mother; and from that moment until eleven o'clock, when the amiable and interesting trio retired to rest, nothing was talked of but the charming Titmouse, and the good fortune he so richly deserved, and how long the courtship was likely to last. Mrs. Tag-rag, who, for the last month or so, had always remained on her knees before getting into bed, for at least ten minutes, on this eventful evening compressed her prayers, I regret to say, into one minute and a half's time, (as for Tag-rag, a hardened heathen, for all he had taken to hearing Mr. Horror, he always tumbled prayerless into bed, the moment he was undressed;) while, for once in a way, Miss Tag-rag, having taken only five minutes to put her hair into papers, popped into bed directly she had blown the candle out, without saying *any* prayers—or even thinking of finishing the novel which lay under her pillow, and which she had got on the sly from the circulating library of the late Miss Snooks. For several hours she lay in a delicious revery, imagining herself become Mrs. Tittlebat Titmouse, riding about Clapham in a handsome carriage, going to the play every night; and what would the three Miss Knippses say when they heard of it?—they'd burst. And such a handsome man, too!

She sank, at length, into unconsciousness, amid a soft confusion of glistening white satin—favors—bridesmaids—Mrs. Tittlebat Tit—Tit—Tit—Tit—mouse.

Titmouse, about half-past nine o'clock on the ensuing morning, was sitting in his little room in a somewhat troubled humor, musing on many

things, and little imagining the intense interest he had excited in the feelings of the amiable occupants of Satin Lodge, when a knock at his door startled him out of his revery. Guess his amazement to see, on opening it, Mr. Tag-rag!

"Your most obedient, sir," commenced that gentleman, in a subdued and obsequious manner, plucking off his hat the instant that he saw Titmouse. "I hope you're better, sir!—Been very uneasy, sir, about you."

"Please to walk in, sir," replied Titmouse, not a little flustered—"I'm better, sir, thank you."

"Happy to hear it, sir?—But am also come to offer humble apologies for the rudeness of that upstart that was so rude to you yesterday, at my premises—know whom I mean, eh?—Lutestring—I shall get rid of him, I do think"——

"Thank you, sir—— But—but—when I was in your employ"——

"*Was* in my employ!" interrupted Tag-rag, with a sigh, gazing earnestly at him—"It's no use trying to hide it any longer! I've all along seen you was a world too good for—in fact, quite above your situation in *my* poor shop! I *may* have been wrong, Mr. Titmouse," he continued diffidently, as he placed himself on what seemed the only chair in the room, (Titmouse sitting on a common wooden stool)—"but I did it for the best—eh?—don't you understand me, Mr. Titmouse?" Titmouse continued looking on the floor incredulously, sheepishly, and somewhat sullenly.

"Very much obliged, sir," at length he answered—"but must say you've rather a funny way of showing it, sir. Look at the sort of life you've led me for this"——

"Ah! knew you'd say so! But I can lay my hand on my heart, Mr. Titmouse, and declare to God—I can, indeed, Mr. Titmouse"—— Titmouse preserved a very embarrassing silence.—"See I'm out of your good books—

But—won't you forget and forgive, Mr. Titmouse? I *meant* well. Nay, I humbly beg forgiveness for everything you've not liked in me. Can I say more? Come, Mr. Titmouse, you've a noble nature, and I ask forgiveness!" cried Tag-rag, softly and earnestly: you would have thought that his life depended on his success in what he was doing!

"You—you ought to do it before the whole shop, if you're in earnest," replied Titmouse, a little relenting—"for they've all seen your goings on."

"Them!—the brutes!—the vulgar fellows, eugh!—you and I, Mr. Titmouse, are a *leetle* above such cattle as them! D' ye think we ought to mind what *servants* say?—Only you say the word, and I make a clean sweep of 'em all; you shall have the premises to yourself, Mr. Titmouse, within an hour after any of those chaps shows you the least glimmer of disrespect."

"Ah! I don't know—you've used me most uncommon bad, 'pon my soul!—far worse than they have—you've nearly broke my heart, sir! You have!"

"Well, my womankind at home are right, after all! They told me all along I was going the wrong way to work, when I said how I tried to keep your pride down, and prevent you from having your head turned by knowing your good looks! Over and over again, my little girl has said, with tears in her dear eyes, 'you'll break his spirit, dear papa—if he *is* handsome, wasn't it God that made him so?'" The little frostwork which Titmouse had thrown around his heart, began to melt like snow under sunbeams. "Ah, Mr. Titmouse, Mr. Titmouse! the women are always right, and *we're* always wrong," continued Tag-rag, earnestly, perceiving his advantage. "Upon my soul I could kick myself for my stupidity, and cruelty too!"

"Ah, I should think so! No one knows what I've suffered! And now," added Titmouse, suddenly, "that I'm—I suppose you've heard it all, sir?—what's in the wind—and all that?"

"Yes, sir—Mr. Gammon (that most respectable gentleman) and I have had a long talk yesterday about you, in which he did certainly tell me everything—nothing like confidence, Mr. Titmouse, when gentleman meets gentleman, you know! Oh, Lord! the news is really delightful! delightful!"

"*Isn't* it, sir?" eagerly interrupted Titmouse, his eyes glistening with sudden rapture.

"Ah! ten thous—I *must* shake hands with you, my dear Mr. Titmouse;" quoth Tag-rag, with affectionate excitement—and, for the first time in their lives, their hands touched, Tag-rag squeezing that of Titmouse with energetic cordiality; while he added, with a little emotion in his tone—"Thomas Tag-rag may be a plain-spoken and wrong-headed man, Mr. Titmouse—but he's a warm heart, I assure you!"

"And did Mr. Gammon tell you *all*, sir?" eagerly interrupted Titmouse.

"Everything—everything; quite confidential, I assure you, for he saw the interest I felt in you!"

"And did he say about my—hem!—eh? my stopping a few weeks longer with you?" inquired Titmouse, chagrin overspreading his features.

"I think he did, indeed, Mr. Titmouse! He's quite bent on it, sir! And so would any true friend of yours be—because you see!"—here he dropped his voice, and looked very mysteriously at Titmouse—"in short I quite agree with Mr. Gammon!"

"Do you indeed, sir?" exclaimed Titmouse, with rather an uneasy look.

"I do, i' faith! Why, they'd give thousands and thousands to get you out of the way—and what's *money* to *them*? But they must look very sharp that get at you in the premises of Thomas Tag-rag, I warrant 'em!—Talking of that, ah, ha!—it *will* be a funny thing to see you, Mr. Titmouse—Squire Titmouse—ah, ha, ha!"

"You won't hardly expect me to go out with *goods*, I suppose, sir?" inquired Titmouse, somewhat anxiously.

"Ha, ha, ha!—Ha, ha, ha!—Might as well ask me if I'd clean that beast Lutestring's shoes! No, no, my dear Mr. Titmouse, you and I have done with each other as master and servant; it's only as friends that we know each other now!—You may say and do whatever you like, and come and go when and where you like!—It's true it will make my other hands rather jealous, and get me into trouble; but what do I care? Suppose they *do* all give me warning for your sake? Let 'em go, say I!" He snapped his fingers with an air of defiance. "*Your* looks and manners would keep a shop full of customers—one Titmouse is worth a hundred of them."

"Pon my soul, you speak most uncommon gentleman-like, sir, certainly!" said Titmouse, with a little excitement—"and if you'd only *always*—but that's all past and gone; and I've no objections to say at once, that all the articles I may want in your line I'll have at your establishment, pay cash down, and ask for no discount. And I'll send all my friends, for, in course, sir, you know I shall have lots of them!"

"Don't forget your oldest, your truest, your humblest friend, Mr. Titmouse," said Tag-rag, with a cringing air.

"That I won't!" replied Titmouse, heatedly.

[It flashed across his mind that a true and old friend would be only too happy to do him some such trifling service as to lend him a ten-pound note.]

"Hem!—Now, *are* you such a friend, Mr. Tag-rag?" cried he, sheepishly.

"Am I?—Can you doubt me? Try me! See what I would not do for you! Friend, indeed!" and he looked quite fondly at Titmouse.

"Well, I believe you; sir! And the fact is, a—a—a—you see, Mr. Tag-rag, though all this heap of money's *coming* to me, I'm precious low just *now*"——

"Ye—e—e—s, Mr. Titmouse," quoth Tag-rag, anxiously; his dull gray eye fixed on that of Titmouse steadfastly.

"Well—if you've a mind to prove your words, Mr. Tag-rag, and don't mind advancing me a ten-pound note"——

"Hem!" involuntarily uttered Tag-rag, so suddenly and violently, that it made Titmouse start. Then Tag-rag's face flushed over; he twirled about his watch-key rapidly, and wriggled about in his chair with visible agitation.

"Oh, you aren't going to do it! If so, you'd better say it at once," quoth Titmouse, rather cavalierly.

"Why—*was* ever anything so unfortunate?" stammered Tag-rag. "That cursed lot of French goods I bought only yesterday, to be paid for this very morning—and it will drain me of every penny!"

"Ah—yes! True! Well, it don't much signify," said Titmouse, carelessly, running his hand through his bushy hair. "In fact, I needn't have bothered an old friend at all, now I think of it—Mr. Gammon says he's my banker to any amount. I beg pardon, I'm sure"——

Tag-rag was in a horrid dilemma. He felt so flustered by the suddenness and seriousness of the thing, that he could not see his way plain in any direction.

"Let me see," at length he stammered; and pulling a ready-reckoner out of his pocket, he affected to be consulting it, as if to ascertain merely the state of his banker's account, but really desiring a few moments' time to collect his thoughts. 'Twas in vain, however; nothing occurred to him; he saw no way of escape; his old friend the devil deserted him for a moment—supplying him with no ready lie to meet the exigency. He must, he feared, cash up! "Well," said he—"it certainly *is* rather unfortunate, just at this precise moment; but I'll step to the shop, and see how my ready-money matters stand. It sha'n't be a trifle, Mr. Titmouse, that shall stand between

us. But—if I *should* be hard run—perhaps—eh? Would a five-pound note do?"

"Why—a—a—certainly, if it wouldn't suit you to advance the ten"——

"I dare say," interrupted Tag-rag, a trifle relieved, "I shall be able to accommodate you so far. Perhaps you'll step on to the shop presently, and then we can talk over matters!—By the way, did you ever see anything so odd? forgot the main thing! *Do* come and take your mutton with me at Clapham next Sunday—my womankind will be quite delighted. Nay, 'tis *their* invitation—ha, ha!"

"You're uncommon polite," replied Titmouse, coloring with pleasure. Here seemed the first pale primrose of the coming spring—an invitation to Satin Lodge!

"The politeness—the favor—will be yours, Mr. Titmouse! I'm uncommon proud of your coming! We shall be quite alone! have you all to ourselves; only me, my wife, and daughter—an only child, Mr. Titmouse—*such* a child! She's really often said to me, 'I wonder'—but,—— I won't make you vain, eh? *Shall* I call it a fixture?"

"Pon my life, Mr. Tag-rag, you're monstrous uncommon polite. It's true, I was going to dine with Mr. Gammon"——

"Oh! pho! (I mean no disrespect, mind!) he's only a bachelor—I've got ladies in the case, and all that—eh, Mr. Titmouse? and a *young* one!"

"Well, thank you, sir. Since you're so pressing"——

"That's it! An engagement, poz!—Satin Lodge—for Sunday next," said Tag-rag, rising and looking at his watch. "Time for me to be off. See you soon at the shop? Soon arrange that little matter of business, eh? You understand? Good-by! good-by!" and shaking Titmouse cordially by the hand, Tag-rag took his departure. As he hurried on to his shop, he felt in a most painful perplexity about this loan of five pounds. It was truly like

squeezing five drops of blood out of his heart. But what was to be done? Could he offend Titmouse? Where was he to stop, if he once began? Dare he ask for security? Suppose the whole affair should after all turn into smoke?

Now, consider the folly of Tag-rag. Here was he in all this terrible pucker about advancing *five pounds* on the strength of prospects and chances which he had deemed safe for adventuring *his daughter* upon—her, the only object on earth, except money, that he regarded with anything like sincere affection. How was this? The splendor of the future possible good fortune of his daughter, might, perhaps, have dazzled and confused his perceptions. Then, again, *that* was a *remote* contingent venture; but this sudden appeal to his pocket—the demand of an immediate outlay and venture—was an instant pressure, and he felt it severely. Immediate profit was everything to Tag-rag—'twas his very life's blood! He was, in truth, a *tradesman to his heart's core*. If he could have seen the immediate *quid pro quo*, or could, at all events, have got, if only by way of earnest, as it were, a bit of poor Titmouse's heart, and locked it up in his desk, he would not have cared so much; it would have been a little in his line;—but here was a FIVE-POUND NOTE going out forthwith, and nothing immediate, visible, palpable, replacing it. Oh! Titmouse had unconsciously pulled Tag-rag's very heart-strings!

Observe, discriminating reader, that there is all the difference in the world between a TRADESMAN and a MERCHANT; and, moreover, that it is not every *tradesman* that is a Tag-rag.

All these considerations combined to keep Tag-rag in a perfect fever of doubt and anxiety, which several hearty curses (I regret to say) failed in effectually relieving. By the time, however, that Titmouse had made his appearance at Mr. Tag-rag's shop, with a sufficiently sheepish air, and was

beginning to run the gantlet of grinning contempt from the "*gents*" on each side of the shop, Tag-rag had determined on the course he should pursue in the very embarrassing matter above referred to. To the inexpressible amazement of all present, he bolted out of a little counting-house or side-room, hastened to meet Titmouse with outstretched hand and cordial speech, drew him into his little room, and shut the door. There Tag-rag informed his flurried young friend that he had made arrangements (with a little inconvenience, which, however, between friends, signified nothing) for lending Titmouse five pounds.

"And, as life's uncertain, my dear Mr. Titmouse," said Tag-rag, as Titmouse, with ill-disguised ecstasy, put the five-pound note into his pocket—"even between the dearest friends—eh? Understand? It's not *you* I fear, nor you me, because we've confidence in each other. But if anything should happen, those we leave behind us"—Here he took out of his desk an "I. O. U. £5," ready drawn up and dated—"a mere slip—a word or two—is satisfaction to both of us."

"Oh yes, sir! yes, sir!—anything!" said Titmouse; and hastily taking the pen proffered him, signed his name, on which Tag-rag felt a little relieved. Lutestring was then summoned into the room, and thus (not a little to his disgust and astonishment) addressed by his imperious employer: "Mr. Lutestring, you will have the goodness to see that Mr. Titmouse, while he may do me the honor to condescend to be here, is treated by every person in my establishment with the utmost possible respect. Whoever treats this gentleman with the slightest disrespect isn't any longer a servant of mine. D' ye hear me, Mr. Lutestring?" added Tag-rag, sternly, observing a very significant glance of mingled hatred and wonder which Lutestring directed towards Titmouse. "D' ye hear me, sir?"

"Oh, yes, sir! yes, sir! your orders shall be attended to," he replied in as insolent a tone as he could venture upon, leaving the room with a half audible whistle of contempt, while a grin overspread his features. Within five minutes he had filled, the mind of every shopman in the establishment with feelings of mingled wonder, hatred, and fear towards Titmouse. What, thought they, could have happened? What was Mr. Tag-rag about? This was all of a piece with his rage at Lutestring the day before. "Cuss Titmouse! and Tag-rag too!" said or thought every one of them!

Titmouse, for the remainder of the day, felt, as may be imagined, but little at his ease; for—to say nothing of his insuperable repugnance to the discharge of any of his former duties—his uneasiness under the oppressive civilities of Mr. Tag-rag; and the evident disgust towards him entertained by his companions; many most important considerations arising out of recent and coming events—his altering circumstances—were momentarily forcing themselves upon his attention. The first of these was his *hair*; for Heaven seemed to have suddenly given him the long-coveted means of changing its detested hue; and the next was *an eyeglass*, without which, he had long felt his appearance and appointments to be painfully incomplete. Early in the afternoon, therefore, on the readily admitted plea of important business, he obtained the permission of the obsequious Mr. Tag-rag to depart for the day; and instantly directed his steps to the well-known shop of a fashionable perfumer and perruquier, in Bond Street—well-known to those, at least, who were in the habit of glancing at the enticing advertisements in the newspapers. Having watched through the window till the coast was clear, (for he felt a natural delicacy in asking for a hair-dye before people who could in an instant perceive his urgent occasion for it,) he entered the shop, where a well-dressed gentleman was sitting behind the counter reading. He was handsome; and his elaborately curled hair was of a heavenly black (so

at least Titmouse considered it) which was better than a thousand printed advertisements of the celebrated fluid which formed the chief commodity there vended. Titmouse with a little hesitation, asked this gentleman what was the price of their article "for turning *light* hair black"—and was answered—"only seven and sixpence for the smaller-sized bottle." One was in a twinkling placed upon the counter, where it lay like a miniature mummy, swathed, as it were, in manifold advertisements. "You'll find the fullest directions within, and testimonials from the highest nobility to the wonderful efficacy of the 'CYANOCHAITANTHROPOPOION.'"[12]

"Sure it will do, sir?" inquired Titmouse, anxiously.

"Is *my* hair dark enough to your taste, sir?" said the gentleman, with a calm and bland manner—"because I owe it entirely to this invaluable specific."

"Do you, indeed, sir?" inquired Titmouse: adding with a sigh, "but, between ourselves, look at mine!"—and, lifting off his hat for a moment, he exhibited a great crop of bushy, carrotty hair.

"Whew! rather ugly that, sir!"—exclaimed the gentleman, looking very serious—"What a curse it is to be born with such hair, isn't it?"

"'Pon my life I think so, sir!" answered Titmouse, mournfully; "and do you really say, sir, that this what's-its-name turned *yours* of that beautiful black?"

"Think? 'Pon my honor, sir,—certain; no mistake, I assure you! I was fretting myself into my grave about the color of my hair! Why, sir, there was a nobleman in here (I don't like to mention names) the other day, with a head that seemed as if it had been dipped into water, and then powdered with brick-dust; but—I assure you, the Cyanochaitanthropopoion was too much for it—it turned black in a very short time. You should have seen his lordship's ecstasy—[the speaker saw that Titmouse would swallow

anything; so he went on with a confident air]—and in a month's time he had married a beautiful woman whom he had loved from a child, but who had vowed she could never bring herself to marry a man with such a head of hair."

"How long does it take to do all this, sir?" interrupted Titmouse, eagerly, with a beating heart.

"Sometimes two—sometimes three days. In four days' time, I'll answer for it, your most intimate friend would not know you. My wife did not know me for a long while, and wouldn't let me salute her—ha, ha!" Here another customer entered; and Titmouse, laying down the five-pound note he had squeezed out of Tag-rag, put the wonder-working bottle into his pocket, and on receiving his change, departed, bursting with eagerness to try the effects of the Cyanochaitanthropopoion. Within half an hour's time he might have been seen driving a hard bargain with a pawnbroker for a massive-looking eyeglass, upon which, as it hung suspended in the window, he had for months cast a longing eye; and he eventually purchased it (his eyesight, I need hardly say, was perfect) for only fifteen shillings. After taking a hearty dinner in a little dusky eating-house in Rupert Street, frequented by fashionable-looking foreigners, with splendid heads of curling hair and mustaches, he hastened home, eager to commence the grand experiment. Fortunately, he was undisturbed that evening. Having lit his candle, and locked his door, with tremulous fingers he opened the papers enveloping the little bottle; and glancing over their contents, got so inflamed with the numberless instances of its efficacy, detailed in brief but glowing terms—as—the "Duke of....—the Countess of....—the Earl of, &c. &c. &c.—the lovely Miss——, the celebrated Sir Little Bull's-eye, (who was so gratified that he allowed his name to be used)—all of whom, from having hair of the reddest possible description, were now possessed of

raven-hued locks"—that he threw down the paper, and hurriedly got the cork out of the bottle. Having turned up his coat-cuffs, he commenced the application of the Cyanochaitanthropopoion, rubbing it into his hair, eyebrows, and whiskers, with all the energy he was capable of, for upwards of half an hour. Then he read over again every syllable on the papers in which the bottle had been wrapped; and about eleven o'clock, having given sundry curious glances at the glass, got into bed, full of exciting hopes and delightful anxieties concerning the success of the great experiment he was trying. He could not sleep for several hours. He dreamed a rapturous dream—that he bowed to a gentleman with coal-black hair, whom he fancied he had seen before—and suddenly discovered that he was only looking at *himself* in a glass!!—This awoke him. Up he jumped—sprang to his little glass breathlessly—but ah! merciful Heavens! he almost dropped down dead! His hair was perfectly *green*—there could be no mistake about it. He stood staring in the glass in speechless horror, his eyes and mouth distended to their utmost, for several minutes. Then he threw himself on the bed, and felt fainting. Out he presently jumped again, in a kind of ecstasy—rubbed his hair desperately and wildly about—again looked into the glass—there it was, rougher than before; but eyebrows, whiskers, and head—all were, if anything, of a more vivid and brilliant green. Despair came over him. What had all his past troubles been to this?—what was to become of him? He got into bed again, and burst into a perspiration. Two or three times he got into and out of bed, to look at himself—on each occasion deriving only more terrible confirmation than before, of the disaster which had befallen him. After lying still for some minutes, he got out of bed, and kneeling down, tried to say his prayers; but it was in vain—and he rose half choked. It was plain he must have his head shaved, and wear a wig, which would be making an old man of him at once. Getting more and more disturbed in his

mind, he dressed himself, half determined on starting off to Bond Street, and breaking every pane of glass in the shop window of the infernal impostor who had sold him the liquid which had so frightfully disfigured him. As he stood thus irresolute, he heard the step of Mrs. Squallop approaching his door, and recollected that he had ordered her to bring up his tea-kettle about that time. Having no time to take his clothes off, he thought the best thing he could do, would be, to pop into bed again, draw his nightcap down to his ears and eyebrows, pretend to be asleep, and, turning his back towards the door, have a chance of escaping the observation of his landlady. No sooner thought of, than done. Into bed he jumped, and drew the clothes over him—not aware, however, that in his hurry he had left his legs, with boots and trousers on, exposed to view—an unusual spectacle to his landlady, who had, in fact, scarcely ever known him in bed at so late an hour before. He lay as still as a mouse. Mrs. Squallop, after glancing with surprise at his legs, happening to direct her eyes towards the window, beheld a small bottle standing there—only half of whose dark contents were remaining. Oh gracious!—of course it must be POISON, and Mr. Titmouse must be dead!—In a sudden fright she dropped the kettle, plucked the clothes off the trembling Titmouse, and cried out—"Oh, Mr. Titmouse! Mr. Titmouse! what *have* you been"——

"Well, ma'am, what the devil do you mean? How dare you"——commenced Titmouse, suddenly sitting up, and looking furiously at Mrs. Squallop. An inconceivably strange and horrid figure he looked. He had all his day clothes on; a white cotton nightcap was drawn down to his very eyes, like a man going to be hanged; his face was very pale, and his whiskers were of a bright green color.

"Lard a-mighty!" exclaimed Mrs. Squallop, faintly, the moment that this strange apparition had presented itself; and sinking on the chair, she pointed

with a dismayed air to the ominous-looking object standing on the window shelf. Titmouse thence inferred that she had found out the true state of the case. "Well—*isn't* it an infernal shame, Mrs. Squallop?" said he, getting off the bed; and, plucking off his nightcap, he exhibited the full extent of his misfortune. "What d'ye think of *that*!" he exclaimed, staring wildly at her. Mrs. Squallop gave a faint shriek, turned her head aside, and motioned him away.

"I shall go mad—I SHALL!" cried Titmouse, tearing his green hair.

"Oh Lord!—oh Lord!" groaned Mrs. Squallop, evidently expecting him to leap upon her. Presently, however, she a little recovered her presence of mind; and Titmouse, stuttering with fury, explained to her what had taken place. As he went on, Mrs. Squallop became less and less able to control herself, and at length burst into a fit of convulsive laughter, and sat holding her hands to her fat shaking sides, and appearing likely to tumble off her chair. Titmouse was almost on the point of striking her! At length, however, the fit went off; and wiping her eyes, she expressed the greatest commiseration for him, and proposed to go down and fetch up some soft soap and flannel, and try what "a good hearty wash would do." Scarce sooner said than done—but, alas, in vain! Scrub, scrub—lather, lather, did they both; but, the instant that the soap-suds had been washed off, there was the head as green as ever!

"Oh, murder, murder! what *am* I to do, Mrs. Squallop?" groaned Titmouse, having taken another look at himself in the glass.

"Why—really I'd be off to a police-office, and have 'em all taken up, if as how I was *you*!" quoth Mrs. Squallop.

"No—See if I don't take that bottle, and make the fellow that sold it me swallow what's left—and I'll smash in his shop front besides!"

"Oh, you won't—you mustn't—not on no account! Stop at home a bit, and be quiet; it may go off with all this washing, in the course of the day. Soft soap is an uncommon strong thing for getting colors out—but—a—a—excuse me now, Mr. Titmouse"—said Mrs. Squallop, seriously—"why wasn't you satisfied with the hair God Almighty had given you? D' ye think He didn't know a deal better than you what was best for you? I'm blest if I don't think this is a judgment on you, when one comes to consider!"

"What's the use of your standing preaching to me in this way, Mrs. Squallop?" said Titmouse, first with amazement, and then with fury in his manner—"A'n't I half mad without it? Judgment or no judgment—where's the harm of my wanting black hair any more than black trousers? That a'n't *your own* hair, Mrs. Squallop—you're as gray as a badger underneath—'pon my soul! I've often remarked it—I *have*, 'pon my soul!"

"I'll tell you what, Mr. Himperance!" furiously exclaimed Mrs. Squallop, "you're a liar! And you deserve what you've got! It *is* a judgment, and I hope it will stick by you—so take *that* for your sauce, you vulgar fellow!" (snapping her fingers at him.) "Get rid of your green hair if you can! It's only carrot *tops* instead of carrot *roots*—and some likes one, some the other—ha! ha! ha!"

"I'll tell you what, Mrs. Squ"—he commenced, but she had gone, having slammed to the door behind her with all her force; and Titmouse was left alone in a half frantic state, in which he continued for nearly two hours. Once again he read over the atrocious puffs which had over-night inflated him to such a degree, and he now saw that they were all lies. This is a sample of them:

"This divine fluid (as it was enthusiastically styled to the inventor, by the lovely Duchess of Dunderwhistle) possesses the inestimable and astonishing quality of changing hair, of whatever color, to a dazzling

jet-black; at the same time imparting to it a rich glossy appearance, which wonderfully contributes to the imposing *tout-ensemble* presented by those who use it. That well-known ornament of the circle of fashion, the young and lovely Mrs. Fitzfrippersy, owned to the proprietor that to this surprising fluid it was that she was indebted for those unrivalled raven ringlets which attracted the eyes of envying and admiring crowds," and so forth.

A little farther on:—

"This exquisite effect is not *in all cases* produced instantaneously; much will of course depend (as the celebrated M. Dupuytren, of the Hôtel Dieu, at Paris, informed the inventor) on the physical idiosyncrasy of the party using it, with reference to the constituent particles of the coloring matter constituting the fluid in the capillary vessels. Often a single application suffices to change the most hopeless-looking head of red hair to as deep a black; but, not unfrequently, the hair *passes through intermediate shades and tints*—all, however, ultimately settling into a deep and permanent black."

This passage not a little revived the drooping spirits of Titmouse. Accidentally, however, an asterisk at the last word in the above sentence, directed his eye to a note at the bottom of the page, printed in such minute type as would have baffled any but the strongest sight and most determined eye to read, and which said note was the following:—

"Though cases *do*, undoubtedly, occasionally occur, in which the native inherent indestructible qualities of the hair defy all attempts at change or even modification, and resist even *this* potent remedy: of which, however, in all his experience" (the wonderful specific has been

invented for about *six months*) "the inventor has known but very few instances."

But to this exceedingly select class of unfortunate incurables, poor Titmouse, alas! entertained a dismal suspicion that *he* belonged.

"Look, sir! Look! Only look here what your cussed stuff has done to my hair!" said Titmouse, on presenting himself soon after to the gentleman who had sold him the infernal liquid; and, taking off his hat, exposed his green hair. The gentleman, however, did not appear at all surprised, or discomposed.

"Ah—yes! I see—I see. You're in the intermediate stage. It differs in different people"——

"Differs, sir! I'm going mad! I look like a green monkey—Cuss me if I don't!"

"In *me*, now," replied the gentleman, with a matter-of-fact air, "the color was a strong *yellow*. But have you read the explanations that are given in the wrapper?"

"Read 'em?" echoed Titmouse, furiously—"I should think so? Much good they do *me*! Sir, you're a humbug!—an impostor! I'm a sight to be seen for the rest of my life! Look at me, sir! Eyebrows, whiskers, and all!"

"*Rather* a singular appearance, just at present, I must own," said the gentleman, his face turning suddenly red all over with the violent effort he was making to prevent an explosion of laughter. He soon, however, recovered himself, and added coolly—"If you'll only persevere"——

"Persevere be d——d!" interrupted Titmouse, violently clapping his hat on his head, "I'll teach you to *persevere* in taking in the public! I'll have a warrant out against you in no time!"

"Oh, my dear sir, I'm accustomed to all this!" said the gentleman, coolly.

"The—devil—you—are!" gasped Titmouse, quite aghast.

"Oh, often—often, while the liquid is performing the first stage of the change; but, in a day or two afterwards, the parties generally come back smiling into my shop, with heads as black as crows!"

"No! But really—do they, sir?" interrupted Titmouse, drawing a long breath.

"Hundreds, I may say thousands, my dear sir! And one lady gave me a picture of herself, in her black hair, to make up for her abuse of me when it was in a puce color—Fact, honor!"

"But do you recollect any one's hair turning *green*, and then getting black?" inquired Titmouse, with trembling anxiety.

"Recollect any? Fifty at least. For instance, there was Lord Albert Addlehead—but why should I mention names? I know hundreds! But everything is honor and confidential *here*!"

"And did Lord what's-his-name's hair grow green, and then black; and was it at first as light as mine?"

"His hair was redder, and in consequence it became greener, and now is blacker than ever yours will be."

"Well, if I and my landlady have this morning used an ounce, we've used a quarter of a pound of soft soap in"——

"Soft soap!—soft soap!" cried out the gentleman, with an air of sudden alarm—"That explains all," (he forgot how well it had been already explained by him.) "By Heavens, sir!—soft soap! You may have ruined your hair forever!" Titmouse opened his eyes and mouth with a start of terror, it not occurring to his astute mind that the intolerable green had preceded, not followed, the use of the soft soap. "Go home, my dear sir! God bless you—go home, as you value your hair; take this small bottle of DAMASCUS CREAM, and rub it in before it's too late; and then use the remainder of the"——

"Then you don't think it's already too late?" inquired Titmouse, faintly; and, having been assured to the contrary—having asked the price of the Damascus cream, which was "*only* three-and-sixpence," (stamp included)—he purchased and paid for it with a rueful air, and took his departure. He sneaked homeward along the streets with the air of a pickpocket, fearful that every one he met was an officer who had his eye on him. He was not, in fact, very far off the mark; for many a person smiled, and stared, and turned round to look at him as he went along.

CHAPTER VI.

Titmouse slunk up-stairs to his room in a sad state of depression, and spent the next hour in rubbing into his hair the Damascus cream. He rubbed till he could hardly hold his arms up any longer, from sheer fatigue. Having risen at length to mark, from the glass, the progress he had made, he found that the only result of his persevering exertions had been to give a greasy shining appearance to the hair, which remained green as ever. With a half-uttered groan he sank down upon a chair, and fell into a sort of abstraction, which was interrupted by a sharp knock at his door. Titmouse started up, trembled, and stood for a moment or two irresolute, glancing fearfully at the glass; and then, opening the door, let in—Mr. Gammon, who started back a pace or two, as if he had been shot, on catching sight of the strange figure of Titmouse. It was useless for Gammon to try to check his laughter; so, leaning against the door-post, he yielded to the impulse, and laughed without intermission for nearly a couple of minutes. Titmouse felt desperately angry, but feared to show it; and the timid, rueful, lackadaisical air with which he regarded the dreaded Mr. Gammon, only prolonged and aggravated the agonies of that gentleman. When at length he had a little recovered himself, holding his left hand to his side, with an exhausted air, he entered the little apartment, and asked Titmouse what in the name of heaven he had been doing to himself: "*Without this*" (in the absurd slang of the lawyers) that he suspected most vehemently, all the while, what Titmouse had been about; but he wished to hear Titmouse's own account of the matter!—Titmouse, not daring to hesitate, complied—Gammon listening in an agony of suppressed laughter. He looked as little at Titmouse as he could, and was growing a trifle more sedate, when Titmouse, in a truly

lamentable tone, inquired, "What's the good, Mr. Gammon, of ten thousand a-year with such a horrid head of hair as this?" On hearing which Gammon jumped off his chair, started to the window, and laughed for one or two minutes without ceasing. This was too much for Titmouse, who presently cried aloud in a lamentable manner; and Gammon, suddenly ceasing his laughter, turned round and apologized in the most earnest manner; after which he uttered an abundance of sympathy for the sufferings which "he deplored being unable to alleviate." He even restrained himself when Titmouse again and again asked if he could not "have the law" of the man who had so imposed on him. Gammon diverted the thoughts of his suffering client, by taking from his pocket some very imposing packages of paper, tied round with red tape. From time to time, however, he almost split his nose with efforts to restrain his laughter, on catching a fresh glimpse of poor Titmouse's emerald hair. Mr. Gammon was a man of business, however; and in the midst of all this distracting excitement, contrived to get Titmouse's signature to sundry papers of no little consequence; among others, first, to a bond conditioned for the payment of £500; secondly, another for £10,000;—both to Caleb Quirk, gentleman; and lastly, an agreement (of which he gave Titmouse *an alleged* copy) by which Titmouse, in consideration of Messrs. Quirk, Gammon, and Snap using their best exertions to put him in possession of the estate, &c. &c., bound himself to conform to their wishes in everything, on pain of their instantly throwing up the whole affair, looking out for another heir at law (!) and issuing execution forthwith against Titmouse for all expenses incurred under his retainer. I said that Gammon gave his confiding client an *alleged* copy of this agreement;—it was not a real copy, for certain stipulations appeared in each, which were not intended to appear *in* the other, for reasons which were perfectly satisfactory to—Messrs. Quirk, Gammon, and

Snap. When Gammon had got to this point, he thought it the fitting opportunity for producing a second five-pound note. He did so, and put Titmouse thereby into an ecstasy, which pushed out of his head for a while all recollection of what had happened to the outside of it. He had at that moment nearly eleven pounds in hard cash. Gammon easily obtained from him an account of his little money transactions with Huckaback—of which, however, all he could tell was—that for ten shillings down, he had given a written engagement to pay fifty pounds on getting the estate. Of this Gammon made a careful memorandum, explaining to Titmouse the atrocious villany of Huckaback—and, in short, that if he (Titmouse) did not look very sharply about him, he would be robbed right and left; so that it was of the utmost consequence to him early to learn how to distinguish between false and true friends. Gammon went on to assure him that the instrument which he had given to Huckaback, was probably, in point of law, not worth a farthing, on the ground of its being both fraudulent and usurious; and intimated something, which Titmouse did not very distinctly comprehend, about the efficacy of a bill in equity for a *discovery*; which—merely to expose villany—at a very insignificant expense, (not exceeding £100,) would enable the plaintiff in equity to put the defendant in equity, (*i. e.* Huckaback,) in the way of declaring, on his solemn oath, that he had advanced the full sum of £50; and having obtained this important and satisfactory result, Titmouse would have the opportunity of disproving the statement of Huckaback—if *he could*: which of course he could not. By this process, however, a little profitable employment would have been afforded to a certain distinguished firm in Saffron Hill—and that was *something*—to Gammon.

"But, by the way, talking of money," said Titmouse, suddenly, "you can't think how surprising handsome Mr. Tag-rag has behaved to me!"

"Indeed, my dear sir!" exclaimed Gammon, with real curiosity, "what has he done?"

"Advanced to me five pounds—all of his own head!"

"Are you serious, Mr. Titmouse?" inquired Gammon.

Titmouse produced the change which he had obtained for Tag-rag's five-pound note, minus only the prices of the Cyanochaitanthropopoion, the Damascus cream, and the eyeglass. Gammon merely stroked his chin in a thoughtful manner. So occupied, indeed, was he with his reflections, that though his eye was fixed on the ludicrous figure of Titmouse, which so shortly before had occasioned him such paroxysms of laughter, he did not feel the least inclination even to a smile. Tag-rag advance Titmouse five pounds! A-hem!—Throwing as much smiling indifference into his manner as was possible, he asked Titmouse the particulars of so strange a transaction. Titmouse answered (how truly the reader can judge) that Mr. Tag-rag had, in the very handsomest way, volunteered the loan of five pounds; and moreover offered him any further sum he might require!

"What a charming change, Mr. Titmouse!" exclaimed Gammon, with a watchful eye and anxious smile.

"Most delightful, 'pon my soul!"

"Rather sudden, too!—eh?—Mr. Titmouse?"

"Why—no—no; I should say, 'pon my life, certainly not. The fact is, we've long misunderstood each other. He's had an uncommon good opinion of me all the while—people *have* tried to set him against me; but it's no use, he's found them out—he told me so! And he's not only said, but *done* the handsome thing! He's turned up, by Jove, a trump all of a sudden—though it's long looked an ugly card, to be sure!"

"Ha, ha, ha!—very!—how curious!" exclaimed Mr. Gammon, mechanically; revolving several important matters in his mind.

"I'm going, too, to dine at Satin Lodge, Mr. Tag-rag's country house, next Sunday."

"Indeed! It will be quite a change for you, Mr. Titmouse!"

"Yes, it will, by Jove; and—a—a—what's more—there's—hem!—you understand?"

"Go on, I beg, my dear Mr. Titmouse"——

"There's a lady in the case—not that she's *said* anything; but a nod's as good as a wink to a blind horse—eh? Mr. Gammon?"

"I should think so—Miss Tag-rag will have money, of course?"

"You've hit it! Lots! But I've not made up my mind."

[I'd better undeceive this poor devil at once, as to this sordid wretch Tag-rag, (thought Gammon,) otherwise the cunning old rogue may get a very mischievous hold upon him! And a *lady in the case*! The old scamp has a daughter! Whew! this will never do! The sooner I enlighten my young friend the better—though at a little risk.]

"It's very important to be able to tell who are real and who false friends, as I was saying just now, my dear Titmouse," said Gammon, seriously.

"I think so. Now look for instance, there's that fellow Huckaback. I should say *he*"——

"Pho! pho! my dear sir, a mere beetle—he's not worth thinking of, one way or the other. But can't you guess another sham friend, who has changed so suddenly?"

"Do you mean Mr. Tag-rag—eh?"

"I mention no names; but it's rather odd, that when I am speaking of hollow-hearted friends, *you* should at once name Mr. Tag-rag—ah, ha, Mr. Titmouse!"

"The proof of the pudding—handsome is that handsome does; and I've got £5 of his money, at any rate."

"Of course he took no *security* for such a trifle, between such *very* close friends?"

"Oh—why—now you mention it—But 'twas only a line—one line—a mere *mem.* betwixt two gents—and I noticed it had no stamp!"

"I guessed as much, my dear sir," interrupted Gammon, calmly, with a significant smile—"Tag-rag and Huckaback are quite on a par—a brace of worthies—ah, ha, ha! My dear Titmouse, you are too honest and confiding!"

"What keen eyes you lawyers have to be sure! Well—I never"—said Titmouse, looking very grave—for he was evidently somewhat staggered. "I—I—must say," he presently added, looking gratefully at Gammon, "I think I *do* now know of a true friend, that sent me two five-pound notes, and never asked for any security."

"My dear sir, you really pain me by alluding to such a matter!"

[Oh, Gammon, is not this too bad? What are the papers which you know are now in your pocket, signed only this very evening by Titmouse?]

"You are not a match for Tag-rag, Mr. Titmouse; because he was *made* for a tradesman—you are not. Do you think he would have parted with his £5 but for value received? Oh, Tag-rag! Tag-rag!"

"I—I really begin to think, Mr. Gammon—'pon my soul, I do think you're right."

"Think!—why—for a man of your acuteness—how could he imagine you could forget the long course of insult and tyranny which you have endured under him: that he should change all of a sudden—just now, when"——

"Ay, by Jove! just when I'm coming into my property," interrupted Titmouse, quickly.

"To be sure—to be sure! just now, I say, to make this sudden change! Bah! bah!"

"I hate Tag-rag, and always did. Now he's trying to take me in, just as he does everybody; but I've found him out; I won't lay out a penny with him!"

"Would you, do you think, ever have seen the inside of Satin Lodge, if you hadn't"——

"Why, I don't know; I really think—hem!"

"*Would* you, my dear sir?—But now a scheme occurs to me—a very amusing idea indeed! Ah, ha, ha!—Shall I tell you a way of proving to his own face how insincere and interested he is towards you? Go to dinner by all means, eat his good things, hear all that the whole set of them have to say, and just before you go, (it will require you to have your wits about you,) pretend, with a long face, that our affair is all a bottle of smoke: say that Messrs. Quirk, Gammon, and Snap have told you the day before that they had made a horrid mistake, and you were the wrong man"——

"Pon my life, I—I—really," stammered Titmouse "daren't—I couldn't—I couldn't keep it up—he'd half kill me. Besides, there will be Miss Tag-rag—it would be the death of her, I know."

"Miss Tag-rag! Gracious Heavens! What on earth can you have to do with *her*? *You*—why, if you really succeed in getting this fine property, she might make a very suitable wife for one of your grooms—ah, ha!—But for *you*—absurd!"

"Ah! I don't know—she may be a devilish fine girl, and the old fellow will have a tolerable penny to leave her—and a bird in the hand—eh? Besides, I know what she's all along thought—hem!—but that doesn't signify."

"Pho! pho! Ridiculous! Ha, ha, ha! Fancy Miss Tag-rag Mrs. Titmouse! Your eldest son—ah, ha, ha! Tag-rag Titmouse, Esq. Delightful! Your

honored father a draper in Oxford Street!" All this might be very clever, but it did not seem to *tell* upon Titmouse, whose little heart had been reached by a cunning hint of Tag-rag's concerning his daughter's flattering estimate of Titmouse's personal appearance. The reason why Gammon attacked so seriously a matter which appeared so chimerical and preposterous, was this—that according to his present plan, Titmouse was to remain for some considerable while at Tag-rag's, and might, with his utter weakness of character, be worked upon by Tag-rag and his daughter, and get inveigled into an engagement which might be productive hereafter of no little embarrassment. Gammon succeeded, however, at length, in obtaining Titmouse's promise to adopt his suggestion, and thereby discover the true nature of the feelings entertained towards him at Satin Lodge. He shook Titmouse energetically by the hand, and left him perfectly certain that if there was one person in the world worthy of his esteem, and even reverence, that person was OILY GAMMON, ESQ.

As he bent his steps towards Saffron Hill, he reflected rather anxiously on several matters which had occurred to him during the interview which I have just described. On reaching the office, he was presently closeted with Mr. Quirk, to whom, first and foremost, he exhibited and delivered the documents to which he had obtained Titmouse's signature, and which, the reader will allow me to assure him, were of a somewhat different texture from a certain legal instrument or security which I laid before him some little time ago.

"Now, Gammon," said the old gentleman, as soon as he had locked up in his safe the above-mentioned documents—"Now, Gammon, I think we may be up and at 'em; load our guns, and blaze away," and he rubbed his hands.

"Perhaps so, Mr. Quirk," replied Gammon; "but we must, for no earthly consideration, be premature in our operations! Let me, by the way, tell you

one or two little matters that have just happened to Titmouse!"—Then he told Mr. Quirk of the effects which had followed the use of the potent Cyanochaitanthropopoion, at which old Quirk almost laughed himself into fits. When, however, Gammon, with a serious air, mentioned the name of Miss Tag-rag, and his grave suspicions concerning her, Quirk bounced up out of his chair, almost startling Gammon out of *his*. If Mr. Quirk had just been told that his banker had broken, he could scarce have shown more emotion.

The fact was, that he, too, had a DAUGHTER—an only child—Miss Quirk—whom he had destined to become Mrs. Titmouse.

"A designing old villain!" he exclaimed at length, and Gammon agreed with him; but strange to say, with all his acuteness, never adverted to the real cause of Quirk's sudden and vehement exclamation. When Gammon told him of the manner in which he had opened Titmouse's eyes to the knavery of Tag-rag, and the expedient he had suggested for its complete demonstration to Titmouse, Quirk could have worshipped Gammon, and could not help rising and shaking him very energetically by the hand, much to his astonishment. After a long consultation, they determined to look out fresh lodgings for Titmouse, and remove him presently altogether from the company and influence of Tag-rag. Some time after they had parted, Mr. Quirk came with an eager air into Mr. Gammon's room, with a most important suggestion; viz. whether it would not be possible for them to get Tag-rag to *become a surety* to them, by and by, on behalf of Titmouse? Gammon was delighted!—He heartily commended Mr. Quirk's sagacity, and promised to turn it about in his thoughts very carefully. Not having been let entirely into Quirk's policy, (of which the reader has, however, just had a glimpse,) Mr. Gammon did not see the difficulties which kept Quirk awake almost all that night; viz. how to protect Titmouse from the

machinations of Tag-rag and his daughter, and yet keep Tag-rag sufficiently interested in, and intimate with, Titmouse, to entertain, by and by, the idea of becoming surety for him to them, the said Messrs. Quirk, Gammon, and Snap; and—withal—how to manage Titmouse all the while, so as to forward their objects, and also that of turning his attention towards Miss Quirk; all this formed really rather a difficult problem!—Quirk looked down on Tag-rag with honest indignation, as a mean and mercenary fellow, whose unprincipled schemes, thank Heaven! he already saw through, and from which he resolved to rescue his innocent and confiding client, who was made for better things—to wit, *Miss Quirk*.

When Titmouse rose the next morning, (Saturday,) behold—he found his hair had become of a variously shaded purple or violet color! Astonishment and apprehension by turns possessed him, as he stared into the glass, at this unlooked-for change of color; and hastily dressing himself, after swallowing a very slight breakfast, off he went once more to the scientific establishment in Bond Street, to which he had been indebted for his recent delightful experiences. The distinguished inventor and proprietor of the Cyanochaitanthropopoion was behind the counter as usual—calm and confident as ever.

"Ah! I see—as I said! as I said!" quoth he, with a sort of glee in his manner. "Isn't it?—coming round quicker than usual—Really, I'm selling more of the article than I can possibly make."

"Well,"—at length said Titmouse, as soon as he had recovered from the surprise occasioned by the sudden volubility with which he had been assailed on entering—"then is it really going on tolerable well?" taking off his hat, and looking anxiously into a glass that hung close by.

"*Tolerable* well, my dear sir! Delightful! Perfect! Couldn't be better! If you'd studied the thing, you'd know, sir, that purple is the middle color

between green and black. Indeed, black's only purple and green mixed, which explains the whole thing!" Titmouse listened with infinite satisfaction to this unanswerable and truly philosophical account of the matter.

"Remember, sir—my hair is to come like yours—eh? you recollect, sir? Honor—that was the bargain, you know!"

"I have very little doubt of it, sir—nay, I am certain of it, knowing it by experience."

[The scamp had been hired expressly for the purpose of lying thus in support of the Cyanochaitanthropopoion; his own hair being a *natural* black.]

"I'm going to a grand dinner to-morrow, sir," said Titmouse, "with some devilish great people at the west end of the town—eh? you understand? will it do by that time? Would give a trifle to get my hair a shade darker by that time—for—hem!—most lovely gal—eh? you understand the thing?—devilish anxious, and all that sort of thing, you know!"

"Yes—I do," replied the gentleman of the shop, in a confidential tone; and opening one of the glass doors behind him, took out a bottle considerably larger than the first, and handed it to Titmouse. "This," said he, "will complete the thing; it combines chemically with the purple particles, and the result is—generally arrived at in about two days' time"——

"But it will do *something* in a night's time—eh!—surely."

"I should think so! But here it is—it is called the TETARAGMENON ABRACADABRA."

"What a name!" exclaimed Titmouse, with a kind of awe. "'Pon honor, it almost takes one's breath away"——

"It will do more, sir; it will take your red hair away! By the way, only the day before yesterday, a lady of high rank, (between ourselves, Lady

Caroline Carrot,) whose red hair always seemed as if it would have set her bonnet in a blaze—ha, ha!—came here, after two days' use of the Cyanochaitanthropopoion, and one day's use of this Tetaragmenon Abracadabra—and asked me if I knew her. Upon my soul I did not, till she solemnly assured me she was really Lady Caroline!"

"*How much is it?*" eagerly inquired Titmouse, thrusting his hand into his pocket, with no little excitement.

"Only nine-and-sixpence."

"Oh, my stars, what a price! Nine-and-six"——

"Ah, but would you have believed it, sir? This extraordinary fluid cost a great German chemist his whole life to bring to perfection; and it contains expensive materials from all the four corners of the world! It's ruined the proprietor long ago!"

"That may be—but really—I've laid out a large figure with you, sir, this day or two! Couldn't you say eight sh"——

"We never abate, sir; it's not *our* style of doing business," replied the gentleman, in a manner that quite overawed poor Titmouse, who at once bought this, the third abomination; not a little depressed, however, at the heavy prices which he had paid for the three bottles, and the uncertainty he felt as to the ultimate issue. That night he was so well satisfied with the progress which he was making with his hair, (for, by candle light, it really looked much darker than could have been expected,) that he resolved—at all events for the present—to leave well alone; or at the utmost, to try the effects of the Tetaragmenon Abracadabra only upon his eyebrows and whiskers. Into them he rubbed the new specific; which, on the bottle being opened, surprised him in two respects: first, it was perfectly colorless; secondly, it had a most infernal smell. It was, however, no use hesitating: he had bought and paid for it; and the papers in which it was folded gave an

account of its success that was really irresistible and unquestionable. Away, therefore, he rubbed; and when he had finished, got into bed, in humble hope as to the result, which would be disclosed by the morning's light. But, alas! would you have believed it? When he looked at himself in the glass, about six o'clock on the ensuing morning, (at which hour he awoke,) I protest it is a fact, that his eyebrows and whiskers were as white as snow; which, combined with the purple color of the hair on his head, rendered him one of the most astounding objects (in human shape) the eye of man had ever beheld. There was the wisdom of age seated in his white eyebrows and whiskers, unspeakable youthful folly in his features, and a purple crown of WONDER on his head.

Really, it seemed as if the devil were wreaking his spite on Mr. Titmouse; nay, perhaps it was the devil himself who had served him with the bottles in Bond Street. Or was it a mere ordinary servant of the devil—some greedy, impudent, unprincipled speculator, who, desirous of acting on the approved maxim—*Fiat experimentum in corpore vili*—had pitched on Titmouse (seeing the sort of person he was) as a godsend, quite reckless what effect might be produced on his hair, so as the stuff were paid for, and its effects noted? It might possibly have been sport to the gentleman of the shop, but it was near proving death to poor Titmouse, who might possibly have resolved on throwing himself out of the window, only that he saw it was not big enough for a baby to get through. He turned aghast at the monstrous object which his little glass presented to him; and sank down upon the bed with the feeling that he was now fit for death. As before, Mrs. Squallop made her appearance with his kettle for breakfast. He was sitting at the table dressed, and with his arms folded, with a reckless air, not at all caring to conceal the new and still more frightful change which he had undergone since she saw him last. Mrs. Squallop stared at him for a second or two in

silence; then, stepping back out of the room, suddenly drew to the door, and stood outside, laughing vehemently.

"I'll kick you down-stairs!" shouted Titmouse, rushing to the door pale with fury, and pulling it open.

"Mr.—Mr.—Titmouse, you'll be the death of me—you will—you will!" gasped Mrs. Squallop, almost black in the face, and the water running out of the kettle, which she was unconsciously holding aslant. After a while, however, they got reconciled. Mrs. Squallop had fancied he had been but rubbing chalk on his eyebrows and whiskers; and seemed dismayed, indeed, on hearing the true state of the case. He implored her to send out for a small bottle of ink; but as it was Sunday morning none could be got;—she knew that no one in the court used ink, and she teased him to try a little *blacking*! He did—but it was useless!—He sat for an hour or two, in an ecstasy of grief and rage. What would he now have given never to have meddled with the hair which Heaven had thought fit to send him into the world with? Alas, with what mournful force Mrs. Squallop's words again and again recurred to him! To say that he ate breakfast would be scarcely correct. He drank a single cup of cocoa, and ate a small fragment of roll, and then put away his breakfast things on the window shelf. If he had been in the humor to go to church, how could he? He would have been turned out as an object involuntarily exciting everybody to laughter!

Yet, poor soul, in this extremity of misery, he was not utterly neglected; for he had that morning quite a little levee. First came Mr. Snap, who, having quite as keen and clear an eye for his own interest as his senior partners, had early seen how capable was an acquaintance with Titmouse of being turned to his (Snap's) great advantage. He had come, therefore, dressed very stylishly, to do a little bit of toadying on the sly, (on his own exclusive account;) and had brought with him, for the edification of

Titmouse, a copy of that day's *Sunday Flash*, which contained a long account of a bloody fight between Birmingham Bigbones and London Littlego, for £500 a-side, (sixty rounds had been fought, both men killed, and their seconds had bolted to Boulogne.) Poor Snap, however, though he had come with the best intentions, and the most anxious wish to evince profound respect for the future master of ten thousand a-year, was quite taken by storm by the very first glimpse he got of Titmouse, and could not for a long while recover himself. He had come to ask Titmouse to dine with him at a tavern in the Strand, where there was to be capital singing in the evening; and also to accompany him, on the ensuing morning, to the Old Bailey, to hear "a most interesting trial" for bigamy, in which Snap was concerned for the prisoner—a miscreant, who had been married to five living women!! Snap conceived (and very justly) that it would give Titmouse a striking idea of his (Snap's) importance, to see him so much, and apparently so familiarly concerned with well-known counsel. In his own terse and quaint way, he was explaining to Titmouse the various remedies he had against the Bond Street impostor, both by indictment and action on the case, nay, (getting a little, however, beyond his depth,) he assured the eager Titmouse, that a bill of discovery would lie in equity, to ascertain what the Tetaragmenon Abracadabra was composed of, with a view to his preferring an indictment against its owner, when his learned display was interrupted by a double knock, and—oh, mercy on us!—enter Mr. Gammon. Whether he or Snap felt more disconcerted, I cannot say; but Snap *looked* the most confused and sneaking. Each told the other a lie, in as easy, good-natured a way as he could assume, concerning the object of his visit to Titmouse. Thus they were going on, when—another knock—and, "Is this Mr. Titmouse's?" inquired a voice, which brought a little color into the face of both Gammon and Snap; for it was absolutely old Quirk, who

bustled breathless into the room, on his first visit, and seemed completely confounded by the sight of both his partners. What with this, and the amazing appearance presented by Titmouse, Mr. Quirk was so overwhelmed that he scarce spoke a syllable. Each of the three partners felt (in his own way) exquisite embarrassment. Huckaback, some time afterwards, made his appearance; but *him* Titmouse unceremoniously dismissed in a twinkling, in spite of a vehement remonstrance. Behold, however, presently another arrival—Mr. Tag-rag!! who had come to announce that his carriage (*i. e.* a queer, rickety, little one-horse chaise, with a tallow-faced boy in it, in faded livery) was waiting to convey Mr. Titmouse to Satin Lodge, and take him a long drive in the country! Each of these four worthies could have spit in the other's face: first, for *detecting*, and secondly, for *rivalling* him in his schemes upon Titmouse. A few minutes after the arrival of Tag-rag, Gammon, half-choked with disgust, and despising himself even more than he despised his fellow-visitors, slunk off, followed almost immediately by Quirk, who was dying to consult him on this new aspect of affairs which had presented itself. Snap (who ever since the arrival of Messrs. Quirk and Gammon had felt like an ape on hot irons) very shortly followed in the footsteps of his partners, having made no engagement whatever with Titmouse; and thus the enterprising and determined Tag-rag was left master of the field. He had in fact come to *do business*, and business he determined to do. As for Gammon, during the short time he had stayed, how he had endeared himself to Titmouse, by explaining, not aware that Titmouse had confessed all to Snap, the singular change in the color of his hair to have been occasioned simply by the intense mental anxiety through which he had lately passed! The touching anecdotes he told of sufferers, whose hair a single night's agony had changed to all the colors of the rainbow! Though Tag-rag outstayed all his

fellow-visitors, in the manner which has been described, he could not prevail upon Titmouse to accompany him in his "carriage," for Titmouse pleaded a pressing engagement, (*i. e.* a desperate attempt he purposed making to obtain some *ink*,) but pledged himself to make his appearance at Satin Lodge at the appointed hour (half-past three or four o'clock.) Away, therefore, drove Tag-rag, delighted that Satin Lodge would so soon contain so resplendent a visitor—indignant at the cringing, sycophantic attentions of Messrs. Quirk, Gammon, and Snap, against whom he resolved to put Titmouse on his guard, and infinitely astonished at the extraordinary change which had taken place in the color of Titmouse's hair. Partly influenced by the explanation which Gammon had given of the phenomenon, Tag-rag resigned himself to feelings of simple wonder. Titmouse was doubtless passing through stages of physical transmogrification, corresponding with the marvellous change that was taking place in his circumstances; and for all he (Tag-rag) knew, other and more extraordinary changes were going on; Titmouse might be growing at the rate of half an inch a-day, and soon stand before him a man more than six feet high! Considerations such as these invested Titmouse with intense and overpowering interest in the estimation of Tag-rag; *how* could he make enough of him at Satin Lodge that day? If ever that hardened sinner felt inclined to utter an inward prayer, it was as he drove home that day—that Heaven would array his daughter in angel hues to the eyes of Titmouse!

My friend Tittlebat made his appearance at the gate of Satin Lodge, at about a quarter to four o'clock. Good gracious, how he had dressed himself out! So as very considerably to exceed his appearance when first presented to the reader.

Miss Tag-rag had been before her glass ever since the instant of her return from chapel, up to within ten minutes' time of Titmouse's arrival. An

hour and a half at least had she bestowed on her hair, disposing it in little corkscrew and somewhat scanty curls, which quite glistened in bear's grease, hanging on each side of a pair of lean and sallow cheeks. The color which ought to have distributed itself over her cheeks, in roseate delicacy, had, two or three years before, thought fit to collect itself into the tip of her sharp little nose. Her small gray eyes beamed with the gentle and attractive expression perceptible in her father's; and her projecting under lip reminded everybody of that delicate feature in her mother. She was very short, and her figure rather skinny and angular. She wore her lilac-colored frock; her waist being pinched in to a degree which made you think of a fit of the colic when you looked at her—and gave you a dim vision of a coroner's inquest on a case of death by tight lacing! A long red sash, tied in a most elaborate bow, gave a very brilliant air to her dress generally. She had a thin gold chain round her neck, and wore long white gloves; her left hand holding her pocket-handkerchief, which she had so suffused with bergamot that it scented the whole room. Mrs. Tag-rag had made herself very splendid, in a red silk gown and staring head-dress; in fact, she seemed *on fire*. As for Mr. Tag-rag, whenever he was dressed in his Sunday clothes, he looked the model of a dissenting minister; witness his black coat, waistcoat and trousers, and primly tied white neckerchief, with no shirt-collar visible. For some quarter of an hour had this interesting trio been standing at their parlor window, in anxious expectation of Titmouse's arrival; their only amusement being the numberless dusty stage-coaches driving every five minutes close past their gate, (which was about ten yards from their house,) at once enlivening and ruralizing the scene. Oh, that poor laburnum—laden with dust, drooping with drought, and evidently in the very last stage of a decline—that was planted beside the little gate! Tag-rag spoke of cutting it down; but Mrs. and Miss Tag-rag begged its life a little longer, because none of

their neighbors had one!—and then *that* subject dropped. How was it that though both the ladies had sat under a thundering discourse from Mr. Dismal Horror that morning—they had never once since thought or spoken of him or his sermon—never even opened his exhilarating "*Groans*"? The reason was plain. They thought of Titmouse, who was bringing "airs from heaven;" while Horror brought only "blasts from——!" and *those* they had every day in the week, (his sermons on the Sunday, his "*Groans*" on the weekday.) At length Miss Tag-rag's little heart fluttered violently, for her papa told her that Titmouse was coming up the road—and so he was. Not dreaming that he could be seen, he stood beside the gate for a moment, under the melancholy laburnum; and, taking a dirty-looking silk handkerchief out of his hat, slapped it vigorously about his boots, (from which circumstance it may be inferred that he had walked,) and replaced it in his hat. Then he unbuttoned his surtout, adjusted it nicely, and disposed his chain and eyeglass just so as to let the tip only of the latter be seen peeping out of his waistcoat; twitched up his shirt-collar, plucked down his wristbands, drew the tip of a white pocket handkerchief out of the pocket in the breast of his surtout, pulled a white glove halfway on his left hand; and having thus given the finishing touches to his toilet, opened the gate, and—Tittlebat Titmouse, Esquire, the great guest of the day, for the first time in his life (swinging a little ebony cane about with careless grace) entered the domain of Mr. Tag-rag.

The little performance I have been describing, though every bit of it passing under the eyes of Tag-rag, his wife, and his daughter, had not excited a smile; their anxious feelings were too deep to be reached or stirred by light emotions. Miss Tag-rag turned very pale and trembled.

"La, pa!" said she, faintly, "how could you say he'd got white eyebrows and whiskers? Why—they're a beautiful *black*!"

Tag-rag was speechless: the fact was so—for Titmouse had fortunately succeeded in obtaining a little bottle of ink, which he had applied with great effect. As Titmouse approached the house, (Tag-rag hurrying out to open the door for him,) he saw the two ladies standing at the windows. Off went his hat, and out dropped the dusty silk handkerchief, not a little disconcerting him for the moment. Tag-rag, however, soon occupied his attention at the door with anxious civilities, shaking him by the hand, hanging up his hat and stick for him, and then introducing him to the sitting-room. The ladies received him with the most profound courtesies, which Titmouse returned with a quick embarrassed bow, and an indistinct—"Hope you're well, mem?"

If they had had presence of mind enough to observe it, the purple color of Titmouse's hair must have surprised them not a little; all *they* could see standing before them, however, was—the angelic owner of ten thousand a-year.

The only person tolerably at his ease, and he *only* tolerably, was Mr. Tag-rag; and he asked his guest——

"Wash your hands, Titmouse, before dinner?" But Titmouse said he had washed them before he had come out. [The day was hot, and he had walked five miles at a slapping pace.] In a few minutes, however, he felt a little more assured; it being impossible for him not to perceive the awful deference with which he was treated.

"Seen the *Sunday Flash*, mem?" he presently inquired, very modestly, addressing Mrs. Tag-rag.

"I—I—that is—not *to-day*," she replied, coloring.

"Vastly amusing, isn't it?" interposed Tag-rag, to prevent mischief—for he knew his wife would as soon have taken a cockatrice into her hand.

"Ye—e—s," replied Titmouse, who had not even glanced at the copy which Snap had brought him. "An uncommon good fight between Birmingham Big"——

Tag-rag saw his wife getting redder and redder. "No news stirring about things in general, is there?" said he, with a desperate attempt at a diversion.

"Not that I have heard," replied Titmouse. Soon he got a little farther, and said how cheerful the stages going past must make the house. Tag-rag agreed with him. Then there was a little pause. None of the party knew exactly which way to look, nor in what posture to sit. Faint "hems" were occasionally heard. In short, no one felt *at home*.

"Been to church, mem, this morning, mem?" timidly inquired Titmouse of Miss Tag-rag—the first time of his daring to address her.

"Yes, sir," she replied, faintly coloring, casting her eyes to the ground, and suddenly putting her hand into that of her mother—with *such* an innocent, engaging simplicity—like a timid fawn lying as close as possible to its dam! [\[13\]](#)

"We always go to *chapel*, sir," said Mrs. Tag-rag, confidently, in spite of a deadly look from her husband; "the *gospel* a'n't preached in the Church of England! We sit under Mr. Horror—a heavenly preacher! You've heard of Mr. Horror?"

"Yes, mem! Oh, yes! Capital preacher!" replied Titmouse, who of course (being a true churchman) had never in his life heard of Mr. Horror, or any other dissenter.

"When *will* dinner be ready, Mrs. T.?" inquired Tag-rag, abruptly, and with a very perceptible dash of sternness in his tone; but dinner was announced the very next moment. He took his wife's arm, and in doing so, gave it a sudden vehement pressure, which, coupled with a furious glance, explained to her the extent to which she had incurred his anger!

Titmouse's offered arm the timid Miss Tag-rag scarcely touched with the tip of her finger, as she walked beside him to dinner. He soon got tolerably composed and cheerful at dinner, (which, contrary to their usual custom—which was to have a cheerless *cold* dinner on the Sabbath—consisted of a little piece of nice roast beef, with plenty of horse-radish, Yorkshire pudding, a boiled fowl, a plum-pudding made by Mrs. Tag-rag, and custards which had been superintended by Miss Tag-rag herself,) and, to oblige his hospitable host and hostess, ate till he was near bursting. Miss Tag-rag, though really very hungry, could be prevailed upon to take only a very small slice of beef and a quarter of a custard, and drank a third of a glass of quasi sherry (*i. e.* Cape wine) after dinner. She never once spoke, except in hurried answers, to her papa and mamma; and sitting exactly opposite Titmouse, (with a big plate of greens and a boiled fowl between them,) was continually coloring whenever their eyes happened to encounter one another, on which occasions, hers would suddenly drop, as if overpowered by the brilliance of his. Titmouse began to love her very fast. After the ladies had withdrawn, you should have heard the way in which Tag-rag went on with Titmouse!—I can liken the two to nothing but an old fat spider and a little fly.

"Will you come into my parlor?
Said the spider to the fly;"

—in the old song: and it might have been well for Titmouse to have answered, in the language of the aforesaid fly:—

"No, thank you, sir, I really feel
No curiosity."

Titmouse, however, swallowed with equal facility Mr. Tag-rag's hard port and his soft blarney; but *all* fools have large swallows. When, at length, Tag-rag with exquisite skill and delicacy alluded to the painfully evident embarrassment of his "poor Tabby," and said he had "all of a sudden found out what had been so long the matter with her," [ay, even this went down,] and hemmed, and winked his eye, and drained his glass, Titmouse began to get flustered, blushed, and hoped Mr. Tag-rag would soon "join the ladies." They did so, Tag-rag stopping behind for a few moments to lock up the wine and the remains of the fruit, not wishing to subject the servant-boy to temptation by the rare opportunity afforded by fruit left on the table. Miss Tag-rag presided over the tea-things. There were muffins, and crumpets, and reeking-hot buttered toast; and hospitable Mrs. Tag-rag would hear of no denial, "things had been *got*, and must be *eat*," she thought within herself; so poor Titmouse, after a most desperate resistance, was obliged to swallow a round of toast, half a muffin, an entire crumpet, and four cups of hot tea; after which *they* felt that *he* must feel comfortable; but he, alas, in fact, experienced a very painful degree of turgidity, and a miserable conviction that he should be able neither to eat nor drink anything more for the remainder of the week!

After the tea-things had been removed, Tag-rag, directing Titmouse's attention to the piano, which was open, (with some music on it, ready to be played from,) asked him whether he liked music. Titmouse, with great eagerness, hoped Miss T. would give them some music; and she, after holding out a long and vigorous siege, at length asked her papa what it should be.

"*The Battle of Prague*," said her papa.

"*Before Jehovah's awful throne*, my dear!" hastily and anxiously interposed her mamma.

"The Battle," sternly repeated her papa.

"It's Sunday night, Mr. T.," meekly rejoined his wife.

"Which will you have, Mr. Titmouse?" inquired Tag-rag, with *The Battle of Prague* written in every feature of his face. Titmouse almost burst into a state of perspiration.

"A little of both, sir, if you please."

"Well," replied Tag-rag, slightly relaxing, "that will do. Split the difference—eh? Come, Tab, down with you. Titmouse, will you turn over the music for my little girl?"

Titmouse rose, and having sheepishly taken his station beside Miss Tag-rag, the performances commenced with *Before Jehovah's awful throne*! But mercy upon us! at what a rate she rattled over that "pious air!" If its respectable composer (whoever he may be) had been present, he must have gone into a fit; but there was no help for it—the heart of the lovely performer was in *The Battle of Prague*, to which she presently did most ample justice. So much were her feelings engaged in that sublime composition, that the bursting of one of the strings—twang! in the middle of the "*cannonading*" did not at all disturb her; and, as soon as she had finished the exquisite "finale," Titmouse was in such a tumult of

excitement, from a variety of causes, that he could have shed tears. Though he had never once turned over at the right place, Miss Tag-rag thanked him for his services with a smile of infinite sweetness. Titmouse vowed he had never heard such splendid music—begged for more: and away went Miss Tag-rag, hurried away by her excitement. Rondo after rondo, march after march, she rattled over for at least half an hour upon those hideous jingling keys; at the end of which old Tag-rag suddenly kissed her with passionate fondness. Though Mrs. Tag-rag was horrified at the impiety of all this, she kept a very anxious eye on the young couple, and interchanged with her husband, every now and then, very significant looks. Shortly after nine, spirits, wine, and hot and cold water, were brought in. At the sight of them Titmouse looked alarmed—for he knew that he must take something more, though he would have freely given five shillings to be excused—for he felt as if he could not hold another drop! But it was in vain. *Willy-nilly*, a glass of gin and water stood soon before him; he protested he could not touch it unless Miss Tag-rag would "take something"—whereupon, with a blush, she "thought she *would*" take a wine-glassful of sherry and water. This was provided her. Then Tag-rag mixed a tumbler of port-wine negus for Mrs. Tag-rag, and a great glass of mahogany-colored brandy and water for himself; and then he looked round the elegant little apartment, and felt perfectly happy. As Titmouse advanced with his gin and water, his spirits got higher and higher, and his tongue more fluent. He once or twice dropped the "Mr." when addressing Tag-rag; several times smiled, and once even winked at the embarrassed Miss Tag-rag. Mr. Tag-rag saw it, and could not control himself—for he had got to the end of his first glass of brandy and water, and (a most unusual procedure with *him*) mixed himself a second quite *as* strong as the former.

"Tab! ah, Tab! what *has* been the matter with you all these months?" said he, chucking her under the chin—and then he winked his eye at her and then at Titmouse.

"Papa!" exclaimed Miss Tag-rag, looking down, and blushing up to her very temples.

"Ah, Titmouse—Titmouse—give me your hand," said Tag-rag; "you'll forget us all when you're a great man—but we shall always remember you!"

"You're very good—very!" said Titmouse, cordially returning the pressure of Tag-rag's hand. At that instant it suddenly occurred to him to adopt the suggestion of Mr. Gammon. Tag-rag was going on very fast, indeed, about the disinterested nature of his feelings towards Titmouse; towards whom, he said, he had always felt just as he did at that moment—'twas in vain to deny it.

"I'm sure your conduct shows it, sir," commenced Titmouse, feeling a shudder like that with which a timid bather approaches the margin of the cold stream. "I could have taken my oath, sir, that when you had heard what has happened, you would have refused to let me come into your house!"——

"Ah, ha!—that's *rather* an odd idea, too!" said Tag-rag, with good-humored jocularly. "If I felt a true friendship for you as plain Titmouse, it's so likely I should have *cut* you just when—ahem! My dear sir! It was *I* that thought *you* wouldn't have come into *my* house! A likely thing, indeed!"

Titmouse was puzzled. His perceptions, never very quick or clear, were now undoubtedly somewhat obfuscated with what he had been drinking. In short, he did not understand that Tag-rag had not understood *him*; and felt rather baffled.

"What surprising ups and downs there are in life, Mr. Titmouse!" said Mrs. Tag-rag, respectfully—"they're all sent from above, you may depend

upon it, to *try* us! No one knows how they'd behave, if as how (in a manner) they were turned upside down."

"I—I hope, mem, I haven't done anything to show that *I*"——

"Oh! my dear Titmouse," anxiously interrupted Tag-rag, inwardly cursing his wife, who, finding she always went wrong in her husband's eyes whenever she spoke a word, determined for the future to stick to her negus—"The fact is, there's a Mr. Horror here that's for sending all decent people to——. He's filled my wife there with all sorts of—— nay, if she isn't bursting with cant—so never mind her! *You* done anything wrong! I *will* say this for you—you always was a pattern of modesty and propriety—your hand, my dear Titmouse!"

"Well—I'm a happy man again," resumed Titmouse, resolved now to go on with his adventure. "And when did they tell you of it, sir?"

"Oh, a few days ago—a week ago," replied Tag-rag, trying to recollect.

"Why—why—sir—a'n't you mistaken?" inquired Titmouse, with a depressed, but at the same time a surprised air. "It only happened this morning, after you left"——

"Eh?—eh?—ah, ha!—What *do* you mean, Mr. Titmouse?" interrupted Tag-rag, with a faint attempt at a smile. Mrs. Tag-rag and Miss Tag-rag also turned exceedingly startled faces towards Titmouse, who felt as if a house were going to fall down on him.

"Why, sir," he began to cry, (an attempt which was greatly aided by the maudlin condition to which drink had reduced him,) "till to-day, I thought I was heir to ten thousand a-year, and it seems I'm not; it's all a mistake of those cursed people at Saffron Hill!"

Tag-rag's face changed visibly, and showed the desperate shock he had just sustained. His inward agony was forcing out on his slanting forehead a dew of perspiration.

"What—a—capital—joke—Mr.—Titmouse—ah, ha!"—he gasped, hastily passing his handkerchief over his forehead. Titmouse, though greatly alarmed, stood to his gun pretty steadily.

"I—I wish it was a joke! It's been no joke to *me*, sir. There's another Tittlebat Titmouse, it seems, in Shoreditch, that's the right"——

"Who told you this, sir? Pho, I don't—I can't believe it," said Tag-rag, in a voice tremulous between suppressed rage and fear.

"Too true, though, 'pon my life! It *is*, so help me——!" in the most earnest and solemn manner.

"How dare you swear before ladies, sir? You're insulting them, sir!" cried Tag-rag, trembling with rage. "And in *my* presence, too, sir? You're not a gentleman!" He suddenly dropped his voice, and in a trembling and almost beseeching manner, asked Titmouse whether he was really joking or serious.

"Never more serious in my life, sir; and enough to make me so, sir!" replied Titmouse, in a lamentable manner.

"You really mean, then, to tell me it's all a mistake, then—and that you're no more than what you always were?" inquired Tag-rag, with a desperate attempt to speak calmly.

"Oh yes, sir! Yes!" cried Titmouse, mournfully; "and if you'll only be so kind as to let me serve you as I used—I'll serve you faithfully! You know it was no fault of *mine*, sir! They *would* tell me it was so!"

'Tis impossible to conceive a more disgusting expression than the repulsive features of Tag-rag wore at that moment, while he gazed in ominous and agitated silence at Titmouse. His lips quivered, and he seemed incapable of speaking.

"Oh, ma, I do feel so ill!" faintly exclaimed Miss Tag-rag, turning deadly pale. Titmouse was on the verge of dropping on his knees and confessing

the trick, greatly agitated at the effect unexpectedly produced on Miss Tag-rag; when Tag-rag's heavy hand was suddenly placed on his shoulder, and he whispered in a fierce undertone—"You're an impostor, sir!" which arrested Titmouse, and made something like a MAN of him. He was a fearful fool, but he did not want for mere *pluck*; and now it was roused. Mrs. Tag-rag exclaimed, "Oh, you *shocking* scamp!" as she passed Titmouse, with much agitation, and led her daughter out of the room.

"Then an impostor, sir, a'n't fit company for *you*, of course, sir!" said Titmouse, rising, and trembling with mingled apprehension and anger.

"Pay me my five-pound note!" almost shouted Tag-rag, furiously tightening the grasp by which he held Titmouse's collar.

"Well, sir, and I will, if you'll only take your hand off! Hollo, sir—What the de—— Leave go, sir! Hands off! Are you going to murder me? I'll pay you, and done with you, sir," stammered Titmouse:—when a faint scream was heard, plainly from Miss Tag-rag, overhead, and in hysterics. Then the seething caldron boiled over. "You *infernal* scoundrel!" exclaimed Tag-rag, almost choked with fury; and suddenly seizing Titmouse by the collar, scarce giving him time, in passing, to get hold of his hat and stick, he urged him along through the passage, down the gravel walk, threw open the gate, thrust him furiously through it, and sent after him such a blast of execration, as was almost strong enough to drive him a hundred yards down the road! Titmouse did not fully recover his breath or his senses for a long while afterwards. When he did, the first thing he experienced, was a dreadful disposition towards sickness; but gradually overcoming it, he felt an inclination to fall down on his knees in the open road, and worship the sagacious and admirable GAMMON, who had so exactly predicted what had come to pass!

And now, Mr. Titmouse, for some little time I have done with you. Away! —give room to your betters. But don't think that I have yet "rifled *all* your sweetness," or am *yet* about to "fling you like a noisome weed away."

CHAPTER VII.

While the lofty door of a house in Grosvenor Street was yet quivering under the shock of a previously announced dinner-arrival, one of the two servants standing behind a carriage which approached from the direction of Piccadilly, slipped off, and in a twinkling, with a thun-thun-thunder-under-under, thunder-runder-runder, thun-thun-thun! and a shrill thrilling *Whir-r-r* of the bell, announced the arrival of the Duke of——, the last guest. It was a large and plain carriage, but perfectly well known; and before the door of the house at which it had drawn up had been opened, displaying some four or five servants standing in the hall, in simple but elegant liveries, some half-dozen passengers had stopped to see get out of the carriage an elderly, middle-sized man, with a somewhat spare figure, dressed in plain black clothes, with iron-gray hair, and a countenance which, once seen, was not to be forgotten. That was a great man; one, the like of whom many previous centuries had not seen; whose name shot terror into the hearts of all the enemies of old England all over the world, and fond pride and admiration into the hearts of his fellow-countrymen.

"A quarter to eleven!" he said, in a quiet tone, to the servant who was holding open the carriage door—while the bystanders took off their hats; a courtesy which he acknowledged, as he slowly stepped across the pavement, by touching his hat in a mechanical sort of way with his forefinger. The house-door then closed upon him; the handful of onlookers passed away; off rolled the empty carriage, and all without was quiet as before. The house was that of Mr. Aubrey, one of the members for the borough of YATTON, in Yorkshire—a man of rapidly rising importance in Parliament. Surely his was a pleasant position—that of an independent

country gentleman, a member of one of the most ancient noble families in England, with a clear unencumbered rent-roll of ten thousand a-year, and already, in only his thirty-fourth year, the spokesman of his class, and promising to become one of the ablest debaters in the House! Parliament having been assembled, in consequence of a particular emergency, at a much earlier period than usual, the House of Commons, in which Mr. Aubrey had the evening before delivered a well-timed and powerful speech, had adjourned for the Christmas recess, the House of Lords being about to follow its example that evening: an important division, however, being first expected to take place at a late hour. Mr. Aubrey was warmly complimented on his success by several of the select and brilliant circle then assembled; and who were all in high spirits—on account of a considerable triumph just obtained by their party, and to which Mr. Aubrey was assured, by even the Duke of——, his exertions had certainly not a little contributed. While his Grace was energetically intimating to Mr. Aubrey his opinion to this effect, there were two lovely women listening to him with intense eagerness—they were the wife and sister of Mr. Aubrey. The former was a very interesting and handsome woman—with raven hair, and a complexion of dazzling fairness—of nearly eight-and-twenty; the latter was a very beautiful girl, somewhere between twenty and twenty-one. Both were dressed with the utmost simplicity and elegance. Mrs. Aubrey, most dotingly fond of her husband, and a blooming young mother of two as charming children as were to be met with in a day's walk all over both the parks, was, in character and manners, all pliancy and gentleness; while about Miss Aubrey there was a dash of spirit which gave an infinite zest to her beauty. Her blue eyes beamed with the richest expression of feeling—in short, Catherine Aubrey was, both in face and figure, a downright English beauty; and she knew—truth must be told—that such she appeared to the Great Duke,

whose cold aquiline eye she often *felt* to be settled upon her with satisfaction. The fact was that he had penetrated at a first glance beneath the mere surface of an arch, sweet, and winning manner, and detected a certain strength of character in Miss Aubrey which gave him more than usual interest in her, and spread over his iron-cast features a pleasant expression, relaxing their sternness. It might indeed be said, that before her, in his person,

"Grim-visaged war had smooth'd his wrinkled front."

'Twas a subject for a painter, that delicate and blooming girl, her auburn hair hanging in careless grace on each side of her white forehead, while her eyes,

"That might have sooth'd a tiger's rage,
Or thaw'd the cold heart of a conqueror,"

were fixed with absorbed interest on the stern and rigid countenance which she reflected had been, as it were, a thousand times darkened with the smoke of the grisly battle-field. But I must not forget that there are others in the room; and among them, standing at a little distance, is Lord De la Zouch, one of Mr. Aubrey's neighbors in Yorkshire. Apparently he is listening to a brother peer talking to him very earnestly about the expected division; but Lord De la Zouch's eye is fixed on you, lovely Kate—and how little can you imagine what is passing through his mind! It has just occurred to him that his sudden arrangement for young Delamere—his only son and heir, come up the day before from Oxford—to call for him about half-past ten, and take his place in Mrs. Aubrey's drawing-room, while Lord De la Zouch goes down to the House—may be attended with certain consequences! He is in truth speculating on the effect of your beauty

bursting suddenly on his son—who has not seen you for nearly two years! all this gives him anxiety—but not painful anxiety—for, dear Kate, he knows that your forehead would wear the ancient coronet of the De la Zouches with grace and dignity. But Delamere is as yet too young—and if he gets the image of Catherine Aubrey into his head, it will, fears his father, instantly cast into the shade and displace all the stern visages of those old geometers, poets, orators, historians, philosophers, and statesmen, who ought, in Lord De la Zouch's and his son's tutor's judgment, to occupy exclusively the head of the aforesaid Delamere for some five years to come. That youngster—happy fellow!—frank, high-spirited, and enthusiastic—and handsome to boot—was heir to an ancient title and very great estates; all that his father had considered in looking out for an alliance was—youth, health, beauty, blood—here they all were;—and *fortune* too—bah! what did it signify to his son—but at any rate 'twas not to be thought of for some years.

"Suppose," said he, aloud, though in a musing manner, "one were to say—twenty-four"——

"*Twenty-four!*" echoed his companion, with amazement; "my dear De la Zouch, what the deuce do you mean? *Eighty-four* at the very lowest!"

"Eh? what? oh—yes of course—I should say ninety—I mean—hem!—*they* will muster about twenty-four only."

"Ah—I beg your pardon!—*there* you're right, I dare say."—Here the announcement of dinner put an end to the colloquy of the two statesmen. Lord De la Zouch led down Miss Aubrey with an air of the most delicate and cordial courtesy; and felt almost disposed, in the heat of the moment, to tell her that he had arranged all in his own mind—that if *she* willed it, she had *his* hearty consent to become the future Lady De la Zouch. He was himself the eleventh who had come to the title in direct descent from father

to son; 'twas a point he was not a little nervous and anxious about—he detested collateral succession—and he made himself infinitely agreeable to Miss Aubrey as he sat beside her at dinner! The Duke of—— sat on the right hand side of Mrs. Aubrey, seemingly in high spirits, and she appeared proud enough of her supporter. It was a delightful dinner-party, elegant without ostentation, and select without pretence of exclusiveness. All were cheerful and animated, not merely on account of the over-night's parliamentary victory, which I have already alluded to, but also in contemplation of the coming Christmas; how, and where, and with whom each was to spend that "righte merrie season," being the chief topic of conversation. As there was nothing peculiar in the dinner, and as I have no turn for describing such matters in detail—the clatter of plate, the jingling of silver, the sparkling of wines, and so forth—I shall request the reader to imagine himself led by me quietly out of the dining-room into the library—thus escaping from all the bustle and hubbub attendant upon such an entertainment as is going on in front of the house. We shall be alone in the library—here it is; we enter it, and shut the door. 'Tis a spacious room, all the sides covered with books, of which Mr. Aubrey is a great collector—and the clear red fire (which we must presently replenish, or it will go out) is shedding a subdued ruddy light on all the objects in the room, very favorable for our purpose. The ample table is covered with books and papers; and there is an antique-looking arm-chair drawn opposite to the fire, in which Mr. Aubrey has been indulging in a long revery till the moment of quitting it to go and dress for dinner. This chair I shall sit in myself; you may draw out from the recess for yourself one of two little sloping easy-chairs, which have been placed there by Mrs. and Miss Aubrey for their own sole use, considering that they are excellent judges of the period at which Mr. Aubrey has been long enough alone, and at which they should

come in and gossip with him. We may as well draw the dusky green curtains across the window, through which the moon shines at present rather too brightly.—So now, after coaxing up the fire, I will proceed to tell you a little bit of pleasant family history.

The Aubreys are a Yorkshire family—the younger branch of the ancient and noble family of the Dreddlingtons. Their residence, YATTON, is in the north-eastern part of the county, not above fifteen or twenty miles from the sea. The hall is one of those old structures, the sight of which throws you back a couple of centuries in our English history. It stands in a park, crowded with trees, many of them of great age and size, and under which two or three hundred head of deer perform their capricious and graceful gambols. In approaching from London, you strike off from the great north road into a broad by-way; after going down which for about a mile, you come to a straggling little village called Yatton, at the farther extremity of which stands a little aged gray church, with a tall thin spire; an immense yew-tree, with a kind of friendly gloom, overshadowing, in the little churchyard, nearly half the graves. Rather in the rear of the church is the vicarage-house, snug and sheltered by a line of fir-trees. After walking on about eighty yards, you come to high park-gates, and see a lodge just within, on the left hand side, sheltered by an elm-tree. Having passed through these gates, you wind your way for about two-thirds of a mile along a gravel walk, among the thickening trees, till you come to a ponderous old crumbling looking red brick gateway of the time of Henry VII., with one or two deeply set stone windows in the turrets, and mouldering stone-capped battlements peeping through high-climbing ivy. There is an old escutcheon immediately over the point of the arch; and as you pass underneath, if you look up, you can plainly see the groove of the old portcullis still remaining. Having passed under this castellated remnant, you enter a kind of court

formed by a high wall completely covered with ivy, running along in a line from the right hand turret of the gateway till it joins the house. Along its course are a number of yew-trees. In the centre of the open space is a quaintly disposed grass-plot, dotted about with stunted box, and in the centre of that stands a weather-beaten stone sundial.

The house itself is a large irregular pile of dull red brickwork, with great stacks of chimneys in the rear; the body of the building has evidently been erected at different times. Some part is evidently in the style of Queen Elizabeth's reign, another in that of Queen Anne; and it is plain that on the site of the present structure has formerly stood a castle. There are, indeed, traces of the old moat still visible round the rear of the house. One of the ancient towers, with small deep stone windows, still remains, giving its venerable support to the right hand extremity of the building, as you stand with your face to the door. The long frontage of the house consists of two huge masses of dusky-red brickwork, (you can hardly call them *wings*,) connected together by a lower building in the centre, which contains the hall. There are three or four rows of long thin deep windows, with heavy-looking wooden sashes. The high-pitched roof is of red tiles, and has deep projecting eaves, forming, in fact, a bold wooden cornice running along the whole length of the building, which is some two or three stories high. At the left extremity stands a clump of ancient cedars of Lebanon, feathering in evergreen beauty down to the ground. The hall is large and lofty; the floor is of polished oak, almost the whole of which is covered with thick matting; it is wainscoted all round with black oak; some seven or eight full-length pictures, evidently of considerable antiquity, being let into the panels. Quaint figures these are to be sure; and if they resembled the ancestors of the Aubrey family, those ancestors must have been singular and startling persons! The faces are quite white and staring—all as if in wonder; and they

have such long thin legs! some of them ending in sharp-pointed shoes. On each side of the ample fireplace stands a figure in full armor; and there are also ranged along the wall old helmets, cuirasses, swords, lances, battle-axes, and cross-bows, the very idea of wearing, wielding, and handling which, makes your arms ache, while you exclaim, "they *must* have been giants in those days!" On one side of this hall, a door opens into the dining-room, beyond which is the library; on the other side a door leads you into a noble room, now called the drawing-room, where stands a very fine organ. Out of both the dining-room and drawing-room you pass up a staircase contained in an old square tower; two sides of each of them, opening on the quadrangle, lead into a gallery running round it, and into which all the bedrooms open.

But I need not go into further detail. Altogether it is truly a fine old mansion. Its only constant occupant is Mrs. Aubrey, the mother of Mr. Aubrey, in whose library we are now seated. She is a widow, having survived her husband, who twice was one of the county members, about fifteen years. Mr. Aubrey is her first-born child, Miss Aubrey her last; four intervening children rest prematurely in the grave—and the grief and suffering consequent upon all these bereavements have sadly shaken her constitution, and made her, both in actual health, and in appearance, at least ten years older than she really is—for she has, in point of fact, not long since entered her sixtieth year. What a blessed life she leads at Yatton! Her serene and cheerful temper makes every one happy about her; and her charity is unbounded, but dispensed with a just discrimination. One way or another, almost a fourth of the village are direct pensioners upon her bounty. You have only to mention the name of Madam Aubrey, the lady of Yatton, to witness involuntary homage paid to her virtues. Her word is law; and well indeed it may be. While Mr. Aubrey, her husband, was, to the last,

somewhat stern in his temper and reserved in his habits, bearing withal a spotless and lofty character, *she* was always what she still is, meek, gentle, accessible, charitable, and pious. On his death she withdrew from the world, and has ever since resided at Yatton—never having quitted it for a single day. There are in the vicinity one or two stately families, with ancient name, sounding title, and great possessions; but for ten miles round Yatton, old Madam Aubrey, the squire's mother, is the name that is enshrined in people's kindest and most grateful feelings, and receives their readiest homage. 'Tis perhaps a very small matter to mention, but there is at the hall an old white mare, Peggy, that for these twenty years, in all weathers, hath been the bearer of Madam's bounty. Thousands of times hath she carried Jacob Jones (now a pensioned servant, whose hair is as white as Peggy's) all over the estate, and also oft beyond it, with comfortable matters for the sick and poor. Most commonly there are a couple of stone bottles filled with cowslip, currant, ginger, or elderberry wine, slung before him over the well-worn saddle—to the carrying of which Peggy has got so accustomed, that she does not go comfortably without them. She has so fallen into the habits of old Jones, who is an inveterate gossip, (Madam having helped to make him such by the numerous inquiries she makes of him every morning as to every one in the village and on the estate, and which inquiries he *must* have the means of answering,) that, slowly as she jogs along, if ever she meets or is overtaken by any one, she stops of her own accord, as if to hear what they and her rider have to say to one another. She is a great favorite with all, and gets a mouthful of hay or grass at every place she stops at, either from the children or the old people. When poor Peggy comes to die, (and she is getting feeble, now,) she will be missed by all the folk round Yatton! Madam Aubrey, growing, I am sorry to say, less able to exert herself, does not go about as much as she used, betaking herself, therefore, oftener and

oftener, to the old family coach; and when she is going to drive about the neighborhood, you may almost always see it stop at the vicarage for old Dr. Tatham, who generally accompanies her. On these occasions she always has in the carriage a black velvet bag containing Testaments and Prayer-books, which are principally distributed as rewards to those whom the parson can recommend as deserving of them. For these five-and-twenty years she has never missed giving a copy of each to every child in the village and on the estate, on its being confirmed; and the old lady looks round very keenly every Sunday, from her pew, to see that these Bibles and Prayer-books are reverently used. I could go on for an hour and longer, telling you these and other such matters of this exemplary lady; but we shall by and by have some opportunities of seeing and knowing more of her personally. Her features are delicate, and have been very handsome; and in manner she is very calm, and quiet, and dignified. She looks all that you would expect from what I have told you. The briskness of youth, the sedate firmness of middle-age, have years since given place, as you will see with some pain, to the feebleness produced by ill health and mental suffering—for she mourned grievously after those whom she had lost! Oh! how she dotes upon her surviving son and daughter! And are they not worthy of such a mother?

Mr. Aubrey is in his thirty-fourth year; and inherits the mental qualities of both his parents—the demeanor and person of his father. He has a reserve which is not cynical, but only diffident; yet it gives him, at least at first sight, and till you have become familiar with his features, which are of a cast at once refined and aristocratic, yet full of goodness—an air of hauteur, which is very—very far from his real nature. He has in truth the soft heart and benignant temper of his mother, joined with the masculine firmness of character which belonged to his father; which, however, is in danger of being seriously impaired by *inaction*. Sensitive he is, perhaps to a fault.

There is a tone of melancholy in his composition, which has probably increased upon him from his severe studies, ever since his youth. He is a man of superior intellect; a capital scholar; took the highest honor at Oxford: and has since justified the expectations which were then entertained of him. He has made several really valuable contributions to historic literature—indeed, I think he is even now engaged upon some researches calculated to throw much light upon the obscure origin of several of our political institutions. He has entered upon *politics* with uncommon—perhaps with an excessive—ardor. I think he is likely to make an eminent figure in Parliament; for he is a man of very clear head, very patient, of business-like habits, ready in debate, and, moreover, has at once an impressive and engaging delivery as a public speaker. He is generous and charitable as his admirable mother, and careless, even to a fault, of his pecuniary interests. He is a man of perfect simplicity and purity of character. Above all, his virtues are the virtues which have been sublimed by Christianity—as it were, the cold embers of morality warmed into religion. He stands happily equidistant from infidelity and fanaticism. He has looked for light from above, and has heard a voice saying, "*This* is the way, walk thou in it." His piety is the real source of that happy consistent dignity, and content, and firmness, which have earned him the respect of all who know him, and will bear him through whatever may befall him. He who standeth upon this rock cannot be moved, perhaps not even touched, by the surges of worldly reverses—of difficulty and distress! In manner Mr. Aubrey is calm and gentlemanlike; in person he is rather above the middle height, and of slight make. From the way in which his clothes hang about him, a certain sharpness at his shoulders catching the eye of an observer—you would feel an anxiety about his health, which would be increased by hearing of the mortality in his family; and your thoughts are perhaps

pointed in the same direction, by a glance at his long, thin, delicate, white hands. His countenance has a serene manliness about it when in repose, and great acuteness and vivacity when animated. His hair, not very full, is black as jet, his forehead ample and marked; and his eyes are the exponents of perfect sincerity and acuteness.

Mr. Aubrey has been married about six years; 'twas a case of love at first sight. Chance (so to speak) threw him in the way of Agnes St. Clair, within a few weeks after she had been bereaved of her only parent, Colonel St. Clair, a man of old but impoverished family, who fell in the Peninsular war. Had he lived only a month or two longer, he would have succeeded to a considerable estate; as it was, he left his only child comparatively penniless; but Heaven had endowed her with personal beauty, with a lovely disposition, and superior understanding. It was not till after a long and anxious wooing, backed by the cordial entreaties of Mrs. Aubrey, that Miss St. Clair consented to become the wife of a man, who, to this hour, loves her with all the passionate ardor with which she had first inspired him. And richly she deserves his love! She does, indeed, dote upon him; she studies, or rather, perhaps, anticipates his every wish; in short, had the whole sex been searched for one calculated to make happy the morbidly fastidious Aubrey, the choice must surely have fallen on Miss St. Clair; a woman whose temper, whose tastes, and whose manners were at once in delicate and harmonizing unison and contrast with his own. She has hitherto brought him but two children—and those very beautiful children, too—a boy between four and five years old, and a girl about two years old. If I were to hint my own impressions, I should say there was a probability—— be that, however, as it may, 't is an affair we have nothing to do with at present.

Of Catherine Aubrey you had a momentary moonlight glimpse at a former period of this history;[\[14\]](#) and you have seen her this evening under

other, and perhaps not less interesting circumstances. Now, where have you beheld a more exquisite specimen of budding womanhood? but I feel that I shall get extravagant if I begin to dwell upon her charms. You have seen her—judge for yourself; but you do not *know* her as I do; and I shall tell you that her personal beauty is but a faint emblem of the beauties of her mind and character. She is Aubrey's youngest—now his only sister; and he cherishes her with the tenderest and fondest affection. Neither he, nor his mother—with whom she spends her time alternately—can bear to part with her for ever so short an interval. She is the gay, romping playmate of the little Aubreys; the demure secretary and treasurer of her mother. I say *demure*, for there is a sly humor and archness in Kate's composition, which flickers about even her gravest moods. She is calculated equally for the seclusion of Yatton and the splendid atmosphere of Almack's; but for the latter she seems at present to have little inclination. Kate is a girl of decided character, of strong sense, of high principle; all of which are irradiated, not overborne, by her sparkling vivacity of temperament. She has real talent; and her mind has been trained, and her tastes directed, with affectionate skill and vigilance by her gifted brother. She has many accomplishments; but the only one I shall choose here to name is—music. *She* was one to sing and play before a man of the most fastidious taste and genius! I defy any man to hear the rich tones of Miss Aubrey's voice without feeling his heart moved. Music is with her a matter not of *art* but of *feeling*—of passionate feeling; but hark!—hush!—surely—yes, that is Miss Aubrey's voice—yes, that is her clear and brilliant touch; the ladies have ascended to the drawing-room, and we must presently follow them. How time has passed! I had a great deal more to tell you about the family, but we must take some other opportunity.

Yes, it is Miss Aubrey, playing on the new and superb piano given by her brother last week to Mrs. Aubrey. Do you see with what a careless grace and ease she is giving a very sweet but difficult composition of Haydn? The lady who is standing by her to turn over her music, is the celebrated Countess of Lydsdale. She is still young and beautiful; but beside Miss Aubrey she presents a somewhat painful contrast! 'T is all the difference between an artificial and a natural flower. Poor Lady Lydsdale! you are not happy with all your fashion and splendor; the glitter of your diamonds cannot compensate for the loss of the sparkling spirits of a younger day; they pale their ineffectual fires beside the fresh and joyous spirit of Catherine Aubrey! You sigh——

"Now, I'll sing you quite a new thing," said Miss Aubrey, starting up, and turning over her portfolio till she came to a sheet of paper, on which were some verses in her own handwriting, and with which she sat down again before the piano: "The words were written by my brother, and I have found an old air that exactly suits them!" Here her fingers, wandering lightly and softly over the keys, gave forth a beautiful symphony in the minor; after which, with a rich and soft voice, she sang the following:—

PEACE.

I.

Where, O where
Hath gentle PEACE found rest?
Builds she in bower of lady fair?—
But LOVE—he hath possession there;
Not long is *she* the guest.

II.

Sits she crown'd
Beneath a pictured dome?
But there AMBITION keeps his ground,
And Fear and Envy skulk around;
This cannot be her home.

III.

Will she hide
In scholar's pensive cell?
But *he* already hath his bride:
Him MELANCHOLY sits beside—
With her she may not dwell.

IV.

Now and then,
Peace, wandering, lays her head
On regal couch, in captive's den—
But nowhere finds she rest with men,
Or only with the dead!

To these words, trembling on the beautiful lips of Miss Aubrey, was listening an unperceived auditor, with eyes devouring her every feature, and ears absorbing every tone of her thrilling voice. It was young Delamere, who had, only a moment or two before Miss Aubrey had commenced singing the above lines, alighted from his father's carriage, which was then waiting at the door to carry off Lord De la Zouch to the House of Lords. Arrested by the rich voice of the singer, he stopped short before he had entered the drawing-room in which she sat, and stepping to a corner where he was hid from view, though he could distinctly see Miss Aubrey, there he

remained as if rooted to the spot. He, too, had a soul for music; and the exquisite manner in which Miss Aubrey gave the last verse, called up before his excited fancy the vivid image of a dove fluttering with agitated uncertainty over the sea of human life; even like the dove over the waters enveloping the earth in olden time. The mournful minor into which she threw the last two lines, excited a heart susceptible of the liveliest emotions to a degree which it required some effort to control, and almost a tear to relieve. When Miss Aubrey had quitted the piano, Mrs. Aubrey followed, and gave a very delicate sonata from Haydn. Then sat down Lady Lydsdale, and dashed off, in an exceedingly brilliant style, a *scena* from the new opera, which quickly reduced the excited feelings of Delamere to a pitch admitting of his presenting himself! While this lowering process was going on, Delamere took down a small volume from a tasteful little cabinet of books immediately behind him. It was Spenser's *Faery Queen*. He found many pencil-marks, evidently made by a light female hand; and turning to the fly-leaf, beheld the name of "*Catherine Aubrey*." His heart fluttered; he turned towards the piano, and beheld the graceful figure of Miss Aubrey standing beside Lady Lydsdale, in an attitude of delighted earnestness—for her ladyship was undoubtedly a very brilliant performer—totally unconscious of the admiring eye which was fixed upon her. After gazing at her for some moments, he gently pressed the autograph to his lips; and solemnly vowed within himself, in the most deliberate manner possible, that if he could not marry Kate Aubrey, he would never marry anybody; he would, moreover, quit England forever; and deposit a broken heart in a foreign grave—and so forth. Thus calmly resolved—or rather to such a resolution did his thoughts tend—that sedate person, the Honorable Geoffrey Lovel Delamere. He was a high-spirited, frank-hearted fellow; and, like a good-natured fool, whom bitter knowledge of the world has not

cooled down into contempt for a very considerable portion of it, trusted and loved almost every one whom he saw. At that moment there was only one person in the whole world that he hated, viz. the miserable individual—if any such there were—who might have happened to forestall him in the affections of Miss Aubrey. The bare idea made his breath come and go quickly, and his cheek flush. Why, he felt that he had a sort of *right* to Miss Aubrey's heart; for had they not been born, and had they not lived almost all their lives, within a few miles of each other? Had they not often played together?—were not their family estates almost contiguous?—Delamere advanced into the room, assuming as unconcerned an air as he could; but he felt not a little tried when Miss Aubrey, on seeing him, gayly and frankly extended her hand to him, supposing him to have only the moment before entered the house. Poor Delamere's hand slightly quivered as he felt it clasping the soft liliated fingers of her whom he had thus resolved to make his wife: what would he not have given to have carried them to his lips! Now, if I were to say that in the course of that evening, Miss Aubrey did not form a kind—of a sort—of a faint—notion of the possible state of matters with young Delamere, I should not be treating the reader with that eminent degree of candor for which I think he, or she, is at present disposed to give me credit. But Kate was deeply skilled in human nature, and promptly settled the matter by one very just reflection, viz. that Delamere was, in contemplation of law, a mere *infant*—*i. e.* he wanted yet several weeks of twenty-one! and, therefore, that it was not likely that, &c. &c. &c. And, besides—pooh!—pooh!—'t is a mere *boy*, at College—how ridiculous!—So she gave herself no trouble about the affair; exhibited no symptoms of caution or coyness, but conducted herself just as if he had not been present.

He was a handsome young fellow, too!—

During the evening, Mr. Delamere took an opportunity of asking Miss Aubrey who wrote the verses to which he pointed, as they lay on the piano. The handwriting, she said, was hers, but the verses were composed by her brother. He asked for the copy, with a slight trepidation. She readily gave it to him—he receiving it with (as he supposed) a mighty unconcerned air. He read it over that night, before getting into bed, at least six times; and it was the very first thing he looked at on getting out of bed in the morning. Now Miss Aubrey certainly wrote an elegant hand—but as for *character*, of course it had none. He could scarcely have distinguished it from the writing of any of his cousins or friends;—How should he? All women are taught the same hard, angular, uniform style—but good, bad, or indifferent, this was *Kate Aubrey's* handwriting—and her pretty hand had rested on the paper while writing—that was enough. He resolved to turn the verses into every kind of Greek and Latin metre he knew of—

In short, that here was a "course of true love" *opened*, seems pretty evident: but whether it will "run smooth" is another matter.

Their guests having at length departed, Mr. Aubrey, his wife, and sister, soon afterwards rose to retire. He went, very sleepy, straight to his dressing-room; they to the nursery—(a constant and laudable custom with them)—to see how the children were going on, as far as could be learned from the drowsy attendants of the aforesaid children. Little Aubrey would have reminded you of one of the exquisite sketches of children's heads by Reynolds or Lawrence, as he lay breathing imperceptibly, with his rich flowing hair spread upon the pillow, in which his face was partly hid, and his arms stretched out. Mrs. Aubrey put her finger into one of his hands, which was half open, and which closed as it were instinctively upon it, with a gentle pressure. "Look—only look—Kate!" softly whispered Mrs. Aubrey. Miss Aubrey leaned forward and kissed his little cheek with an

ardor which almost awoke him. After a glance at a tiny head partly visible above the clothes, in an adjoining bed, and looking like a rosebud almost entirely hid among the leaves, they withdrew.

"The little loves!—how one's heart thrills with looking at them!" said Miss Aubrey as they descended. "Kate!" whispered Mrs. Aubrey, with an arch smile, as they stood at their respective chamber doors, which adjoined, "Mr. Delamere is improved—is not he?—Ah, Kate! Kate!—I understand!"

"Agnes, how can you"—hastily answered Miss Aubrey, with cheeks suddenly crimsoned. "I never heard such nonsense"——

"Night, night, Kate! think over it!" said Mrs. Aubrey, and kissing her beautiful sister-in-law, the next moment the blooming wife had entered her bedroom. Miss Aubrey slipped into her dressing-room, where Harriet, her maid, was sitting asleep before the fire. Her lovely mistress did not for a few minutes awake her; but placing her candlestick on the toilet table, stood in a musing attitude.

"It's so perfectly *ridiculous*" at length she said aloud; and up started her maid. Within half an hour Miss Aubrey was in bed, but by no means asleep!

The next morning, about eleven o'clock, Mr. Aubrey was seated in the library, in momentary expectation of his letters; and a few moments before the postman's *rat-tat* was heard, Mrs. and Miss Aubrey made their appearance, as was their wont, in expectation of anything which might have upon the cover, in addition to the address——

"CHARLES AUBREY, ESQ., M. P.," &c. &c. &c.,

the words, "Mrs. Aubrey," or "Miss Aubrey," in the corner. In addition to this, 'twas not an unpleasant thing to skim over the contents of *his* letters! as one by one he opened them, and laid them aside; for both these fair creatures were daughters of Eve, and inherited a *little* of her curiosity. Mr.

Aubrey was always somewhat nervous and fidgety on such occasions, and wished them gone; but they only laughed at him, so he was fain to put up with them. On this morning there were more than Mr. Aubrey's usual number of letters; and in casting her eye over them, Mrs. Aubrey suddenly took up one that challenged attention; it bore a black seal, had a deep black bordering, and bore the frank of Lord Alkmond, at whose house in Shropshire they had for months been engaged to spend the ensuing Christmas, and were intending to set off on their visit the very next day. The ominous missive was soon torn open; it was from Lord Alkmond himself, who in a few hurried lines announced the sudden death of his brother; so that there was an end of their visit to the Priory.

"Well!" exclaimed Mr. Aubrey, calmly, rising after a pause, and standing with his back to the fire, in a musing posture.

"Has he left any family, Charles?" inquired Mrs. Aubrey, with a sigh, her eyes still fixed on the letter.

"I—I really don't know—poor fellow! We lose a vote for Fellington—we shall, to a certainty," he added, with an air of chagrin visibly stealing over his features.

"How politics harden the heart, Charles! Just at *this* moment to be"—— quoth Mrs. Aubrey.

"It is too bad, Agnes, I own—but you see," said Mr. Aubrey, affectionately; suddenly, however, he broke off—"stay, I don't know either, for there's the Grassingham interest come into the field since the last"——

"Charles, I do really almost think," exclaimed Mrs. Aubrey with sudden emotion, stepping to his side, and throwing her arms round him affectionately, "that if *I* were to die, I should be forgotten in a fortnight if the House were sitting"——

"How *can* you say such things, my love?" inquired Mr. Aubrey, kissing her forehead.

"When Agnes was born, you know," she murmured inarticulately. Her husband folded her tenderly in his arms in silence. On the occasion she alluded to, he had nearly lost her; and they both had reason to expect that another similar season of peril was not *very* distant.

"Now, Charles, you *can't* escape," said Miss Aubrey, presently, assuming a cheerful tone; "now for dear old Yatton!"——

"Yes, Yatton! Positively you must!" added Mrs. Aubrey, smiling through her tears.

"What! Go to Yatton?" said Mr. Aubrey, shaking his head and smiling. "Nonsense! I—i—t ca—n't—be—done!—Why, we must set off to-morrow! They've had no warning!"

"What warning does mamma require, Charles?" inquired his sister, eagerly. "Isn't the dear old place always in apple-pie order?"

"How you love the 'dear old place,' Kate!" exclaimed Mr. Aubrey, in such an affectionate tone as brought his sister in an instant to his side, to urge on her suit; and there stood the lord of Yatton embraced by these two beautiful women, his own heart (*inter nos*) seconding every word they uttered.

"How my mother would stare!" said he at length, irresolutely, looking from one to the other, and smiling at their eagerness.

"What a bustle everything will be in!" exclaimed Kate. "I fancy I'm there already! The great blazing fires—the holly and mistletoe. We must all go, Charles—children and all!"

"Why, really, I hardly know"—— said Mr. Aubrey, hesitatingly.

"Oh! *I've* settled it all," quoth Kate, seeing that she had gained her point, and resolved to press her advantage, "and, what's more, we've no time to lose; this is Tuesday,—Christmas-day is Saturday—we must of course stop

a night on the way; but hadn't we better have Griffiths in, to arrange all?" Mr. Aubrey laughed—and—rang the bell.

"Request Mr. Griffiths to come to me," said he to the servant who answered the summons.

Within a very few minutes that respectable functionary had made his appearance and received his instructions. The march to Shropshire was countermanded—and hey! for Yatton!—for which they were to start the next day about noon. Mr. Griffiths' first step was to pack off Sam, Mr. Aubrey's groom, by the Tally-ho, the first coach to York, starting at two o'clock that very day, with letters announcing the immediate arrival of the family. These orders were received by Sam, (who had been born and bred at Yatton,) while he was bestowing, with vehement sibilation, his customary civilities on a favorite mare of his master's. Down dropped his currycomb; he jumped into the air; snapped his fingers; then he threw his arms round Jenny, and tickled her under the chin. "Dang it," said he, as he threw her another feed of oats, "I wish thee were going wi' me—dang'd if I don't!" Then he hastily made himself "a *bit* tidy;" presented himself very respectfully before Mr. Griffiths, to receive the wherewithal to pay his fare; and having obtained it, off he scampered to the Bull and Mouth, as if it had been a neck-and-neck race between him and all London, which should get down to Yorkshire first. A little after one o'clock, his packet of letters was delivered to him; and within another hour Sam was to be seen (quite comfortable, with a draught of spiced ale given him by the cook, to make his hasty dinner "sit well") on the top of the Tally-ho, rattling rapidly along the great north road.

"Come, Kate," said Mrs. Aubrey, entering Miss Aubrey's room, where she was giving directions to her maid, "I've ordered the carriage to be at the door as soon as it can be got ready; we must go off to Coutts'—see!" She

held in her hand two slips of paper, one of which she gave Miss Aubrey. 'Twas a check for one hundred pounds—her brother's usual Christmas-box—"and then we've a quantity of little matters to buy this afternoon. Come, Kate, quick! quick!"

Now, poor Kate had spent nearly all her money, which circumstance, connected with another that I shall shortly mention, had given her not a little concern. At her earnest request, her brother had, about a year before, built her a nice little school, capable of containing some eighteen or twenty girls, on a slip of land between the vicarage and the park wall of Yatton, and old Mrs. Aubrey and her daughter found a resident schoolmistress, and, in fact, supported the little establishment, which, at the time I am speaking of, contained some seventeen or eighteen of the villagers' younger children. Miss Aubrey took a prodigious interest in this little school, scarce a day passing without her visiting it when she was at Yatton; and what Kate wanted, was the luxury of giving a Christmas present to both mistress and scholars. That, however, she would have had some difficulty in effecting but for this her brother's timely present, which had quite set her heart at ease. On their return, the carriage was crowded with the things they had been purchasing—articles of clothing for the feebler old villagers; work-boxes, samplers, books, testaments, prayer-books, &c. &c. &c., for the school; the sight of which, I can assure the reader, made Kate far happier than if they had been the costliest articles of dress and jewelry.

The next day was a very pleasant one for travelling—"frosty, but kindly." About one o'clock there might have been seen standing before the door the roomy yellow family carriage, with four post-horses. All was in travelling trim. In the rumble sat Mr. Aubrey's valet and Mrs. Aubrey's maid—Miss Aubrey's, and one of the nursery-maids, going down by the coach which had carried Sam—the Tally-ho. The coach-box was piled up with that sort

of luggage which, by its lightness and bulk, denotes lady-travelling: inside were Mrs. and Miss Aubrey muffled in furs, shawls, and pelisses; a nursery-maid, with little Master and Miss Aubrey, equally well protected from the cold; and the vacant seat awaited Mr. Aubrey, who at length made his appearance, having been engaged till the latest moment in giving and repeating specific instructions concerning the forwarding of his letters and papers. As soon as he had taken his place, and all had been snugly disposed within, the steps were doubled up, the door was closed, the windows were drawn up—crack! crack! went the whips of the two postilions, and away rolled the carriage over the dry hard pavement.

"Now that's what I calls doing it *uncommon* comfortable," said a pot-boy to one of the footmen at an adjoining house, where he was delivering the porter for the servants' dinner; "how *werry* nice and snug them two looks in the rumble behind!"

"*We* goes to-morrow," carelessly replied the gentleman whom he had addressed.

"It's a fine thing to be gentlefolk," said the boy, taking up his pot-board.

"Pretty well—but one tires of it in time!" drawled the footman, twitching up his shirt-collar.

On drawing up to the posting-house, which was within about forty miles of Yatton, the Aubreys found a carriage and four just ready to start, after changing horses; and whose should this prove to be, but Lord De la Zouch's, containing himself, his lady, and his son, Mr. Delamere! His lordship and his son both alighted on accidentally discovering who had overtaken them; and coming up to Mr. Aubrey's carriage windows, exchanged surprised and cordial greetings with its occupants—whom Lord De la Zouch imagined to have been by this time on their way to Shropshire. Mr. Delamere manifested a surprising eagerness about the welfare of little

Agnes Aubrey, who happened to be lying fast asleep in Miss Aubrey's lap; but the evening was fast advancing, and both the travelling parties had yet before them a considerable portion of their journey. After a hasty promise on the part of each to dine with the other, before returning to town for the season—a promise which *Mr. Delamere* at all events resolved should not be lost sight of—they parted. 'Twas eight o'clock before Mr. Aubrey's eye, which had been for some time on the look-out, caught sight of Yatton woods; and when it did, his heart yearned towards them. The moon shone brightly and cheerily, and it was pleasant to listen to the quickening clattering tramp of the horses upon the dry hard highway, as the travellers rapidly neared a spot endeared to them by every early and tender association. When they had got within half a mile of the village, they overtook the worthy vicar, who had mounted his nag, and had been out on the road to meet the expected comers, for an hour before. Mr. Aubrey roused Mrs. Aubrey from her nap, to point out Dr. Tatham, who by that time was cantering along beside the open window. 'Twas refreshing to see the cheerful old man—who looked as ruddy and hearty as ever.

"God bless you all! All well?" he exclaimed, riding close to the window.

"Yes; but how is my mother?" inquired Mr. Aubrey.

"High spirits—high spirits! Was with her this afternoon! Have not seen her better for years! So surprised! Ah! here's an old friend—Hector!"

"Bow-wow-wow-wow! Bow—Bow-wow!"

"Papa! papa!" exclaimed the voice of little Charles, struggling to get on his father's lap to look out of the window, "that is Hector! I know it is! He is come to see *me*! I want to look at him."

Mr. Aubrey lifted him up as he desired, and a huge black-and-white Newfoundland dog almost leaped up to the window, at sight of him clapping his little hands, as if in eager recognition, and then scampered and

bounded about in all directions, barking most boisterously, to the infinite delight of little Aubrey. This messenger had been sent on by Sam, the groom; who, having been on the look-out for the travellers for some time, the moment he had caught sight of the carriage, pelted down the village through the park, at top speed, up to the Hall, there to communicate the good news of their safe arrival. The travellers thought that the village had never looked so pretty and picturesque before. The sound of the carriage dashing through it, called all the cottagers to their doors, where they stood bowing and courtesying. It soon reached the park-gates, which were thrown wide open in readiness for its entrance. As they passed the church, they heard its little bells ringing a merry peal to welcome their arrival. Its faint chimes went to their very hearts.

"My darling Agnes, here we are again in the old place," said Mr. Aubrey, in a joyous tone, affectionately kissing Mrs. Aubrey and his sister, as, after having wound their way up the park at almost a gallop, they heard themselves rattling over the stone pavement immediately under the old turreted gateway. On approaching it, they saw lights glancing about in the Hall windows; and before they had drawn up, the great door was thrown open, and several servants (one or two of them gray-headed) made their appearance, eager to release the travellers from their long confinement. A great wood fire was crackling and blazing in the ample fireplace in the hall opposite the door, casting a right pleasant and cheerful light over the various antique objects ranged round the walls; but the object on which Mr. Aubrey's eye instantly settled was the venerable figure of his mother, standing beside the fireplace with one or two female attendants. The moment that the carriage door was opened, he stepped quickly out, (nearly tumbling, by the way, over Hector, who appeared to think that the carriage

door had been opened only to enable him to jump into it, which he prepared to do.)

"God bless you, Madam!" said Mr. Aubrey, tenderly, as he received his mother's fervent but silent greeting, and imagined that the arms folded round him were somewhat feebler than when he had last felt them embracing him! With similar affection was the good old lady received by her daughter and daughter-in-law.

"Where is my pony, grandmamma?" quoth little Aubrey, running up to her, (he had been kept quiet, from time to time, during the last eighty miles or so, by the mention of the aforesaid pony, which had been sent to the Hall as a present to him some weeks before.) "Where is it? I want to see my little pony directly! Mamma says you have got a little pony for me with a long tail; I *must* see it before I go to bed; I must, indeed—is it in the stable?"

"You shall see it in the morning, my darling—the very first thing," said Mrs. Aubrey, fervently kissing her beautiful little grandson, while tears of joy and pride ran down her cheek. She then pressed her lips on the delicate but flushed cheek of little Agnes, who was fast asleep; and as soon as they had been conducted towards their nursery, Mrs. Aubrey, followed by her children, led the way to the dining-room—the dear delightful old dining-room, in which all of them had passed so many happy hours of their lives. It was large and lofty; and two antique branch silver candlesticks, standing on sconces upon each side of a strange old straggling carved mantelpiece of inlaid oak, aided by the blaze given out by two immense logs of wood burning beneath, thoroughly illuminated it. The walls were oak-panelled, containing many pictures, several of them of great value; and the floor also was of polished oak, over the centre of which, however, was spread a thick richly-colored Turkey carpet. Opposite the door was a large mullioned bay-window, then, however, concealed behind an ample flowing crimson

curtain. On the farther side of the fireplace stood a high-backed and roomy armchair, almost covered With Kate's embroidery, and in which Mrs. Aubrey had evidently, as usual, been sitting till the moment of their arrival—for on a small ebony table beside it lay her spectacles, and an open volume. Nearly fronting the fireplace was a recess, in which stood an exquisitely carved black ebony cabinet, inlaid with white and red ivory. This, Miss Aubrey claimed as her own, and had appropriated it to her own purposes ever since she was seven years old. "You dear old thing!" said she, throwing open the folding-doors—"Everything just as I left it! Really, dear mamma, I could skip about the room for joy! I wish Charles would never leave Yatton again!"

"It's rather lonely, my love, when *none* of you are with me," said Mrs. Aubrey. "I feel getting older"——

"Dearest mamma," interrupted Miss Aubrey, quickly, and embracing her mother, "*I* won't leave you again! I'm quite tired of town—I am indeed!"

Though fires were lit in their several dressing-rooms, of which they were more than once reminded by their respective attendants, they all remained seated before the fire in carriage costume, (except that Kate had thrown aside her bonnet, her half-uncurled tresses hanging in negligent profusion over her thickly-furred pelisse,) eagerly conversing about the little incidents of their journey, and the events which had transpired at Yatton since they had quitted it. At length, however, they retired to perform the refreshing duties of the dressing-room, before sitting down to supper. Of that comfortable meal, within twenty minutes' time or so, they partook with a hearty relish. What mortal, however delicate, could resist the fare set before them—the plump capon, the delicious grilled ham, the poached eggs, the floury potatoes, home-baked bread, white and brown—custards, mince-pies, home-brewed ale, as soft as milk, as clear as amber—mulled claret—

and so forth? The travellers had evidently never relished anything more, to the infinite delight of old Mrs. Aubrey; who observing, soon afterwards, irrepressible symptoms of fatigue and drowsiness, ordered them all off to bed—Kate sleeping in the same chamber in which she was sitting when the reader was permitted to catch a moonlight glimpse of her.

They did not make their appearance the next morning till after nine o'clock, Mrs. Aubrey having read prayers before the assembled servants, as usual, nearly an hour before—a duty her son always performed when at the Hall; but on this occasion he had overslept himself. He found his mother in the breakfast-room, where she was soon joined by her daughter and daughter-in-law, all of them being in high health and spirits. Just as they were finishing breakfast, little Aubrey burst into the room in a perfect ecstasy—for old Jones had taken him round to the stables, and shown him the little pony which had been recently presented to him. He had heard it neigh—had seen its long tail—had patted its neck—had seen it eat—and now his vehement prayer was, that his papa, and mamma, and Kate would immediately go and see it, and take his little sister also.

Breakfast over, they separated. Old Mrs. Aubrey went to her own room to be attended by her housekeeper; the other two ladies retired to their rooms—Kate principally engaged in arranging her presents for her little scholars; and Mr. Aubrey repaired to his library—as delightful an old snugery as the most studious recluse could desire—where he was presently attended by his bailiff. He found that everything was going on as he could have wished. With one or two exceptions, his rents were paid most punctually; the farms and lands kept in capital condition. To be sure an incorrigible old poacher had been giving a little trouble, as usual, and stood committed for trial at the ensuing Spring Assizes; and a few trivial trespasses had been committed in search of firewood, and other small matters; which, after having been

detailed with great minuteness by his zealous and vigilant bailiff, were despatched by Mr. Aubrey with a "pooh, pooh!"—Then there was Gregory, who held the smallest farm on the estate, at its southern extremity—he was three quarters' rent in arrear—but he had a sick wife and seven children—so he was at once forgiven all that was due, and also what would become due, on the ensuing quarter-day.—"In fact," said Mr. Aubrey, "don't ask him for any more rent. I'm sure the poor fellow will pay when he's able."

Some rents were to be raised; others lowered; and some half dozen of the poorer cottages were to be forthwith put into good repair, at Mr. Aubrey's expense. The two oxen had been sent, on the preceding afternoon, from the home farm to the butcher's, to be distributed on Christmas eve among the poorer villagers, according to orders brought down from town by Sam the day before. Thus was Mr. Aubrey engaged for an hour or two, till luncheon time, when good Dr. Tatham made his welcome appearance, having been engaged most of the morning in touching up an old Christmas sermon.

He had been vicar of Yatton for about thirty years, having been presented to it by the late Mr. Aubrey, with whom he had been intimate at college. He was a delightful specimen of a country parson. Cheerful, unaffected, and good-natured, there was a dash of quaintness or roughness about his manners, that reminded you of the crust in very fine old port. He had been a widower, and childless, for fifteen years. His parish had been ever since his family, whom he still watched over with an affectionate vigilance. He was respected and beloved by all. Almost every man, woman, and child that had died in Yatton, during nearly thirty years, had departed with the sound of his kind and solemn voice in their ears. He claimed a sort of personal acquaintance with almost all the gravestones in his little churchyard; he knew the names of all who slept beneath them; and when he looked at those gravestones, his conscience bore him witness, that he had done his duty by

the dust of whom they spoke. He was at the bedside of a sick person almost as soon, and as often, as the doctor—no matter what sort of weather, or at what hour of the day or night. Methinks I see him now, bustling about the village, with healthy ruddy cheek, a clear, cheerful eye, hair white as snow! with a small stout figure, clothed in a suit of somewhat rusty black, (knee-breeches and gaiters all round the year,) and with a small shovel-hat. No one lives in the vicarage with him but an elderly woman, his housekeeper, and her husband, whose chief business is to look after the doctor's old mare and the little garden; in which I have often seen him and his master, with his coat off, digging for an hour or two together. He rises at five in the winter, and four in the summer, being occupied till breakfast with his studies; for he was an excellent scholar, and has not forgotten, in the zealous discharge of his sacred duties, the pursuits of literature and philosophy, in which he had gained no inconsiderable distinction in his youth. He derives a very moderate income from his living; but it is even more than sufficient for his necessities. Ever since Mr. Aubrey's devotion to politics has carried him away from Yatton for a considerable portion of each year, Dr. Tatham has been the right hand counsellor of old Mrs. Aubrey, in all her pious and charitable plans and purposes. Every New-year's day, there come from the Hall to the vicarage six dozen of fine old port wine—a present from Mrs. Aubrey; but the little doctor (though he never tells her so) scarce drinks six bottles of them in a year. Two dozen of them go, within a few days' time, to a poor brother parson in an adjoining parish, who, with his wife and three children—all in feeble health—can hardly keep body and soul together, and who, but for this generous brother, would not probably taste wine throughout the year, except on certain occasions when the very humblest may moisten their poor lips with wine—I mean the SACRAMENT—the sublime and solemn festival given by One who doth not forget the poor and

destitute, however in their misery they may sometimes think to the contrary!—The remainder of his little present Dr. Tatham distributes in small quantities among such of his parishioners as may require it, and may not happen to have come under the immediate notice of Mrs. Aubrey. Dr. Tatham has known Mr. Aubrey ever since he was about five years old. 'Twas the doctor that first taught him Greek and Latin; and, up to his going to college, gave him the frequent advantage of his learned experience.—But surely I have gone into a very long digression, and must return.

While Miss Aubrey, accompanied by her sister-in-law, and followed by a servant carrying a great bag, filled with articles brought from London the day before, went to the school which I have before mentioned, in order to distribute her prizes and presents, Mr. Aubrey and Dr. Tatham set off on a walk through the village.

"I must really do something for that old steeple of yours, Doctor," said Mr. Aubrey, looking up, and shading his eyes with his hands, as, arm in arm, they approached the church; "it looks crumbling away in many parts!"

"If you'd only send a couple of masons to repair the *porch*, and make it weather-tight, it would satisfy me for some years to come," said the doctor, with exceeding earnestness.

"Well—we'll look at it," replied Aubrey; and, turning aside, they entered the little churchyard.

"How I love this old yew-tree!" he exclaimed, as they passed under it; "it casts a kind of tender gloom around that always makes me pensive, not to say melancholy!" A sigh escaped him, as his eye glanced at the family vault, which was almost in the centre of the shade, where lay his father, three brothers, and a sister, and where, in the course of nature, a few short years would see the precious remains of his mother deposited. But the doctor who had hastened forward alone for a moment, finding the church

door open, called out to Mr. Aubrey, who soon stood within the porch. It certainly required a little repairing, which Mr. Aubrey said should be looked to immediately. "See—we're all preparing for to-morrow," said Dr. Tatham, leading the way into the little church, where the grizzle-headed clerk was busy decorating the old-fashioned pulpit, reading-desk, and altar-piece, with the cheerful emblems of the season.

"I never see these," said the doctor, taking up one of the sprigs of mistletoe lying on a form beside them, "but I think of your own Christmas verses, Mr. Aubrey, when you were younger and fresher than you now are—don't you recollect them?"

"Oh—pooh!" quoth Aubrey, somewhat hastily.

"But I remember them," rejoined the doctor; and he began with great emphasis and solemnity—

"Hail! silvery, modest mistletoe,
Wreath'd round winter's brow of snow,
Clinging so chastely, tenderly:
Hail holly, darkly, richly green,
Whose crimson berries blush between
Thy prickly foliage, modestly.
Ye winter-flowers, bloom sweet and fair,
Though Nature's garden else be bare—
Ye vernal glistening emblems, meet
To twine a Christmas coronet!"

"That will do, Doctor," interrupted Aubrey, smiling—"what a memory you have for trifles!"

"Peggy! Peggy!—you're sadly overdoing it," said the doctor, hastily, calling out to the sexton's wife, who was busy at work in the squire's pew—

a large square pew in the nave, near the pulpit. "Why, do you want to hide the squire's family from the congregation? You're putting quite a holly hedge all round!"

"Please you, sir," quoth Peggy, "I've got so much I don't know where to put it—so, in course, I put it here!"

"Then," said the doctor, with a smile, looking round the church, "let Jonas get up and stick some of it into those old hatchments; and," looking up at the clerk, busy at work in the pulpit, "don't you put quite so much up there into my candlesticks!"

With this the parson and the squire took their departure. As they passed slowly up the village, which already wore a sort of holiday aspect, they met on all hands with a cordial, respectful, and affectionate greeting. The quiet little public-house turned out some four or five stout steady fellows—all tenants of Mr. Aubrey's—with their pipes in their hands, and who took off their hats, and bowed very low. Mr. Aubrey went up and entered into conversation with them for some minutes. Their families and farms, he found, were well and thriving. There was quite a little crowd of women about the shop of Nick Steele, the butcher, who, with an extra hand to help him, was giving out the second ox which had been sent from the Hall, to the persons whose names had been given in to him from Mrs. Aubrey. Farther on, some were cleaning their little windows, others sweeping their floors, and sprinkling sand over them; most were displaying holly and mistletoe in their windows, and over their mantelpieces. Everywhere, in short, was to be seen that air of quiet preparation for the solemnly-cheerful morrow, which fills a thoughtful English observer with feelings of pensive but exquisite satisfaction.

Mr. Aubrey returned home towards dusk, cheered and enlivened by his walk. His sudden plunge into the simplicity and comparative solitude of

country life—and that country Yatton—had quite refreshed his feelings, and given a tone to his spirits. Of course Dr. Tatham was to dine at the Hall on the morrow; if he did not, indeed, it would have been for the first time during the last five-and-twenty years!

Christmas eve passed pleasantly and quietly enough at the Hall. After dinner the merry little ones were introduced, and their prattle and romps occupied an hour right joyously. As soon as, smothered with kisses, they had been dismissed to bed, old Mrs. Aubrey composed herself, in her great chair, to her usual after-dinner's nap; while her son, his wife, and sister, sitting fronting the fire—a decanter or two, and a few wine-glasses and dessert, remaining on the table behind them—sat conversing in a subdued tone, now listening to the wind roaring in the chimney—a sound which not a little enhanced their sense of comfort—then criticising the disposition of the evergreens with which the room was plenteously decorated, and laying out their movements during the ensuing fortnight. Mrs. Aubrey and Kate were, with affectionate earnestness, contrasting to Aubrey the peaceful pleasures of a country life with the restless excitement and endless anxieties of a London political life, to which they saw him more and more addicting himself; he all the while playfully parrying their attacks, but secretly acknowledging the truth and force of what they said, when—hark!—a novel sound from without, which roused the old lady from her nap. What do you think, dear reader, it was? The voices of very little girls singing what seemed to be a Christmas hymn: yes, they caught the words—

"Hark! the herald angels sing.
Glory to the new-born king;
Peace on earth and mercy mild"—

"Why, surely—it must be your little school-girls," said old Mrs. Aubrey, looking at her daughter, and listening.

"I do believe it is!" quoth Kate, her eyes suddenly filling with tears, as she sat eagerly inclining her ear towards the window.

"They must be standing on the grass-plot just before the window," said Mr. Aubrey: the tiny voices were thrilling his very heart within him. His sensitive nature might have been compared to a delicate Æolian harp which gave forth, with the slightest breath of accident or circumstance,—

"The still, sad music of humanity."

In a few moments he was almost in tears—the sounds were so unlike the fierce and turbulent cries of political warfare to which his ears had been latterly accustomed! The more the poor children sang, the more was he affected. Kate's tears fell fast, for she had been in an excited mood before this little incident occurred. "Do you hear, mamma," said she, "the voice of the poor little thing that was last taken into the school? The little darling!" Kate tried to smile away her emotion; but 'twas in vain. Mr. Aubrey gently drew aside the curtain, and pulled up the central blind—and there, headed by their matron, stood the little singers exposed to view, some eighteen in number, ranged in a row on the grass, all in snug gray woollen hoods effectually protecting them from the cold. The oldest seemed not more than ten or twelve years old, while the younger ones could not be more than five or six. They seemed all singing from their very hearts. Aubrey stood looking at them with very deep interest.

As soon as they had finished their hymn, they were conducted into the housekeeper's room, according to orders sent for that purpose, from Mrs. Aubrey, and each of them received a little present of money, besides a full glass of Mrs. Jackson's choicest raisin wine, and a currant bun; Kate

slipping half-a-guinea into the hand of their mistress, to whose wish to afford gratification to the inmates of the Hall was entirely owing the little incident which had so pleased and surprised them. "A happy Christmas to you, dear papa and mamma!" said little Aubrey, about eight o'clock the next morning, pushing aside the curtains, and trying to clamber up on the high bed where Mr. and Mrs. Aubrey were still asleep—soon, however, they were awakened by the dear welcome voice! The morning promised a beautiful day. The air, though cold, was clear; and the branches of the trees visible from their windows, were all covered with hoar-frost, which seemed to line them as if with silver fringe. The little bells of Yatton church were ringing a merry peal; but how different in tone and strength from the clangor of the London church-bells!—Christmas was indeed at last arrived—and cheerful were the greetings of those who soon after met at the bountiful breakfast table. Old Mrs. Aubrey was going to church with them—in fact, not even a domestic who could be possibly spared, was to be left at home. By the time that the carriage, with the fat and lazy-looking gray horses, was at the Hall door, the sun had burst out in beauty from an almost cloudless sky. The three ladies rode alone; Aubrey preferring to walk, accompanied by his little son, as the ground was dry and hard, and the distance very short. A troop of some twelve or fourteen servants, male and female, presently followed; and then came Mr. Aubrey, leading along the heir of Yatton—a boy of whom he might well be proud, as the future possessor of his name, his fortune, and his honors. When he had reached the church, the carriage was returning home. Almost the whole congregation stood collected before the church door, to see the squire's family enter; and reverent were the courtesies and bows with which old Mrs. Aubrey and her lovely companions were received. Very soon after they had taken their places, Mr. Aubrey and his son made their appearance; objects they were of

the deepest interest, as they passed along to their pew. A few minutes afterwards little Dr. Tatham entered the church in his surplice, (which he almost always put on at home,) with a face, composed and serious to be sure, but yet overspread with an expression even more bland and benignant than usual. He knew there was not a soul among the little crowd around him that did not really love him, and that did not know how heartily he returned their love. All eyes were of course on the squire's pew. Mrs. Aubrey was looking well—her daughter and daughter-in-law were thought by all to be by far the most beautiful women in the world—what must people think of them in London? Mr. Aubrey looked, they thought, pleased and happy, but rather paler, and even a little thinner; and as for the "*little* squire," with his bright eyes, his rosy cheeks, his arch smile, his curling auburn hair—and so like his father and mother—he was the pride of Yatton!

Dr. Tatham read prayers, as he always did; with great distinctness and deliberation, so that everybody in the church, young and old, could catch every syllable; and he preached, considerately enough, a very short sermon—pithy, homely, and affectionate. He reminded them that he was then preaching his thirty-first Christmas-day sermon from that pulpit! The service and the sacrament over, none of the congregation moved from their places till the occupants of the squire's pew had quitted it; but as soon as they had got outside of the door, the good people poured out after them, and almost lined the way from the church door to the gate at which the carriage stood, receiving and answering a hundred kind inquiries concerning themselves, their families, and their circumstances.

Mr. Aubrey stayed behind, desirous of taking another little ramble with Dr. Tatham through the village, for the day was indeed bright and beautiful, and the occasion inspiring. There was not a villager within four or five miles of the Hall who did not sit down that day to a comfortable little

relishing dinner, at least one-third of them being indebted for it directly to the bounty of the Aubreys. As soon as Dr. Tatham had taken off his gown, he accompanied Mr. Aubrey in cheerful mood, in the briskest spirits. 'T was delightful to see the smoke come curling out of every chimney, while few folk were visible out of doors; whence you reasonably concluded that they were all housed, and preparing for, or partaking of, their roast-beef and plum-pudding! Now and then the bustling wife would show her heated red face at the door, and hastily courtesy as they passed, then returning to dish up her little dinner.

"Ah, ha; Mr. Aubrey!—isn't such a day as this worth a whole year in town?" exclaimed Dr. Tatham.

"Both have their peculiar advantages, Doctor; the pleasure of the contrast would be lost if"——

"Contrast! Believe me, in the language of the poet Virgil"——

"Ah! how goes on old blind Bess, Doctor?" interrupted Aubrey, as they approached the smallest cottage in the village—in fact the very last.

"She's just the same as she has been these last twenty years. Shall we look in on the old creature?"

"With all my heart. I hope, poor soul! that *she* has not been overlooked on this festive occasion."

"Trust Mrs. Aubrey for that! I'll answer for it, we shall find old Bess as happy, in her way, as she can be."

This was a stone blind old woman, who had been bedridden for the last twenty years. She had certainly passed her hundredth year—some said two or three years before—and had lived in her present little cottage for nearly half a century, having grown out of the recollection of almost all the inhabitants of the village. She had long been a pensioner of Mrs. Aubrey's, by whom alone, indeed, she was supported. Her great age, her singular

appearance, and a certain rambling way of talking that she had, had long earned her the reputation, in the village, of being able to say strange things; and one or two of the old gossips knew of things coming to pass according to what—poor old soul—she had predicted!

Dr. Tatham gently pushed open the door. The cottage consisted, in fact, of but one room, and that a very small one, and lit by only one little window. The floor was clean, and evidently just fresh sanded. On a wooden stool, opposite a fireplace, on which a small saucepan was placed, sat a girl about twelve years old, (a daughter of the woman who lived nearest,) crumbling some bread into a basin, with some broth in it. On a narrow bed against the wall, opposite the window, was to be seen the somewhat remarkable figure of the solitary old tenant of the cottage. She was sitting up, resting against the pillow, which was placed on end against the wall. She was evidently a very tall woman; and her long, brown, wrinkled, shrivelled face, with prominent cheekbones and bushy white eyebrows, betokened the possession, in earlier days, of a most masculine expression of features. Her hair, white as snow, was gathered back from her forehead, under a spreading plain white cap; and her sightless eyes, wide open, stared forward with a startling and somewhat sinister expression. She was wrapped round in a clean white bedgown; and her long thin arms lay straight before her on the outside of the bedclothes. Her lips were moving, as if she were talking to herself.

"She's a strange-looking object, indeed!" exclaimed Mr. Aubrey, as he and Dr. Tatham stood watching her for a few moments in silence.

"Dame! dame!" said the doctor, loudly, approaching her bedside, "how are you to-day? It's Christmas-day—I wish you a merry Christmas."

"Ay, ay—merry, merry!" echoed the old woman, with a half-groan. "More the merrier! I've seen a hundred and nine of them!"

"You seem comfortable enough, dame," said Mr. Aubrey, kindly. "I hope you *are*?"

"They won't give me my broth—my broth," said she, peevishly.

"It's coming, granny," called out the shrill voice of the girl sitting before the fire, quickening her motions.

"Here's the squire come to see you, dame, and he wishes you a happy Christmas," said Dr. Tatham, loudly.

"What! the squire? Alive yet? Ah, well-a-day! well-a-day!" said she, in a feeble, mournful tone, slowly rubbing together her long, skinny, wrinkled hands, on the backs of which the veins stood out like knotted whipcord. She repeated the last words several times, in a truly doleful tone, gently shaking her head.

"Granny's been very sad, sir, to-day, and cried two or three times," said the little girl, stirring about the hot broth.

"Poor squire! doth he not look sad?" inquired the old woman.

"Why should I, dame? What have I to fear?" said Mr. Aubrey, somewhat quickly.

"Merry in the Hall! all, merry! merry! But no one has heard it except old blind Bess. Where's the squire?" she added, suddenly turning full towards the spot where they were standing—and her face seemed whitened with emotion. Her staring eyes were settled on Mr. Aubrey's face, as if she saw him distinctly, and were reading his very soul.

"Here I am, dame," said he, with a great deal of curiosity, to say the least of it.

"Give me your hand, Squire," said she, stretching out her left arm, and working about her talon-like fingers, as if in eagerness to grasp Mr. Aubrey's hand, which he gave her.

"Never fear! never, never! Happy in the Hall! I see all! How long"——

"Why, dame, this is truly a very pleasant greeting of yours," interposed Dr. Tatham, with a smile.

"Short and bitter! long and sweet! Put your trust in God, Squire."

"I hope I do, granny," replied Mr. Aubrey, seriously.

"I see! I hear!—my broth! my broth!—where is it?"

"Here it is, granny," said the girl—"It's all ready!"

"Good-day, dame," said Mr. Aubrey, gently disengaging his hand from hers; and before they had left the cottage, she began to swallow very greedily the broth with which the little girl fed her.

"This is the sort of way in which this old superannuated creature has frightened one or two of"——

"Is it indeed?" inquired Mr. Aubrey, with a sort of mechanical smile. Dr. Tatham saw that he was in a somewhat serious humor.

"She's alarmed *you*, I protest!—I protest she has!" exclaimed the doctor, with a slight laugh, as they walked along. Now, he knew the disposition and character of Aubrey intimately; and was well aware of a certain tendency which he had to superstition.

"My dear doctor, I assure you that you are mistaken—I am indeed not *alarmed*—but at the same time I will tell you something not a little singular. Would you believe that a month or two ago, when in town, I dreamed that I heard some one uttering something very much like the words which we have just heard from this old woman?"

"Ah! ha, ha!" laughed the doctor; and, after a second or two's pause, Aubrey, as if ashamed of what he had said, echoed the laugh, and their conversation passed on to political topics, which kept them engaged for the remainder of their walk, Mr. Aubrey quitting his companion at the door of the vicarage, to be rejoined by him at five o'clock, the dinner hour at the Hall. As Mr. Aubrey walked along the park, the shades of evening casting a

deepening gloom around him, his thoughts involuntarily recurred to the cottage of old blind Bess, and he felt vague apprehensions flitting with darkening shade across his mind. Though he was hardly weak enough to attach any definite meaning or importance to the gibberish he had heard, it still had left an unpleasant *impression*, and he was vexed at feeling a wish that the incident—trifling as he was willing to believe it—should not be mentioned by Dr. Tatham at the Hall; and still more was he excited when he recollected that he had *purposely abstained* from requesting the good doctor not to do so. All this undoubtedly implied that the matter had occupied Mr. Aubrey's thoughts to a greater extent than he secretly relished. On reaching, however, the Hall door, this brief pressure on his feelings quickly ceased; for on entering, he saw Mrs. Aubrey, his sister, and his two children, at high romps together in the hall, and he heartily joined in them.

CHAPTER VIII.

By five o'clock the little party were seated at the cheerful dinner-table, glistening with the old family plate and that kind of fare, at once substantial and luxurious, which befitted the occasion. Old Mrs. Aubrey, in her simple white turban and black velvet dress, presided with a kind of dignified cheerfulness which was delightful to see. Kate had contrived to make herself look more lovely even than usual, wearing a dress of dark blue satin, tastefully trimmed with blonde, and which exquisitely comported with her beautiful complexion. Oh that Delamere had been sitting opposite to, or beside her! The more matured proportions of her blooming sister-in-law appeared to infinite advantage in a rich green velvet dress, while a superb diamond glistened with subdued lustre in her beautiful bosom. She wore no ornaments in her dark hair, which was, as indeed might be said of Kate, "when unadorned, adorned the most." The gray-headed old butler, (as brisk as his choicest champagne,) and the two steady-looking old family servants, going about their business with quiet celerity—the delicious air of antique elegance around them—the sense of profound seclusion—of remoteness from the exciting hubbub of the world—in every respect this was a Christmas dinner after one's own heart! Oh the merry and dear old Yatton! And as if there were not loveliness enough already in the room, behold the door suddenly pushed open, as soon as the dessert is arrayed on the table, and run up to his gay and laughing mother, her little son, his ample snowy collar resting gracefully on his crimson velvet dress. 'Tis her hope and pride—her first-born—the little squire; but where is his sister?—where is Agnes? 'Tis even as Charles says—she fell asleep in the very act of being dressed,

and they were obliged to put her to bed; so Charles is alone in his glory. You may well fold your delicate white arm around him, mamma!—

His little gold cup is nearly filled to join in the first toast: are you all—dear little circle!—are you all ready? The worthy doctor has poured old Mrs. Aubrey's, and young Mrs. Aubrey's, and Kate's glass full up to the brim:—"Our next Christmas!" quoth he, cheerily elevating his glass.

Yes, your next Christmas! The vigilant eye of Dr. Tatham alone perceived a faint change of color in Mr. Aubrey's cheek as the words were uttered; and his eye wandered for an instant, as if tracing across the room the image of old blind Bess; but 'twas gone in a moment; Aubrey was soon in much higher spirits than usual. Well he might be. How could man be placed in happier circumstances than he was? As soon as the three ladies had withdrawn, together with little Aubrey, the doctor and Mr. Aubrey drew their chairs before the fire, and enjoyed a long hour's pleasant conversation, on matters domestic and political. As to the latter, the doctor and the squire were stout Tories; and a speech which Aubrey had lately delivered in the House, on the Catholic claims, had raised him to a pitch of eminence in the doctor's estimation, where Aubrey had very few men in the country to keep him company. The doctor here got on very fast indeed; and was just assuring the squire that he saw dark days in store for Old England from the machinations of the Papists; and that, for his part, he should rejoice to "seal his testimony with his blood," and would go to the stake not only without flinching, but rejoicing—(all which I verily believe *he* verily believed he would have done) and coveting the crown of martyrdom—when Aubrey caught the sound of his sister playing on the organ, a noble instrument, which a year or two before, at her urgent request, he had purchased and placed in the drawing-room, whither he and the doctor at once repaired. 'Twas a spacious and lofty room, well calculated for the splendid instrument

which occupied the large recess fronting the door. Miss Aubrey was playing Handel, and with an exquisite perception of his matchless power and beauty. Hark! did you ever hear the grand yet simple recitative she is now commencing?

"In the days of Herod the king, behold, there came wise men from the East to Jerusalem,

"Saying—Where is he that is born King of the Jews? for we have seen his star in the East, and are come to worship him."

The doctor officiated as chaplain that evening. The room was almost filled with servants, many of whose looks very plainly showed the merry doings which must have been going on in the servants' hall. Some could scarce keep their eyes open; one or two sat winking at each other! and others were fairly asleep, and snoring! Under the circumstances, therefore, the doctor, with much judgment, read very short prayers, and immediately afterwards took his departure for his snug little vicarage. The moon shone brightly, the air was clear and bracing, and he felt as blithe as a bird as he walked homeward!

The next morning, which proved as fine as the preceding, Mr. Aubrey was detained in-doors with his letters, and one or two other little matters of business in his library, till luncheon time. "What say you, Kate, to a ride round the country?" said he, on taking his seat. Kate was delighted; and forthwith the horses were ordered to be got ready as soon as possible.

"You must not mind a little rough riding, Kate, by the way," said Aubrey; "for we shall have to get over some ugly places!—I'm going to meet Waters at the end of the avenue, about that old sycamore—we must have it down at last."

"Oh no, Charles, no; I thought we had settled that last year!" replied Kate, earnestly.

"Pho! if it had not been for you, Kate, it would have been down two years ago at least. Its hour is come at last; 'tis indeed, so no pouting! It is injuring the other trees; and, besides, it spoils the prospect from the left wing of the house."

"'Tis only Waters that puts all these things into your head, Charles, and I shall let him know *my* opinion on the subject when I see him! Mamma, haven't *you* a word to say for the old"——

But Mr. Aubrey, not deeming it discreet to await the new force which was being brought against him, started off to inspect a newly purchased horse, just brought to the stables.

Kate, who really became everything, looked charming in her blue riding-habit and hat, sitting on her horse with infinite ease and grace; in fact, a capital horsewoman. The exercise soon brought a rich bloom upon her cheek; and as she cantered along the road by the side of her brother, no one could have met them without being almost startled at her beauty. Just as they had dropped into an easy walk——

"Charles," said she, observing two horsemen approaching them, "who can these be? Heavens! did you ever see such figures? And how they ride!"

"Why, certainly," replied her brother, smiling, "they look a brace of arrant Cockneys! Ah, ha!—what can they be doing in *these* parts?"

"Dear me, what puppies!" exclaimed Miss Aubrey, lowering her voice as they neared the persons she spoke of.

"They *are* certainly a most extraordinary couple! Who *can* they be?" said Mr. Aubrey, a smile forcing itself into his features. One of the gentlemen thus referred to, was dressed in a light blue surtout, with the tip of a white pocket-handkerchief seen peeping out of a pocket in the front of it. His hat,

with scarce any brim to it, was stuck aslant on the top of a bushy head of queer-colored hair. His shirt-collar was turned down completely over his stock, displaying a great quantity of dirt-colored hair under his chin; while a pair of mustaches, of the same color, were sprouting upon his upper lip, and a perpendicular tuft depended from his under lip. A quizzing-glass was stuck in his right eye, and in his hand he carried a whip with a shining silver head. The other was almost equally distinguished by the elegance of his appearance. He had a glossy hat, a purple-colored velvet waistcoat, two pins connected by little chains in his stock, a bottle-green surtout, sky-blue trousers, and a most splendid riding-whip. In short, who should these be but our old friends, Messrs. Titmouse and Snap? Whoever they might be—and whatever their other accomplishments, it was plain that they were perfect novices on horseback; and their horses had every appearance of having been much fretted and worried by their riders. To the surprise of Mr. Aubrey and his sister, these two personages attempted to rein in as they neared, and evidently intended to speak to them.

"Pray—a—sir, will you, sir, tell us," commenced Titmouse, with a desperate attempt to appear at his ease, as he tried to make his horse stand still for a moment—"isn't there a place called—called"—here his horse, whose sides were constantly being galled by the spurs of its unconscious rider, began to back a little; then to go on one side, and, in Titmouse's fright, his glass dropped from his eye, and he seized hold of the pommel. Nevertheless, to show the lady how completely he was at his ease all the while, he levelled a great many oaths and curses at the unfortunate eyes and soul of his wayward brute; who, however, not in the least moved by them, but infinitely disliking the spurs of its rider and the twisting round of its mouth by the reins, seemed more and more inclined for mischief, and backed close up to the edge of the ditch.

"I'm afraid, sir," said Mr. Aubrey, kindly and very earnestly, "you are not much accustomed to riding. Will you permit *me*"——

"Oh, yes—ye—ye—s, sir, I *am* though,—uncommon—whee-o-uy! whuoy!"—(then a fresh volley of oaths.) "Oh, dear, 'pon my soul—ho! my eyes!—what—what *is* he going to do! Snap! Snap!"—"T was, however, quite in vain to call on *that* gentleman for assistance; for he had grown as pale as death, on finding that his own brute seemed strongly disposed to follow the infernal example (or rather, as it were, the *converse* of it) of the other, and was particularly inclined to rear up on its hind-legs. The very first motion of that sort brought Snap's heart (not large enough, perhaps, to choke him) into his mouth. Titmouse's beast, in the mean while, suddenly wheeled round; and throwing its hind feet into the air, sent its terrified rider flying head over heels into the very middle of the hedge, from which he dropped into the soft wet ditch on the road-side. Both Mr. Aubrey and his groom immediately dismounted, and secured the horse, who, having got rid of its ridiculous rider, stood perfectly quiet. Titmouse proved to be more frightened than hurt. His hat was crushed flat on his head, and half the left side of his face covered with mud—as, indeed, were his clothes all the way down. The groom (almost splitting with laughter) helped him on his horse again; and as Mr. and Miss Aubrey were setting off—"I think, sir," said the former, politely, "you were inquiring for some place?"

"Yes, sir," quoth Snap. "Isn't there a place called Ya—Yat—Yat—(be quiet, you brute!)—Yatton about here?"

"Yes, sir—straight on," replied Mr. Aubrey. Miss Aubrey hastily threw her veil over her face, to conceal her laughter, urging on her horse; and she and her brother were soon out of sight of the strangers.

"I say, Snap," quoth Titmouse, when he had in a measure cleansed himself, and they had both got a little composed, "see that lovely gal?"

"Fine gal—devilish fine!" replied Snap.

"I'm blessed if I don't think—'pon my life, I believe we've met before!"

"Didn't seem to know you though!"—— quoth Snap, somewhat dryly.

"Ah! you don't know—How uncommon infernal unfortunate to happen just at the moment when"—— Titmouse became silent; for all of a sudden he recollected when and where, and under what circumstances he had seen Miss Aubrey before, and which his vanity would not allow of his telling Snap. The fact was, that she had once accompanied her sister-in-law to Messrs. Tag-rag and Company's, to purchase some small matter of mercery. Titmouse had served them; and his absurdity of manner and personal appearance had provoked a smile, which Titmouse a little misconstrued; for when, a Sunday or two afterwards, he met her in the Park, the little fool actually had the presumption to nod to her—she having not the slightest notion who the little wretch might be—and of course not having, on the present occasion, the least recollection of him. The reader will recollect that this incident made a deep impression on the mind of Mr. Titmouse.

The coincidence was really not a little singular—but to return to Mr. Aubrey and his sister. After riding a mile or two farther up the road, they leaped over a very low mound or fence, which formed the extreme boundary of that part of the estate, and having passed through a couple of fields, they entered the eastern extremity of that fine avenue of elms, at the higher end of which stood Kate's favorite tree, and also Waters and his under-bailiff—who looked to her like a couple of executioners, only awaiting the fiat of her brother. The sun shone brightly upon the doomed sycamore—"the axe was laid at its root." As they rode up the avenue, Kate begged very hard for mercy; but for once her brother seemed obdurate—the tree, he said, *must* come down—'t was all nonsense to think of leaving it standing any longer!—

"Remember, Charles," said she, passionately, as they drew up, "how we've all of us romped and sported under it! Poor papa also"——

"See, Kate, how rotten it is," said her brother; and riding close to it, with his whip he snapped off two or three of its feeble silvery-gray branches——"it's high time for it to come down."

"It fills the grass all round with little branches, sir, whenever there's the least breath of wind," said Waters.

"It won't hardly hold a crow's weight on the topmost branches, sir," added Dickons, the under-bailiff, very modestly.

"Had it any leaves last summer?" inquired Mr. Aubrey.

"I don't think, sir," replied Waters, "it had a hundred all over it!"

"Really, Kate," said her brother, "'t is such a melancholy, unsightly object, when seen from any part of the Hall"—turning round on his horse to look at the rear of the Hall, which was at about two hundred yards' distance. "It looks such an old withered thing among the fresh green trees around it——'t is quite a painful contrast." Kate had gently urged on her horse while her brother was speaking, till she was close beside him. "Charles," said she, in a low whisper, "does not it remind you a little of poor old mamma, with her gray hairs, among her children and grandchildren? *She* is not out of place among us—is she?" Her eyes filled with tears. So did her brother's.

"Dearest Kate," said he, with emotion, affectionately grasping her little hand, "you have triumphed! The old tree shall never be cut down in my time! Waters, let the tree stand; and if anything *is* to be done to it—let the greatest possible *care* be taken of it." Miss Aubrey turned her head aside to conceal her emotion. Had they been alone, she would have flung her arms round her brother's neck.

"If I were to speak my mind, sir," said the compliant Waters, seeing the turn things were taking, "I should say, with our young lady, the old tree's

quite a kind of ornament in this here situation, and (as one might say) it sets off the rest." [It was he who had been worrying Mr. Aubrey for these last three years to have it cut down!]

"Well," replied Mr. Aubrey, "however that may be, let me hear no more of cutting it down—Ah! what does old Jolter want here?" said he, observing an old tenant of that name, almost bent double with age, hobbling towards them. He was wrapped up in a coarse thick blue coat; his hair was long and white; his eyes dim and glassy with age.

"I don't know, sir—I'll go and see," said Waters.

"What's the matter, Jolter?" he inquired, stepping forward to meet him.

"Nothing much, sir," replied the old man, feebly, and panting, taking off his hat, and bowing very low towards Mr. and Miss Aubrey.

"Put your hat on, my old friend," said Mr. Aubrey, kindly.

"I only come to bring you this bit of paper, sir, if you please," said the old man, addressing Waters. "You said, a while ago, as how I was always to bring you papers that were left with me; and this"—taking one out of his pocket—"was left with me only about an hour ago. It's seemingly a lawyer's paper, and was left by an uncommon gay young chap. He asked me my name, and then he looked at the paper, and read it all over to me, but I couldn't make anything of it."

"What is it?" inquired Mr. Aubrey, as Waters cast his eye over a sheet of paper, partly printed and partly written.

"Why, it seems the old story, sir—that slip of waste land, sir. Mr. Tomkins is at it again, sir."

"Well, if he chooses to spend his money in that way, I can't help it," said Mr. Aubrey, with a smile. "Let me look at the paper." He did so. "Yes, it seems the same kind of thing as before. Well," handing it back, "send it to Mr. Parkinson, and tell him to look to it; and, at all events, take care that

poor old Jolter comes to no trouble by the business. How's the old wife, Jacob?"

"She's dreadful bad with rheumatis, sir; but the stuff that Madam sends her does her a woundy deal of good, sir, in her inside."

"Well, we must try if we can't send you some more; and, harkee, if the goodwife doesn't get better soon, send us up word to the Hall, and we'll have the doctor call on her. Now, Kate, let us away homeward." And they were soon out of sight.

I do not intend to deal so unceremoniously or summarily as Mr. Aubrey did, with the document which had been brought to his notice by Jolter, then handed over to Waters, and by him, according to orders, transmitted the next day to Mr. Parkinson, Mr. Aubrey's attorney. It was what is called a "DECLARATION IN EJECTMENT;" touching which, in order to throw a ray or two of light upon a document which will make no small figure in this history, I shall try to give the reader a little information on the point; and hope that a little attention to what now follows, will be repaid in due time. Here beginneth a little lecture on law.

If *Jones* claim a *debt*, or *goods*, or *damages*, from *Smith*, one should think that, if he went to law, the action would be entitled "*Jones versus Smith*;" and so it is. But behold, if it be LAND which is claimed by Jones from Smith, the style and name of the cause stand thus:—"DOE, on the demise of Jones, *versus* ROE." Instead, therefore, of Jones and Smith fighting out the matter in their own proper names, they set up a couple of puppets, (called "John Doe" and "Richard Roe,") who fall upon one another in a very quaint fashion, after the manner of Punch and Judy. John Doe pretends to be the real plaintiff, and Richard Roe the real defendant. John Doe says that the land which Richard Roe has, is his, (the said John Doe's,) because *Jones* (the real plaintiff) gave him a lease of it; and *Jones* is then

called "the lessor of the plaintiff." John Doe further says that one Richard Roe, (who calls himself by the very significant and expressive name of a "*Casual Ejector*,") came and turned him out, and so John Doe brings his action against Richard Roe. 'Tis a fact, that whenever land is sought to be recovered in England, this anomalous and farcical proceeding must be adopted.[\[15\]](#) It is the duty of the *real* plaintiff (Jones) to serve on the *real* defendant (Smith) a copy of the queer document which I shall proceed to lay before the reader; and also to append to it an affectionate note, intimating the serious consequences which will ensue upon inattention or contumacy. The "Declaration," then, which had been served upon old Jolter, was in the words, letters, and figures following—that is to say:—

"IN THE KING'S BENCH.

"Michaelmas Term, the—— of King——.

"YORKSHIRE, to-wit—Richard Roe was attached to answer John Doe of a plea wherefore the said Richard Roe, with force and arms, &c., entered into two messuages, two dwelling-houses, two cottages, two stables, two out-houses, two yards, two gardens, two orchards, twenty acres of land covered with water, twenty acres of arable land, twenty acres of pasture land, and twenty acres of other land, with the appurtenances, situated in *Yatton*, in the county of York, which TITTLBAT TITMOUSE, Esquire, had demised to the said John Doe for a term which is not yet expired, and ejected him from his said farm, and other wrongs to the said John Doe there did, to the great damage of the said John Doe, and against the peace of our Lord the King, &c.; and Thereupon the said John Doe, by OILY GAMMON, his attorney, complains,—

"That whereas the said TITTLBAT TITMOUSE, on the —th day of August, in the year of our Lord 18—, at Yatton aforesaid, in the county

aforesaid, had demised the same tenements, with the appurtenances, to the said John Doe, to have and to hold the same to the said John Doe and his assigns thenceforth, for and during, and unto the full end and term of twenty years thence next ensuing, and fully to be completed and ended: By virtue of which said demise, the said John Doe entered into the said tenements, with the appurtenances, and became and was thereof possessed for the said term, so to him thereof granted as aforesaid. And the said John Doe being so thereof possessed, the said Richard Roe afterwards, to-wit, on the day and year aforesaid, at the parish aforesaid, in the county aforesaid, with force and arms, that is to say with swords, staves, and knives, &c., entered into the said tenements, with the appurtenances, which the said TITTLEBAT TITMOUSE had demised to the said John Doe in manner and for the term aforesaid, which is not yet expired, and ejected the said John Doe out of his said farm; and other wrongs to the said John Doe then and there did, to the great damage of the said John Doe, and against the peace of our said Lord the now King. Wherefore the said John Doe saith that he is injured, and hath sustained damage to the value of £50, and therefore he brings his suit, &c.

"SQUEAL, for the Plaintiff.	{	Pledges of	John Den.
GROWL, for the Defendant.		Prosecution.	Richard Fenn.

"MR. JACOB JOLTER,

"I am informed that you are in possession of, or claim title to, the premises in this Declaration of Ejectment mentioned, or to some part thereof: And I, being sued in this action as a *casual ejector* only, and having no claim or title to the same, do advise you to appear, next Hilary term, in His Majesty's Court of King's Bench at Westminster, by some attorney of that Court; and then and there, by a rule to be made of

the same Court, to cause yourself to be made defendant in my stead; otherwise, I shall suffer judgment to be entered against me by default, and you will be turned out of possession.

"Your loving friend,

RICHARD ROE.

"Dated this 8th day of December 18—. "[[16](#)]

You may regard the above document in the light of a deadly and destructive missile, thrown by an unperceived enemy into a peaceful citadel; attracting no particular notice from the innocent unsuspecting inhabitants—among whom, nevertheless, it presently explodes, and all is terror, death, and ruin.

Mr. Parkinson, Mr. Aubrey's solicitor, who resided at Grilston, the post-town nearest to Yatton, from which it was distant about six or seven miles, was sitting on the evening of Tuesday the 28th December 18—, in his office, nearly finishing a letter to his London agents, Messrs. Runnington and Company—one of the most eminent firms in the profession—and which he was desirous of despatching by that night's mail. Among other papers which have come into my hands in connection with this history, I have happened to light on the letter which he was writing; and as it is not long, and affords a specimen of the way in which business is carried on between town and country attorneys and solicitors, here followeth a copy of it:—

"Grilston, 28th Dec. 18—.

"DEAR SIRs,

"Re Middleton.

"Have you got the marriage-settlements between these parties ready? If so, please send them as soon as possible; for both the lady's and gentleman's friends are (as usual in such cases) very pressing for them.

"Puddinghead v. Quickwit.

"Plaintiff bought a horse of defendant in November last, 'warranted sound,' and paid for it on the spot £64. A week afterwards, his attention was accidentally drawn to the animal's head; and to his infinite surprise, he discovered that the left eye was a *glass eye*, so closely resembling the other in color, that the difference could not be discovered except on a very close examination. I have seen it myself, and it is indeed wonderfully well done. My countrymen are certainly pretty sharp hands in such matters—but this beats everything I ever heard of. Surely this is a breach of the warranty? Or is it to be considered a *patent* defect, which would not be within the warranty?[17]—Please take pleader's opinion, and particularly as to whether the horse could be brought into court to be viewed by the court and jury, which would have a great effect. If your pleader thinks the action will lie, let him draw declaration, *venue*—Lancashire (for my client would have no chance with a Yorkshire jury,) if you think the *venue* is transitory, and that defendant would not be successful on a motion to change it. *Qu.*—Is the man who sold the horse to defendant a *competent*[18] *witness* for the plaintiff, to prove that, when he sold it to defendant, it had but one eye, and that on this account the horse was sold for less?

"Mule v. Stott.

"I cannot get these parties to come to an amicable settlement. You may remember, from the two former actions, that it is for damages on account of two geese of defendant having been found trespassing on a few yards of a field belonging to the plaintiff. Defendant now contends that he is entitled to common, *pour cause de vicinage*. *Qu.*—Can this be shown under Not Guilty, or must it be pleaded specially?—About two years ago, by the way, a pig belonging to plaintiff got into defendant's

flower-garden, and did at least £3 worth of damage—Can this be in any way set off against the present action? There is no hope of avoiding a third trial, as the parties are now more exasperated against each other than ever, and the expense (as at least fifteen witnesses will be called on each side) will amount to upwards of £250. You had better retain Mr. Cacklegander.

"Re Lords Oldacre and De la Zouch.

"Are the deeds herein engrossed? As it is a matter of magnitude, and the foundation of extensive and permanent family arrangements, pray let the greatest care be taken to secure accuracy. Please take special care of the stamps"——

Thus far had the worthy writer proceeded with his letter, when Waters made his appearance, delivering to him the declaration in ejectment which had been served upon old Jolter, and also the instructions concerning it which had been given by Mr. Aubrey. After Mr. Parkinson had asked particularly concerning Mr. Aubrey's health, and what had brought him so suddenly to Yatton, he cast his eye hastily over the "Declaration"—and at once and contemptuously came to the same conclusion concerning it which had been arrived at by Waters and Mr. Aubrey, viz. that it was another little arrow out of the quiver of the litigious Mr. Tomkins. As soon as Waters had left, Mr. Parkinson thus proceeded to conclude his letter:—

"Doe dem. Titmouse v. Roe.

"I enclose you Declaration herein, served yesterday. No doubt it is the disputed slip of waste land adjoining the cottage of old Jacob Jolter, a tenant of Mr. Aubrey of Yatton, that is sought to be recovered. I am quite sick of this petty annoyance, as also is Mr. Aubrey, who is now down here. Please call on Messrs. Quirk, Gammon, and Snap, of

Saffron Hill, and settle the matter finally, on the best terms you can; it being Mr. Aubrey's wish that old Jolter (who is very feeble and timid) should suffer no inconvenience. I observe a new lessor of the plaintiff, with a very singular name. I suppose it is the name of some prior holder of the acre or two of property at present held by Mr. Tomkins.

"Hoping soon to hear from you, (particularly about the marriage-settlement,) I am,

"Dear Sirs,
"(With all the compliments of the season,)
"Yours truly,

"JAMES PARKINSON.

"MESSRS. RUNNINGTON & CO.

"P. S.—The oysters and codfish came to hand in excellent order, for which please accept my best thanks.

"I shall remit you in a day or two £100 on account."

This letter, lying among some twenty or thirty similar ones on Mr. Runnington's table, on the morning of its arrival in town, was opened in its turn; and then, in like manner, with most of the others, handed over to the managing clerk, in order that he might inquire into and report upon the state of the various matters of business referred to. As to the last item (*Doe dem. Titmouse v. Roe*) in Mr. Parkinson's letter, there seemed no particular reason for hurrying; so two or three days had elapsed before Mr. Runnington, having some little casual business to transact with Messrs. Quirk, Gammon, and Snap, bethought himself of looking at his Diary, to see if there were not something else that he had to do with that very sharp "house." Putting, therefore, the Declaration in *Doe d. Titmouse v. Roe* into his pocket, it was not long before he was to be seen at the office in Saffron Hill—and in the very room in it which had been the scene of several memorable interviews between Mr. Tittlebat Titmouse and Messrs. Quirk, Gammon, and Snap. I

shall not detail what transpired on that occasion between Mr. Runnington, and Messrs. Quirk and Gammon, with whom he was closeted for nearly an hour. On quitting the office his cheek was flushed, and his manner somewhat excited. After walking a little way in a moody manner and with slow step, he suddenly jumped into a hackney-coach, and within a quarter of an hour's time had secured an inside place in the Tally-ho coach, which started for York at two o'clock that afternoon—much doubting within himself, the while, whether he ought not to have set off at once in a post-chaise and four. He then made one or two calls in the Temple; and, hurrying home to the office, made hasty arrangements for his sudden journey into Yorkshire. He was a calm and experienced man—in fact, a first-rate man of business; and you may be assured that this rapid and decisive movement of his had been the result of some very startling disclosure made to him by Messrs. Quirk and Gammon.

Now, let us glide back to the delightful solitude which we reluctantly quitted so short a time ago.

Mr. Aubrey was a studious and ambitious man; and in acceding so readily to the wishes of his wife and sister, to spend the Christmas recess at Yatton, had been not a little influenced by one consideration, which he had not thought it worth while to mention—namely, that it would afford him an opportunity of addressing himself with effect to a very important and complicated question, which was to be brought before the House shortly after its reassembling, and of which he then knew, comparatively speaking, nothing at all. For this purpose he had had a quantity of Parliamentary papers, &c. &c. &c., packed up and sent down by coach; and he quite gloated over the prospect of their being duly deposited upon his table, in the tranquil leisure of his library, at Yatton. But quietly as he supposed all this to have been managed, Mrs. Aubrey and Kate had a most accurate

knowledge of his movements, and resolved within themselves, (being therein comforted and assisted by old Mrs. Aubrey,) that, as at their instances Mr. Aubrey had come down to Yatton, so they would take care that he should have not merely nominal, but real holidays. Unless he thought fit to rise at an early hour in the morning, (which Mrs. Aubrey, junior, took upon herself to say *she* would take care should never be the case,) it was decreed that he should not be allowed to waste more than two hours a-day alone in his library. 'T was therefore in vain for him to sit at breakfast with eye aslant and thought-laden brow, as if meditating a long day's seclusion; somehow or another, he never got above an hour to himself. He was often momentarily petulant on these occasions, and soon saw through the designs of his enemies; but he so heartily and tenderly loved them—so thoroughly appreciated the affection which dictated their little manœuvres—that he soon surrendered at discretion, and, in fact, placed himself almost entirely at their mercy; resolving to make up for lost time on his return to town, and earnestly hoping that the interests of the nation would not suffer in the mean while! In short, the ladies of Yatton had agreed on their line of operations: that almost every night of their stay in the country should be devoted either to entertaining or visiting their neighbors; and as a preparatory movement, that the days (weather permitting) should be occupied with exercise in the open air; in making "morning" calls on neighbors at several miles' distance from the Hall and from each other; and from which they generally returned only in time enough to dress for dinner. As soon, indeed, as the *York True Blue* (the leading county paper) had announced the arrival at Yatton of "Charles Aubrey, Esq., M. P., and his family, for the Christmas recess," the efforts of Mrs. and Miss Aubrey were most powerfully seconded by a constant succession of visitors—by

"Troops of friends,"

as the lodge-keeper could have testified; for he and his buxom wife were continually opening and shutting the great gates. On the Monday after Christmas-day, (*i. e.* the day but one following,) came cantering up to the Hall Lord De la Zouch and Mr. Delamere, of course staying to luncheon and bearing a most pressing invitation from Lady De la Zouch, zealously backed by themselves, for the Aubreys to join a large party at Fotheringham Castle on New-Year's Eve. This was accepted—a day and a night were thus gone at a swoop. The same thing happened with the Oldfields, their nearest neighbors; with Sir Percival Pickering at Luddington Court, where was a superb new picture-gallery to be critically inspected by Mr. Aubrey—the Earl of Oldacre, a college friend of Mr. Aubrey's—the venerable Lady Stratton, the earliest friend and schoolfellow of old Mrs. Aubrey, and so forth. Then Kate had several visits to pay on her own account; and being fond of horseback, but not of riding about the country with only a groom in attendance, her brother *must* accompany her on these occasions. The first week of their stay in the country was devoted to visiting their neighbors and friends in the way I have stated; the next was to be spent in receiving them at Yatton, during which time the old Hall was to ring with merry hospitality.

Then there was a little world of other matters to occupy Mr. Aubrey's attention, and which naturally crowded upon him, living so little as he had latterly lived at Yatton. He often had a kind of levee of his humbler neighbors, tenants, and constituents; and on these occasions his real goodness of nature, his simplicity, his patience, his forbearance, his sweetness of temper, his benevolence, shone conspicuous. With all these more endearing qualities, there was yet a placid dignity about him which would have chilled undue familiarity, and repelled presumption—had they ventured to manifest themselves. He had here no motive or occasion for ostentation, or, as it is called, popularity-hunting. In a sense it might be said

of him, that he was "monarch of all he surveyed." It is true, he was member for the borough—an honor, however, for which he was indebted to the natural influence of his commanding position—one which left him his own master, not converting him into a paltry delegate, handcuffed by pledges on public questions, and laden with injunctions concerning petty local interests only—liable, moreover, to be called to an account at any moment by ignorant and insolent demagogues—but a member of Parliament training to become a statesman, possessed of a free-will, and therefore capable of independent and enlightened deliberations; placed by his fortune above the reach of temptation—but I shall not go any farther, for the portraiture of a member of Parliament of those days suggests such a humiliating and bitter contrast, that I shall not ruffle either my own or my reader's temper by sketching one of modern days. On the occasions I have been alluding to, Mr. Aubrey was not only condescending and generous, but practically acute and discriminating; qualities of his, these latter, so well known, however, as to leave him at length scarce any opportunities of exercising them. His quiet but decisive interference put an end to many local unpleasantnesses and annoyances, and caused his increasing absence from Yatton to be very deeply regretted. Was a lad or a wench taking to idle and dissolute courses? A kind, or, as the occasion required, a stern expostulation of his—for he was a justice of the peace moreover—brought them to their senses. He had a very happy knack of reasoning and laughing quarrelsome neighbors into reconciliation and good-humor. He had a keen eye after the practical details of agriculture; was equally quick at detecting an inconvenience, and appreciating—sometimes even suggesting—a remedy; and had, on several occasions, brought such knowledge to bear very effectively upon discussions in Parliament. His constituents, few in number undoubtedly, and humble, were quite satisfied with, and proud of, their member; and his

unexpected appearance diffused among them real and general satisfaction. As a landlord, he was beloved by his numerous tenantry; and well he might—for never was there so easy and liberal a landlord: he might at any time have increased his rental by £1,500 or £2,000 a-year, as his steward frequently intimated to him—but in vain. "Ten thousand a-year," would say Mr. Aubrey, "is far more than my necessities require—it affords me and my family every luxury that I can conceive of; and its magnitude reminds me constantly that hereafter I shall be called upon to give a very strict and solemn account of *my* stewardship." I would my space could admit of my completing, as it ought to be completed, this portraiture of a true Christian gentleman!

As he rode up to the Hare and Hounds Inn, at Grilston, one morning, to transact some little business, and also to look in on the Farmers' Club, which was then holding one of its fortnightly meetings, (every one touching his hat and bowing to him on each side of the long street, as he slowly passed up it,) he perceived that his horse limped on one foot. On dismounting, therefore, he stopped to see what was the matter, while his groom took up the foot to examine it.

"Dey-vilish fine horse!" exclaimed the voice of one standing close beside him, and in a tone of most disagreeable confidence. The exclamation was addressed to Mr. Aubrey; who, on turning to the speaker, beheld a young man—('twas, in fact, Titmouse)—dressed in a style of the most extravagant absurdity. One hand was stuck into the hinder pocket of a stylish top-coat, (the everlasting tip of a white pocket-handkerchief glistening at the mouth of his breast-pocket;) the other held a cigar to his mouth, from which, as he addressed Mr. Aubrey with an air of signal assurance, he slowly expelled the smoke which he had inhaled. Mr. Aubrey turned towards him with a

cold and surprised air, without replying; at the same time wondering where he had seen the ridiculous object before.

"The horses in these parts ar'n't to be compared with them at London—eh, sir?" quoth Titmouse, approaching closer to Mr. Aubrey and his groom, to see what the latter was doing—who, on hearing Titmouse's last sally, gave him a very significant look.

"I'm afraid the people here won't relish your remarks, sir!" replied Mr. Aubrey, calmly—hardly able to forbear a smile; at the same time, with an astonished air, scanning the figure of his companion from head to foot.

"Who cares?" inquired Titmouse, with a very energetic oath. At this moment up came a farmer, who, observing Mr. Aubrey, made him a very low bow. Mr. Aubrey's attention being at the moment occupied with Titmouse, he did not observe the salutation; not so with Titmouse, who, conceiving it to have been directed to himself, acknowledged it by taking off his hat with great grace! Mr. Aubrey presently entered the house, having ordered his groom to bring back the horse in an hour's time.

"Pray," said he, mildly, to the landlady, "who is that person smoking the cigar outside?"

"Why, sir," she replied, "he's a Mr. *Brown*; and has another with him here—who's going up to London by this afternoon's coach—this one stays behind a day or two longer. They're queer people, sir. Such dandies! Do nothing but smoke, and drink brandy and water, sir; only that t' other writes a good deal."

"Well, I wish you would remind him," said Mr. Aubrey, smiling, "that, if he thinks fit to speak to *me* again, or in my presence, I am a magistrate, and have the power of fining him five shillings for every oath he utters."

"What! sir," quoth she, reverently—"has he been speaking to *you*? Well, I never!! He's the most forward little upstart I ever see'd!" said she, dropping

her voice; "and the sooner he takes himself off from here the better; for he's always winking at the maids and talking impudence to them. I'll box his ears, I warrant him, one of these times!" Mr. Aubrey smiled, and went upstairs.

"There don't seem to be *much* wrong," quoth Titmouse to the groom, with a condescending air, as soon as Mr. Aubrey had entered the house.

"Much you know about it, I don't guess!" quoth Sam, with a contemptuous smile.

"Who's your master, fellow?" inquired Titmouse, knocking off the ashes from the tip of his cigar.

"A gentleman. What's *yours*?"

"Curse your impudence, you vagabond!"—— The words were hardly out of his mouth before Sam, with a slight tap of his hand, had knocked Titmouse's glossy hat off his head, and Titmouse's purple-hued hair stood exposed to view, provoking the jeers and laughter of one or two bystanders. Titmouse appeared about to strike the groom; who, hastily giving the bridles of his horses into the hands of an hostler, threw himself into boxing attitude; and being a clean, tight-built, stout young fellow, looked a very formidable object, as he came squaring nearer and nearer to the dismayed Titmouse; and on behalf of the outraged honor of all the horses of Yorkshire, was just going to let fly his *one-two*, when a sharp tapping at the bow-window overhead startled him for a moment, interrupting his war-like demonstrations; and, on casting up his eyes, he beheld the threatening figure of his master, who was shaking his whip at him. He dropped his guard, touched his hat very humbly, and resumed his horses' bridles; muttering, however, to Titmouse, "If thou'rt a man, come down into t' yard, and I'll mak thee think a horse kicked thee, a liar as thou art!"

"Who's that gentleman gone up-stairs?" inquired Titmouse of the landlady, after he had sneaked into the inn.

"Squire Aubrey of Yatton," she replied tartly. Titmouse's face, previously very pale, flushed all over. "Ay, ay," she continued sharply—"thou *must* be chattering to the grand folks, and thou'st nearly put thy foot into 't at last, I can tell thee; for that's a magistrate, and thou'st been a-swearing afore him." Titmouse smiled rather faintly; and entering the parlor, affected to be engaged with a county newspaper; and he remained very quiet for upwards of an hour, not venturing out of the room till he had seen off Mr. Aubrey and his formidable Sam.

It was the hunting season; but Mr. Aubrey, though he had as fine horses as were to be found in the county, and which were always at the service of his friends, partly from want of inclination, and partly from the delicacy of his constitution, never shared in the sports of the field. Now and then, however, he rode to cover, to see the hounds throw off, and exchange greetings with a great number of his friends and neighbors, on such occasions collected together. This he did, the morning after that on which he had visited Grilston, accompanied, at their earnest entreaty, by Mrs. Aubrey and Kate. I am not painting angels, but describing frail human nature; and truth forces me to say, that Kate had a kind of a notion that on such occasions she did not appear to disadvantage. I protest I love her not the less for it! Is there a beautiful woman under the sun who is not really aware of her charms, and of the effect they produce upon our sex? Pooh! I never will believe to the contrary. In Kate's composition this ingredient was but an imperceptible alloy in virgin gold. Now, how was it that she came to think of this hunting appointment? I do not exactly know; but I recollect that when Lord De la Zouch last called at Yatton, he happened to mention it at lunch, and to say that he and one Geoffrey Lovel Delamere—— but

however that may be, behold, on a bright Thursday morning, Aubrey and his two lovely companions made their welcome appearance at the field, superbly mounted, and most cordially greeted by all present. Miss Aubrey attracted universal admiration; but there was one handsome youngster, his well-formed figure showing to great advantage in his new pink and leathers, who made a point of challenging her special notice, and in doing so, attracting that of all his envious fellow-sportsmen; and that was Delamere. He seemed, indeed, infinitely more taken up with the little party from Yatton than with the serious business of the day. His horse, however, had an eye to business; and with erect ears, catching the first welcome signal sooner than the gallant person who sat upon it, sprang off like lightning and would have left its abstracted *rider* behind, had he not been a first-rate "*seat*." In fact, Kate herself was not sufficiently on her guard; and her eager filly suddenly put in requisition all her rider's little and skill to rein her in—which having done, Kate's eye looked rather anxiously after her late companion, who, however, had already cleared the first hedge, and was fast making up to the scattering scarlet crowd. Oh, the bright exhilarating scene!

"Heigh ho—Agnes!" said Kate, with a slight sigh, as soon as Delamere had disappeared—"I was very nearly off."

"So was somebody else, Kate!" said Mrs. Aubrey, with a sly smile.

"This is a very cool contrivance of yours, Kate,—bringing us here this morning," said her brother, rather gravely.

"What *do* you mean, Charles?" she inquired, slightly reddening. He good-naturedly tapped her shoulder with his whip, laughed, urged his horse into a canter, and they were all soon on their way to General Grim's, an old friend of the late Mr. Aubrey's.

The party assembled on New-Year's Eve at Fotheringham Castle, the magnificent residence of Lord De la Zouch, was numerous and brilliant.

The Aubreys arrived about five o'clock; and on emerging from their respective apartments into the drawing-room, soon after the welcome sound of the dinner bell—Mr. Aubrey leading in his lovely wife, followed shortly afterwards by his beautiful sister—they attracted general attention. He himself looked handsome, for the brisk country air had brought out a glow upon his too frequently pallid countenance—pallid with the unwholesome atmosphere, the late hours, the wasting excitement of the House of Commons; and his smile was cheerful, his eye bright and penetrating. Nothing makes such quick triumphant way in English society, as the promise of speedy political distinction. It will supply to its happy possessor the want of family and fortune—it rapidly melts away all distinctions. The obscure but eloquent commoner finds himself suddenly standing in the rarefied atmosphere of privilege and exclusiveness—the familiar equal, often the conscious superior, of the haughtiest peer of the realm. A single successful speech in the House of Commons, opens before its utterer the shining doors of fashion and greatness as if by magic. It is as it were POWER stepping into its palace, welcomed by gay crowds of eager, obsequious expectants. Who would not press forward to grasp in anxious welcome the hand which, in a few short years, may dispense the glittering baubles sighed after by the great, and the more substantial patronage of office—which may point public opinion in any direction? But, to go no farther, what if to all this be added a previous position in society, such as that occupied by Mr. Aubrey! There were several very fine women, married and single, in that splendid drawing-room; but there were two girls, in very different styles of beauty, who were soon allowed by all present to carry off the palm between them—I mean Miss Aubrey and Lady Caroline Caversham, the only daughter of the Marchioness of Redborough, both of whom were on a visit at the castle of some duration. Lady Caroline and Miss Aubrey were of

about the same age, and dressed almost exactly alike, viz. in white satin; only Lady Caroline wore a brilliant diamond necklace, whereas Kate had chosen to wear not a single ornament.

Lady Caroline was a trifle the taller, and had a very stately carriage. Her hair was black as jet—her features were refined and delicate; but they wore a very cold, haughty expression. After a glance at her half-closed eyes, and the swan-like curve of her snowy neck, you unconsciously withdrew from her, as from an inaccessible beauty. The more you looked at her, the more she satisfied your critical scrutiny; but your *feelings* went not out towards her—they were, in a manner, chilled and repulsed. Look, now, at our own Kate Aubrey—nay, never fear to place her beside yon supercilious divinity—look at her, and your *heart* acknowledges her loveliness; your soul thrills at sight of her bewitching blue eyes—eyes now sparkling with excitement, then languishing with softness, in accordance with the varying emotions of a sensitive nature—a most susceptible heart. How her sunny curls harmonize with the delicacy and richness of her complexion! Her figure, observe, is, of the two, a trifle fuller than her rival's—stay, don't let your admiring eyes settle so intently upon her budding form, or you will confuse Kate—turn away, or she will shrink from you like the sensitive plant! Lady Caroline seems the exquisite but frigid production of a skilful statuary, who had caught a divinity in the very act of disdainfully setting her foot for the first time upon this poor earth of ours; but Kate is a living and breathing beauty—as it were, fresh from the hand of God himself!

Kate was very affectionately greeted by Lady De la Zouch, a lofty and dignified woman of about fifty; so also by Lord De la Zouch; but when young Delamere welcomed her with a palpable embarrassment of manner, a more brilliant color stole into her cheek, and a keen observer might have noticed a little, rapid, undulating motion in her bosom, which told of some

inward emotion. And a keen observer Kate at that moment had in her beautiful rival; from whose cheek, as that of Kate deepened in its roseate bloom, faded away the color entirely, leaving it the hue of the lily. Her drooping eyelids could scarcely conceal the glances of alarm and anger which she darted at her plainly successful rival in the affections of the future Lord De la Zouch. Kate was quickly aware of this state of matters; and it required no little self-control to appear *unaware* of it. Delamere took her down to dinner, and seated himself beside her, and paid her such pointed attentions as at length really distressed her; and she was quite relieved when the time came for the ladies to withdraw. That she had not a secret yearning towards Delamere, the frequent companion of her early days, I cannot assert, because I know it would be contrary to the fact. Circumstances had kept him on the Continent for more than a year between the period of his quitting Eton and going to Oxford, where another twelve-month had slipped away without his visiting Yorkshire: thus two years had elapsed—and behold Kate had become a woman and he a man! They had mutual predispositions towards each other, and 'twas mere accident which of them first manifested symptoms of fondness for the other—the same result must have followed, namely, (to use a great word,) reciprocation. Lord and Lady De la Zouch idolized their son, and were old and very firm friends of the Aubrey family; and, if Delamere really formed an attachment to one of Miss Aubrey's beauty, accomplishments, talent, amiability, and ancient family—why should he not be gratified? Kate, whether she would or not, was set down to the piano, Lady Caroline accompanying her on the harp—on which she usually performed with mingled skill and grace; but on the present occasion, both the fair performers found fault with their instruments—then with themselves—and presently gave up the attempt in despair. But when, at a later period of the evening, Kate's spirits had been a

little exhilarated with dancing, and she sat down, at Lord De la Zouch's request, and gave that exquisite song from the *Tempest*—"Where the bee sucks"—all the witchery of her voice and manner had returned; and as for Delamere, he would have given the world to marry her that minute, and so forever extinguish the hopes of—as he imagined—two or three nascent competitors for the beautiful prize then present.

That Kate was good as beautiful, the following little incident, which happened to her on the ensuing evening, will show. There was a girl in the village at Yatton, about sixteen or seventeen years old, called Phœbe Williams; a very pretty girl, and who had spent about two years at the Hall as a laundry-maid, but had been obliged, some few months before the time I am speaking of, to return to her parents in the village, ill of a decline. She had been a sweet-tempered girl in her situation, and all her fellow-servants felt great interest in her, as also did Miss Aubrey. Mrs. Aubrey sent her daily jellies, sago, and other such matters, suitable for the poor girl's condition; and about a quarter of an hour after her return from Fotheringham, Miss Aubrey, finding one of the female servants about to set off with some of the above-mentioned articles, and hearing that poor Phœbe was getting rapidly worse, instead of retiring to her room to undress, slipped on an additional shawl, and resolved to accompany the servant to the village. She said not a word to either her mother, her sister-in-law, or her brother; but simply left word with her maid whither she was going, and that she should quickly return. It was snowing smartly when Kate set off; but she cared not, hurried on by the impulse of kindness, which led her to pay perhaps a last visit to the humble sufferer. She walked alongside of the elderly female servant, asking her a number of questions about Phœbe, and her sorrowing father and mother. It was nearly dark as they quitted the Park gates, and snowing, if anything, faster than when they had left the Hall. Kate, wrapping her

shawl still closer round her slender figure, her face being pretty well protected by her veil, hurried on, and they soon reached Williams' cottage. Its humble tenants were, as may be imagined, not a little surprised at her appearance at such an hour and in such inclement weather, and so apparently unattended. Poor Phœbe, worn to a shadow, was sitting opposite the fire, in a little wooden armchair, and propped up by a pillow. She trembled, and her lips moved on seeing Miss Aubrey, who, sitting down on a stool beside her, after laying aside her snow-whitened shawl and bonnet, spoke to her in the most gentle and soothing strain imaginable. What a contrast in their two figures! 'T would have been no violent stretch of imagination to say, that Catherine Aubrey at that moment looked like a ministering angel sent to comfort the wretched sufferer in her extremity. Phœbe's father and mother stood on each side of the little fireplace, gazing with tearful eyes upon their only child, soon about to depart from them forever. The poor girl was indeed a touching object. She had been very pretty, but now her face was white and wofully emaciated—the dread impress of consumption was upon it. Her wasted fingers were clasped together on her lap, holding between them a little handkerchief, with which, evidently with great effort, she occasionally wiped the dampness from her face.

"You're very good, ma'am," she whispered, "to come to see me, and so late. They say it's a sad cold night."

"I heard, Phœbe, that you were not so well, and I thought I would just step along with Margaret, who has brought you some more jelly. Did you like the last!"

"Y-e-s, ma'am," she replied hesitatingly; "but it's *very* hard for me to swallow anything now, my throat feels so sore." Here her mother shook her head and looked aside; for the doctor had only that morning explained to

her the nature of the distressing symptom to which her daughter was alluding—as evidencing the very last stage of her fatal disorder.

"I'm very sorry to hear you say so, Phœbe," replied Miss Aubrey. "Do you think there's anything else that Mrs. Jackson could make for you?"

"No, ma'am, thank you; I feel it's no use trying to swallow anything more," said poor Phœbe, faintly.

"While there's life," whispered Miss Aubrey, in a subdued, hesitating tone, "there's hope—*they say*." Phœbe shook her head mournfully.

"Don't stop long, dear lady—it's getting very late for you to be out alone. Father will go"——

"Never mind me, Phœbe—I can take care of myself. I hope you mind what good Dr. Tatham says to you? You know this sickness is from God, Phœbe. He knows what is best for his creatures."

"Thank God, ma'am, I think I feel resigned. I know it is God's will; but I'm very sorry for poor father and mother—they'll be so lone like when they don't see Phœbe about." Her father gazed intently at her, and the tears ran trickling down his cheeks; her mother put her apron before her face, and shook her head in silent anguish. Miss Aubrey did not speak for a few moments. "I see you have been reading the prayer-book mamma gave you when you were at the Hall," said she at length, observing the little volume lying open on Phœbe's lap.

"Yes, ma'am—I was *trying*; but somehow lately, I can't read, for there's a kind of mist comes over my eyes, and I can't see."

"That's weakness, Phœbe," said Miss Aubrey, quickly but tremulously.

"May I make bold, ma'am," commenced Phœbe, languidly, after a hesitating pause, "to ask *you* to read the little psalm I was trying to read a while ago? I should so like to hear *you*."

"I'll try, Phœbe," said Miss Aubrey, taking the book, which was open at the sixth psalm. 'Twas a severe trial, for her feelings were not a little excited already. But how could she refuse the dying girl? So Miss Aubrey began a little indistinctly, in a very low tone, and with frequent pauses; for the tears every now and then quite obscured her sight. She managed, however, to get as far as the sixth verse, which was thus:—

"I am weary of my groaning: every night wash I my bed, and water my couch with tears: My beauty is gone for very trouble."

Here Kate's voice suddenly stopped. She buried her face for a moment or two in her handkerchief, and said hastily, "I can't read any more, Phœbe!" Every one in the little room was in tears except poor Phœbe, who seemed past that.

"It's time for me to go, now, Phœbe. We'll send some one early in the morning to know how you are," said Miss Aubrey, rising and putting on her bonnet and shawl. She contrived to beckon Phœbe's mother to the back of the room, and silently slipped a couple of guineas into her hands; for she knew the mournful occasion there would soon be for such assistance! She then left, peremptorily declining the attendance of Phœbe's father—saying that it *must* be dark when she could not find the way to the Hall, which was almost in a straight line from the cottage, and little more than a quarter of a mile off. It was very much darker, and it still snowed, though not so thickly as when she had come. She and Margaret walked side by side, at a quick pace, talking together about poor Phœbe. Just as she was approaching the extremity of the village, nearest the park—

"Ah! my lovely gals!" exclaimed a voice, in a low but most offensive tone—"alone? How uncommon"—Miss Aubrey for a moment seemed thunderstruck at so sudden and unprecedented an occurrence: then she hurried on with a beating heart, whispering to Margaret to keep close to her, and not to be alarmed. The speaker, however, kept pace with them.

"Lovely gals!—wish I'd an umbrella, my angels!—Take my arm? Ah! Pretty gals!"

"Who *are* you, sir?" at length exclaimed Kate, spiritedly, suddenly stopping, and turning to the rude speaker.

[Who else should it be but Tittlebat Titmouse!] "Who am I? Ah, ha! Lovely gals! one that loves the pretty gals!"

"Do you know, fellow, who I am?" inquired Miss Aubrey, indignantly, flinging aside her veil, and disclosing her beautiful face, white as death, but indistinctly visible in the darkness, to her insolent assailant.

"No, 'pon my soul, no; but lovely gal! lovely gal!—'pon my life, spirited gal!—do you no harm! Take my arm?"——

"Wretch! ruffian! How dare you insult a lady in this manner? Do you know who I am? My name, sir, is Aubrey—I am Miss Aubrey of the Hall! Do not think"——

Titmouse felt as if he were on the point of dropping down dead at that moment, with amazement and terror; and when Miss Aubrey's servant screamed out at the top of her voice, "Help!—help, there!" Titmouse, without uttering a syllable more, took to his heels, just as the door of a cottage, at only a few yards' distance, opened, and out rushed a strapping farmer, shouting—"Hey! what be t' matter?" You may guess his amazement on discovering Miss Aubrey, and his fury at learning the cause of her alarm. Out of doors he pelted, without his hat, uttering a volley of fearful imprecations, and calling on the unseen miscreant to come forward; for whom it was lucky that he had time to escape from a pair of fists that in a minute or two would have beaten his little carcass into a jelly! Miss Aubrey was so overcome by the shock she had suffered, that but for a glass of water she might have fainted. As soon as she had a little recovered from her agitation, she set off home, accompanied by Margaret, and followed very closely by the farmer, with a tremendous knotted stick under his arm—he wanted to have taken his double-barrelled gun—and thus she soon reached the Hall, not a little tired and agitated. This little incident, however, she kept to herself, and enjoined her two attendants to do the same; for she knew the

distress it would have occasioned those whom she loved. As it was she was somewhat sharply rebuked by her mother and brother, who had just sent two servants out in quest of her, and whom it was singular that she should have missed. This is not the place to give an account of the eccentric movements of our friend Titmouse; still there can be no harm in my just mentioning that the sight of Miss Aubrey on horseback had half maddened the little fool; her image had never been effaced from his memory since the occasion on which, as already explained, he had first seen her; and as soon as he had ascertained, through Snap's inquiries, who she was, he became more frenzied in the matter than before, because he thought he now saw a probability of obtaining her. "If, like children," says Edmund Burke, "we will cry for the moon, why, like children, we must—*cry on*." Whether this was not something like the position of Mr. Tittlebat Titmouse, in his passion for CATHERINE AUBREY, the reader can judge. He had unbosomed himself in the matter to his confidential adviser, Mr. Snap; who, having accomplished his errand, had the day before returned to town, very much against his will, leaving Titmouse behind, to bring about, by his own delicate and skilful management, an union between himself, as the future lord of Yatton, and the beautiful sister of its present occupant.

CHAPTER IX.

Mr. Aubrey and Kate, some day or two after the strange occurrence narrated in the last chapter, were sitting together playing at chess, about eight o'clock in the evening; Dr. Tatham and Mrs. Aubrey, junior, looking on with much interest; old Mrs. Aubrey being engaged in writing. Mr. Aubrey was sadly an overmatch for poor Kate—he being in fact a first-rate player; and her soft white hand had been hovering over the three or four chessmen she had left, uncertain which of them to move, for nearly two minutes, her chin resting on the other hand, and her face wearing a very puzzled expression. "Come, Kate," said every now and then her brother, with that calm victorious smile which at such a moment would have tried any but so sweet a temper as his sister's. "If *I* were you, Miss Aubrey," was perpetually exclaiming Dr. Tatham, knowing as much about the game the while as the little Blenheim spaniel lying asleep at Miss Aubrey's feet. "Oh dear!" said Kate, at length, with a sigh, "I really don't see how to escape"——

"Who can that be?" exclaimed Mrs. Aubrey, looking up and listening to the sound of carriage wheels.

"Never mind," said her husband, who was interested in the game—"come, come, Kate." A few minutes afterwards a servant made his appearance, and coming up to Mr. Aubrey, told him that Mr. Parkinson and another gentleman had called, and were waiting in the library to speak to him on business.

"What can they want at this hour?" exclaimed Mr. Aubrey, absently, intently watching an anticipated move of his sister's, which would have decided the game in his favor. At length she made her long-meditated descent—but in quite an unexpected quarter.

"Checkmate!" she exclaimed with infinite glee.

"Ah!" cried he, rising with a slightly surprised and chagrined air, "I'm ruined! Now, try your hand on Dr. Tatham, while I go and speak to these people. I wonder what can possibly have brought them here. Oh, I see—I see; 'tis probably about Miss Evelyn's marriage-settlement—I'm to be one of her trustees." With this he left the room, and presently entered the library, where were two gentlemen, one of whom, a stranger, was in the act of pulling off his great-coat. It was Mr. Runnington; a tall, thin, elderly man, with short gray hair—of gentlemanly appearance—his countenance bespeaking the calm, acute, clear-headed man of business. The other was Mr. Parkinson; a thoroughly respectable, substantial-looking, hard-headed family solicitor and country attorney.

"Mr. Runnington, my London agent, sir," said he to Mr. Aubrey, as the latter entered. Mr. Aubrey bowed.

"Pray, gentlemen, be seated," he replied with his usual urbanity of manner, taking a chair beside them.

"Why, Mr. Parkinson, you look very serious—both of you. What is the matter?" he inquired surprisedly.

"Mr. Runnington, sir, has arrived, most unexpectedly to me," replied Mr. Parkinson, "only an hour or two ago, from London, on business of the last importance to you."

"*To me!*—well, what is it? Pray, say at once what it is—I am all attention," said Mr. Aubrey, anxiously.

"Do you happen," commenced Mr. Parkinson, very nervously, "to remember sending Waters to me on Monday or Tuesday last, with a paper which had been served by some one on old Jolter?"

"Certainly," replied Mr. Aubrey, after a moment's consideration.

"Mr. Runnington's errand is connected with that document," said Mr. Parkinson, and paused.

"Indeed!" exclaimed Mr. Aubrey, apparently a little relieved. "I assure you, gentlemen, you very greatly over-estimate the importance I attach to anything that such a troublesome person as Mr. Tomkins can do, if I am right in supposing that it is he who—Well, then, what is the matter?" he inquired quickly, observing Mr. Parkinson shake his head, and interchange a grave look with Mr. Runnington; "you cannot think, Mr. Parkinson, how you will oblige me by being explicit."

"This paper," said Mr. Runnington, holding up that which Mr. Aubrey at once identified as the one on which he had cast his eye upon its being handed to him by Waters, "is a Declaration in Ejectment, with which Mr. Tomkins has nothing whatever to do. It is served virtually on *you*, and *you* are the real defendant."

"So I apprehend that I was in the former trumpery action!" replied Mr. Aubrey, smiling.

"Do you recollect, sir," said Mr. Parkinson, with a trepidation which he could not conceal, "several years ago, some serious conversation which you and I had together on the state of your title—when I was preparing your marriage-settlements?"

Mr. Aubrey started, and his face was suddenly blanched.

"The matters which we then discussed have suddenly acquired fearful importance. This paper occasions us, on your account, the profoundest anxiety." Mr. Aubrey continued silent, gazing on Mr. Parkinson with intensity.

"Supposing, from a hasty glance at it, and from the message accompanying it, that it was merely another action of Tomkins's about the slip of waste land attached to Jolter's cottage, I sent up to London to my

agents, Messrs. Runnington, requesting them to call on the plaintiff's attorneys, and settle the action. He did so; and—perhaps you will explain the rest," said Mr. Parkinson, with visible trepidation, to Mr. Runnington.

"Certainly," said that gentleman, with a serious air, but much more calmly and firmly than Mr. Parkinson had spoken. "I called accordingly, early yesterday morning, on Messrs. Quirk, Gammon, and Snap—they are a very well—but not enviably—known firm in the profession; and in a few minutes my misconception of the nature of the business which I had called to arrange, was set right. In short"—— he paused, as if distressed at the intelligence which he was about to communicate.

"Oh, pray, pray go on, sir!" said Mr. Aubrey, in a low tone.

"I am no stranger, sir, to your firmness of character; but I shall have to tax it, I fear, to its uttermost. To come at once to the point—they told me that I might undoubtedly *settle* the matter, if you would consent to give up immediate possession of *the whole Yatton estate*, and account for the mesne profits to their client, the right heir—as they contend—a Mr. Tittlebat Titmouse." Mr. Aubrey leaned back in his chair, overcome, for an instant, by this astounding intelligence; and all three of them preserved silence for more than a minute. Mr. Runnington was a man of a very feeling heart. In the course of his great practice he had had to encounter many distressing scenes; but probably none of them had equalled that in which, at the earnest entreaty of Mr. Parkinson, who distrusted his own self-possession, he now bore a leading part. The two attorneys interchanged frequent looks of deep sympathy for their unfortunate client, who seemed as if stunned by the intelligence they had brought him.

"I felt it my duty to lose not an instant in coming down to Yatton," resumed Mr. Runnington, observing Mr. Aubrey's eye again directed inquiringly towards him; "for Messrs. Quirk, Gammon, and Snap are very

dangerous people to deal with, and must be encountered promptly, and with the greatest possible caution. The moment that I had left them, I hastened to the Temple, to retain for you Mr. Subtle, the leader of the Northern Circuit; but they had been beforehand with me, and retained him nearly three months ago, together with another eminent king's counsel on the circuit. Under these circumstances, I lost no time in giving a special retainer to the Attorney-General, in which I trust I have done right, and in retaining as junior a gentleman whom I consider to be incomparably the ablest and most experienced lawyer on the circuit."

"Did they say anything concerning the nature of their client's title?" inquired Mr. Aubrey, after some expressions of amazement and dismay.

"Very little—I might say, nothing. If they had been *never* so precise, of course I should have distrusted every word they said. They certainly mentioned that they had had the first conveyancing opinions in the kingdom, which concurred in favor of their client; that they had been for months prepared at all points, and accident only had delayed their commencing proceedings till now."

"Did you make any inquiries as to who the claimant was?" inquired Mr. Aubrey.

"Yes; but all I could learn was, that they had discovered him by mere accident; and that he was at present in very obscure and distressed circumstances. I tried to discover by what means they proposed to commence and carry on so expensive a contest; but they smiled significantly, and were silent." Another long pause ensued, during which Mr. Aubrey was evidently silently struggling with very agitating emotions.

"What is the meaning of their affecting to seek the recovery of only one insignificant portion of the property?" he inquired.

"It is their own choice—it may be from considerations of mere convenience. The title, however, by which they may succeed in obtaining what they at present go for, will avail to recover every acre of the estate, and the present action will consequently decide everything!"

"And suppose the worst—that they are successful," said Mr. Aubrey, after they had conversed a good deal, and very anxiously, on the subject of a presumed infirmity in Mr. Aubrey's title, which had been pointed out to him in general terms by Mr. Parkinson, on the occasion already adverted to—"what is to be said about the rental which I have been receiving all this time—ten thousand a-year?" inquired Mr. Aubrey, looking as if he dreaded to hear his question answered.

"Oh! that's quite an after consideration—let us first fight the battle," said Mr. Runnington.

"I beg, sir, that you will withhold nothing from me," said Mr. Aubrey. "To what extent shall I be liable?"

Mr. Runnington paused.

"I am afraid that *all* the mesne profits, as they are called, which you have received"—commenced Mr. Parkinson——

"No, no," interrupted Mr. Runnington; "I have been turning that matter over in my mind, and I think that the statute of limitations will bar all but the last six years"——

"Why, *that* will be sixty thousand pounds!" interrupted Mr. Aubrey, with a look of sudden despair. "Gracious Heavens, that is perfectly frightful!—frightful! If I lose Yatton, I shall not have a place to put my head in—not one farthing to support myself with! And yet to have to make up *sixty thousand pounds!*" The perspiration bedewed his forehead, and his eye was laden with alarm and agony. He slowly rose from his chair and bolted the

door, that they might not, at such an agitating moment, be surprised or disturbed by any of the servants or the family.

"I suppose," said he, in a faint and tremulous tone, "that if this claim succeed, my mother also will share my fate"——

They shook their heads in silence.

"Permit me to suggest," said Mr. Runnington, in a tone of the most respectful sympathy, "that sufficient for the day is the evil thereof."

"But the NIGHT follows!" said Mr. Aubrey, with a visible tremor; and his voice made the hearts of his companions thrill within them. "I have a fearful misgiving as to the issue of these proceedings! I ought not to have neglected the matter pointed out to me by Mr. Parkinson on my marriage! I feel as if I had been culpably lying by ever since!—But I really did not attach to it the importance it deserved: I never, indeed, distinctly appreciated the nature of what was then mentioned to me!"

"A thousand pities that a *fine* was not *levied*, is it not?" said Mr. Runnington, turning with a sigh to Mr. Parkinson.

"Ay, indeed it is!" replied that gentleman—and they spoke together for some time, and very earnestly, concerning the nature and efficacy of such a measure, which they explained to Mr. Aubrey.

"It comes to this," said he, "that in all probability, I and my family are at this moment"—he shuddered—"trespassers at Yatton!"

"That, Mr. Aubrey," said Mr. Parkinson, earnestly, "remains to be proved! We really are getting on far too fast. A person who heard us might suppose that the jury had already returned a verdict against us—that judgment had been signed—and that the sheriff was coming in the morning to execute the writ of possession in favor of our opponent." This was well meant by the speaker; but surely it was like talking of the machinery of the ghastly guillotine to the wretch in shivering expectation of suffering by it on the

morrow. An involuntary shudder ran through Mr. Aubrey. "Sixty thousand pounds!" he exclaimed, rising and walking to and fro. "Why, I am ruined beyond all redemption! How can I ever satisfy it?" Again he paced the room several times, in silent agony. Presently he resumed his seat. "I have, for these several days past, had a strange sense of impending calamity," said he, more calmly—"I have been equally unable to account for, or get rid of it. It may be an intimation from Heaven; I bow to its will!"

"We must remember," said Mr. Runnington, "that '*possession is nine-tenths of the law*;' which means, that your mere possession will entitle you to retain it against all the world, till a stronger title than yours to the right of possession be made out. You stand on a mountain; and it is for your adversary to displace you, not by showing merely that you have no real title, but that *he has*. If he could prove all your title-deeds to be merely waste paper—that in fact you have no more title to Yatton than I have—he would not, if he were to stop there, have advanced his own case an inch; he must *first* establish in himself a clear and independent title; so that you are entirely on the defensive; and rely upon it, that though never so many screws may be loose, so acute and profound a lawyer as the Attorney-General will impose every difficulty on our opponents"——

"Nay, but God forbid that any unconscientious advantage should be taken on my behalf!" said Mr. Aubrey. Mr. Runnington and Mr. Parkinson both opened their eyes pretty wide at this sally; the latter could not at first understand why *everything* should not be fair in war; the former saw and appreciated the nobility of soul which had dictated the exclamation.

"I suppose the affair will soon become public," said Mr. Aubrey, with an air of profound depression, after much further conversation.

"Your position in the county, your eminence in public life, the singularity of the case, and the magnitude of the stake—all are circumstances

undoubtedly calculated soon to urge the affair before the notice of the public," said Mr. Runnington.

"What disastrous intelligence to break to my family!" exclaimed Mr. Aubrey, tremulously. "With what fearful suddenness it has burst upon us! But something, I suppose," he presently added with forced calmness, "must be done immediately?"

"Undoubtedly," replied Mr. Runnington. "Mr. Parkinson and I will immediately proceed to examine your title-deeds, the greater portion of which are, I understand, here in the Hall, and the rest at Mr. Parkinson's; and prepare, without delay, a case for the opinion of the Attorney-General, and also of the most eminent conveyancers of the kingdom. Who, by the way," said Mr. Runnington, addressing Mr. Parkinson—"who was the conveyancer that had the abstracts before him, on preparing Mr. Aubrey's marriage-settlement?"

"Oh, you are alluding to the '*Opinion*' I mentioned to you this evening?" inquired Mr. Parkinson. "I have it at my house, and will show it you in the morning. The doubt he expressed on one or two points gave me, I recollect, no little uneasiness—as *you* may remember, Mr. Aubrey."

"I certainly do," he replied with a profound sigh; "but though what you said reminded me of something or other that I had heard when a mere boy, I thought no more of it. I think you also told me that the gentleman who wrote the opinion was a nervous, fidgety man, always raising difficulties in his clients' titles—and one way or another, the thing never gave me any concern—scarcely ever even occurred to my thoughts, till to-day! What infatuation has been mine!—But you will take a little refreshment, gentlemen, after your journey?" said Mr. Aubrey, suddenly, glad of the opportunity it would afford him of reviving his own exhausted spirits by a little wine, before returning to the drawing-room. He swallowed several

glasses of wine without their producing any immediately perceptible effect; and the bearers of the direful intelligence just communicated to the reader, after a promise by Mr. Aubrey to drive over to Grilston early in the morning, and bring with him such of his title-deeds as were then at the Hall, took their departure; leaving him outwardly calmer, but with a fearful oppression at his heart. He made a powerful effort to control his feelings, so as to conceal, for a while at least, the dreadful occurrence of the evening. His countenance and constrained manner, however; on re-entering the drawing-room, which his mother, attended by Kate, had quitted for her bedroom—somewhat alarmed Mrs. Aubrey; but he easily quieted her—poor soul!—by saying that he certainly *had* been annoyed—"excessively annoyed"—at a communication just made to him; "and which might, in fact, prevent his sitting again for Yatton." "Oh, *that's* the cause of your long stay? There, Doctor, am I not right?" said Mrs. Aubrey, appealing to Dr. Tatham. "Did I not tell you that this was something connected with politics? Oh, dearest Charles—I do *hate* politics! Give *me* a quiet home!" A pang shot through Mr. Aubrey's heart; but he felt that he had, for the present, succeeded in his object.

Mr. Aubrey's distracted mind was indeed, as it were, buffeted about that night on a dark sea of trouble; while the beloved being beside him lay sleeping peacefully, all unconscious of the rising storm! Many times, during that dismal night, would he have risen from his bed to seek a momentary relief by walking to and fro, but that he feared disturbing her, and disclosing the extent and depth of his distress. It was nearly five o'clock in the morning before he at length sank into sleep; and of one thing I can assure the reader, that however that excellent man might have shrunk—and shrink he did—from the sufferings which seemed in store, not for himself only, but for those who were far dearer to him than life itself, he did not give way to one

repining or rebellious thought. On the contrary, his real frame of mind, on that trying occasion, may be discovered in one short prayer, which his agonized soul was more than once on the point of expressing aloud in words—"Oh, my God! in my prosperity I have endeavored always to acknowledge thee; forsake not me and mine in our adversity!"

At an early hour in the morning Mr. Aubrey's carriage drew up at Mr. Parkinson's door; and he brought with him, as he had promised, a great number of title-deeds and family documents. On these, as well as on many others which were in Mr. Parkinson's custody, that gentleman and Mr. Runnington were anxiously engaged during almost every minute of that day and the ensuing one; at the close of which, they had between them drawn up the rough draft of a case, with which Mr. Runnington set off for town by the mail; undertaking to lay it immediately before the Attorney-General, and also before one or two of the most eminent conveyancers of the day, effectually commended to their best and earliest attention. He pledged himself to transmit their opinions, by the very first mail, to Mr. Parkinson; and both of those gentlemen immediately set about active preparations for defending the ejectment. The "eminent conveyancer" fixed upon by Messrs. Runnington and Parkinson was Mr. Tresayle, whose clerk, however, on looking into the papers, presently carried them back to Messrs. Runnington, with the startling information that Mr. Tresayle had, a few months before, "advised on the other side!" The next person whom Mr. Runnington thought of, was—singularly enough—Mr. Mortmain, who, on account of his eminence, was occasionally employed, in heavy matters, by the firm. *His* clerk, also, on the ensuing morning returned the papers, assigning a similar reason to that which had been given by Mr. Tresayle's clerk! All this formed a direful corroboration, truly, of Messrs. Quirk and Gammon's assurance to Mr. Runnington, that they had "had the first conveyancing opinions in the

kingdom;" and evidenced the formidable scale on which their operations were being conducted. There were, however, other "eminent conveyancers" besides the two above mentioned; and in the hands of Mr. Mansfield, who, with a less extended reputation, but an equal practice, was a far abler man, and a much higher style of conveyancer, than Mr. Mortmain, Mr. Runnington left his client's interests with the utmost confidence. Not satisfied with this, he laid the case also before Mr. Crystal, the junior whom he had already retained in the cause—a man whose lucid understanding was not ill indicated by his name. Though his manner in court was not particularly forcible or attractive, he was an invaluable acquisition in an important cause. To law he had for some twenty years applied himself with unwearying energy; and he consequently became a ready, accurate, and thorough lawyer, equal to all the practical exigencies of his profession. He brought his knowledge to bear on every point presented to him, with beautiful precision. He was equally quick and cautious—artful to a degree—But I shall have other opportunities of describing him; since on him, as on every working junior, will devolve the real conduct of the defendant's case in the memorable action of *Doe on the demise of Titmouse v. Roe*.

As Mr. Aubrey was driving home from the visit to Mr. Parkinson, which I have just above mentioned, he stopped his carriage and alighted, on entering the village, because he saw Dr. Tatham coming out of Williams's cottage, where he had been paying a visit to poor dying Phœbe.

The little doctor was plunthering on, ankle-deep in snow, towards the vicarage, when Mr. Aubrey (who had sent home his carriage with word that he should presently follow) came up with him, and greeting him with unusual fervor, said that he would accompany him to the vicarage.

"You are in very great trouble, my dear friend," said the doctor, seriously—"I saw it plainly last night; but of course I said nothing. Come in with

me! Let us talk freely with one another; for, *as iron sharpeneth iron, so doth the countenance of a man his friend*. Is it not so?"

"It is indeed, my dear doctor," replied Mr. Aubrey, suddenly softened by the affectionate simplicity of the doctor's manner. How much the good doctor was shocked by the communication which Mr. Aubrey presently made to him, the reader may easily imagine. He even shed tears, on beholding the forced calmness with which Mr. Aubrey depicted the gloomy prospect that was before him. The venerable pastor led the subdued mind of his companion to those sources of consolation and support which a true Christian cannot approach in vain. Upon his bruised and bleeding feelings were poured the balm of true religious consolation; and Mr. Aubrey quitted his revered companion with a far firmer tone of mind than that with which he had entered the vicarage. But as soon as he had passed through the park gates, the sudden reflection that he was probably no longer the proprietor of the dear old familiar objects that met his eye at every step, almost overpowered him, and he walked several times up and down the avenue, before he had recovered a due degree of self-possession.

On entering the Hall, he was informed that one of the tenants, Peter Johnson, had been sitting in the servants' hall for nearly two hours, waiting to see him. Mr. Aubrey repaired at once to the library, and desired the man to be shown in. This Johnson had been for some twenty-five years a tenant of a considerable farm on the estate; had scarcely ever been behind-hand with his rent; and had always been considered one of the most exemplary persons in the whole neighborhood. He had now, poor fellow, got into trouble indeed: for he had, a year or two before, been persuaded to become security for his brother-in-law, a tax-collector; and had, alas! the day before, been called upon to pay the three hundred pounds in which he stood bound—his worthless brother-in-law having absconded with nearly £1,000 of the

public money. Poor Johnson, who had a large family to support, was in deep tribulation, bowed down with grief and shame; and after a sleepless night, had at length ventured down to Yatton, with a desperate boldness, to ask its benevolent owner to advance him £200 towards the money, to save himself from being cast into prison. Mr. Aubrey heard this sad story to the end, without one single interruption; though to a more practised observer than the troubled old farmer, the workings of Mr. Aubrey's countenance, from time to time, must have told his inward agitation. "I lend this poor soul £200!" thought he, "who am penniless myself! Shall I not be really acting as *his* dishonest relative has been acting, and making free with money which belongs to another?"

"I assure you, my worthy friend," said he at length, with a little agitation of manner, "that I have just now a very serious call upon me—or you know how gladly I would have complied with your request."

"Oh, sir, have mercy on me! I've an ailing wife and seven children to support," said poor Johnson, wringing his hands.

"Can't I do anything with the Government?"——

"No, sir; I'm told they're so mighty angry with my rascally brother, they'll listen to nobody! It's a hard matter for me to keep things straight at home without this, sir, I've so many mouths to fill; and if they take me off to prison, Lord! Lord! what's to become of us all?"

Mr. Aubrey's lip quivered. Johnson fell on his knees, and the tears ran down his cheeks. "I've never asked a living man for money before, sir; and if you'll only lend it me, God Almighty will bless you and yours; you'll save us all from ruin; I'll work day and night to pay it back again!"

"Rise—rise, Johnson," said Mr. Aubrey, with emotion. "You shall have the money, my friend, if you will call to-morrow," he added with a deep sigh, after a moment's hesitation.

He was as good as his word.[\[19\]](#)

Had Mr. Aubrey been naturally of a cheerful and vivacious turn, the contrast now afforded by his gloomy manner must have alarmed his family. As it was, however, the contrast was not so strong and marked as to be attended with that effect, especially as he exerted himself to the utmost to conceal his distress. That *something* had gone wrong, he freely acknowledged; and as he spoke of it always in connection with political topics, he succeeded in parrying their questions, and checking suspicion. But, whenever they were all collected together, could he not justly compare them to a happy group, unconscious that they stood on a mine which was on the eve of being fired?

About a week afterwards, namely, on the 12th of January, arrived little Charles's birthday, when he became five years old; and Kate had for some days been moving heaven and earth to get up a juvenile ball in honor of the occasion. After divers urgent despatches, and considerable riding and driving about, she succeeded in persuading the parents of some eight or ten children—two little daughters, for instance, of the Earl of Oldacre (beautiful creatures they were, to be sure)—little Master and the two Miss Bertons, the children of one of the county members—Sir Harry Oldfield, an orphan of about five years of age, the infant owner of a magnificent estate—and two or three little girls beside—to send them all—cold as was the weather—to Yatton, for a day and a night, with their governesses and attendants.

'Twas a charming little affair! It went off brilliantly, as the phrase is, and repaid all Kate's exertions. She, her mother, and brother, and sister, all dined at the same table, at a very early hour, with the merry little guests, who, (with a laughable crowd of attendants behind them, to be sure) behaved remarkably well on the occasion. Sir Harry (a little thing about Charles's

age—the black ribbon round his waist, and also the half-mourning dress worn by his maid, who stood behind him, showed how recent was the event which had made him an orphan) proposed little Aubrey's health, in (I must own) a somewhat stiff speech, demurely dictated to him by Kate, who sat between him and her beautiful little nephew. She then performed the same office for Charles, who stood on a chair while delivering his eloquent acknowledgment of the toast.

[Oh! that anguished brow of thine, Aubrey, (thank God it is unobserved!) but it tells *me* that the iron is entering thy soul!]

And the moment that he had done—Kate folding her arms around him and kissing him—down they all jumped, and, a merry throng, scampered off to the drawing-room, (followed by Kate,) where blind-man's buff, husbands and wives, and divers other little games, kept them in constant enjoyment. After tea, they were to have dancing—Kate mistress of the ceremonies—and it was quite laughable to see how perpetually she was foiled in her efforts to form the little sets. The girls were orderly enough—but their wild little partners were quite uncontrollable! The instant they were placed, and Kate had gone to the instrument and struck off a bar or two—ah!—what a scrambling little crowd was to be seen wildly jumping and laughing, and chattering and singing! Over and over again she formed them into sets, with the like results. But at length a young lady, one of their governesses, took Miss Aubrey's place at the piano, leaving the latter to superintend the performances in person. She at length succeeded in getting up something like a country-dance, led off by Charles and little Lady Anne Cherville, the eldest daughter of the Earl of Oldacre, a beautiful child of about five years old, and who, judging from appearances, bade fair in due time to become another Lady Caroline Caversham. You would have laughed outright to watch the coquettish airs which this little creature gave

herself with Charles, whom yet she evidently could not bear to see dancing with another.

"Now *I* shall dance with somebody else!" he exclaimed, suddenly quitting Lady Anne, and snatching hold of a sweet little thing, Miss Berton, standing modestly beside him. The discarded beauty walked with a stately air, and a swelling heart, towards Mrs. Aubrey, who sat beside her husband on the sofa; and on reaching her, stood for a few moments silently watching her fickle partner busily and gayly engaged with her successor—Then she burst into tears.

"Charles!" called out Mrs. Aubrey; who had watched the whole affair, and could hardly keep her countenance—"come hither directly, Charles!"

"Yes, mamma!" he exclaimed—quite unaware of the serious aspect which things were assuming—and without quitting the dance, where he was (as his jealous mistress too plainly saw, for, despite her grief, her eye seemed to follow all his motions) skipping about with infinite glee with a *third* partner—a laughing sister of her for whom he had quitted Lady Anne.

"Do you hear your mamma, Charles!" said Mr. Aubrey, somewhat peremptorily; and in an instant his little son, all flushed and breathless, was at his side.

"Well, dear papa!" said he, keeping his eye fixed on the merry throng he had just quitted, and where his deserted partner was skipping about alone.

"What have you been doing to Lady Anne, Charles?" said his father.

"Nothing, dear papa!" he replied, still wistfully eying the dancers.

"You know you left me, and went to dance with Miss Berton; you did, Charles!" said the offended beauty, sobbing.

"That is not behaving like a little gentleman, Charles," said his father. The tears came to the child's eyes.

"I'm *very* sorry, dear papa, I *will* dance with her."

"No, not now," said Lady Anne, haughtily.

"Oh, pooh! pooh!—kiss and be friends," said Mrs. Aubrey, laughing, "and go and dance as prettily as you were doing before." Little Aubrey put his arms around Lady Anne, kissed her, and away they both started to the dance again. While the latter part of this scene was going on, Mr. Aubrey's eye caught the figure of a servant who simply made his appearance at the door and then retired, (for such had been Mr. Aubrey's orders, in the event of any messenger arriving from Grilston.) Hastily whispering that he should speedily return, he left the room. In the hall stood a clerk from Mr. Parkinson; and on seeing Mr. Aubrey, he took out a packet and retired—Mr. Aubrey, with evident trepidation, repairing to his library. With a nervous hand he broke the seal, and found the following letter from Mr. Parkinson, with three other enclosures:—

"Grilston, 12th Jan. 18—.

"MY DEAR SIR,

"I have only just received, and at once forward to you, copies of the three opinions given by the Attorney-General, Mr. Mansfield, and Mr. Crystal. I lament to find that they are all of a discouraging character. They were given by their respective writers without any of them having had any opportunity of conferring together—all the three cases having been laid before them at the same time: yet you will observe that each of them has hit upon precisely the same point, viz. that the descendants of Geoffrey Dreddlington had no right to succeed to the inheritance till there was a failure of the heirs of Stephen Dreddlington. If, therefore, our discreditable opponents should have unhappily contrived to ferret out some person satisfying that designation, (I cannot conjecture how they can ever have got upon the scent,) I really fear (it is no use disguising matters) we must prepare for a very serious struggle. I have

been quietly pushing my inquiries in all directions, with a view to obtaining a clew to the case intended to be set up against us, and which you will find very shrewdly guessed at by the Attorney-General. *Nor am I the only party*, I find, in the field, who has been making pointed inquiries in your neighborhood; but of this more when we meet to-morrow.

"I remain,

"Yours most respectfully,

"J. PARKINSON.

"CHARLES AUBREY, ESQ., M. P. &c. &c. &c."

Having read this letter, Mr. Aubrey sank back in his chair, and remained motionless for more than a quarter of an hour. At length he roused himself, and read over the opinions; the effect of which—as far as he could comprehend their technicalities—he found had been but too correctly given by Mr. Parkinson. Some suggestions and inquiries put by the acute and experienced Mr. Crystal, suddenly revived recollections of one or two incidents even of his boyish days, long forgotten, but which, as he reflected upon them, began to reappear to his mind's eye with sickening distinctness. Wave after wave of apprehension and agony passed over him, chilling and benumbing his heart within him; so that, when his little son came some time afterwards running up to him, with a message from his mamma, that she hoped he could come back to see them all play at snap-dragon before they went to bed, he replied mechanically, hardly seeming sensible even of the presence of the laughing and breathless boy, who quickly scampered back again. At length, with a groan that came from the depths of his heart, Mr. Aubrey rose and walked to and fro, sensible of the necessity of exertion, and preparing himself, in some degree, for encountering his mother, his wife, and his sister. Taking up his candle, he hastened to his dressing-room,

where he hoped, by the aid of refreshing ablutions, to succeed in effacing at least the stronger of those traces of suffering which his glass displayed to him, as it reflected the image of his agitated countenance. A sudden recollection of the critical and delicate situation of his idolized wife, glanced through his heart like a keen arrow. He sank upon the sofa, and, clasping his hands, looked indeed forlorn. Presently the door was pushed hastily but gently open; and, first looking in to see that it was really he of whom she was in search, in rushed Mrs. Aubrey, pale and agitated, having been alarmed by his long-continued absence from the drawing-room, and the look of the servant, from whom she had learned that his master had been for some time gone up-stairs.

"Charles! my love! my sweet love!" she exclaimed, rushing in, sitting down beside him, and casting her arms round his neck. Overcome by the suddenness of her appearance and movements, for a moment he spoke not.

"For mercy's sake—as you love me!—tell me, dearest Charles, what has happened!" she gasped, kissing him fervently.

"Nothing—love—nothing," he replied; but his look belied his speech.

"Oh! am not I your wife, dearest? Charles, I shall really go distracted if you do not tell me what has happened!—I know that something—something dreadful"—He put his arm round her waist, and drew her tenderly towards him. He felt her heart beating violently. He kissed her cold forehead, but spoke not.

"Come, dearest!—my own Charles!—let me share your sorrows," said she, in a thrilling voice. "Cannot you trust your Agnes? Has not Heaven *sent* me to share your anxieties and griefs?"

"I love you, Agnes! ay, perhaps more than ever man loved woman!" he faltered, as he felt her arms folding him in closer and closer embrace; and

she gazed at him with wild agitation, expecting presently to hear of some fearful catastrophe.

"I cannot bear this much longer, dearest—I feel I cannot," said she, rather faintly. "*What* has happened? What, that you dare not tell *me*? I can bear anything, while I have you and my children! You have been unhappy—you have been wretched, Charles, for many days past. I have felt that you were!—I will not part with you till I know all!"

"You soon *must* know all, my sweet love; and I take Heaven to witness, that it is principally on your account, and that of my children, that I—— in fact, I did not wish any of you to have known it till"——

"You—are never going—to *fight a duel*?" she gasped, turning white as death.

"Oh! no, no, Agnes! I solemnly assure you! If I could have brought myself to engage in such an unhallowed affair, would *this* scene ever first have occurred? No, no, my own love! Must I then tell you of the misfortune that has overtaken us?" His words somewhat restored her, but she continued to gaze at him in mute and breathless apprehension. "Let me then conceal nothing, Agnes—they are bringing an action against me, which, if successful, may cause us all to quit Yatton—and it may be, forever."

"Oh, Charles!" she murmured, her eyes riveted upon his, while she unconsciously moved still nearer to him and trembled. Her head drooped upon his shoulder.

"Why is this?" she whispered, after a pause.

"Let us, dearest, talk of it another time. I have now told you what you asked me."—He poured her out a glass of water. Having drank a little, she appeared revived.

"Is all lost?—And—*why*? Do, my own Charles—let me know really the worst!"

"We are young, my Agnes! and have the world before us! Health and integrity are better than riches! You and our little loves—*the children which God has given us*—are *my* riches," said he, gazing at her with unspeakable tenderness. "Even should it be the will of Heaven that this affair should go against us—so long as they cannot separate us from each other, they cannot *really* hurt us!" She suddenly kissed him with frantic energy, and an hysteric smile gleamed over her pallid excited features.

"Calm yourself, Agnes!—calm yourself, for my sake!—as you love me!" His voice quivered. "Oh, how very weak and foolish I have been to yield to"——

"No, no, no!" she gasped, evidently laboring with hysteric oppression. "Hush!" said she, suddenly starting, and wildly leaning forward towards the door which opened into the gallery leading to the various bedrooms. He listened—the MOTHER'S ear had been quick and true. He presently heard the sound of many children's voices approaching: they were the little party, accompanied by Kate, and their attendants, on their way to bed; and little Charles's voice was loudest, and his laugh the merriest, of them all. A dreadful smile gleamed on Mrs. Aubrey's face; her hand grasped her husband's with convulsive pressure; and she suddenly sank, rigid and senseless, upon the sofa. He seemed for a moment stunned at the sight of her motionless figure. Soon, however, recovering his presence of mind, he rang the bell, and one or two female attendants quickly appeared, by whose joint assistance Mrs. Aubrey was carried to her bed in the adjoining room, where, by the use of the ordinary remedies, she was, after a brief interval, restored to consciousness. Her first languid look was towards Mr. Aubrey, whose hand she slowly raised to her lips. She tried to throw a smile over her wan features—but 't was in vain; and, after a few heavy and half-choking sobs, her overcharged feelings found relief in a flood of tears. Full of the

liveliest apprehensions as to the effect of this violent emotion upon her, in her critical condition, he remained with her for some time, pouring into her ear every soothing and tender expression he could think of. He at length succeeded in bringing her into a somewhat more tranquil state than he could have expected. He strictly enjoined the attendants, who had not quitted their lady's chamber, and whose alarmed and inquisitive looks he had noticed for some time with anxiety, to preserve silence concerning what they had so unexpectedly witnessed, adding, that something unfortunate had happened, of which they would hear but too soon.

"Are you going to tell Kate?" whispered Mrs. Aubrey, sorrowfully. "Surely, love, *you* have suffered enough through *my* weakness. Wait till to-morrow. Let her—poor girl!—have a *few* more happy hours!"

"No, Agnes—it was my own weakness which caused me to be surprised into this premature disclosure to you. And now I *must* meet her again to-night, and I cannot control either my features, or my feelings. Yes, poor Kate, she must know all to-night! I shall not be long absent, Agnes." And directing her maid to remain with her till he returned, he withdrew, and with slow step and heavy heart descended to the library; preparing himself for another heart-breaking scene—plunging another innocent and joyous creature into misery, which he believed to be inevitable. Having looked into the drawing-room as he passed it, and seen no one there—his mother having, as usual, retired at a very early hour—he rang his library bell, and desired Miss Aubrey's maid to request her mistress to come down to him there, as soon as she should be at leisure. He was glad that the only light in the room was that given out by the fire, which was not very bright, and so would in some degree shield his features from, at all events, immediate scrutiny. His heart ached as, shortly afterwards, he heard Kate's light step crossing the hall. When she entered, her eyes sparkled with vivacity, and a

smile was on her beautiful cheek. Her dress was slightly disordered, and her hair half uncurled—the results of her sport with the little ones whom she had been seeing to bed.

"What merry little things, to be sure!" she commenced laughingly—"I could not get them to lie still a moment—popping their little heads in and out of the clothes. A fine time I shall have of it, by-and-by, with Sir Harry! for he is to be *my* tiny little bed-fellow, and I dare say I shall not sleep a wink all night!—Why, Charles, how very—very grave you look!" she added, quickly observing his eye fixed moodily upon her.

"'Tis you who are so very gay," he replied, endeavoring to smile. "I want to speak to you, dear Kate," he commenced affectionately—at the same time rising and closing the door—"on a serious matter. I have received some letters to-night"——

Kate colored suddenly and violently, and her heart beat; but, sweet soul! she was mistaken—very, very far off the mark her troubled brother was aiming at. "And, relying on your strength of mind, I have resolved to put you at once in possession of what I myself know. Can you bear bad news well, Kate?"

She turned very pale, and drawing her chair nearer to her brother, said, "Do not keep me in suspense, Charles—I can bear anything but suspense—that *is* dreadful! What has happened? Oh dear," she added, with sudden alarm, "where are mamma and Agnes?" She started to her feet.

"I assure you they are both well, Kate. My mother is now doubtless asleep, and as well as she ever was; Agnes is in her bedroom—certainly much distressed at the news which I am going"——

"Oh why, Charles, did you tell *anything* distressing to *her*?" exclaimed Miss Aubrey, with an alarmed air.

"We came together by surprise, Kate! Perhaps, too, it would have been worse to have kept her in suspense; but she is recovering!—I shall soon return to her. And now, my dear Kate—I know your strong sense and spirit—a very great calamity hangs over us. Let you and me," he grasped her hands affectionately, "stand it steadily, and support those who cannot!"

"Let me at once know all, Charles. See if I do not bear it as becomes your sister," said she, with forced calmness.

"If it should become necessary for all of us to retire into obscurity—into humble obscurity, dear Kate—how do you think you could bear it?"

"If it will be an honorable obscurity—nay, 'tis quite impossible it can be a dishonorable obscurity," said Miss Aubrey, with a momentary flash of energy.

"Never, never, Kate! The Aubreys may lose everything on earth but the jewel HONOR, and love for one another!"

"Let me know all, Charles: I see that something or other shocking has happened," said Miss Aubrey, in a low tone, with a look of the deepest apprehension.

"I will tell you the worst, Kate— a strange claim is set up—by one I never heard of—to the whole of the property we now enjoy!"

Miss Aubrey started, and the slight color that remained faded entirely from her cheek. Both were silent for very nearly a minute.

"But is it a *true* claim, Charles?" she inquired, faintly.

"That remains to be proved. I will, however, disguise nothing from you—I have woful apprehensions"——

"Do you mean to say that Yatton *is not ours*?" inquired Miss Aubrey, catching her breath.

"So, alas! my dearest Kate, it is said!"

Miss Aubrey looked bewildered, and pressed her hand to her forehead.

"How shocking!—shocking!—shocking!" she gasped—"What is to become of mamma?"

"God Almighty will not desert her in her old age. He will desert none of us, if we only trust in him," said her brother.

Miss Aubrey remained gazing at him intently, and continued perfectly motionless.

"Must we then all leave Yatton?" said she, faintly, after a while.

"If this claim succeeds—but we shall leave it *together*, Kate."

She threw her arms around his neck, and wept bitterly.

"Hush, hush, Kate!" said he, perceiving the increasing violence of her emotions, "restrain your feelings for the sake of my mother—and Agnes."

His words had the desired effect: the poor girl made a desperate effort. Unclasping her arms from her brother's neck, she sat down in her chair, breathing hard, and pressing her hand upon her heart. After a few minutes' pause, she said faintly, "I am better now. Do tell me more, Charles! Let me have something to *think* about—only don't say anything about—about—mamma and Agnes!" In spite of herself a visible shudder ran through her frame.

"It seems, Kate," said he, with all the calmness he could assume—"at least they are trying to prove—that our branch of the family has succeeded to the property prematurely—that there is living an heir of the elder branch—that his case has been taken up by powerful friends; and—let me tell you the worst at once—even the lawyers consulted by Mr. Parkinson on my behalf, take a most alarming view of the possibilities of the case that may be brought against us"——

"But is mamma provided for?" whispered Miss Aubrey, almost inarticulately. "When I look at her again, I shall drop at her feet insensible!"

"No, no, Kate, you won't! Heaven will give you strength," said her brother, in a tremulous voice. "Remember, my only sister—my dearest Kate! you must support *me* in my trouble, as I will support you—we will try to support each other"——

"We will—we will!" interrupted Miss Aubrey—instantly checking, however, her rising excitement.

"You bear it bravely, my noble girl!" said Mr. Aubrey, fondly, after a brief interval of silence.

She turned from him her head, and moved her hand—in deprecation of expressions which might utterly unnerve her. Then she convulsively clasped her hands over her forehead; and, after a minute or two, turned towards him with tears in her eyes, but tranquillized features. The struggle had been dreadful, though brief—her noble spirit had recovered itself.

----"T was like some fair bark, in mortal conflict with the black and boiling waters and howling hurricane; long quivering on the brink of destruction, but at last outliving the storm, righting itself, and suddenly gliding into safe and tranquil waters!——

The distressed brother and sister sat conversing for a long time, frequently in tears, but with infinitely greater calmness and firmness than could have been expected. They agreed that Dr. Tatham should very early in the morning be sent for, and implored to take upon himself the bitter duty of breaking the matter as gradually and safely as possible to Mrs. Aubrey; its effects upon whom, her children anticipated with the most vivid apprehension. They both considered that an event of such publicity and importance could not possibly remain long unknown to her, and that it was, on the whole, better that the dreaded communication should be got over as soon as possible. They then retired—Kate to a sleepless pillow, and her brother to spend a greater portion of the night in attempts to soothe and

console his suffering wife; each of them having first knelt in humble reverence, and poured forth the breathings of a stricken and bleeding heart, before Him who hath declared that he is ever present to HEAR and to ANSWER prayer.

Ah! who can tell what a day or an hour may bring forth?

"It won't kindle—not a bit on't—it's green and full o' sap. Go out, and get us a log that's dry and old, George—and let's try to have a bit of a blaze in t'ould chimney, this bitter night," said Isaac Tonson, the gamekeeper at Yatton, to the good-natured landlord of the Aubrey Arms, the little—and only—inn of the village. The suggestion was instantly attended to.

"How Peter's a-feathering of his geese to-night, to be sure!" exclaimed the landlord on his return, shaking the snow off his coat, and laying on the fire a great dry old log of wood, which seemed very acceptable to the hungry flames, for they licked it cordially the moment it was placed among them, and there was very soon given out a cheerful blaze. 'T was a snug room. The brick floor was covered with fresh sand; and on a few stools and benches, with a table in the middle, on which stood a large can and ale-glasses, with a plate of tobacco, sat some half-dozen men, enjoying their pipe and glass. In the chimney corner sat Thomas Dickons, the faithful under-bailiff of Mr. Aubrey, a big broad-shouldered, middle-aged man, with a hard-featured face and a phlegmatic air. In the opposite corner sat the little grizzle-headed clerk and sexton, old Hallelujah—(as he was called, but his real name was Jonas Higgs.) Beside him sat Pumpkin, the gardener at the Hall, a very frequent guest at the Aubrey Arms o' nights—always attended by Hector, the large Newfoundland dog already spoken of, and who was now lying stretched on the floor at Pumpkin's feet, his nose resting on his

fore feet, and his eyes, with great gravity, watching the motions of a skittish kitten under the table. Opposite to him sat Tonson the gamekeeper—a thin, wiry, beetle-browed fellow, with eyes like a ferret; and there were also, one or two farmers, who lived in the village.

"Let's ha' another can o' ale, afore ye sit down," said Tonson, "we can do with another half gallon, I'm thinking!" This order also was quickly attended to; and then the landlord, having seen to the door, fastened the shutters close, and stirred the crackling fire, took his place on a vacant stool, and resumed his pipe.

"So she do take a very long grave, Jonas?" inquired Dickons of the sexton, after some little pause.

"Ay, Mr. Dickons, a' think she do, t'ould girl! I always thought she would—I used to measure her (as one may say) in my mind, whenever I saw her! 'Tis a reg'lar *man's* size, I warrant you; and when parson saw it, a' said, he thought 'twere too big; but I axed his pardon, and said I hadn't been sexton for thirty years without knowing my business—he, he!"

"I suppose, Jonas, you mun ha' seen her walking about i' t' village, in your time!—Were she such a big-looking woman?" inquired Pumpkin, as he shook the ashes out of his pipe, and replenished it.

"Forty year ago I did use to see her—she were then an old woman, wi' white hair, and leaned on a stick—I never thought she'd a' lasted so long," replied Higgs, emptying his glass.

"She've had a pretty long spell on't," quoth Dickons, after slowly emptying his mouth of smoke.

"A hundred and two," replied the sexton; "so saith her coffin-plate—a' see'd it to-day."

"What were her name?" inquired Tonson—"I never knew her by any name but Blind Bess."

"Her name be *Elizabeth Crabtree* on the coffin," replied Higgs; "and she be to be buried to-morrow."

"She were a strange old woman," said Hazel, one of the farmers, as he took down one of the oatcakes hanging overhead; and breaking off a piece, held it with the tongs before the fire to toast, and then put it into his ale.

"Ay, she were," quoth Pumpkin; "I wonder what she thinks o' such things *now*—maybe—God forgive me!—she's paying dear for her tricks!"

"Tut, Pumpkin," said Tonson, "let t'ould creature rest in her grave, where she's going to, peaceably!"

"Ay, Master Tonson," quoth the clerk, in his reading-desk twang—"THERE be no knowledge, nor wisdom, nor device!"

"'Tis very odd," observed Pumpkin, "but this dog that's lying at my feet never could a' bear going past her cottage late o' nights—hang me if he could; and the night she died—Lord! you should have heard the howl Hector gave—and a' didn't then know she were gone—it's as true as the gospel—it *is*—actually!"

"No! but were't *really* so?" inquired Dickons—several of the others taking their pipes out of their mouths, and looking earnestly at Pumpkin.

"I didn't half like it, I can tell you," quoth Pumpkin.

"Ha, ha, ha!—ha, ha!" laughed the gamekeeper—

"Ay, marry, you may laugh," quoth Pumpkin, "but I'll stake half-a-gallon o' ale you daren't go by yourself to the cottage where she's lying—*now*, mind—i' the dark."

"I'll do it," quoth Higgs, eagerly, preparing to lay down his pipe.

"No, no—*thou'rt* quite used to dead folk—'tis quite in thy line!" replied Pumpkin—and, after a little faint drollery, silence ensued for some moments.

"Bess dropped off sudden like, at the last, didn't she?" inquired the landlord.

"She went out, as, they say, like the snuff of a candle," replied Jobbins, one of the farmers; "no one were with her but my Missis at the time. The night afore, she had took to the rattles all of a sudden. My Sall (that's *done* for her, this long time, by Madam's orders,) says old Bess were a good deal shaken by a chap from London, which cam' down about a week afore Christmas."

"Ay, ay," quoth one, "I've heard o' that—what was it?—what passed atwixt them?"

"Why, a' don't well know—but he seemed to know summat about t'ould girl's connections, and he had a book, and wrote down something, and he axed her, so Sall do tell me, such a many things about old people, and things that are long gone by!"

"What were the use on't?" inquired Dickons; "for Bess hath been silly this ten years, to my sartin knowledge."

"Why, a' couldn't tell. He seemed very 'quisitive, too, about t'ould creature's Bible and prayer-book (she kept them in that ould bag of hers)—and Sall said she had talked a good deal to the chap in her mumbling way, and seemed to know some folk he asked her about. And Sall saith she hath been, in a manner, dismal ever since, and often a-crying and talking to herself."

"I've heard," said the landlord, "that squire and parson were wi' her on Christmas-day—and that she talked a deal o' strange things, and that the squire did seem, as it were, *struck* a little, you know—struck, like!"

"Why, so my Sall do say; but it may be all her own head," replied Jobbins.

Here a pause took place.

"Madam," said the sexton, "hath given orders for an uncommon decent burying to-morrow."

"Well, a' never thought any wrong of ould Bess, for my part," said one—and another—and another; and they smoked their pipes for some short time in silence.

"Talking o' strangers from London," said the sexton, presently—"who do know anything o' them two chaps that were at church last Sunday? Two such peacock chaps I never see'd afore in *my* time—and grinning all sarvice-time! the heathen!"

"Ay, I'll tell you something of 'em," said Hazel—a big broad-shouldered farmer, who plucked his pipe out of his mouth with sudden energy—"They're a brace o' good ones, to be sure, ha, ha! Some week or ten days ago, as I were a-coming across the field leading into the lane behind the church, I see'd these same two chaps, and on coming nearer, (they not seeing me for the hedge,) Lord bless me! would you believe it?—if they wasn't a-teasing my daughter Jenny, that were coming along wi' some physic from the doctor for my old woman! One of 'em seemed a-going to put his arm round her neck and t' other came close to her on t' other side, a-talking to her and pushing her about." Here a young farmer, who had but seldom spoken, took his pipe out of his mouth, and exclaiming, "Lord bless me!" sat listening with his mouth wide open. "Well," continued the former, "a' came into the road behind 'em, without their seeing me; and"—(here he stretched out a thick, rigid, muscular arm, and clinched his teeth)—"a' got hold of each by the collar, and one of 'em I shook about, and gave him a kick i' the breech that sent him spinning a yard or two on the road, he clapping his hand behind him, and crying, to be sure—'You'll smart for this—a good hundred pound damages!' or summat o' that sort. T' other dropped on his knees, and begged for mercy; so a' just spit in his face, and flung him

under t' hedge, telling him if he stirred till I were out o' sight, I'd crack his skull for him; and so I would!" Here the wrathful speaker pushed his pipe again between his lips, and began puffing away with great energy; while he who had appeared to take so great an interest in the story, and who was the very man who had flown to the rescue of Miss Aubrey, when she seemed on the point of being similarly treated, told that circumstance exactly as it occurred, amid the silent but excited wonder of those present—all of whom, at its close, uttered vehement execrations, and intimated the summary and savage punishment which the cowardly rascal would have experienced at the hands of each and every one of them, had they come across him.

"I reckon," said the landlord, as soon as the swell had a little subsided, "they must be the two chaps that put up here, some time ago, for an hour or so. You should ha' seen 'em get on and off the saddle—that's all! Why, a' laughed outright! The chap with the hair under his chin got on upon the wrong side, and t'other seemed as if he thought his beast would a' *bit* him!"

"Ha, ha, ha!" laughed all.

"I thought they'd a' both got a fall before they'd gone a dozen yards!"

"They've taken a strange fancy to my churchyard," said the sexton, setting down his glass, and then preparing to fill his pipe again; "they've been looking about among 'em—among t'ould gravestones, up behind t'ould yew-tree yonder; and one of them writ something, now and then, in a book; so they're book-writers, in coorse!"

"That's scholars, I reckon," quoth Dickons; "but rot the larning of such chaps as them!"

"I wonder if they'll put a picture o' the Hall in their book," quoth the sexton. "They axed a many questions about the people up there, especially about the squire's father, and some ould folk, whose names I knew when they spoke of 'em—but I hadn't heard o' them for this forty year. And one of

'em (he were the shortest, and such a chap, to be sure!—just like the monkey that were dressed i' man's clothes, last Grilston fair) talked uncommon fine about young *Miss*"——

"If *I'd* a' heard him tak' her name into his dirty mouth, his teeth should a' gone after it!" said Tonson.

"Lord! he didn't say any harm—only silly like—and t' other seemed now and then not to like his going on so. The little one said *Miss* were a lovely gal, or something like that—and hoped they'd become by-and-by better friends—ah, ha!"

"What! wi' that chap?" said Pumpkin—and he looked as if he were meditating putting the little sexton up the chimney, for the mere naming of such a thing.

"I reckon they're fro' London, and brought toon tricks wi' 'em—for I never heard o' such goings on as theirs down *here* afore," said Tonson.

"One of 'em—him that axed me all the questions, and wrote i' t' book, seemed a sharp enough chap in his way; but I can't say much for the little one," said Higgs. "Lud, I couldn't hardly look in his face for laughing, he seemed such a fool!—He had a riding-whip wi' a silver head, and stood smacking his legs (you should ha' seen how tight his clothes was on his legs—I warrant you, Tim Timpkins never see'd such a thing, I'll be sworn) all the while, as if a' liked to hear the sound of it."

"If I'd a' been beside him," said Hazel, "I'd a' saved him that trouble—only I'd a' laid it into *another* part of him!"

"Ha, ha, ha!" they laughed—and presently passed on to other matters.

"Hath the squire been doing much lately in Parliament?" inquired the sexton, of Dickons.

"Why, yes—he's trying hard to get that new road made from Harkley bridge to Hilton."

"Ah, that would save a good four mile, if a' could manage it!" said one of the farmers.

"I hear the Papists are trying to get the upper hand again—which the Lud forbid!" said the sexton, after another pause.

"The squire hath lately made a speech in that matter, that hath finished them," said Dickons, in a grave and authoritative tone.

"What would they be after?" inquired the landlord of Dickons, of whom, in common with all present, he thought great things. "They say they wants nothing but what's their own, and liberty, and that like"——

"If thou wert a shepherd, Master Higgs," replied Dickons, "and wert to be asked by ten or a dozen wolves to let them in among thy flock of sheep, they saying how quiet and kind they would be to 'em—would'st let 'em in, or keep 'em out?—eh?"

"Ay, ay—that be it—'tis as true as gospel!" said the clerk.

"So you a'n't to have that old sycamore down, after all, Master Dickons?" inquired Tonson, after a pause in the conversation.

"No; Miss hath carried the day against the squire and Mr. Waters; and there stands the old tree, and it hath to be looked to better than ever it were afore!"

"Why hath Miss taken such a fancy to it? 'Tis an old crazy thing!"

"If thou hadst been there when she did beg, as I may say, its life," replied Dickons, with a little energy—"and hadst seen her, and heard her voice, that be as smooth as cream, thou would'st never have forgotten it, I can tell thee!"

"There isn't a more beautiful lady i' t' county, I reckon, than the squire's sister?" inquired the sexton.

"No, nor in all England: if there be, I'll lay down twenty pounds!"

"And where's to be found a young lady that do go about i' t' village like she?—She were wi' Phœbe Williams t'other night, all through the snow, and i' t' dark."

"If I'd only laid hands on that chap!" interrupted the young farmer, her rescuer.

"I wonder she do not choose some one to be married to, up in London," said the landlord.

"She'll be having some delicate high quality chap, I reckon, one o' these fine days," said Hazel.

"She will be a dainty dish, truly, for whomever God gives her to," quoth Dickons.

"Ay, she will," said more than one, in an earnest tone.

"Now, to my mind," said Tonson, "saving your presence, Master Dickons, I know not but young Madam be more to my taste; she be in a manner somewhat fuller—plumper-like, and her skin be so white, and her hair as black as a raven's."

"There's not another two such women to be found in the whole world," said Dickons, authoritatively. Here Hector suddenly rose up, and went to the door, where he stood snuffing in an inquisitive manner.

"Now, what do that dog hear, I wonder?" quoth Pumpkin, curiously, stooping forward.

"Blind Bess," replied Tonson, winking his eye, and laughing. Presently there was a sharp rapping at the door; which the landlord opened, and let in one of the servants from the Hall, his clothes white with snow, his face nearly as white, with manifest agitation.

"Why, man, what's the matter?" inquired Dickons, startled by the man's appearance. "Art frightened at anything?"

"Oh, Lord! oh, Lord!" he commenced.

"What is it, man? Art drunk?—or mad?—or frightened? Take a drop o' drink," said Tonson. But the man refused it.

"Oh, Lord!—There's woful work at the Hall!"

"What's the matter?" cried all at once, rising and standing round the new-comer.

"If thou be'st drunk, John," said Dickons, sternly, "there's a way of sobering thee—mind that."

"Oh, Master Dickons, I don't know what's come to me, for grief and fright! The squire, they do say, and all of us, are to be turned out o' Yatton!"

"*What!*" exclaimed all in a breath.

"There's some one else lays claim to it. We must all go! Oh, Lud! oh, Lud!" No one spoke for a while; and consternation was written on every face.

"Sit thee down here, John," said Dickons at length, "and let us hear what thou hast to say—or thou wilt have us all be going up in a body to the Hall."

Having forced on him part of a glass of ale, he began,—"*There hath been plainly mischief brewing, somewhere, this many days, as I could tell by the troubled face o' t' squire; but he kept it to himself. Lawyer Parkinson and another have been latterly coming in chaises from London; and last night the squire got a letter that seems to have finished all. Such trouble there were last night wi' t' squire, and young Madam and Miss! And to-day the parson came, and were a long while alone with old Madam, who hath since had a stroke, or a fit, or something of that like, (the doctors have been there all day from Grilston,) and likewise young Madam hath taken to her bed, and is ill. Oh, Lud! oh, Lud! Such work there be going on!*"

"And what of the squire and Miss?" inquired some one, after all had maintained a long silence.

"Oh, 't would break your heart to see them," said the man, dolefully: "they be both pale as death: he so dreadful sorrowful, but quiet, like, and she now and then wringing her hands, and both of them going from the bedroom of old Madam to young Madam's. Nay, an' there had been half a dozen deaths i' t' house, it could not be worse. Neither the squire or Miss hath touched food the whole day!"

There was, in truth, not a dry eye in the room, nor one whose voice did not seem somewhat obstructed with his emotions.

"Who *told* thee all this about the squire's losing the estate?" inquired Dickons, with mingled trepidation and sternness.

"We heard of it but an hour or so agone. Mr. Parkinson (it seems by the squire's orders) told Mr. Waters, and he told it to us; saying as how it was useless to keep such a thing secret, and that we might as well all know the occasion of so much trouble."

"Who's to ha' it then, instead of the squire?" at length inquired Tonson, in a voice half choked with rage and grief.

"Lord only knows at present. But whoever 'tis, there isn't one of us sarvents but will go with the squire and his—if it be even to prison, *that* I can tell ye!"

"I'm Squire *Aubrey's* gamekeeper," quoth Tonson, his eye kindling as his countenance darkened, "and no one's else! It shall go hard if any one else here hath a game"—

"But if there's law in the land, sure the justice must be wi' t' squire—he and his family have had it so long?" said one of the farmers.

"I'll tell you what, masters," said Pumpkin, mysteriously, "I shall be somewhat better pleased when Jonas here hath got that old creature Bess safe underground!"

"Blind Bess?" exclaimed Tonson, with a very serious, not to say disturbed, countenance. "I wonder—sure! sure! *that* ould witch can have had no hand in all this—— eh?"——

"Poor old soul, not she! There be no such things as witches now-a-days," exclaimed Jonas. "Not she, I warrant me! She hath been ever befriended by the squire's family. *She* do it!"

"The sooner we get that old woman underground, for all that, the better, say I!" quoth Tonson, significantly.

"The parson hath a choice sermon on 'The Flying away of Riches,'" said Higgs, in a quaint, sad manner; "'tis to be hoped that he'll preach from it next Sunday!"——

Soon after this, the little party dispersed, each oppressed with greater grief and amazement than he had ever known before. Bad news flies swiftly—and that which had just come from the Hall, within a very few hours of its having been told at the Aubrey Arms, had spread grief and consternation among high and low for many miles round Yatton.

CHAPTER X.

Would you have believed it? Notwithstanding all that had happened between Titmouse and Tag-rag, they positively got reconciled to one another—a triumphant result of the astute policy of Mr. Gammon. As soon as he had heard Titmouse's infuriated account of his ignominious expulsion from Satin Lodge, he burst into a fit of hearty but gentle laughter, which at length subsided into an inward chuckle which lasted the rest of the day; and was occasioned, first, by gratification at the impression which his own sagacity had evidently produced upon the powerful mind of Titmouse; secondly, by an exquisite appreciation of the mingled meanness and stupidity of Tag-rag. I do not mean it to be understood, that Titmouse had given Mr. Gammon such a terse and clear account of the matter as I imagine myself to have given to the reader; but still he told quite enough to put Mr. Gammon in full possession of the true state of the case. Good: but then—

instantly reflected Gammon—what are we now to do with Titmouse?—where was that troublesome little ape to be caged, till it suited the purposes of his proprietors (as Messrs. Quirk, Gammon, and Snap might surely be called, for they had caught him, however they might fail to tame him) to let him loose upon society, to amuse and astonish it by his antics?—That was the question occupying the thoughts of Mr. Gammon, while his calm, clear, gray eye was fixed upon Titmouse, apparently very attentive to what he was saying. That gentleman had first told the story of his wrongs to Snap, who instantly, rubbing his hands, suggested an indictment at the Clerkenwell sessions—an idea which infinitely delighted Titmouse, but was somewhat sternly "pooh-poohed!" by Mr. Gammon as soon as he heard of it,—Snap thereat shrugging his shoulders with a disconcerted air, but a bitter sneer

upon his sharp, hard face. Like many men of little but active minds, early drilled to particular and petty callings, Snap was equal to the mechanical conduct of business—the mere working of the machinery—but, as the phrase is, could never see an inch beyond his nose. Every little conjuncture of circumstances which admitted of litigation, at once suggested its *expediency*, without reference to other considerations, or connection with, or subordination to, any general purpose or plan of action. A creature of small impulses, he had no idea of foregoing a momentary advantage to secure an ulterior object of importance—which, in fact, he could not keep for a moment before his thoughts, so as to have any influence on his movements. What a different man, now, was Gammon!

To speak after the manner of physiologists, several of my characters—Titmouse, Tag-rag, (with his amiable wife and daughter,) Huckaback, Snap, and old Quirk himself—may be looked on as reptiles of a low order in the scale of being, whose simple structures almost one dash of the knife would suffice to lay thoroughly open. Gammon, however, I look upon as of a much higher order; possessing a far more complicated structure, adapted to the discharge of superior functions; and who, consequently, requireth a more careful dissection. But let it not be supposed that I have yet done with *any* of my characters.

Gammon saw that Tag-rag, under proper management, might be made very useful. He was a *moneyed man*; a selfish man; and, after his sort, an ambitious man. He had an only child, a daughter, and if Titmouse and he could only be by any means once more brought together, and a firm friendship cemented between them, Gammon saw several very profitable uses to which such an intimacy might be turned, in the happening of any of several contemplated contingencies. In the event, for instance, of larger outlays of money being required than suited the convenience of the firm—

could not Tag-rag be easily brought to accommodate his future son-in-law of £10,000 a-year? Suppose that, after all, their case should break down and all their pains, exertions, and expenditure be utterly thrown away! Now, if Tag-rag could be quietly brought, some fine day, to the point of either making an actual advance, or becoming security for Titmouse—ah! that would do—- that *would* do, said both Quirk and Gammon. But then Titmouse was a very unsafe instrument—an incalculable fool, and might commit himself too far!

"You forget, Gammon," said old Mr. Quirk, "I don't fear this girl of Tag-rag's—because only let Titmouse see—hem," he suddenly paused, and looked a little confused.

"To be sure—I see," replied Gammon, quietly, and the thing passed off. "If either Miss Quirk or Miss Tag-rag becomes Mrs. Titmouse," thought he, "I am not the man I take myself for."

A few days after Titmouse's expulsion from Satin Lodge, without his having ever gone near Tag-rag's premises in Oxford Street, or in short, seen or heard anything about him, or any one connected with him, Titmouse removed to small but very respectable lodgings in the neighborhood of Hatton Garden, provided for him by Mr. Quirk. Mrs. Squallop was quite affected while she took leave of Titmouse, who gave her son a penny to take his two boxes down-stairs to the hackney-coach drawn up opposite to the entrance of Closet Court.

"I've always felt like a mother towards you, sir, in my humble way," said Mrs. Squallop, in a very respectful manner, and courtesying profoundly.

"A—I've not got any—a—change by me, my good woman," said Titmouse, with a fine air, as he drew on his white kid glove.

"Lord, Mr. Titmouse!" said the woman, almost bursting into tears, "I wasn't asking for money, neither for me nor mine—only one can't help, as it

were, feeling at parting with an old lodger, you know, sir"—

"Ah—ya—as—and all that! Well, my good woman, good-day, good-day!" quoth Titmouse, with an air of languid indifference.

"Good-by, sir—God bless you, sir, now you're going to be a rich man!—Excuse me, sir."—And she seized his hand and shook it.

"You're a—devilish—impudent—woman—'pon my soul!" exclaimed Titmouse, his features filled with amazement at the presumption of which she had been guilty; and he strode down the stairs with an air of offended dignity.

"Well—I never!—*That* for you, you little brute," exclaimed Mrs. Squallop, snapping her fingers as soon as she had heard his last step on the stairs—"Kind or cruel, it's all one to you!—You're a nasty jackanapes, only fit to stand in a tailor's window to show his clothes—and I'll be sworn you'll come to no good in the end, please God! Let you be *rich* as you may, you'll always be the fool you always was!"

Had the good woman been familiar with the Night Thoughts of Dr. Young, she might have expressed herself somewhat tersely in a line of his—

"Pygmies are pygmies still, though perched on Alps."

And, by the way, who can read the next line—

"And pyramids are pyramids in vales,"

without thinking for a moment, with a kind of proud sympathy, of certain *other* characters in this history? Well! but let us pass on.

The day after that on which Mr. Gammon had had a long interview with Titmouse, at the new lodgings of the latter,—when, after a very skilful effort, he had succeeded in reconciling Titmouse to a renewal of his acquaintance with Tag-rag, upon that gentleman's making a complete and

abject apology for his late monstrous conduct,—Mr. Gammon wended his way towards Oxford Street, and soon introduced himself once more to Mr. Tag-rag, who was standing leaning against one of the counters in his shop in a musing position, with a pen behind his ear, and his hands in his breeches' pockets. Ten days had elapsed since he had expelled the little impostor Titmouse from Satin Lodge, and during that interval he had neither seen nor heard anything whatever of him. On now catching the first glimpse of Mr. Gammon, he started from his musing posture, not a little disconcerted, and agitation overspread his coarse deeply-pitted face with a tallowy hue. What was in the wind? Mr. Gammon coming to him, so long after what had occurred! Mr. Gammon who, having found out his error, had discarded Titmouse! Tag-rag had a mortal dread of Gammon, who seemed to him to glide like a dangerous snake into the shop, so quietly, and so *deadly*! There was something so calm and imperturbable in his demeanor, so blandly crafty, so ominously gentle and soft in the tone of his voice, so penetrating in his eye, and he could throw such an infernal smile over his features! Tag-rag might be likened to the animal, suddenly shuddering as he perceives the glistening folds of the rattlesnake noiselessly moving towards, or around him, in the long grass. One glimpse of his blasting beauty of hue, and—Horror! all is over.

If the splendid bubble of Titmouse's fortune *had* burst in the manner which he had represented, why Gammon here now? thought Tag-rag. It was with, in truth, a very poor show of contempt and defiance, that, in answer to the bland salutation of Gammon, Tag-rag led the way down the shop into the little room which had been the scene of such an extraordinary communication concerning Titmouse on a former occasion.

Gammon commenced, in a mild tone, with a very startling representation of the criminal liability which Tag-rag had incurred by his wanton outrage

upon Mr. Titmouse; his own guest, in violation of all the laws of hospitality. Tag-rag furiously alleged the imposition which had been practised on him by Titmouse; but seemed quite collapsed when Gammon assured him that that circumstance would not afford him the slightest justification. Having satisfied Tag-rag that he was entirely at the mercy of Titmouse, who might subject him to both fine and imprisonment, Mr. Gammon proceeded to open his eyes to their widest stare of amazement, by assuring him that Titmouse had been hoaxing him, and that he was really in the dazzling position in which he had been first represented by Gammon to Tag-rag; that every week brought him nearer to the full and uncontrolled enjoyment of an estate in Yorkshire, worth £10,000 a-year at the very lowest; that it was becoming an object of increasing anxiety to them (Messrs. Quirk, Gammon, and Snap) to keep him out of the hands of money-lenders, who, as usual in such cases, had already scented out their victim, and so forth. Tag-rag turned very white, and felt sick at heart in the midst of all his wonder. Oh, and his daughter had lost the golden prize! and through *his* misconduct! He could have sunk into the cellar!—Mr. Gammon declared that he could not account for the singular conduct of Mr. Titmouse on the melancholy occasion in question, except by referring it to the excellent wines which he had too freely partaken of at Satin Lodge, added (said Gammon, with an exquisite expression of features which perfectly fascinated Tag-rag) to a "certain tenderer influence" which had fairly laid prostrate the faculties of the young and enthusiastic Titmouse; that there could be no doubt of his real motive in the conduct alluded to, namely, a desire to test the sincerity and disinterestedness of a "certain person's" attachment before he let all his fond and passionate feelings go out towards her—[At this point the perspiration burst from every pore in the devoted body of Tag-rag]—and that no one

could deplore the unexpected issue of his little experiment so much as now did Titmouse.

Tag-rag really, for a moment, scarcely knew where he was, who was with him, nor whether he stood on his head or his heels, so delightful and entirely unexpected was the issue of Mr. Gammon's visit. As soon as his faculties had somewhat recovered themselves from their temporary confusion, almost breathless, he assured Gammon that no event in the whole course of his life had occasioned him such poignant regret as his treatment of Titmouse on the occasion in question; that he had undoubtedly followed unwittingly (he was ashamed to own) the example of Titmouse, and drank far more than his usual quantity of wine; besides which he had undoubtedly noticed, as had Mrs. T., the state of things between Mr. Titmouse and his daughter—talking of whom, by the way, he could assure Mr. Gammon that both Mrs. and Miss T. had been ill ever since that unfortunate evening, and had never ceased to condemn his—Tag-rag's—monstrous conduct on that occasion. As for Miss T., she was growing thinner and thinner every day, and he thought he must send her to the country for a short time: in fact—poor girl!—she was plainly pining away!

To all this Mr. Gammon listened with a calm, delightful, sympathizing look, which quite transported Tag-rag, and satisfied him that Mr. Gammon implicitly believed every word that was being said to him. But when he proceeded to assure Tag-rag that this visit of his had been undertaken at the earnest instance of Mr. Titmouse himself, (who, by the way, had removed to lodgings which would do for the present, so as they were only near to their office, for the purpose of frequent communication on matters of business between him and their firm,) who had urged Mr. Gammon to tender the olive branch, in the devout hope that it might be accepted—Tag-rag's excitement knew scarce any bounds; and he could almost have started into

the shop, and given orders to his shopmen to shut up shop half an hour earlier for the rest of the week! Mr. Gammon wrote down Titmouse's direction, and handing it to Mr. Tag-rag, assured him that a call from him would be gratefully received by Mr. Titmouse. "There's no accounting for these things, Mr. Tag-rag—is there?" said Mr. Gammon, with an arch smile, as he prepared to depart—Tag-rag squeezing his hands with painful energy as Gammon bade him adieu, declaring that "he should not be himself for the rest of the day" and bowing the aforesaid Mr. Gammon down the shop with as profound an obsequiousness as if he had been the Lord High Chancellor, or even the Lord Mayor. As soon as Gammon had got fairly into the street, and to a safe distance, he burst into little gentle paroxysms of laughter, every now and then, which lasted him till he had regained his office in Saffron Hill.

The motive so boldly and skilfully suggested by Gammon to Tag-rag, as that impelling Titmouse to seek a reconciliation with him, was greedily credited by Tag-rag. 'Tis certainly very easy for a man to believe what he wishes to be true. Was it very improbable that Tag-rag, loving only one object on earth, (next to money, which indeed he really did love with the best and holiest energies of his nature,) namely, his daughter; and believing her to be possessed of qualities calculated to excite every one's love—should believe that she had inspired Titmouse with the passion of which he had just been hearing—a passion which was consuming him—which could not be quenched by even the gross outrage which—— but faugh! *that* Tag-rag shuddered to think of. He clapped his hat on his head, and started off to Titmouse's lodgings, and fortunately caught that gentleman just as he was going out to dine at a neighboring tavern. If Tag-rag had been a keen observer, he could hardly have failed to discover aversion towards himself written in every feature and gesture of Titmouse; and also the difficulty

which he experienced in concealing his feelings. But his eagerness overbore everything; and took Titmouse quite by storm. Before Tag-rag had done with him, he had obliterated every trace of resentment in his little friend's bosom. Thoroughly as Gammon thought he had armed Titmouse against the encounter—indeed, at all points—'twas of no avail. Tag-rag poured such a monstrous quantity of flummery down the gaping mouth and insatiate throat of the little animal, as at length produced its desired effect. Few can resist flattery, however coarsely administered; but as for Titmouse, he felt the delicious fluid softly insinuating itself into every crevice of his little nature, for which it seemed, indeed, to have a peculiar affinity; 'twas a balm, 'twas an opiate soothing his wounded pride, lubricating all his inner man; nay, flooding it, so as at length to extinguish entirely the very small glimmering spark of discernment which nature had lit in him. "To be forewarned, is to be forearmed," says the proverb; but it was not verified in the present instance. Titmouse would have dined at Satin Lodge on the very next Sunday, in accordance with the pressing invitations of Tag-rag, but that he happened to recollect having engaged himself to dine on that evening with Mr. Quirk, at his residence in Camberwell—ALIBI HOUSE. As I have already intimated in a previous part of this history, that most respectable old gentleman, Mr. Quirk, with the shrewdness natural to him, and which had been quickened by his great experience, had soon seen through the ill-contrived and worse-concealed designs upon Titmouse of Mr. Tag-rag; and justly considered that the surest method of rendering them abortive would be to familiarize Titmouse with a superior style of things, such as was to be found at Alibi House—and a more lovely and attractive object for his best affections in Miss Quirk—Dora Quirk—the lustre of whose charms and accomplishments there could be no doubt, he thought, would instantly efface the image of that poor, feeble, vulgar creature, Miss Tag-rag; for such

old Quirk knew her to be, though he had, in fact, never for a moment set eyes upon her. Mr. Tag-rag looked rather blank at hearing of the grand party there was to be at Alibi House, and that Titmouse was to be introduced to the only daughter of Mr. Quirk, and could not for the life of him abstain from dropping something, vague and indistinct to be sure, about "entrapping unsuspecting innocence," and "interested attentions," and other similar expressions—all of which, however, were lost upon Titmouse. Tapping with an auctioneer's hammer on a block of granite, would make about as much impression upon it as will hint, innuendo, or suggestion, upon a blockhead. So it was with Titmouse. He promised to dine at Satin Lodge on the Sunday after the ensuing one—with which poor Mr. Tag-rag was obliged to depart content; having been unable to get Titmouse up to Clapham on either of the intervening evenings, on which, he told Mr. Tag-rag, he was particularly engaged with an intimate friend—"in fact, one of HIS SOLICITORS;" and Tag-rag left him after shaking him by the hand with the utmost cordiality and energy. He instantly conceived a lively hatred of old Mr. Quirk and his daughter, who seemed taking so unfair an advantage. What, however, could be done? Many times during his interview did he anxiously turn about in his mind the expediency of proffering to lend or give Titmouse a five-pound note, of which he had one or two in his pocket-book; but no—'twas too much for human nature—he *could* not bring himself to it; and quitted Titmouse as rich a man as he had entered that gentleman's lodgings.

The "intimate friend" to whom Titmouse alluded as having engaged himself to dinner with him, was, in fact, Mr. Snap; who had early evinced a great partiality for him, and lost no opportunity of contributing to his enjoyment. Snap was a sharp-sighted person, and quickly detected many qualities in Titmouse, kindred to his own. He sincerely commiserated

Titmouse's situation, than which, could anything be more lonely and desolate? Was he to sit night after night in the lengthening nights of autumn and winter, with not a soul to speak to, not a book to read, (that was at least interesting or worth reading;) nothing, in short, to occupy his attention? "No," said Snap to himself; "I will do as I would be done by; I will come and draw him out of his dull hole; I will show him life—I will give him an early insight into the habits and practices of the great world, in which he is so soon to cut a leading figure! I will early familiarize him with the gayest and most exciting modes of London life!" The very first taste of this cup of pleasure was exquisitely relished by Titmouse; and he felt a proportionate gratitude to him whose kind hand had first raised it to his lips. Scenes of which he had heretofore only heard and read—after which he had often sighed and yearned, were now opening daily before him, limited as were his means; and he felt perfectly happy. When Snap had finished the day's labors of the office, from which he was generally released about eight or nine o'clock in the evening, he would repair to his lodgings, and decorate himself for the night's display; after which, either he would go to Titmouse, or Titmouse come to him, as might have been previously agreed upon between them; and then,—

"The *town* was all before them, where to choose!"

Sometimes they would, arm in arm, each with his cigar in his mouth, saunter, for hours together, along the leading streets and thoroughfares, making acute observations and deep reflections upon the ever-moving and motley scenes around them. Most frequently, however, they would repair, at half-price, to the theatres; for Snap had the means of securing almost a constant supply of "orders" from the underlings of the theatres, and also from reporters to the *Sunday Flash*, (with which Messrs. Quirk and

Gammon were connected,) and other newspapers. Ah, 'twas a glorious sight to see these two gentlemen saunter into a vacant box, conscious that the eyes of two-thirds of the house were fixed upon them in admiration, and conducting themselves accordingly—as swells of the first water! One such night counterbalanced, in Titmouse's estimation, a whole year of his previous obscurity and wretchedness! The theatre over, they would repair to some cloudy tavern, full of noise and smoke, and the glare of gaslight—redolent of the fragrant fumes of tobacco, gin, and porter, intermingled with the tempting odors of smoking kidneys, mutton-chops, beefsteaks, oysters, stewed cheese, toasted cheese, Welsh rabbits; where those who are chained to the desk and the counter during the day, revel in the license of the hour, and eat, and drink, and smoke to the highest point either of excitement or stupefaction, and enter into all the slang of the day—of the turf, the ring, the cockpit, the theatres—and shake their sides at comic songs. To enter one of these places when the theatre was over, was a luxury indeed to Titmouse; figged out in his very uttermost best, with satin stock and double breastpins; his glossy hat cocked on one side of his head, his tight blue surtout, with the snowy handkerchief elegantly drooping out of the breast-pocket; straw-colored kid gloves, tight trousers, and shining boots; his ebony silver-headed cane held carelessly under his arm! To walk into the middle of the room with a sort of haughty ease and indifference, or nonchalance; and after deliberately scanning, through his eye-glass, every box, with its occupants, at length drop into a vacant nook, and with a languid air summon the bustling waiter to receive his commands, was ecstasy! The circumstance of his almost always accompanying Snap on these occasions, who was held in great awe by the waiters, to whom his professional celebrity was well known, (for there was scarce an interesting, a dreadful, or a nasty scene at any of the police-offices, in which Snap's name did not figure in the

newspapers as "appearing on behalf of the prisoner,") got Titmouse almost an equal share of consideration, and aided the effect produced by his own commanding appearance. As for Snap, whenever he was asked who his companion was, he would whisper in a very significant tone and manner—"Devilish high chap!" From these places they would repair, not unfrequently, to certain other scenes of nightly London life, which, I thank God! the virtuous reader can form no notion of, though they are, strange to say, winked at, if not patronized by the police and magistracy, till the metropolis is choked with them. Thus would Snap and Titmouse pleasantly pass away their time till one, two, three, and often four o'clock in the morning; at which hours they would, with many yawns, skulk homewards through the deserted and silent streets, their clothes redolent of tobacco smoke, their stomachs overcharged, their heads often muddled, swimming, and throbbing with their multifarious potations—having thus spent a "*jolly night*," and "*seen life*." 'T was thus that Snap greatly endeared himself to Titmouse, and secretly (for he enjoined upon Titmouse, as the condition of their continuance, strict secrecy on the subject of these nocturnal adventures) stole a march upon his older competitors for the good opinion of Titmouse—Messrs. Quirk, Tag-rag, and even the astute and experienced Gammon himself. Such doings as these required, however, as may easily be believed, some slight augmentations of the allowance made to Titmouse by Messrs. Quirk and Gammon; and it was fortunate that Snap was in a condition, having a few hundreds at his command, to supply the necessities of Titmouse, receiving with a careless air, on the occasion of such advances, small slips of paper by way of acknowledgments; some on stamped paper, others on unstamped paper,—promissory notes, and I. O. U's. Inasmuch, however, as Snap was not always possessed of a stamp on the occasion of a sudden advance, and having asked the opinion of his pleader (a sharp fellow

who had been articulated at the same time as himself to Messrs. Quirk and Gammon) as to whether an instrument in this form, "I. O. U. so much—*with interest*," would be available without a stamp, and being informed that it was a very doubtful point, Snap ingeniously met the difficulty by quietly adding to the principal what might become due in respect of interest: *e. g.* if £5 were lent, the acknowledgment would stand for £15—these little slips of paper being generally signed by Titmouse in moments of extreme exhilaration, when he never thought of scrutinizing anything that his friend Snap would lay before him. For the honor of Snap, I must say that I hardly think he deliberately purposed to perpetuate the fraud which such a transaction appears to amount to; all he wanted was—so he satisfied himself at least—to have it in his power to recover the full amount of principal *really* advanced, with interest, on one or other of these various securities, and hold the surplus as trustee for Titmouse. If, for instance, any unfortunate difference should hereafter arise between himself and Titmouse, and he should refuse to recognize his pecuniary obligations to Snap, the latter gentleman would be provided with short and easy proofs of his demands against him. 'T was thus, I say, that Snap rendered himself indispensable to Titmouse, whom he bound to him by every tie of gratitude; so that, in short, they became sworn friends.

I will always say for Gammon, that, whatever might have been his motive, he strenuously endeavored to urge upon Titmouse the necessity of acquiring, at all events, a smattering of the elements of useful education. Beyond an acquaintance with the petty operations of arithmetic requisite for counter-transactions, I will venture to say that poor Titmouse had no serviceable knowledge of any kind. Mr. Gammon repeatedly pressed him to put himself under competent teachers of the ordinary branches of education; but Titmouse as often evaded him, and at length flatly refused to do

anything of the kind. He promised, however, to read such books as Mr. Gammon might recommend; who thereupon sent him several: but a book before Titmouse was much the same as a plate of sawdust before a hungry man. Mr. Gammon, himself a man of considerable acquirements, soon saw the true state of the case, and gave up his attempts in despair and disgust. Not that he ever suffered Titmouse to perceive the faintest indication of such feelings towards him; on the contrary, Gammon ever exhibited the same bland and benignant demeanor, consulting his wishes in everything, and striving to instil into him feelings of love, tempered by respect, as towards the most powerful—the only real, disinterested friend he had! To a very great extent he succeeded.

Titmouse spent several hours in preparing for an effective first appearance at the dinner-table at Alibi House. Since dining at Satin Lodge, he had considerably increased his wardrobe both in quantity and style. He now sported a pair of tight black trousers, with pumps and gossamer silk stockings. He wore a crimson velvet waistcoat, with a bright blue satin under-waistcoat, a shirt-frill standing out somewhat fiercely at right angles with his breast, and a brown dress-coat cut in the extreme of the fashion, the long tails coming to a point just about the backs of his knees. His hair (its purple hue still pretty distinctly perceptible) was disposed with great elegance. He had discarded mustaches; but had a very promising imperial. The hair underneath his chin came out curling on each side of it, above his stock, like two little tufts or horns. Over his waistcoat he wore his mosaic gold watch-guard, and a broad black watered ribbon, to which was attached his eye-glass—in fact, if he had dressed himself in order to sit to a miniature painter for his likeness, he could not have taken greater pains, or secured a more successful result. The only points about his appearance with which he was at all dissatisfied, were his hair—which was not yet the thing

which he hoped in due time to see it—his thick red stumpy hands, and his round shoulders. The last matter gave him considerable concern, for he felt that it seriously interfered with a graceful carriage; and that the defect in his figure had been, after all, not in the least remedied by the prodigious padding of his coat. His protuberant eyes, of very light hue, had an expression entirely harmonizing with that of his open mouth; and both together, quite independently of his dress, carriage, and demeanor—(there is nothing like being candid)—gave you the image of a—complete fool. Having at length carefully adjusted his hat on his head, and drawn on his white kid gloves, he enveloped himself in a stylish cloak, with long black silk tassels, which had been lent to him by Snap; and about four o'clock, forth sallied Mr. Titmouse, carefully picking his way, in quest of the first coach that could convey him to Alibi House, or as near to it as might be. He soon found one, and, conscious that his appearance was far too splendid for an outside place, got inside. All the way along, his heart was in a little flutter of vanity, excitement, and expectation. He was going to be introduced to Miss Quirk—and probably, also, to several people of great consequence—as the heir apparent to £10,000 a-year! Two very respectable female passengers, his companions, he never once deigned to interchange, a syllable with. Four or five times did he put his head out of the window, calling out in a loud peremptory tone—"Mind, coachman—Alibi House—Mr. Quirk's—Alibi House—Do you hear, demme?" After which he would sink back into the seat with a magnificent air, as if he had not been used to give himself so much trouble. The coach at length stopped. "Hallibi Ouse, sir," said the coachman, in a most respectful tone—"this is Mr. Quirk's, sir." Titmouse stepped out, dropped eighteenpence into the man's hand, and opening the gate, found himself in a straight and narrow gravel walk, of about twenty yards in length, with little obstinate-looking stunted shrubs on

each side. 'T was generally known, among Mr. Quirk's friends, by the name of "the *Rope-walk*." Titmouse might have entered before as fine-looking a house, but only to deliver a bundle of drapery or hosiery: never before had he entered such an one in the reality of guest. It was, in fact, a fair-sized house, at least treble that of Satin Lodge, and had a far more stylish appearance. When Titmouse pulled the bell, the door was quickly plucked open by a big footman, with showy shoulder-knot and a pair of splendid red plush breeches, who soon disposed of Titmouse's cloak and hat, and led the way to the drawing-room, before our friend, with a sudden palpitation of the heart, had had a moment's time even to run his hands through his hair.

"Your name, sir?" inquired the man, suddenly pausing—with his hand upon the handle of the door.

"Mr. Titmouse!"

"I—*beg* your pardon, sir; *what* name?"

Titmouse clearing his throat repeated his name—open went the door, and—"Mr. Ticklemouse," said the servant, very loudly and distinctly—ushering in Titmouse; on whom the door was the next instant closed. He felt amazingly flustered—and he would have been still more so, if he could have been made aware of the titter which pervaded the fourteen or twenty people assembled in the room, occasioned by the droll misnomer of the servant, and the exquisitely ridiculous appearance of poor Titmouse. Mr. Quirk, dressed in black, with knee breeches and silk stockings, immediately bustled up to him, shook him cordially by the hand, and led him up to the assembled guests. "My daughter—Miss Quirk; Mrs. Alderman Addlehead; Mrs. Deputy Diddle-daddle; Mrs. Alias, my sister;—Mr. Alderman Addlehead; Mr. Deputy Diddle-daddle; Mr. Bluster; Mr. Slang; Mr. Hug; Mr. Flaw; Mr. Viper; Mr. Ghastly; Mr. Gammon you know." Miss Quirk was about four or five and twenty—a fat young lady, with flaxen hair curled

formally all over her head and down to her shoulders; so that she very much resembled one of those great wax dolls seen in bazaars and shop windows. Her complexion was beautifully fair; her eyes were small; her face was quite round and fat. From the die-away manner in which she moved her head, and the languid tone of her voice, it was obvious that she was a very sentimental young lady. She was dressed in white, and wore a massive gold chain—her fat arms being half covered with long kid gloves. She was sitting on the sofa, from which she did not rise when Titmouse was introduced to her—and the moment afterwards, hid her face behind the album which had been lying on her knee, and which she had been showing to the ladies on each side of her; for, in fact, neither she nor any one else could, without the greatest difficulty, refrain from laughing at the monkeyfied appearance of Titmouse. The alderman was a stout, stupid little man—a fussy old prig—with small angry-looking black eyes, and a short red nose; as for his head, it seemed as though he had just smeared some sticky fluid over it, and then dipped it into a flour-tub, so thickly laden was it with powder. Mr. Deputy Diddle-daddle was tall and thin, and serious and slow of speech, with the solemn composure of an undertaker. Mr. Bluster was a great Old Bailey barrister, about fifty years old, the leader constantly employed by Messrs. Quirk, Gammon, and Snap; and was making at least a thousand a-year. He had an amazingly truculent-looking countenance, coarse to a degree, and his voice matched it; but on occasions like the present—*i. e.* in elegant society—he would fain drop the successful terrors of his manner, and appear the mild, dignified gentleman. He therefore spoke in a very soft, cringing way, with an anxious smile; but his bold insolent eye and coarse mouth—what could disguise or mitigate their expression? Here he was, playing the great man; making himself, however, most particularly agreeable to Messrs. Quirk and Gammon. Slang was of the same school;

fat, vulgar, confident, and empty; telling obscene jokes and stories, in a deep bass voice. He sang a good song, too—particularly of that class which required the absence of ladies—and of *gentlemen*. Hug (Mr. Toady Hug) was also a barrister; a glib little Jewish-looking fellow, creeping into considerable criminal practice. He was a sneaking backbiter, and had a blood-hound scent after an attorney. See him, for instance, at this moment, in close and eager conversation with Mr. Flaw, who, rely upon it, will give him a brief before the week is over. Viper was the editor of the *Sunday Flash*; a cold, venomous little creature. He was a philosopher—and of opinion that everything was wrong—moral, physical, intellectual, and social; that there was really no such thing, or at least ought not to be, as religion; and, as to political rights, that everybody was equal, and if any were uppermost, all ought to be! He had failed in business twice, and disreputably; then had become an Unitarian parson; but, having seduced a young female member of his congregation, he was expelled from his pulpit. An action being brought against him by the mother of his victim, and heavy damages obtained, he attempted to take the benefit of the Insolvent Debtors' Act—but, on account of Miss——, was remanded for eighteen months. That period he employed in writing a shockingly blasphemous work, for which he was prosecuted, and sentenced to a heavy fine and imprisonment. On being released from prison, saturated with gall and bitterness against all mankind, he took to political writing of a very violent character, and was at length picked up, half starved, by his present patron, Mr. Quirk, and made editor of the *Sunday Flash*. Is not all this history written in his sallow, sinister-eyed, bitter-expressed countenance? Woe to him who gets into a discussion with Viper! There were one or two others present, particularly a Mr. Ghastly, a third-rate tragic actor, with a tremendous mouth, only one eye, and a very hungry look. He never spoke, because no one spoke to him,

for his clothes seemed rather rusty black. The only man of gentlemanlike appearance in the room was Mr. Gammon; and he took an early opportunity of engaging poor Titmouse in conversation, and setting him comparatively at his ease—a thing which was attempted by old Quirky, but in such a fidgety-fussy way as served only to fluster Titmouse the more. Mr. Quirk gave a dinner-party of this sort regularly every Sunday; and they formed the happiest moments of his life—occasions on which he *felt* that he had achieved success in life—on which he banished from his thoughts the responsible and dignified anxieties of his profession; and, surrounded by a select circle of choice spirits, such as were thus collected together, partook joyously of the

"Feast of reason, and the flow of soul."

"This is a very beautiful picture, Mr. Titmouse, isn't it?" said Gammon, leading him to the farther corner of the drawing-room, where hung a small picture, with a sort of curtain of black gauze before it. Gammon lifted it up; and Titmouse beheld a picture of a man suspended from the gallows, his hands tied with cords before him, his head forced aside, and covered down to the chin with a white nightcap. 'Twas done with sickening fidelity; and Titmouse gazed at it with a shudder. "Charming thing, isn't it?" said Gammon, with a very expressive smile.

"Y—e—e—s," replied Titmouse, his eyes glued to the horrid object.

"Very striking thing, that—a'n't it?" quoth Quirk, bustling up to them; "'twas painted for me by a first-rate artist, whose brother I *very nearly* saved from the gallows! *Like* such things?" he inquired with a matter-of-fact air, drawing down the black gauze.

"Yes, sir, uncommon—most uncommon!" quoth Titmouse, shuddering.

"Well, I'll show you something most particular interesting! Heard of Gilderoy, that was hanged for forgery? Gad, my daughter's got a brooch with a lock of his hair in it, which he gave me himself—a client of mine; within an ace of getting him off—flaw in the indictment—found it out myself—did, by gad! Come along, and I'll get Dora to show it to you!" and, putting Titmouse's arm in his, and desirous of withdrawing him from Gammon, he led him up to the interesting young lady.

"Dora," said Mr. Quirk—"just show my friend Titmouse that brooch of yours, with Gilderoy's hair."

"Oh, my dear papa, 't is such a melancholy thing!" said she, at the same time detaching it from her dress, and handing it to her papa, who, holding it in his hands, gave Titmouse, and one or two others who stood beside, a very interesting account of the last hours of the deceased Gilderoy.

"He was *very* handsome, papa, wasn't he?" inquired Miss Quirk, with a sigh, and a very pensive air.

"Wasn't bad-looking; but good looks and the condemned cell don't long agree together, *I* can tell you!—Had many"——

"Ah, papa!" exclaimed Miss Quirk, in a mournful tone, and, leaning back in the sofa, raised her handkerchief to her eyes.

"You are too sensitive, my love!" whispered her aunt, Mrs. Alias, squeezing the hand of her niece, who, struggling against her feelings, presently revived.

"We were looking just now," said Mr. Hug, addressing Mr. Quirk, "at a very interesting addition to Miss Quirk's splendid album—that letter of Grizzlegut."

"Ah, very striking! Value it beyond everything! Shall never forget Grizzlegut! Very nearly got him off! 'T was an '&c.' that nearly saved his

life, through being omitted in the indictment. 'Fore gad, we thought we'd got 'em!"

They were alluding to an autograph letter which had been addressed to Mr. Quirk by Grizzlegut, (who had been executed for high treason a few weeks before,) the night before he suffered. He was a blood-stained scoundrel of the deepest dye, and ought to have been hanged and quartered half a dozen times.

"Will you read it aloud, Mr. Hug?" inquired Miss Quirk; and the barrister, with solemn emphasis, read the following remarkable document:—

*"Condemned Cell, Newgate,
Sunday night, half-past 11 o'clock,
30th April, 18—.*

"SIR,

"At this awful moment, when this world is closing rapidly upon me and my fellow-sufferers, and the sounds of the wretches putting up the Grim Gallows are audible to my listening ears, and on the morrow the most horrible death that *malicious tyrants* can inflict awaits me, my soul being calm and full of fortitude, and beating responsive to the call of GLORIOUS LIBERTY, I feel prouder than the King upon his throne. I feel that I have done much to secure the liberties of my *injured country*.

'For Liberty, glorious Liberty,
Who 'd fear to die?'

Many thanks to you, sir, for your truly indefatigable efforts on my behalf, and the constant exercise of a skill that nearly secured us a *Glorious Acquittal*. What a Flame we would have raised in England! That should have *blasted* the enemies of True Freedom. I go to Hereafter (if, indeed, there be a hereafter), as we shall soon know, not

with my soul *crammed with Priestcraft*, but a Bold Briton, having laid down my life for my country, knowing that *Future Ages* will do me Justice.

"Adieu, Tyrants, adieu! Do your worst!! My soul defies you!!!

"I am, Sir,

"Your humble, obliged, and

"undismayed servant,

"ARTHUR GRIZZLEGUT

"To CALEB QUIRK, ESQ.

"Tyrants grim,

Will, on the morrow, cut me limb from limb:—

While Liberty looks on with terrible eye,

And says, *I will avenge him by-and-by.*'

"ARTHUR GRIZZLEGUT."

The reading of the above produced a great sensation. "That man's name will be enrolled among the Sidneys and the Hampdens of his country!" said Viper, with a grim and excited air. "That letter deserves to be carved on a golden tablet! The last four lines are sublime! They are worthy of Milton! He was a martyr to principles that are silently and rapidly making their way in this country!"—How much farther he would have gone on in this strain, seeing no one present had resolution enough to differ with or interrupt him, even if they had been so disposed, I know not; but fortunately dinner was announced—a sound which startled old Quirk out of a posture of intense attention to Viper, and evident admiration of his sentiments. He gave his arm with an air of prodigious politeness to the gaunt Mrs. Alderman Addlehead, whose distinguished lord led down Miss Quirk—and the rest followed in no particular order—Titmouse arm in arm with Gammon, who

took care to place him next to himself (Gammon). It was really a dashing sort of dinner—such, indeed, as Mr. Quirk had long been celebrated for. Titmouse had never seen anything like it, and was quite bewildered—particularly at the number of differently shaped and colored glasses, &c. &c. &c., appropriated to his individual use! He kept a constant eye on the movements of Gammon, and did whatever he did (the two appearing moved by the same set of springs), and was thus saved not a few embarrassments and annoyances. What chiefly struck his attention was a prodigious number of dishes, great and small, as if half a dozen dinners had been crowded into one; the rapidity with which they were changed, and plates removed, in constant succession; the incessant invitations to take wine, flying about during the whole of dinner. For a considerable while he was too much flurried to enjoy himself; but a few glasses of champagne succeeded in elevating his spirits to the proper pitch—and (had he not been checked) would soon have driven them far beyond it. Almost everybody, except the great folk at the very top of the table, asked him to take wine; and on every such occasion he filled his glass. In fact Gammon, recollecting a scene at his own chamber, soon perceived that, unless he interfered, Titmouse would be drunk long before dinner was over. That gentleman had not imagined the earth to contain so exquisite a drink as champagne; and he could have fallen down and worshipped it, as it came fizzing and flashing out of the bottle. Gammon earnestly assured him that he would be ill if he drank so much—that many eyes were upon him—and that it was not the custom to do more than merely sip from his wine-glass when challenging or challenged. But Titmouse had taken a considerably greater quantity on board, before Gammon thus interfered, than that gentleman was aware of; and began to get very confident and voluble. Guess the progress he had made, when he called out with a confident air—"Mr. Alderman! Your health!"—whether

more to that great man's astonishment, or disgust, I cannot undertake to say: but after a steady stare for a moment or two at Titmouse, "Oh! I shall be very happy, indeed, *Mr. Gammon*," he called out, looking at the latter gentleman, and drinking with *him*. That signified nothing, however, to Titmouse, who, indeed, did not see anything at all pointed or unusual, and nodding confidently to the alderman, gulped down his wine as eagerly as before.

"Cool puppy, that, Miss Quirk, must say," snuffled the offended alderman, to Miss Quirk.

"He's young, dear Mr. Alderman," said she, sweetly and mildly—"and when you consider the immense fortune he is coming into—ten thousand a-year, my papa says"——

"That don't make him less a puppy—nor a brute," interrupted the ruffled alderman, still more indignant; for his own forty thousand pounds, the source of all his social eminence, sank into insignificance at the sound of the splendid income just about to drop into the lap of Titmouse. Mr. Bluster, who headed the table on Miss Quirk's left hand side, and who felt that he *ought* to be, but knew that in the presence of the alderman he *was* not, the great man of the day, observing the irritation under which his rival was suffering, resolved to augment it as much as possible: wherefore he immediately raised his threatening double-glasses to his eyes, and in a tone of ostentatious condescension, looking down the table to Titmouse, called out, "Mr. Titmash—may I have the honor of drinking wine with you?"

"Ya—as, brother Bumptious," replied Titmouse, (who could never bear to hear his name mispronounced,) and raised *his* glass to his eye; "was just going to ask *you*!" All this was done in such a loud and impudent tone and manner, as made Gammon still more uneasy for his young companion. But his sally had been received by the company as a very smart retort, and

produced a roar of laughter, every one being glad to see Mr. Bluster snubbed, who bore it in silent dignity, though his face showed his chagrin and astonishment; and he very heartily agreed, for once in his life, with the worshipful person opposite to him, in his estimate of our friend Titmouse. "Mr. Titmouse! Mr. Titmouse! my daughter wonders you won't take wine with her," said Mr. Quirk, in a low tone—"will you join us? we're going to take a glass of champagne."

"Oh! 'pon my life—delighted"—quoth Titmouse.

"Dora, my dear! Mr. Titmouse will take wine with you!—Jack," (to the servant,) "fill Miss Quirk's and Mr. Titmouse's glasses to the brim."

"Oh no! *dearest* papa—— gracious!" she exclaimed, removing her glass.

"Pho! pho!—nonsense—the first time of asking, you know, ah, ha!"

"Well! If it *must* be," and with what a graceful inclination—with what a sly searching glance, and fascinating smile, did she exchange courtesies with Titmouse! He felt disposed to take wine with her a second time immediately; but Gammon restrained him. Mr. Toady Hug, having become acquainted with the brilliant prospects of Titmouse, earnestly desired to exert his little talents to do the agreeable, and ingratiate himself with Mr. Titmouse; but there was a counteracting force in another direction—viz. the attorney, Mr. Flaw, who had the greatest practice at the Clerkenwell sessions; who sat beside him and received his most respectful and incessant attentions; Hug speaking ever to him in a low confidential whisper, constantly casting a furtive glance towards Bluster and Slang, to see whether they were observing him. In "strict confidence" he assured Mr. Flaw how his case, the other day, might have been won, if such and such a course had been adopted, "which would have been the line *he*" (Hug) "would have taken;" and which he explained with anxious energy. "I must say, (but don't mention it!) that Mr. Flip regularly threw the case away—no

doubt of it! By the way, what became of that burglary case of yours, on Friday, Mr. Flaw? Uncommonly interesting case!"

"Found guilty, poor fellows!"

"You don't say so?"

"Fact, by Jove, though!"

"How *could* Mr. Gobble have lost that verdict? I assure you I would have bet ten to one on your getting a verdict; for I read over your brief as it lay beside me, and upon my honor, Mr. Flaw, it was most admirably got up. Everything depends on the brief"——

"Glad you thought so, sir," replied Flaw, wondering how it was that he had never before thought of giving a brief to Mr. Hug.

"It's a great mistake of counsel," quoth Hug, earnestly—"not to pay the utmost attention to their briefs! For my part," he continued in a lower tone, "I make a point of reading every syllable in *my* brief, however long it is!"

"It's the only way, depend on it, sir. We attorneys, you know, see and know so much of the case, conversing confidentially with the prisoners"——

"Ay, and beyond that—Your practical suggestions, my dear sir, are often—— Now, for instance, in the brief I was alluding to, there was, I recollect—one most—uncommonly acute suggestion"——

"Sir—you're uncommonly flattering! Am particularly obliged to you! May I ask, what it was that struck you?"—inquired the attorney, briskly, his countenance showing the progress of Hug's lubricating process.

"Oh—why—a—a—hem!" stammered Hug, somewhat nonplussed—(for his little fiction had been accepted as a fact!) "No; it would hardly be fair to Gobble, and I'm sorry indeed"——

"Well, well—it can't be helped *now*—but I must say that once or twice latterly I've thought, myself, that Mr. Gobble has rather—— By the way,

Mr. Hug, shall you be in town this week, till the end of the sessions?"

"Ye—e—s!" hastily whispered Hug, after glancing guiltily towards his brethren, who, though they did not seem to do so, were really watching him with ill-subdued fury.

"I'm happy to hear it!—You've heard of Aaron Doodle, who was committed for that burglary at——? Well, I defend him, and shall be happy to give you the brief. Do you lead Mr. Dolt?" Hug nodded. "Then he will be your junior. Where are your chambers, Mr. Hug?"

"No. 4, Cant Court, Gray's Inn. When, my dear sir, does the case come on?"

"Thursday—perhaps Wednesday."

"Then *do* come and breakfast with me," quoth Hug, in a whisper—"and we can talk it over, you know, so nicely together!"

"Sir, you're *very* polite. I will do myself the pleasure"—replied Mr. Flaw— and good-naturedly took wine with Mr. Hug.

This little stroke of business over, the disengaged couple were at liberty to attend to the general conversation of the table. Mr. Bluster and Mr. Slang kept the company in almost a constant roar, with descriptions of scenes in court, in which *they* had, of course, been the principal actors; and according to their own accounts they must have been wonderful fellows. Such botherers of judges—particularly aldermen and police magistrates!—Such bafflers and browbeaters of witnesses!—Such bamboozlers of juries!

You should have seen the sneering countenance of Hug all the while. He never once smiled or laughed at the brilliant sallies of his brethren, and did his best to prevent his new patron, Mr. Flaw, from doing so—constantly putting his hand before his mouth, and whispering into Mr. Flaw's ear at the very point of the joke or story—and the smile would disappear from the countenance of Mr. Flaw.

The alderman laughed till the tears ran out of his little eyes, which he constantly wiped with his napkin! Amid the general laughter and excitement, Miss Quirk, leaning her chin on her hand, her elbow resting on the table, several times directed soft, languishing looks towards Titmouse, unobserved by any one but himself; and they were not entirely unsuccessful, although Titmouse was wonderfully taken with the stories of the two counsellors, and believed them to be two of the greatest men he had ever seen or heard of, and at the head of their profession.

"Pon my soul—I hope, sir, you'll have those two gents in *my* case?" said he, earnestly, to Gammon.

"Unfortunately, your case will not come on in their courts," said Gammon, with a very expressive smile.

"Why, can't it come on where I choose?—or when you like?" inquired Titmouse, surprisedly.

Mr. Quirk had been soured during the whole of dinner, for he had anxiously desired to have Titmouse sit beside him at the bottom of the table; but in the little hubbub attendant upon coming down to dinner and taking places, Titmouse slipped out of sight for a minute; and when all were placed, Quirk's enraged eye perceived him seated in the middle of the table, beside Gammon. Gammon *always* got hold of Titmouse!—Old Quirk could have flung a decanter at his head.—In his own house!—at his own table! Always anticipating and circumventing him.

"Mr. Quirk, I don't think we've taken a glass of wine together yet, have we?" said Gammon, blandly and cordially, at the same time pouring one out for himself. He perfectly well knew what was annoying his respected partner, whose look of quaint embarrassment, when so suddenly assailed, infinitely amused him. "Catch me asking you here again, Master Gammon," thought Quirk, "with Titmouse!" The reason why Mr. Snap had not been

asked was, that Quirk had some slight cause to suspect his having presumptuously conceived the notion of paying his addresses to Miss Quirk—a thing at any time not particularly palatable to Mr. Quirk; but in the present conjuncture of circumstances quite out of the question, and intolerable even in idea. Snap was not slow in guessing the reason of his exclusion, which had greatly mortified, and also not a little alarmed him. As far as he could venture, he had, during the week, endeavored to "set" Titmouse "against" Miss Quirk, by such faint disparaging remarks and insinuations as he dared venture upon with so difficult a subject as Titmouse, whom he at the same time inflamed by representations of the splendid matches he might very soon command among the highest women of the land. By these means Snap had, to a certain extent, succeeded; but the few melting glances which had fallen upon Titmouse's sensitive bosom from the eyes of Miss Quirk, were beginning to operate a slight change in his feelings. The old alderman, on an intimation that the "ladies were going to withdraw," laid violent hands on Miss Quirk, (he was a "privileged" old fool,) and insisted on her singing his favorite song—"My *Friend and Pitcher*"!! His request was so warmly seconded by the rest of the company—Titmouse loud and eager as any—that she was fain to comply. She sang with some sweetness, and much self-possession; and carried Titmouse's feelings along with her from the beginning, as Gammon, who was watching him, perceived.

"Most uncommon lovely gal, isn't she?" whispered Titmouse, with great vivacity.

"Very!" replied Gammon, dryly, with a slight smile.

"Shall I call out *encore*? A'n't that the word? 'pon my soul, most lovely gal! She *must* sing it again!"

"No, no—she wishes to go—'tis not usual: she will sing it for you, I dare say, this evening, if you ask her."

"Well—most charming gal!—Lovely!"——

"Have patience, my dear Titmouse," said Gammon, in a low whisper, "in a few months' time you'll soon be thrown into much higher life than even *this*—among *really* beautiful, and rich, and accomplished women"—[and, *thought* Gammon, you'll resemble a monkey that has found his way into a rich tulip-bed!]

"Fancy that girl Tag-rag standing beside Miss Quirk!" whispered Titmouse, scornfully.

"Ha, ha!" gently laughed Gammon—"both of them, in their way, are very worthy persons; but"—Here the ladies withdrew. 'Twas no part of Gammon's schemes, that Titmouse should become the son-in-law of either Quirk or Tag-rag. Mr. Gammon had formed already, vastly different plans for him!

As soon as Quirk had taken the head of the table, and the gentlemen drawn together, the bottles were pushed round very briskly, accompanied by no fewer than three different sorts of snuff-boxes, all belonging to Mr. Quirk—all of them presents from grateful Old Bailey clients! One was a huge affair, of Botany Bay wood, with a very flaming inscription on the inside of the lid; from which it appeared that its amiable donors, who were trying the effect of a change of climate on their moral health at the expense of a grateful country, owed their valuable lives to the professional skill and exertions of "Caleb Quirk, Esq." In short, the other two were trophies of a similar description, of which their possessor was very justly not a little proud; and as he saw Titmouse admiring them, it occurred to him as very possible that, within a short time, he should be in possession of a magnificent *gold* snuff-box, in acknowledgment of the services he should

have rendered to his distinguished guest and client. Titmouse was in the highest possible spirits. This, his first glimpse into high life, equalled all his expectations. Round and round went the bottles—crack went joke after joke. Slang sang song upon song, of, however, so very coarse and broad a character as infinitely disgusted Gammon, and apparently shocked the alderman;—though I greatly distrust that old sinner's sincerity in the matter. Then Ghastly's performances commenced. Poor fellow! he exerted himself to the utmost to earn the good dinner he had just devoured; but when he was in the very middle of one of his most impassioned scenes—undoubtedly "tearing a passion to rags,"—Mr. Quirk interrupted impatiently—"Come, come, Ghastly, we've had enough of *that* sort of thing—it don't suit—d'ye see—at all!—Lord bless us!—don't *roar* so, man!"

Poor Ghastly instantly resumed his seat, with a chagrined and melancholy air.

"Give us something funny," snuffled the alderman.

"Let's have the chorus of Pigs and Ducks," said Quirk; "you do that *remarkable* well. I could fancy the animals were running, and squealing, and quacking all about the room!" The actor respectfully did as he was desired, commencing with a sigh, and was much applauded. At length Gammon happened to get into a discussion with Mr. Bluster upon some point connected with the Habeas Corpus Act, in which our friend Gammon, who never got heated in discussion, and was very accurate in whatever he knew, had glaringly the best of it. His calm, smiling self-possession almost drove poor Bluster frantic. The less he knew, of course the louder he talked, the more vehement and positive he became; at length offering a *bet* that there was no such thing as a writ of *Habeas Corpus* before the time of Charles II.;[[20](#)] at which Gammon bowed, smiled, and closed the discussion. While engaged in it, he had of course been unable to keep his

eye upon Titmouse, who drank, consequently, claret, port, sherry, and madeira, like a little fish, never letting the decanter pass him. Every one about him filled his glass every time—why should not he?

Hug sat next to Viper; feared him, and avoided discussion with him; for, though they agreed in the lowest Radical politics, they had a personal antipathy each to the other. In spite of their wishes, they at length got entangled in a very virulent controversy, and said so many insulting things to each other, that the rest of the company, who had for some time been amused, got at length—not disgusted—but alarmed, for the possible results—fully expecting the exchange of a brace of wine-glasses against each other's heads! Mr. Quirk therefore interfered.

"Bravo! bravo! bravo!" he exclaimed, as Viper concluded a most envenomed passage, "that will do, Viper—whip it into the next *Flash*—'t will be a capital leader! It will produce a sensation! And in the mean time, gentlemen, let me request you to fill your glasses—bumpers—for I have a toast to propose, in which you'll all feel interested when you hear who's the subject of it. It is a gentleman who is likely soon to be elevated to a station which Nature has formed him—hem! hem!—to adorn"——

"Mr. Quirk's proposing your health, Titmouse!" whispered Gammon to his companion, who, having been very restless for some time, had at length become quite silent—his head resting on his hand, his elbow on the table—his eyes languidly half open, and his face exceedingly pale. Gammon saw that he was, in truth, in an exceedingly ticklish condition.

"I—wish—you'd—let me—go out—I'm devilish ill"—said Titmouse, faintly. Gammon made a signal to Quirk, who instantly ceased his speech; and coming down to Titmouse, he and Gammon hastily led that gentleman out of the room and into the nearest bed-chamber, where he began to be very ill indeed, and so continued for several hours. Old Quirk, who was a

long-headed man, was delighted by this occurrence; for he saw that if he insisted on Titmouse's being put to bed, and passing the night—and perhaps the next day—at Alibi House, it would enable Miss Quirk to bring her attractions to bear upon him effectively, by exhibiting those delicate and endearing attentions which are so soothing and indeed necessary to an invalid. Titmouse continued desperately indisposed during the whole of the night; and, early in the morning, it was thought advisable to send for a medical man, who pronounced Titmouse to be in danger of a bilious fever, and to require rest and care and medical attendance for some days to come. This was rather "too much of a good thing" for old Quirk; but there was no remedy. Foreseeing that Titmouse would be thrown constantly, for some little time to come, into Miss Quirk's company, her prudent parent enjoined upon Mrs. Alias, his sister, the necessity of impressing on his daughter's mind the great uncertainty which, after all, existed as to Titmouse's prospects; and the consequent necessity there was for her to regulate her conduct with a view to either failure or success—to keep her affections, as it were, in abeyance. But the fact was, that Miss Quirk had so often heard the subject of Titmouse's brilliant expectations talked of by her father, and knew so well his habitual prudence and caution, that she looked upon Titmouse's speedy possession of ten thousand a-year as a matter almost of certainty. She was a girl of some natural shrewdness, but of an early inclination to maudlin sentimentality. Had she been blest with the vigilant and affectionate care of a mother as she grew up, (that parent having died when Miss Quirk was but a child,) and been thrown among a set of people different from those who constantly visited at Alibi House—and of whom a very *favorable* specimen has been laid before the reader—Miss Quirk might really have become a very sensible and agreeable girl. As it was, her manners had contracted a certain coarseness, which at length overspread her

whole character; and the selfish and mercenary motives by which she could not fail to perceive all her father's conduct regulated, gradually infected herself. She resolved, therefore, to be governed by the considerations so urgently pressed upon her by both her father and her aunt.

It was several days before Titmouse was allowed, by his medical man, to quit his bedroom; and it is impossible for any woman not to be touched by the sight of a sudden change effected in a man's appearance by severe indisposition and suffering, even be that man so poor a creature as Titmouse. He was very pale, and considerably reduced by the serious nature of the attack, and of the powerful treatment with which it had been encountered. When he made his first appearance before Miss Quirk, one afternoon, with somewhat feeble gait, and a languid air which mitigated, if it did not obliterate, the foolish and conceited expression of his features, she really regarded him with something akin to interest; and, though she might hardly have owned it even to herself, his expected good fortune invested him with a sort of subdued radiance. *Ten thousand a-year!*—Miss Quirk's heart fluttered! By the time that he was well enough to take his departure, she had, at his request, read over to him nearly half of that truly interesting work,—the Newgate Calendar; she had sung to him and played to him whatever he asked her; and, in short, she felt that if she could but be certain that he would gain his great lawsuit, and step into ten thousand a-year, she could *love* him. She insisted, on the day of his quitting Alibi House, that he should write in her album; and he very readily complied. It was nearly ten minutes before he could get a pen to suit him. At length he succeeded, and left the following interesting memento of himself in the very centre of a fresh page:—

"Tittlebat Titmouse Is My name,
England Is My Nation,
London Is My dwelling-Place,
And Christ Is My Salvation.

"TITTLEBAT TITMOUSE,
"halibi lodge."

Miss Quirk turned pale with astonishment and vexation on seeing this elegant and striking addition to her album. Titmouse, on the contrary, looked at it with no little pride; for having had a capital pen, and his heart being in his task, he had produced what he conceived to be a very superior specimen of penmanship: in fact, the signature was by far the best he had ever written. When he had gone, Miss Quirk was twenty times on the point of tearing out the leaf which had been so dismally disfigured; but on her father coming home in the evening, he laughed heartily—"and as to tearing it out," said he, "let us first see which way the verdict goes!"

Titmouse became, after this, a pretty frequent visitor at Alibi House; growing more and more attached to Miss Quirk, who, however, conducted herself towards him with much judgment. His inscription on her album had done a vast deal towards cooling down the ardor with which she had been disposed to regard even the future owner of ten thousand a-year. Poor Snap seemed to have lost all chance, being treated with greater coldness by Miss Quirk on every succeeding visit to Alibi House. At this he was sorely discomfited; for she would have whatever money her father might die possessed of, besides a commanding interest in the partnership business. 'T was a difficult thing for him to preserve his temper under such circumstances, in his close intimacy with Titmouse, who had so grievously interfered with his prospects.

The indisposition I have been mentioning, prevented Titmouse from paying his promised visit to Satin Lodge. On returning to his lodgings from Alibi House, he found that Tag-rag had either called or sent every day to inquire after him with the most affectionate anxiety; and one or two notes lying on his table apprised him of the lively distress which the ladies of Satin Lodge were enduring on his account, and implored him to lose not a moment in communicating the state of his health, and personally assuring them of his safety. Though the image of Miss Quirk was continually before his eyes, Titmouse, nevertheless, had cunning enough not to drop the slightest hint to the Tag-rags of the true state of his feelings. Whenever any inquiry, with ill-disguised anxiety, was made by Mrs. Tag-rag concerning Alibi House and its inmates, Titmouse would, to be sure, mention Miss Quirk, but in such a careless and slighting way as gave great consolation and encouragement to Tag-rag, his wife, and daughter. "Miss Quirk," he said, "was well enough—but devilish fat!"—When at Mr. Quirk's, he spoke somewhat unreservedly of the amiable inmates of Satin Lodge. These two mansions were almost the only private residences visited by Titmouse, who spent his time much in the way which I have already described. How he got through his *days* I can hardly tell. At his lodgings he got up very late, and went to bed very late. He never read anything excepting occasionally a song-book lent him by Snap, or a novel, or some such book as "Boxiana," from the circulating library, and the *Sunday Flash*. Dawdling over his dress and his breakfast, then whistling and humming and looking out of the window, took up so much of every day as he passed at his lodgings. The rest was spent in idling about the town, looking in at shop windows, and now and then going to some petty exhibition—as of sparring, cock-fighting, etc. When evening came, he was generally joined by Snap, when they would spend the night together in the manner I have already described. As

often as he dared, he called at Messrs. Quirk, Gammon, and Snap's office at Saffron Hill, worrying them not a little by inquiries concerning the state of his affairs, and the cause of the delay in commencing proceedings. As for Huckaback, by the way, Titmouse cut him entirely; saying that he was a devilish low fellow, and it was no use knowing him. He made many desperate efforts, both personally and by letter, to renew his acquaintance with Titmouse, but in vain. I may as well mention, by the way, that as soon as Snap got scent of the little money transaction between his friend and Huckaback, he called upon the latter, and tendering him twelve shillings, demanded up the document which he had extorted from Titmouse. Huckaback held out obstinately for some time—but Snap was too much for him, and talked in such a formidable strain about an indictment for a conspiracy (!) and fraud, that Huckaback at length consented, on receiving twelve shillings, to deliver up the document to Snap, on condition of Snap's destroying it on the spot. This was done, and so ended all intercourse—at least on this side of the grave—between Titmouse (as far, at least, as *his* intentions went) and Huckaback.

The sum allowed by Messrs. Quirk and Gammon to Titmouse, was amply sufficient to have kept him in comfort; but it never would have enabled him to lead the kind of life which I have described—and he would certainly have got very awkwardly involved, had it not been for the kindness of Snap in advancing him, from time to time, such sums as his exigencies required. In fact, matters went on as quietly and smoothly as possible for several months—till about the middle of November; when an event occurred which seemed to threaten the total demolition of all his hopes and expectations.

He had not seen or heard from Messrs. Quirk or Gammon for nearly a fortnight; Snap he had not seen for nearly a week. At length he ventured to make his appearance at Saffron Hill, and was received with a startling

coldness—a stern abruptness of manner—which frightened him out of his wits. All the three partners were alike—as for Snap, the contrast between his present and his former manner, was perfectly shocking: he seemed quite another person. The fact was, that the full statement of Titmouse's claims had been laid before Mr. Subtle, the leading counsel retained in his behalf, for his opinion on the case generally, before actually commencing proceedings; and the partners were indeed thunderstruck on receiving that opinion; for Mr. Subtle pointed out a radical deficiency of proof in a matter which, as soon as their attention was thus pointedly called to it, Messrs. Quirk and Gammon were amazed at their having overlooked, and still more at its having escaped the notice of Mr. Tresayle, Mr. Mortmain, and Mr. Frankpledge. Mr. Quirk hurried with the opinion to the first two of these gentlemen; and after a long interview with each, they owned their fears that Mr. Subtle was right, and that the defect seemed incurable; but they easily satisfied their agitated clients, that *they*—the aforesaid Messrs. Tresayle and Mortmain—had been guilty of neither oversight nor ignorance, inasmuch as the matter in question was one of *evidence* only—one which a *nisi prius* lawyer, with a full detail of "proofs" before him, could hardly fail to light upon—but which, it would be found, had been *assumed*, and *taken for granted*, in the cases laid before conveyancers. They promised, however, to turn it over in their minds, and to let Messrs. Quirk and Gammon know if anything occurred to vary their impression. A week elapsed, however, and Mr. Tresayle and Mr. Mortmain preserved an ominous silence. As for Frankpledge, he had a knack, somehow or another, of always coming to the conclusion wished and hoped for by his clients; and, after prodigious pains, he wrote a very long opinion, to show that there was nothing in the objection. Neither Mr. Quirk nor Mr. Gammon could understand the process by which Mr. Frankpledge arrived at such a result; but, in despair, they laid

his opinion before Mr. Subtle, in the shape of a further "Case for his Opinion." It was in a few days' time returned to them, with only a line or two—thus:—

"I see no reason whatever to depart from the view I have already taken of this case.—J. S."

Here was something like a dead lock, indeed!

"We're *done*, Gammon!" said Quirk, with a dismayed air. Gammon seemed lost, and made no answer.

"Does anything—eh?" quoth Quirk, with a troubled air. "Anything occur to you? Gammon, I *will* say this for you—you're a long-headed fellow!" Still Gammon spoke not.

"Gammon! Gammon! I really believe—ah?—you—you—begin to see something—don't you?"

"*It's to be DONE*, Mr. Quirk!" said Gammon, at length, with a grave and apprehensive look, and a cheek which had suddenly grown pale.

"Eh? how? Oh, I see!—Know what you mean, Gammon," replied Quirk, with a hurried whisper, glancing at both doors to see that they were safe.

"We must resume our intercourse with Titmouse, and let matters go on as before," said Gammon, with a very anxious, but, at the same time, a determined air.

"I—I wonder if what has occurred to *you* is what has occurred to me?" inquired Quirk, in an eager whisper.

"Pooh! pooh! Mr. Quirk."

"Gammon, dear Gammon, no mystery! You know I have a very deep stake in this matter!"

"So have I, Mr. Quirk," replied Gammon, with a sigh. "However"—Here the partners put their heads close together, and whispered to each other in a

low, earnest tone, for some minutes. Quirk rose from his seat, and took two or three turns about the room in silence, Gammon watching him calmly.

To his inexpressible relief and joy, within a few hours of the happening of the above colloquy, Titmouse found himself placed on precisely his former footing with Messrs. Quirk, Gammon, and Snap.

In order to bring on the cause for trial at the next spring assizes, it was necessary that the declaration in ejectment should be served on the tenant in possession before Hilary term; and, in a matter of such magnitude, it was deemed expedient that Snap should proceed to Yorkshire, and personally effect the service in question. In consequence, also, of some very important suggestions as to the evidence, given by the junior in the cause, (Mr. Lynx,) it was arranged that Snap should go down about a week before the time fixed upon for effecting the service, and make quietly certain minute inquiries in the neighborhood of Yatton. As soon as Titmouse had heard of this movement—that Snap was going direct to Yatton, the scene of his, Titmouse's, future greatness—he made the most pertinacious and vehement entreaties to Messrs. Quirk and Gammon to be allowed to accompany him, even going down on his knees. There was no resisting this; but they exacted from him a solemn pledge that he would place himself entirely at the disposal of Mr. Snap; go under some feigned name, and, in short, neither say nor do anything tending to disclose their real character or errand.

Snap and Titmouse established themselves at the Hare and Hounds Inn at Grilston; and the former immediately began, cautiously and quietly, to collect such evidence as he could discover. One of the first persons to whom he went was old Blind Bess. His many pressing questions at length stirred up in the old woman's mind faint confused recollections of long-forgotten names, persons, places, scenes, and associations, thereby producing an agitation not easily to be got rid of, and which had by no

means subsided when Dr. Tatham and Mr. Aubrey paid her the Christmas-day visit, which has been described.

CHAPTER XI.

The reader has had, already, pretty distinct indications of the manner in which Titmouse and Snap conducted themselves during their stay in Yorkshire; and which, I fear, have not tended to raise either of these gentlemen in the reader's estimation. Titmouse manifested a very natural anxiety to see the present occupants of Yatton; and it was with infinite difficulty that Snap could prevent him from sneaking about in the immediate neighborhood of the Hall, with the hope of seeing them. His first encounter with Mr. and Miss Aubrey was entirely accidental, as the reader may remember; and when he found that the lady on horseback near Yatton, and the lady whom he had striven to attract the notice of in Hyde Park, were one and the same beautiful woman, and that that beautiful woman was neither more nor less than the sister of the present owner of Yatton—the marvellous discovery created a mighty pothor in his little feelings. The blaze of Kate Aubrey's beauty in an instant consumed the images both of Tabitha Tag-rag and Dora Quirk. It even for a while outshone the splendors of ten thousand a-year: such is the inexpressible and incalculable power of woman's beauty over everything in the shape of man—over even so despicable a sample of him, as Tittlebat Titmouse.

While putting in practice some of those abominable tricks to which, under Snap's tutelage, Titmouse had become accustomed in walking the streets of London, and from which even the rough handling they had got from farmer Hazel could not turn him, Titmouse at length, as has been seen, most unwittingly fell foul of that fair creature, Catherine Aubrey herself; who seemed truly like an angelic messenger, returning from her errand of sympathy and mercy, and suddenly beset by a little imp of darkness. When

Titmouse discovered who was the object of his audacious and revolting advances, his soul (such as it was) seemed petrified within him; and it was fortunate that the shriek of Miss Aubrey's attendant at length startled him into a recollection of a pair of heels, to which he was that evening indebted for an escape from a most murderous cudgelling, which might have been attended with one effect not contemplated by him who inflicted it, (so profoundly in the dark are we as to the causes and consequences of human actions;) viz. the retention of the Aubreys in the possession of Yatton! Titmouse ran for nearly half a mile on the high-road towards Grilston, without stopping. He dared not venture to return to Yatton, with the sound of the lusty farmer's voice in his ears, to get back from the Aubrey Arms the horse which had brought him that afternoon from Grilston, to which place, therefore, he walked on, through the snow and darkness; reaching his inn in a perfect panic, from which, at length, a tumbler of stiff brandy and water, with two or three cigars, somewhat relieved him. Forgetful of the solemn pledge which he had given to Messrs. Quirk, Gammon, and Snap, not to disclose his name or errand, and it never once occurring to him that if he would but keep his own counsel, Miss Aubrey could never identify *him* with the ruffian who had assailed her; Titmouse spent the interval between eight and twelve o'clock, at which latter hour the coach by which he had resolved to return to London would pass through Grilston, in inditing the following letter to Miss Aubrey:—

"Grilston, January 6th, 18—.

"HONORED MISS,

"Hoping No Offence Will Be Taken where None is meant, (*which am Sure of,*) This I send To say Who I Am which, Is the Right And True Owner of Yatton which You Enjoy Amongst You All At This present (Till The Law Give it to *Me*) Which It quickly Will, and No Mistake,

And which It Ought to Have done When I were First born And Before
Y^r Respe^e. Family ever Came into it, And All which Y^r hon^d. Brother
Have so unlawfully Got Possession Of must Come Back to Them
Whose Due It is w^h Is myself as will be Soon prov^d. And w^h am most
truely Sorry Of *on your own Acc^t*. (Meaning (hon^d. Miss) you Alone) as
Sure As Yatton is Intirely Mine So My Heart Is *yours* and No Longer
my Own Ever since I Saw You first as Can Easily prove but w^h
doubtless You Have forgot Seeing You Never New, because (as Mr.
Gammon, My Solliciter And a Very Great Lawyer, says) *Cases Alter*
Circumstances, what Can I say More Than that I Love you *Most*
Amazing Such As Never Thought Myself Capable of Doing Before and
w^h cannot help Ever Since I First saw your most *Lovely* and *Divine* and
striking Face w^h have Stuck In my Mind Ever Since Day and Night
Sleeping and Waking I will Take my Oath Never Of Having Lov'd Any
one Else, Though (must Say) have Had a Wonderful Many *Offers* From
Females of *The Highest Rank* Since my Truely Wonderful Good fortune
got Talked About every Where but have *Refused Them All* for *y^r sake*,
And Would All the World But you. When I Saw You on Horseback It
was All my Sudden confusion In Seeing you (the Other Gent. was One
of my Respe^e Solicitors) w^h Threw Me off in that Ridiculous Way w^h
was a Great Mortification And made My brute Of A horse *go on so*, For
I Remembered You and was Wonderful struck *with Your Improv'd*
Appearance (As that Same Gent. can Testify) And you was (Hon^d.
Miss) Quite Wrong *To Night* when You Spoke so Uncommon Angry To
Me, seeing If I Had Only Known What Female It Was (meaning
yourself which I respect So) out so Late Alone I should Have spoke
quite Different So hope You Will think Nothing More Of that Truely

Unpleasant Event Now (Hon^d. Madam) What I have to say Is if You will Please to Condescend To Yield To My Desire We Can Live Most uncommon Comfortable at Yatton Together w^h Place shall Have Great Pleasure (if *you* please) in *Marrying You From* and I may (*perhaps*) Do Something handsome for y^r. respectable Brother and Family, w^h can Often Come to see us And Live in the Neighborhood, if You Refuse me, Will not say What shall Happen to *Those* which (am Told) *Owe me a Precious Long Figure* w^h May (*perhaps*) Make a Handsome Abatement in, if You And I *Hit it*.

"Hoping You Will Forget What Have So Much Griev^d. me, And Write p^t. return of Post,

"Am,

"hond. Miss

"Y^r. most Loving & Devoted Servant

"(Till Death)

TITTLEBAT TITMOUSE.

"PARTICULAR Private."

This exquisitely constructed document its accomplished writer sealed twice, and then left, together with sixpence, in the hands of the landlady of the Hare and Hounds, to be delivered at Yatton Hall the first thing in the morning. The good woman, however—having no particular wish to oblige such a strange puppy, whom she was only too glad to get rid of, and having moreover a good deal to attend to—laid the letter aside on the chimney-piece, and entirely lost sight of it for nearly a fortnight. Shortly after the lamentable tidings concerning the impending misfortunes of the Aubrey family had been communicated to the inhabitants of Grilston, she forwarded the letter, (little dreaming of the character in which its writer was likely, ere long, to reappear at Grilston,) together with one or two others, a day or

two after Miss Aubrey had had the interview with her brother which I have described to the reader; but it lay unnoticed by any one—above all, by the sweet sufferer whose name was indicated on it—among a great number of miscellaneous letters and papers which had been suffered to accumulate on the library table.

Mr. Aubrey entered the library one morning, alone, for the purpose of attending to many matters which had been long neglected. He was evidently thinner: his face was pale, and his manner dejected: still there was about him an air of calmness and resolution. Through the richly-pictured old stained-glass window, the mottled sunbeams were streaming in a kind of tender radiance upon the dear familiar objects around him. All was silent. Having drawn his chair to the table, on which was lying a confused heap of letters and papers, he felt a momentary repugnance to enter upon the task which he had assigned to himself; and rose and walked slowly for some time up and down the room, with folded arms, uttering occasionally profound sighs. At length he resumed his seat, and commenced the disheartening task of opening the many letters before him. One of the earliest that came to his hand was from Peter Johnson—the old tenant to whom he had lent the sum of two hundred pounds, and it was full of fervent expressions of gratitude and respect; Mr. Aubrey's heart ached as he read them. Then came a letter, a fortnight old, bearing the frank of Lord C——, the Secretary of State for Foreign Affairs. He opened it and read:—

"Whitehall, 16th January, 18—.

"My DEAR AUBREY,

"You will remember that Lord ——'s motion stands for the 28th. We all venture to calculate upon receiving your powerful support in the debate. We expect to be much pressed with the Duke of ——'s affair, which you handled shortly before the recess with such signal ability and

success. When you return to town, you must expect a renewal of certain offers, which I most sincerely trust, for the benefit of the public service, will not be *again* declined.

"Ever yours faithfully,

"C——.

"(Private and confidential.)

"CHARLES AUBREY, Esq. M. P."

Mr. Aubrey laid down the letter calmly, as soon as he had read it; and leaning back in his chair, seemed lost in thought for several minutes. Presently he reapplied himself to his task, and opened and glanced over a great many letters; the contents of several of which occasioned him deep emotion. Some were from persons in distress whom he had assisted, and who implored a continuance of his aid; others were from ardent political friends—some sanguine, others desponding—concerning the prospects of the session. Two or three hinted that it was everywhere reported that he had been offered one of the under secretaryships, and had declined; but that it was, at the king's desire, to be pressed upon him. Many letters were on private, and still more on county, business; and with one of them he was engaged when a servant entered with one of that morning's county newspapers. Tired with his task, Mr. Aubrey rose from his chair as the servant gave him the paper; and, standing before the fire, unfolded the *Yorkshire Stingo*, and glanced listlessly over its miscellaneous contents. At length his eye lit upon the following paragraph:—

"The rumors so deeply affecting a member for a certain borough in this county, and to which we alluded in our last paper but one, turn out to be well founded. A claimant has started up to the very large estates at present held by the gentleman in question; and we are much misinformed if the ensuing spring assizes will not effect a considerable

change in the representation of the borough alluded to, by relieving it from the Tory thralldom under which it has been so long oppressed. We have no wish to bear hard upon a falling man; and, therefore, shall make no comment upon the state of mind in which that person may be presumed to be, who must be conscious of having been so long enjoying the just rights of others. Some extraordinary disclosures may be looked for when the trial comes on. We have heard from a quarter on which we are disposed to place reliance, that the claimant is a gentleman of decided Whig principles, and who will prove a valuable accession to the Liberal cause."[[21](#)]

Mr. Aubrey was certainly somewhat shocked by brutality such as this; but on Miss Aubrey's entering the room, he quietly folded up the paper and laid it aside, fearful lest his sister's feelings should be pierced by the coarse and cruel paragraph which it contained. It had, in fact, been concocted in London, in the office of Messrs. Quirk, Gammon, and Snap; who were, as before stated, interested in the *Sunday Flash*, which was in some sort connected, through the relationship of the editors, with the *Yorkshire Stingo*. The idea had been suggested by Gammon, by way of attempting to enlist the *political* feeling of a portion of the county, in favor of their client.

"Here are several letters for *you*, Kate," said her brother, picking out several of them. The very first she took up, it having attracted her attention by the double seal, and the vulgar style of the handwriting, was that from Titmouse, which has just been laid before the reader. With much surprise she opened the letter, her brother being similarly engaged with his own; and her face getting gradually paler and paler as she went on, at length she flung it on the floor with a passionate air, and burst into tears. Her brother, with astonishment, exclaimed—"Dear Kate, what is it?" and he rose and stooped to pick up the letter.

"Don't—don't, Charles!" she cried, putting her foot upon it, and flinging her arms round his neck. "It is an audacious letter—a vulgar, a cruel letter, dear Charles!" Her emotion increased as her thoughts recurred to the heartless paragraph concerning her brother with which the letter concluded. "I could have overlooked everything but *that*," said she, unwittingly. With gentle force he succeeded in getting hold of the painfully ridiculous and contemptible effusion. He attempted faintly to smile several times as he went on.

"Don't—don't, dearest Charles!" said she, passionately. "I can't bear it!—Don't smile!—It's very far from your heart; you do it only to assure *me*!"

Here Mr. Aubrey read the paragraph concerning himself. His face turned a little paler than before, and his lips quivered with suppressed emotion. "He is evidently a *very* foolish fellow!" he exclaimed, walking towards the window, with his back to his sister, whom he did not wish to see how much he was affected by so petty an incident.

"What does he allude to, Kate, when he talks of your having spoken angrily to him, and that he did not know you?" he inquired, after a few moments' pause, returning to her.

"Oh, dear!—I am so *grieved* that you should have noticed it—but since you ask I will not deceive you!" and she told him the disgusting occurrence alluded to in the letter. Mr. Aubrey drew himself up unconsciously as Kate went on, and she perceived him becoming still paler than before, and *felt* the kindling anger of his eye.

"Forget it—forget it, dearest Charles!—So despicable a being is really not worth a thought," said Kate, with increasing anxiety; for she had never in her life before witnessed her brother the subject of such powerful emotions as then made rigid his slender frame. At length drawing a long breath—

"It is fortunate for him, Kate," said he, calmly, "that *he* is not a gentleman, and that I *endeavor to be*—a Christian." She flung her arms round him, exclaiming, "There spoke my own noble brother!"

"I shall preserve this letter as a curiosity, Kate," said he, presently, and with a faint smile, and a pointed significance of manner, which arrested his sister's attention, he added,—"*It is rather singular, but some time before you came in, I opened a letter in which your name is mentioned—I cannot say in a similar manner, and yet—in short, it is from Lord De la Zouch, enclosing one*"——

Miss Aubrey suddenly blushed scarlet, and trembled violently.

"Don't be agitated, my dear Kate, the enclosure is from Lady De la Zouch; and if it be in the same strain of kindness that pervades Lord De la Zouch's letter to *me*"——

"I would rather that *you* opened and read it, Charles"—she faltered, sinking into a chair.

"Come, come, dear Kate—play the woman!" said her brother, with an affectionate air—"To say that there is nothing in these letters that I believe will interest you—very deeply gratify and interest your feelings—would be"——

"I know—I—I—suspect—I"—— faltered Miss Aubrey, with much agitation—"I shall return."

"Then you shall take these letters with you, and read, or not read them, as you like," said her brother, putting them into her hand with a fond and sorrowful smile, which soon, however, flitted away—and, leading her to the door, he was once more alone; and, after a brief interval of revery, he wrote answers to such of the many letters before him as he considered earliest to require them.

Notwithstanding the judgment and tenderness with which Dr. Tatham discharged the very serious duty which, at the entreaty of his afflicted friends, he had undertaken, of breaking to Mrs. Aubrey the calamity with which she and her family were menaced, the effects of the disclosure had been most disastrous. They occasioned an attack of paralysis; and Mr. Aubrey, who had long been awaiting the issue, in sickening suspense, in an adjoining room, was hastily summoned in to behold a mournful and heart-rending spectacle. His venerable mother—she who had given him life, at the mortal peril of her own; she whom he cherished with unutterable tenderness and reverence; she who doted upon him as upon the light of her eyes; from whose dear lips he had never heard a word of unkindness or severity; whose heart had never known an impulse but of gentle, noble, unbounded generosity towards all around her—this idolized being now lay suddenly prostrated and blighted before him——

Poor Aubrey yielded to his long and violent agony, in the presence of her who could apparently no longer hear or see, or be sensible of what was passing in the chamber.

"My son," said Dr. Tatham, after the first burst of his friend's grief was over, and he knelt down beside his mother with her hand grasped in his, "despise not the chastening of the Lord; neither be weary of his correction:

"For whom the Lord loveth, he correcteth, even as a father the son in whom he delighteth.

"The Lord will not cast off forever;

"But though he cause grief, yet will he have compassion according to the multitude of his mercies.

"For he doth not afflict willingly, nor grieve the children of men."

It was with great difficulty that Dr. Tatham could render himself audible while uttering these soothing and solemn passages of Scripture in the ear of

his distracted friend, beside whom he knelt.

Mrs. Aubrey had suffered a paralytic seizure, and lay motionless and insensible; her features slightly disfigured, but partially concealed beneath her long silvery gray hair, which had, in the suddenness of the fit, strayed from beneath her cap.

"But what am I about?" at length exclaimed Mr. Aubrey, with a languid and alarmed air—"has medical assistance"—

"Dr. Goddard and Mr. Whately are both sent for by several servants, and will doubtless be very quickly here," replied Dr. Tatham; and while he yet spoke, Mr. Whately—who, when hastened on by the servant who had been sent for him, was entering the park on a visit to young Mrs. Aubrey, who was also seriously ill and in peculiarly critical circumstances—entered the room, and immediately resorted to the necessary measures. Soon afterwards, also, Dr. Goddard arrived; but alas, how little could they do for the venerable sufferer!

During the next, and for many ensuing days, the lodge was assailed by very many anxious and sympathizing inquirers, who were answered by Waters, whom Mr. Aubrey—oppressed by the number of friends who hurried up to the Hall, and insisted upon seeing him to ascertain the extent to which the dreadful rumors were correct—had stationed there during the day to afford the requisite information. The Hall was pervaded by a gloom which could be *felt*. Every servant had a woe-begone look, and moved about as if a funeral were stirring. Little Charles and Agnes, almost imprisoned in their nursery, seemed quite puzzled and confused at the strange unusual seriousness, and quietness, and melancholy faces everywhere about them. Kate romped not with them as had been her wont; but would constantly burst into tears as she held them on her knee or in her arms, trying to evade the continual questioning of Charles. "I think it will

be time for *me* to cry too, by-and-by!" said he to her one day, with an air half in jest and half in earnest, that made poor Kate's tears flow afresh. Sleepless nights and days of sorrow soon told upon her appearance. Her glorious buoyancy of spirits, which erewhile, as it were, had filled the whole Hall with gladness—where were they now? Ah, me! the rich bloom had disappeared from her beautiful cheek; but her high spirit, though oppressed, was not broken, and she stood firmly and calmly amid the scowling skies and lowering tempests. You fancied you saw her auburn tresses stirred upon her pale but calm brow by the breath of the approaching storm; and that she also felt it, but trembled not, gazing on it with a bright and steadfast eye. Her *heart* might be, indeed, bruised and shaken; but her *spirit* was, ay, unconquerable. My glorious Kate, how my heart goes forth towards you!

And thou, her brother, who art of kindred spirit; who art supported by philosophy, and exalted by religion, so that thy constancy cannot be shaken or overthrown by the black and ominous swell of trouble which is increasing and closing around thee, I know that thou wilt outlive the storm—and yet it rocks thee!

A month or two may see thee and thine expelled from Old Yatton, and not merely having lost everything, but with a liability to thy successor which will hang round thy neck like a millstone. What, indeed, is to become of you all? Whither will you go? And your suffering mother, should she indeed survive so long, is her precious form to be borne away from Yatton?

Around thee stand those who, if thou fallest, will perish—and that thou knowest; around thy calm, sorrowful, but erect figure, are a melancholy group—thy afflicted mother—the wife of thy bosom—thy two little children—thy brave and beautiful sister—Yet think not, Misfortune! that over this man thou art about to achieve thy accustomed triumphs. Here,

behold, thou hast a MAN to contend with; nay, more, a CHRISTIAN MAN, who hath calmly girded up his loins against the coming fight!

'Twas Sabbath evening, some five weeks or so after the happening of the mournful events above commemorated, and Kate, having spent, as usual, several hours keeping watch beside the silent and motionless figure of her mother, had quitted the chamber for a brief interval, thinking to relieve her oppressed spirits by walking, for a little while, up and down the long gallery. Having slowly paced backwards and forwards once or twice, she rested against the little oriel window at the farthest extremity of the gallery, and gazed with saddened eye upon the setting sun, till at length, in calm grandeur, it disappeared beneath the horizon. 'Twas to Kate a solemn and mournful sign; especially followed as it was by the deepening shadows and gloom of evening. She sighed, and with her hands crossed on her bosom, gazed, with a tearful eye, into the darkening sky, where glittered the brilliant evening star. Thus she remained, a thousand pensive and tender thoughts passing through her mind, till the increasing chills of evening warned her to retire. "I will go," said she to herself, as she walked slowly along, "and try to play the evening hymn—I may not have *many* more opportunities!" With this view, she gently opened the drawing-room door, and, glancing around, found that she should be alone. The fire gave the only light. She opened the organ with a sigh, and then sat down before it for some minutes without touching the keys. At length she struck them very gently, as if fearful of disturbing those who, she soon recollected, were too distant to hear her. Ah! how many associations were stirred up as she played over the simple and solemn air! At length, in a low and rather tremulous voice, she began—

"Soon will the evening star, with silver ray,
Shed its mild radiance o'er the sacred day;

Resume we, then, ere night and silence reign,
The rites which holiness and heaven ordain"——

She sang the last line somewhat indistinctly; and, overcome by a flood of tender recollections, ceased playing; then, leaning her head upon her hand, she shed tears. At length she resumed——

"Here humbly let us hope our Maker's smile
Will crown with sweet success our earthly toil—
And here, on each returning Sabbath, join"——

Here poor Kate's voice quivered—and after one or two ineffectual attempts to sing the next line, she sobbed, and ceased playing. She remained for several minutes, her face buried in her handkerchief, shedding tears. At length, "I'll play the last verse," thought she, "and then sit down before the fire, and read over the evening service," (feeling for her little prayer-book,) "before I return to poor mamma!" With a firmer hand and voice she proceeded——

"Father of Heaven! in whom our hopes confide,
Whose power defends us, and whose precepts guide—
In life our guardian, and in death our friend,
Glory supreme be thine, till time shall end."

She played and sang these lines with a kind of solemn energy; and she felt as if a ray of heavenly light had trembled for a moment upon her upturned eye. She had not been, as she had supposed, alone; in the farthest corner of the room had been all the while sitting her brother—too exquisitely touched by the simplicity and goodness of his sweet sister, to apprise her of his presence. Several times his feelings had nearly overpowered him; and as she concluded, he arose from his chair, and

approaching her, after her first surprise was over,—"Heaven bless you, dear Kate!" said he, taking her hands in his own. Neither of them spoke for a few moments.

"I could not have sung a line, or played, if I had known that you were here," said she, tremulously.

"I thought so, Kate, and therefore I remained silent"—

"I don't think I shall ever have heart to play again!" she replied—they were both silent.

"Be assured, Kate, that submission to the will of God," said Mr. Aubrey, as (he with his arm round his sister) they walked slowly to and fro, "is the great lesson to be learned from the troubles of life; and for that purpose they are sent. Let us bear up awhile; the waters will not go over our heads!"

"I hope not," replied his sister, faintly, and in tears. "How did you leave Agnes, Charles?"

"She was asleep; she is still very feeble"—— Here the door was suddenly opened, and Miss Aubrey's maid entered hastily, exclaiming, "Are you here, ma'am?—or sir?"

"Here we are," they replied, hurrying towards her; "what is the matter?"

"Oh, Madam is *talking*! She began speaking all of a sudden. She did, indeed, sir. She's talking, and"—— continued the girl, almost breathless.

"My mother talking!" exclaimed Aubrey, with an amazed air.

"Oh yes, sir! she is—she is, indeed!"

Miss Aubrey sank into her brother's arms, overcome for a moment with the sudden and surprising intelligence.

"Rouse yourself, Kate!" he exclaimed with animation; "did I not tell you that Heaven would not forget us? But I must hasten up-stairs, to hear the joyful sounds with my own ears—and do you follow as soon as you can." Leaving her in the care of her maid, he hastened out of the room, and was

soon at the door of his mother's chamber. He stood for a moment in the doorway, and his straining ears caught the gentle tones of his mother's voice, speaking in a low but cheerful tone. His knees trembled beneath him with joyful excitement. Fearful of trusting himself in her presence till he had become calmer, he noiselessly sank on the nearest chair, with beating heart and straining ear—ay, every tone of that dear voice thrilled through his heart. But I shall not torture myself or my reader by dwelling upon the scene which ensued. Alas! the venerable sufferer's tongue was indeed loosed;—but reason had fled! He listened—he distinguished her words. She supposed that all her children—dead and alive—were romping about her; she spoke of him and his sister as she had spoken to them twenty years ago!

As soon as he had made this woful discovery, overwhelmed with grief, he staggered out of the room; and motioning his sister, who was entering, into an adjoining apartment, communicated to her, with great agitation, the lamentable condition of their mother.

CHAPTER XII.

The chief corner-stone suddenly found wanting in the glittering fabric of Mr. Titmouse's fortune, so that, to the eyes of its startled architects, Messrs. Quirk, Gammon, and Snap, it seemed momentarily threatening to tumble about their ears, was a certain piece of evidence which, being a matter-of-fact man, I should like to explain to the reader, before we get on any farther. In order, however, to do this effectually, I must go back to an earlier period in the history than has been yet called to his attention. I make no doubt, that by the superficial and impatient *novel*-reader, certain portions of what has gone before, and which could not fail of attracting the attention of long-headed people, as not likely to have been thrown in for nothing, (and therefore requiring to be borne in mind with a view to subsequent explanation,) have been entirely overlooked or forgotten. However this may be, I can fancy that the sort of reader whom I have in my eye, as one whose curiosity it is worth some pains to excite, and sustain, has more than once asked himself the following question, viz.—

How did Messrs. Quirk, Gammon, and Snap, first come to be acquainted with the precarious tenure by which Mr. Aubrey held the Yatton property? —Why, it chanced in this wise.

Mr. Parkinson of Grilston, who has been already introduced to the reader, had succeeded to his father's first-rate business as a country attorney and solicitor in Yorkshire. He was a highly honorable, painstaking man, and deservedly enjoyed the entire confidence of all his numerous and influential clients. Some twelve years before the period at which this history commences, he had, from pure kindness, taken into his service an orphan boy of the name of Steggars, at first merely as a sort of errand-boy, and to

look after the office. He soon, however, displayed so much sharpness, and acquitted himself so creditably in anything that he happened to be concerned in, a little above the run of his ordinary duties, that in the course of a year or two he became a sort of clerk, and sat and wrote at the desk it had formerly been his sole province to dust. Higher and higher did he rise, in process of time, in his master's estimation; and at length became quite a *factotum*—as such, acquainted with the whole course of business that passed through the office. Many interesting matters connected with the circumstances and connections of the neighboring nobility and gentry were thus constantly brought under his notice, and now and then set him thinking whether the knowledge thus acquired could not, in some way, and at some time or another, be turned to his own advantage; for I am sorry to say that he was utterly unworthy of the kindness and confidence of Mr. Parkinson, who little thought that in Steggars he had to deal with—a rogue in grain. Such being his character, and such his opportunities, this worthy had long made a practice of minuting down, from time to time, anything of interest or importance in the affairs of his betrayed master's clients—even laboriously copying long documents, when he thought them of importance enough for his purpose, and had the opportunity of doing so without attracting the attention of Mr. Parkinson. He thus silently acquired a mass of information which might have enabled him to occasion great annoyance, and even inflict serious injury; and the precise object he had in view, was either to force himself, hereafter, into partnership with his employer, (provided he could get regularly introduced into the profession,) or even compel his master's clients to receive him into their confidence, adversely to Mr. Parkinson; and make it worth his while to keep the secrets of which he had become possessed. So careful ought to be, and indeed generally are, attorneys and solicitors, as to the characters of those whom they thus

receive into their employ. On the occasion of Mr. Aubrey's intended marriage with Miss St. Clair, with a view to the very liberal settlements which he contemplated, a full "Abstract" of his "Title" was laid by Mr. Parkinson before his conveyancer, in order to advise, and to prepare the necessary instruments. Owing to inquiries suggested by the conveyancer, additional statements were laid before him; and produced an opinion of a somewhat unsatisfactory description, from which I shall lay before the reader the following paragraph:—

"...There seems no reason for supposing that any descendant of Stephen Dreddlington is now in existence;[\[22\]](#) still, *as it is by no means physically impossible that such a person may be in esse*, it would unquestionably be most important to the security of Mr. Aubrey's title, to establish clearly the validity of the conveyance by way of mortgage, executed by Harry Dreddlington, and which was afterwards assigned to Geoffrey Dreddlington on his paying off the money borrowed by his deceased uncle; since the descent of Mr. Aubrey from Geoffrey Dreddlington would, in that event, clothe him with an indefeasible title at law, by virtue of that deed; and any equitable rights which were originally outstanding, would be barred by lapse of time. But the difficulty occurring to my mind on this part of the case is, that unless Harry Dreddlington, who executed that deed of mortgage, survived his father, (a point on which I am surprised that I am furnished with no information,) the deed itself would have been mere waste parchment, as in reality the conveyance of a person who *never had any interest* in the Yatton property—and, of course, neither Geoffrey Dreddlington, nor his descendant, Mr. Aubrey, could derive any right whatever under such an instrument. In that case, such a contingency as I have above hinted at—I mean the existence of any legitimate descendant of Stephen

Dreddlington—*might have a most serious effect upon the rights of Mr. Aubrey.*"

Now every line of this opinion, and also even of the Abstract of Title upon which it was written, did this quicksighted young scoundrel copy out, and deposit, as a great prize, in his desk, among other similar notes and memoranda,—little wotting his master, the while, of what his clerk was doing. Some year or two afterwards, the relationship subsisting between Mr. Parkinson and his clerk Steggars, was suddenly determined by a somewhat untoward event; viz. by the latter's decamping with the sum of £700 sterling, being the amount of money due on a mortgage which he had been sent to receive from a client of Mr. Parkinson's. Steggars fled for it—but first having bethought himself of the documents to which I have been alluding, and which he carried with him to London. Hot pursuit was made after the enterprising Mr. Steggars, who was taken into custody two or three days after his arrival in town, while he was walking about the streets, with the whole of the sum which he had embezzled, *minus* a few pounds, upon his person, in bank-notes. He was quickly deposited in Newgate. His natural sagacity assured him that his case was rather an ugly one; but hope did not desert him.

"Well, my kiddy," said Grasp, the grim-visaged, gray-headed turnkey, as soon as he had ushered Steggars into his snug little quarters; "here you are, you see— isn't you?"

"I think I am," replied Steggars, with a sigh.

"Well—and if you want to have a chance of not going across the water afore your time, you'll get yourself *defended*, and the sooner the better, d'ye see. There's *Quirk*, *Gammon*, and *Snap*—my eyes! how they *do* thin this here place of ours, to be sure! The only thing is to get 'em soon; 'cause, ye see, they're so run after. Shall I send them to you?"

Steggars answered eagerly in the affirmative. In order to account for this spontaneous good-nature on the part of Grasp, I must explain that old Mr. Quirk had for years secured a highly respectable criminal practice, by having in his interest most of the officers attached to the police-offices and Newgate. He gave, in fact, systematic gratuities to these gentry, in order to get their recommendations to the persecuted individuals who came into their power. Very shortly after Grasp's messenger had reached Saffron Hill, with the intelligence that "*there was something new in the trap*," old Quirk bustled down to Newgate, and was introduced to Steggars, with whom he was closeted for some time. He took a lively interest in his new client, to whose narrative of his flight and capture he listened in a very kind and sympathizing way, lamenting the severity of the late statute applicable to the case;[\[23\]](#) and promised to do for him whatever his little skill and experience *could* do. He hinted however, that, as Mr. Steggars must be aware, a *little* ready money would be required, in order to fee counsel—whereat Steggars looked very dismal indeed, and knowing the state of his exchequer, imagined himself already on shipboard, on his way to Botany Bay. Old Mr. Quirk asked him if he had no friends who would raise a trifle for a "chum in trouble,"—and on Mr. Steggars answering in the negative, he observed the enthusiasm of the respectable old gentleman visibly and rapidly cooling down.

"But I'll tell you what, sir," said poor Steggars, suddenly, "if I haven't money, I may have *money's worth* at my command;—I've a little box, that's at my lodging, which those that caught me knew nothing of—and in which there is a trifle or two about the families and fortunes of some of the first folk in the best part of Yorkshire, that would be precious well worth looking after, to those who know how to follow up such matters."

Old Quirk hereat pricked up his ears, and asked his young friend how he got possessed of such secrets.

"Oh fie! fie!" said he, gently, as soon as Steggars had told him the practices of which I have already put the reader in possession.

"Ah—you may say fie! fie! if you like," quoth Steggars, earnestly; "but the thing is, not how they were come by, but what can be done with them, now they're got. For example, there's a certain member of parliament in Yorkshire, that, high as he may hold his head, has no more right to the estates that yield him a good ten thousand a-year than I have, but keeps some folk out of their own, that could pay some other folk a round sum to be put in the way of getting their own;" and that—intimated the suffering captive—was only *one* of the good things he knew of. Here old Quirk rubbed his chin, hemmed, fidgeted about in his seat, took off his glasses, wiped them, replaced them; and presently went through that ceremony again. He then said that he had had the honor of being concerned for a great number of gentlemen in Mr. Steggars' "present embarrassed circumstances," but who had always been able to command at least a five-pound note, at starting, to run a heat for liberty.

"Come, come, old gentleman," quoth Steggars, earnestly, "I don't want to go over the water before my time, if I can help it, I assure you; and I see you know the value of what I've got! Such a gentleman as you can turn every bit of paper I have in my box into a fifty-pound note."

"All this is moonshine, my young friend," said old Quirk, in an irresolute tone and manner.

"Ah! is it, though? To be able to tell the owner of a fat ten thousand a-year, that you can spring a mine under his feet at any moment—eh?—and no one ever know how you came by your knowledge. And if they wouldn't do what was handsome, couldn't you *get the right heir*—and wouldn't *that*

—Lord! it would make the fortunes of half-a-dozen of the first houses in the profession!" Old Quirk got a little excited.

"But mind, sir—you see"—said Steggars, "if I get off, I'm not to be cut out of the thing altogether—eh? I shall look to be taken into your employ, and dealt handsomely by"——

"Oh Lord!" exclaimed Quirk, involuntarily—adding quickly, "Yes, yes! to be sure! only fair; but let us first get you out of your present difficulty, you know!" Steggars, having first exacted from him a written promise to use his utmost exertions on his (Steggars') behalf, and secure him the services of two of the most eminent Old Bailey counsel—viz. Mr. Bluster and Mr. Slang—gave Mr. Quirk the number of the house where the precious box was, and a written order to the landlord to deliver it up to the bearer: after which Mr. Quirk shook him cordially by the hand, and having quitted the prison, made his way straight to the house in question, and succeeded in obtaining what he asked for. He faithfully performed his agreement, with Steggars; for he retained both Bluster and Slang for him, and got up their briefs with care: but, alas! although these eminent men exerted all their great powers, they succeeded not in either bothering the judge, bamboozling the jury, or browbeating the witnesses, (the principal one of whom was Mr. Parkinson;) Steggars was found guilty and sentenced to be transported for fourteen years.^[24] Enraged at this issue, he sent a message the next day to Mr. Quirk, requesting a visit from him. When he arrived, Steggars, in a very violent tone, demanded that his papers should be returned to him. 'Twas in vain that Mr. Quirk explained to him again and again his interesting position with reference to his goods, chattels, and effects—*i. e.* that, as a convicted felon, he had no further concern with them, and might dismiss all anxiety on that score from his mind. Steggars hereat got more furious than before, and intimated plainly the course he

should feel it his duty to pursue—viz. that, if the papers in question were not given up to him as he desired, he should at once write off to his late employer, Mr. Parkinson, and acknowledge how much more he (Steggars) had wronged that gentleman and his clients, than he supposed of. Old Quirk very feelingly represented to him that he was at liberty to do anything that he thought calculated to relieve his excited feelings: and then Mr. Quirk took a final farewell of his client, wishing him health and happiness.

"I say, Grasp!" said he, in a whisper, to that grim functionary, as soon as he had secured poor Steggars in his cell, "that bird is a little ruffled just now— isn't he, think you?"

"Lud, sir, that's the nat'ralist thing in the world, considering"——

"Well—if he should want a letter taken to any one, whatever he may say to the contrary, you'll send it on to Saffron Hill—eh? Understand?—He may be injuring himself, you know;" and old Quirk with one hand clasped the huge arm of Grasp in a familiar way, and with the forefinger of the other touched his own nose, and then winked his eye.

"All right!" quoth Grasp, and they parted. Within a very few hours' time, Mr. Quirk received, by the hand of a trusty messenger, from Grasp, a letter written by Steggars to Mr. Parkinson; a long and eloquent letter, to the purport and effect which Steggars had intimated. Mr. Quirk read it with much satisfaction, for it disclosed a truly penitent feeling, and a desire to undo as much mischief as the writer had done. He (Mr. Quirk) was not in the least exasperated by certain very plain terms in which his own name was mentioned; but making all due allowances, quietly put the letter in the fire as soon as he had read it. In due time Mr. Steggars, whose health had suffered from close confinement, caught frequent whiffs of the fresh sea-breeze, having set out, under most favorable auspices, for Botany Bay; to

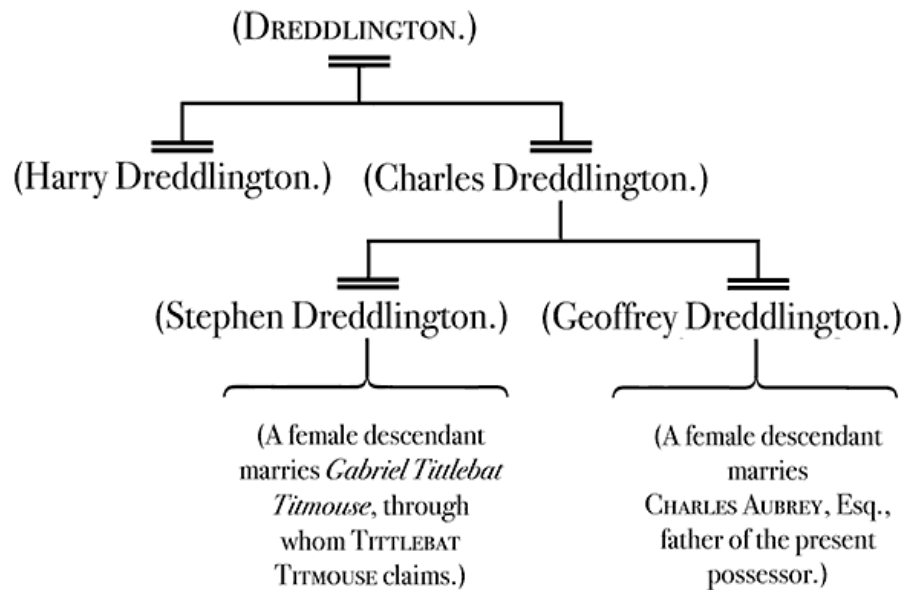
which distant but happy place, he had been thus fortunate in early securing an "*appointment*" for so considerable a portion of his life.

Such, then, were the miserable means by which Mr. Quirk became acquainted with the exact state of Mr. Aubrey's title; on first becoming apprised of which, Mr. Gammon either felt, or affected, great repugnance to taking any part in the affair. He appeared to suffer himself, at length, however, to be over-persuaded by Quirk into acquiescence; and, that point gained—having ends in view of which Mr. Quirk had not the least conception, and which, in fact, had but suddenly occurred to Mr. Gammon himself—worked his materials with a caution, skill, energy, and perseverance, which soon led to important results. Guided by the suggestions of acute and experienced counsel, after much pains and considerable expense, they had succeeded in discovering that precious specimen of humanity, Tittlebat Titmouse, who hath already figured so prominently in this history. When they came to set down on paper the result of all their researches and inquiries, in order to submit it in the shape of a case for the opinion of Mr. Mortmain and Mr. Frankpledge, in the manner described in a former part of this history, it looked perfect *on paper*, as many a faulty pedigree and abstract of title had looked before, and will yet look. It was quite possible for even Mr. Tresayle himself to overlook the defect which had been pointed out by Mr. Subtle. That which is stated to a conveyancer, as *a fact*—any particular event, for instance, as of a death, a birth, or a marriage, at a particular time or place, which the very nature of the case renders highly probable—he is warranted in assuming to be so. But when the same statement comes—with quite a different object—under the experienced eye of a *nisi prius* lawyer, who knows that he will have to *prove* his case, step by step, the aspect of things is soon changed. "*De non apparentibus, et de non existentibus,*" saith the law, "*eadem est ratio.*" The

first practitioner in the common law, before whom the case came, in its roughest and earliest form, in order that he might "lick it into shape," and "advise generally" preparatory to its "being laid before counsel," was Mr. Traverse, a young pleader, whom Messrs. Quirk and Gammon were disposed to take by the hand. He wrote a very showy, but superficial and delusive opinion; and put the intended *protégé* of his clients, as it were by a kind of hop, step, and jump, into possession of the Yatton estates. Quirk was quite delighted on reading it; but Gammon shook his head with a somewhat sarcastic smile, and said he would at once prepare a case for the opinion of Mr. Lynx, whom he had pitched upon as the junior counsel in any proceedings which might be instituted in a court of law. Lynx (of whom I shall speak hereafter) was an experienced, hard-headed, vigilant, and accurate lawyer; the very man for such a case, requiring, as it did, most patient and minute examination. With an eye fitted

"To inspect a mite, not comprehend the heaven,"

he *crawled*, as it were, over a case; and thus, even as one can imagine that a beetle creeping over the floor of St. Paul's, would detect minute flaws and fissures invisible to the eye of Sir Christopher Wren himself, spied out defects which much nobler optics would have overlooked. To come to plain matter-of-fact, however, I have beside me the original opinion written by Mr. Lynx; and shall treat the reader to a taste of it—giving him sufficient to enable him to appreciate the very ticklish position of affairs with Mr. Titmouse. To make it not altogether unintelligible, let us suppose the state of the pedigree to be something like this, (as far as concerns our present purpose:)—



Be pleased now, unlearned reader, to bear in mind that "*Dreddlington*" at the top of the above table, is the common ancestor, having two sons, the elder "*Harry Dreddlington*," the younger "*Charles Dreddlington*;" the latter having, in like manner, two sons, "*Stephen Dreddlington*" the elder son, and "*Geoffrey Dreddlington*" the younger son; that Mr. Aubrey, at present in possession, claims under "*Geoffrey Dreddlington*." Now it will be incumbent on Mr. Titmouse, in the first instance, to establish in himself a clear, independent, legal, and possessory title to the estates; it being sufficient for Mr. Aubrey, (possession being nine-tenths of the law), to falsify Titmouse's proofs, or show them defective—"because," saith a very learned sergeant, who hath writ a text-book upon the Action of Ejectment, "the plaintiff in an action of ejectment must recover upon the strength of his own title, not the weakness of his adversary's." [25]

Now, *rebus sic stantibus*, behold the astute Lynx advising (inter alia) in manner following; that is to say—

"It appears clear that the lessor of the plaintiff (*i. e.* Tittlebat Titmouse) will be able to prove that Dreddlington (the common ancestor) was seised of the estate at Yatton in the year 1740; that he had two sons, Harry and

Charles, the former of whom, after a life of dissipation, appears to have died without issue; and that from the latter (Charles) are descended Stephen, the ancestor of the lessor of the plaintiff, and Geoffrey, the ancestor of the defendant. Assuming, therefore, that the descent of the lessor of the plaintiff from Stephen can be made out, as there appears every reason to expect, [on this point Lynx had written two brief pages,] a clear *primâ facie* case will have been established on the part of the lessor of the plaintiff. As, however, it is suspected that Harry Dreddlington executed a conveyance in fee of the property, in order to secure the loan contracted by him from Aaron Moses, it will be extremely important to ascertain, and, if possible, procure satisfactory evidence that the decease of Harry Dreddlington occurred before the period at which, by his father's death, that conveyance could have become operative upon the property: since it is obvious that, should he have survived his father, *that instrument, being outstanding*, may form a complete answer to the case of the lessor of the plaintiff.[26] The danger will be obviously increased should the debt to Aaron Moses prove to have been paid off, (as it is stated was rumored to have been the fact,) by Geoffrey Dreddlington, the younger son of Charles Dreddlington; for, should that turn out to be the case, he would probably have taken a conveyance to himself, or to trustees for his benefit, from Aaron Moses—which being in the power of the defendant, Mr. Aubrey, would enable him to make out a title to the property, paramount to that now attempted to be set up on behalf of Mr. Titmouse. Every possible exertion, therefore, should be made to ascertain the precise period of the death of Harry Dreddlington. The registries of the various parishes in which the family may have at any time resided should be carefully searched; and an examination made in the churches and churchyards, of all tombstones, escutcheons, etc., belonging, or supposed to belong, to the Dreddlington

family, and by which any light can be thrown upon this most important point. It appears clear that Dreddlington (the common ancestor) died on the 7th August, 1742:—the question, therefore, simply is, *whether the death of his eldest son (Harry) took place prior or subsequent to that period*. It is to be feared that the defendant may be in possession of some better and more direct evidence on this point than is attainable by the lessor of the plaintiff. The natural presumption would certainly seem to be that the son, being the younger and stronger man, was the survivor."[\[27\]](#)

The above-mentioned opinion of Mr. Lynx, together with that of Mr. Subtle entirely corroborating it, (and which was alluded to in a late chapter of this history,[\[28\]](#)) and a pedigree, were lying on the table, one day, at the office at Saffron Hill, before the anxious and perplexed partners, Messrs. Quirk and Gammon.

Gammon was looking attentively, and with a very chagrined air, at the pedigree; and Quirk was looking at Gammon.

"Now, Gammon," said the former, "just let me see again where the exact hitch is—eh? You'll think me perhaps infernally stupid, but—curse me if I can see it!"

"See it, my dear sir? Here, *here!*" replied Gammon, with sudden impatience, putting his finger two or three times to the words "*Harry D.*"

"Lord bless us! Don't be so sharp with one, Gammon! I know as well as you that that's *about* where the crack is; but what is the precise thing we're in want of, eh?"

"Proof, my dear sir," replied Gammon, somewhat impatiently, but with a smile, "of the death of Harry Dreddlington some time—no matter when—previous to the 7th August, 1742; and in default thereof, Mr. Quirk, we are all flat on our backs, and had better never have stirred in the business!"

"You know, Gammon, you're better *up* in these matters than I—(because I've not been able to turn my particular attention to 'em since I first began business)—so just tell me, in a word, what good's to be got by showing that fellow to have died in his father's lifetime?"

"You don't show your usual acuteness, Mr. Quirk," replied Gammon, blandly. "It is to make waste paper of that confounded conveyance which he executed, and which Mr. Aubrey doubtless has, and with which he may, at a stroke, cut the ground from under our feet!"

"The very thought makes one feel quite funny—don't it, Gammon?" quoth Quirk, with a flustered air.

"It may well do so, Mr. Quirk. Now we *are* fairly embarked in a cause where success will be attended with so many splendid results, Mr. Quirk—though I'm sure you'll always bear me out in saying how very unwilling I was to take advantage of the villany of that miscreant Steg—hem"——

"Gammon, Gammon, you're always harking back to that—I'm tired of hearing on't!" interrupted Quirk, angrily, but with an embarrassed air.

"Well, now we're in it," said Gammon, with a sigh, and shrugging his shoulders, "I don't see why we should allow ourselves to be baffled by trifles. The plain question is, undoubtedly, whether we are to stand still—*or go on*." Mr. Quirk gazed at Mr. Gammon with an anxious and puzzled look.

"How d'ye make out—in a legal way, you know, Gammon—*when* a man died—I mean, of a *natural* death?" somewhat mysteriously inquired Quirk, who was familiar enough with the means of proving the exact hour of certain *violent* deaths at Debtor's Door.

"Oh! there are various methods of doing so, my dear sir," replied Gammon, carelessly. "Entries in family Bibles and prayer-books—registers—tombstones—ay, by the way, AN OLD TOMBSTONE," continued Gammon, musingly, "that would settle the business!"

"An old tombstone!" echoed Quirk, briskly, but suddenly dropping his voice. "Lord, Gammon, so it would! That's an *idea*!—I call that a decided idea, Gammon. 'Twould be the very thing!"

"The very thing!" repeated Gammon, pointedly. They remained silent for some moments.

"Snap could not have looked about him sharply enough when he was down at Yatton—could he, Gammon?" at length observed Quirk, in a low tone, flushing all over as he uttered the last words, and felt Gammon's cold gray eye settled on him like that of a snake.

"He could not, indeed, my dear sir," replied Gammon, while Quirk continued gazing earnestly at him, now and then wriggling about in his chair, rubbing his chin, and drumming with his fingers on the table.—"And now that you've suggested the thing, [oh, Gammon! Gammon]—it's not to be wondered at!—You know, it would have been an old tombstone—a sort of fragment of a tombstone, perhaps—so deeply sunk in the ground, probably, as easily to have escaped observation. Eh?—Does not it strike *you* so, Mr. Quirk?" All this was said by Gammon in a musing manner, and in a very low tone of voice; and he was delighted to find his words sinking into the eager and fertile mind of his companion.

"Ah, Gammon!" exclaimed Quirk, with a sound of partly a sigh, and partly a whistle, (the former being the exponent of the *true* state of his feelings, *i. e.* anxiety—the latter of what he wished to *appear* the state of his feelings, *i. e.* indifference.)

"Yes, Mr. Quirk?"

"You're a deep devil, Gammon—I *will* say that for you!" replied Quirk, glancing towards each door, and, as it were, unconsciously drawing his chair a little closer to that of Gammon.

"Nay, my dear sir!" said Gammon, with a deferential and deprecating smile, "you give me credit for an acuteness I feel I do not possess! If, indeed, I had not had *your* sagacity to rely upon, ever since I have had the honor of being connected with you in business—— ah, Mr. Quirk, you know you lead—I follow"——

"Gammon, Gammon!" interrupted Quirk, with an uncomfortable, but still a mollified air, "Come—your name's *Oily*"——

"In moments like these, Mr. Quirk, I say nothing that I do not feel," interrupted Gammon, gravely, putting to his nose the least modicum of snuff which he could take with the tip of his finger out of the huge box of Mr. Quirk, who, just then, was thrusting immense pinches, every half minute, up his nostrils.

"It will cost a great deal of money to find that same tombstone, Gammon!" said Quirk, in almost a whisper, and paused, looking intently at Gammon.

"I think this is a different kind of snuff from that which you usually take, Mr. Quirk, isn't it?" inquired Gammon, as he inserted the tips of his fingers a second time into the mechanically proffered box of Mr. Quirk.

"The same—the same," replied Quirk, hastily.

"You are a man better fitted for serious emergencies, Mr. Quirk, than any man I ever came near," said Gammon, deferentially; "I perceive that you have hit the nail on the head, as indeed you *always* do!"

"Tut! Stuff, Gammon; you're every bit as good a hand as I am!" replied Quirk, with an evident mixture of pleasure and embarrassment. Gammon smiled, shook his head, and shrugged his shoulders.

"'Tis that practical sagacity of yours, Mr. Quirk," said Gammon—"you know it as well as I can tell you—that has raised you to your present

professional eminence!" He paused, and looked very sincerely at his senior partner.

"Well, I must own I think I *do* know a trick or two," quoth Quirk, with a sort of *grunt* of gratification.

"Ay, and further, there are *some* clever men who never can keep their own counsel; but are like a hen that has just laid an egg, and directly she has risen, goes foolishly cackling about everywhere, and then her egg is taken away; but *you*"——

"Ha, ha!" laughed Quirk; "that's *devilish* good, Gammon!—Capital! Gad, I think I see the hen! Ha, ha!"

"Ha, ha!" echoed Gammon, gently. "But to be serious, Mr. Quirk; what I was going to say was, that I thoroughly appreciate your admirable caution in not confiding to any one—no, not even to me—the exact means by which you intend to extricate us from our present dilemma." Here Quirk got very fidgety, and twirled his watch-key violently.

"Hem! But—hem! Ay—a—a," he grunted, looking with an uneasy air at his calm astute companion; "I didn't mean so much as all *that*, either, Gammon; for two heads, in my opinion, are better than one. You *must* own that, Gammon!" said he, not at all relishing the heavy burden of responsibility which he felt that Gammon was about to devolve upon his (Quirk's) shoulders exclusively.

"'Tis undoubtedly rather a serious business on which we are now entering," said Gammon; "and I have always admired a saying which you years ago told me of that great man Machiavel"——

[Oh, Gammon! Gammon! You well know that poor old Mr. Quirk never heard of the name of that same Machiavel till this moment!]

"That 'when great affairs are stirring, a master-move should be confined to the master-mind that projects it.' I understand! I see! I will not, therefore,

inquire into the precise means by which I am satisfied you will make it appear, in due time (while I am engaged getting up the subordinate, but very harassing details of the general case), that *Harry Dreddlington died* BEFORE *the 7th of August, 1742.*" Here, taking out his watch, he suddenly added—"Bless me, Mr. Quirk, how time passes!—Two o'clock! I ought to have been at Messrs. Gregson's a quarter of an hour ago."

"Stop—a moment or two can't signify! It—it," said Quirk, hesitatingly, "it was *you*, wasn't it, that thought of the tombstone?"

"I, my dear Mr. Quirk"—interrupted Gammon, with a look of astonishment and deference.

"Come, come—honor among thieves, you know, Gammon!" said Quirk, trying to laugh.

"No—it shall never be said that I attempted to take the credit of"—commenced Gammon; when a clerk entering, put an end to the colloquy between the partners, each of whom, presently, was sitting alone in his own room—for Gammon found that he was too late to think of keeping his engagement with Messrs. Gregson; if indeed he had ever made any—which, in fact, he had *not*. Mr. Quirk sat in a musing posture for nearly half an hour after he and Gammon had separated. "Gammon is a deep one! I'll be shot if ever there was his equal," said Quirk to himself, at length; and starting off his chair, with his hands crossed behind him, he walked softly to and fro. "I know what he's driving at—though he thought I didn't! He'd let me scratch my hands in getting the blackberries, and then he'd come smiling in to eat 'em! But—share and share alike—share profit, share danger, master Gammon;—you may find that Caleb Quirk is a match for Oily Gammon—I'll have you in for it, one way or another!" Here occurred a long pause in his thoughts, "Really I doubt the thing's growing unmanageable—the prize can't be worth the risk!—*Risk*, indeed—'fore gad—it's neither

more nor less than"— Here a certain picture hanging, covered with black crape, in the drawing-room at Alibi House, seemed to have glided down from its station, and to be hanging close before his eyes, with the crape drawn aside—a ghastly object— eugh! He shuddered, and involuntarily closed his eyes. "How devilish odd that I should just *now* have happened to think of it!" he inwardly exclaimed, sinking into his chair in a sort of cold sweat.

"D—n the picture!" at length said he aloud—getting more and more flustered—"I'll burn it! It sha'n't disgrace my drawing-room any longer!" Here Quirk almost fancied that some busy little fiend sat squatting before the grisly picture, writing the words "CALEB QUIRK" at the bottom of it; and a sort of sickness came over him for a moment. Presently he started up, and took down one of several well-worn dingy-looking books standing on the shelves—a volume of Burns' Justice. Resuming his seat, he put on his glasses, and with a little trepidation turned to the head "Forgery," and glanced over it, divided as it was into two great heads—"Forgery at *Common Law*, and Forgery *by Statute*," with many able observations of the learned compiler, and important "*cases*" cited. At length his eye lit upon a paragraph which seemed suddenly to draw his heart up into his throat, producing a sensation which made him involuntarily clap his hand upon his neck.

"Oh, Gammon!!" he muttered, drawing off his glasses, sinking back in his chair, and looking towards the door which opened into Gammon's room; extending at the same time, in that direction, his right arm, and shaking his fist. "You *precious* villain!—I've an uncommon inclination," at length thought he, "to go down slap to Yorkshire—say nothing to anybody—make peace with the enemy, and knock up the whole thing!—For a couple of thousand pounds—a trifle to the Aubreys, I'm sure. Were *I* in his place, I

shouldn't grudge it; and why should he?—By Jove," he got a little heated—"that *would* be, as Gammon has it, a master-move! and confined, egad! to the master-mind that thought of it!—Why should he ever know of the way in which the thing blew up?—Really, 'twould be worth half the money to *do* Gammon so hollow for once—by George it would!—Gammon, that would slip Caleb Quirk's neck so slyly into the halter, indeed!"

"I'll tell you what, Mr. Quirk," said Gammon, suddenly re-entering the room after about an hour's absence, during which he too had, like his senior partner, been revolving many things in his mind—"it has occurred to me, that I had better immediately go down to Yatton, *alone*."

Hereat Mr. Quirk opened both his eyes and his mouth to their very widest; got very red in the face; and stared at his placid partner with a mingled expression of fear and wonder. "Hang me, Gammon!" at length he exclaimed desperately, slapping his fist upon the table—"if I don't think you're the very devil himself!"—and he sank back in his chair, verily believing, in the momentary confusion of his thoughts, that what had been passing through his mind was known to Gammon; or that what had been passing through his (Quirk's) mind, had also been occurring to Gammon, who had resolved upon being beforehand in putting his purposes into execution. Gammon was at first completely confounded by Quirk's reception of him, and stood for a few moments, with his hands elevated, in silence. Then he approached the table, and his eye caught the well-thumbed volume of Burns' Justice, open at the head "~~FORGORY!~~" and the quicksighted Gammon saw how matters stood at a glance—the process by which the result he had just witnessed had been arrived at.

"Well, Mr. Quirk, what new vagary now?" he inquired with an air of smiling curiosity.

"Vagary be——!" growled old Quirk, sullenly, without moving in his chair.

Gammon stood for a moment or two eying him with a keen scrutiny. "What!" at length he inquired good-humoredly, "do you then really grudge me any share in the little enterprise?"

"Eh?" quickly interrupted Quirk, pricking up his ears. "Do you intend to play *Mackivel*! eh? What must you go down alone to Yatton for, Gammon?" continued Quirk, anxiously.

"Why, simply as a sort of pioneer—to reconnoitre the churchyard—eh? I thought it might have been of service; but if"—

"Gammon, Gammon, your hand! I understand," replied Quirk, evidently vastly relieved—most cordially shaking the cold hand of Gammon.

"But understand, Mr. Quirk," said he, in a very peremptory manner, "no one upon earth is to know of my visit to Yatton except yourself."

He received a solemn pledge to that effect; and presently the partners separated, a little better satisfied with each other. Though not a word passed between them for several days afterwards on the topic chiefly discussed during the interview above described, the reader may easily imagine that neither of them dropped it from his thoughts. Mr. Quirk, shortly afterwards, paid one or two visits to the neighborhood of Houndsditch, (a perfect hotbed of clients to the firm,) where resided two or three gentlemen of the Jewish persuasion, who had been placed, from time to time, under considerable obligations by the firm of Quirk, Gammon, and Snap, in respect of professional services rendered both to themselves and to their friends. One of them, in particular, had a painful consciousness that it was in old Mr. Quirk's power at any time by a whisper to place his—the aforesaid Israelite's—neck in an unsightly noose which every now and then might be seen dangling from a beam opposite Debtor's Door, Newgate,

about eight o'clock in the morning; him, therefore, every consideration of interest and of gratitude combined to render subservient to the reasonable wishes of Mr. Quirk. He was a most ingenious little fellow, and had a great taste for the imitative arts—so strong in fact, that it had once or twice placed him in some jeopardy with the Goths and Vandals of the law; who characterized the noble art in which he excelled, by a very ugly and formidable word, and annexed the most barbarous penalties to its practice. What passed between him and old Quirk on the occasion of their interviews, I know not; but one afternoon, the latter, on returning to his office, without saying anything to anybody, having bolted the door, took out of his pocket several little pieces of paper, containing pretty little picturesque devices of a fragmentary character, with antique letters and figures on them—crumbling pieces of stone, some looking more and some less sunk in the ground, and overgrown with grass; possibly they were designs for ornaments to be added to that tasteful structure, Alibi House—possibly intended to grace Miss Quirk's album. However this might be, after he had looked at them, and carefully compared them one with another, for some time, he folded them up in a sheet of paper, sealed it—with certainly not the steadiest hand in the world—and then deposited it in an iron safe.

CHAPTER XIII.

Yatton, the recovery of which was the object of these secret and formidable movements and preparations, not to say machinations, was all this while the scene of deep affliction. The lamentable condition of his mother plunged Mr. Aubrey, his wife, and sister, into profounder grief than had been occasioned by the calamity which menaced them all in common. Had he been alone, he would have encountered the sudden storm of adversity with unshrinking, nay, cheerful firmness; but could it be so, when he had ever before him those whose ruin was involved in his own?—Poor Mrs. Aubrey, his wife, having been two or three weeks confined to her bed, during which time certain fond hopes of her husband had been blighted, was almost overpowered, when, languid and feeble, supported by Mr. Aubrey and Kate, she first entered the bedroom of the venerable sufferer. What a difference, indeed, was there between the appearance of all of them at that moment, and on the Christmas day when, a happy group, they were cheerfully enjoying the festivities of the season! Kate was now pale, and somewhat thinner; her beautiful features exhibited a careworn expression; yet there was a serene lustre in her blue eye, and a composed resolution in her air, which bespoke the superiority of her soul. What had it not cost her to bear with any semblance of self-possession, or fortitude, the sad spectacle now presented by her mother! What a tender and vigilant nurse was she, to one who could no longer be sensible of, or appreciate her attentions! How that sweet girl humored all her venerated and suffering parent's little eccentricities and occasional excitement, and accommodated herself to every varying phasis of her mental malady! She had so schooled her sensibilities and feelings, as to be able to maintain perfect cheerfulness and

composure in her mother's presence, on occasions which forced her brother to turn aside with an eye of agony—overcome by some touching speech or wayward action of the unconscious sufferer, who constantly imagined herself, poor soul! to be living over again her early married life; and that in her little grandchildren she beheld Mr. Aubrey and Kate as in their childhood! She would gently chide Mr. Aubrey, her husband, for his prolonged absence, asking many times a day whether he had returned from London. Every morning old Jacob Jones was shown into her chamber, at the hour at which he had been accustomed, in happier days, to attend upon her. The faithful old man's eyes would be blinded with tears, and his voice choked, as he was asked how Peggy got over her yesterday's journey; and listened to questions, messages, and directions, which had been familiar to him twenty years before, about villagers and tenants who had long lain mouldering in their humble graves—their way thither cheered and smoothed by Mrs. Aubrey's Christian charity and benevolence! 'Twas a touching sight to see her two beautiful grandchildren, in whose company she delighted, brought, with a timorous and half-reluctant air, into her presence. How strange must have seemed to them the cheerfulness of the motionless figure always lying in the bed; a cheerfulness which, though gentle as gentle could be, yet sufficed not to assure the little things, or set them at their ease. Though her mild features ever smiled upon them, still 'twas from a prostrate figure, which never moved, and was always surrounded by mournful persons, with sorrowful constraint in their countenances and gestures! Charles would stand watching her, with apprehensive eye—the finger of one hand raised to his lip, while his other retained the hand which had brought him in, as if fearful of its quitting hold of him; the few words he could be brought to speak were in a subdued tone and hurried utterance;—and when, having been lifted up to kiss his

grandmamma, he and his sister were taken out of the chamber, their little breasts would heave a sigh which showed how sensibly they were relieved from their recent constraint!

How wofully changed was everything in the once cheerful old Hall! Mr. Aubrey sitting in the library, intently engaged upon books and papers—Mrs. Aubrey and Kate now and then, arm in arm, walking slowly up and down the galleries, or one of the rooms, or the hall, not with their former sprightly gayety, but pensive, and often in tears, and then returning to the chamber of their suffering parent. All this was sad work, indeed, and seemed, as it were, to herald coming desolation!

But little variation occurred, for several weeks, in the condition of Mrs. Aubrey, except that she grew visibly feebler. One morning, however, about six weeks after her seizure, from certain symptoms, the medical men intimated their opinion that some important change was on the eve of taking place, for which they prepared the family. She had been very restless during the night. After frequent intervals of uneasy sleep, she would awake with evident surprise and bewilderment. Sometimes a peculiar smile would flit over her emaciated features; at others, they would be overcast with gloom, and she would seem struggling to suppress tears. Her voice, too, when she spoke, was feeble and tremulous; and she would sigh, and shake her head mournfully. Old Jacob Jones, not being introduced at the accustomed hour, she asked for him. When he made his appearance, she gazed at him for a moment or two, with a perplexed eye, exclaiming, "Jacob! Jacob! is it you?" in a very low tone; and then she closed her eyes, apparently falling asleep. Thus passed the day; her daughter and daughter-in-law sitting on either side of the bed, where they had so long kept their anxious and affectionate vigils—Mr. Aubrey sitting at the foot of the bed—and Dr. Goddart and Mr. Whately in frequent attendance. Towards the evening, Dr.

Tatham also, as had been his daily custom through her illness, appeared, and in a low tone read over the service for the visitation of the sick. Shortly afterwards Mr. Aubrey was obliged to quit the chamber, in order to attend to some very pressing matters of business; and he had been engaged for nearly an hour, intending almost every moment to return to his mother's chamber, when Dr. Tatham entered, as Mr. Aubrey was subscribing his name to a letter, and, with a little earnestness, said—"Come, my friend, let us return to your mother; methinks she is on the eve of some decisive change: the issue is with God!" Within a very few moments they were both at the bedside of Mrs. Aubrey. A large chamber-lamp, standing on a table at the farther end of the room, diffused a soft light, rendering visible at a glance the silent and sad group collected round the bed, all with their eyes directed towards the venerable figure who lay upon it. Mr. Aubrey sat beside his wife close to his mother; and taking her white emaciated hand into his own, gently raised it to his lips. She seemed dozing: but his action appeared to rouse her for a moment. Presently she fixed her eye upon him—its expression, the while, slowly but perceptibly changing, and exciting strange feelings within him. He trembled, and removed not his eye from hers. He turned very pale—for the whole expression of his mother's countenance, which was turned full towards him, was changing. Through the clouded windows of the falling fabric, behold! its long-imprisoned tenant, THE SOUL, had arisen from its torpor, and was looking at him. Reason was re-appearing. It was, indeed, his mother, and *in her right mind*, that was gazing at him. He scarcely breathed. At length surprise and apprehension yielded before a gush of tenderness and love. With what an unutterable look was his mother at that moment regarding him! His lip quivered—his eye overflowed—and, as he felt her fingers very gently compressing his own, his tears fell down. Gently leaning forward, he kissed her cheek, and sank on one knee beside the bed.

"Is it you, my son?" said she, in a very low tone, but in *her own* voice, and it stirred up instantly a thousand fond recollections, almost overpowering him. He kissed her hand with fervent energy, but spoke not. She continued gazing at him with mingled solemnity and fondness. Her eye seemed brightening as it remained fixed upon him. Again she spoke, in a very low but clear voice—every thrilling word being heard by all around her: "Or ever the silver cord be loosed, or the golden bowl be broken, or the pitcher be broken at the fountain, or the wheel broken at the cistern,—Then shall the dust return to the earth as it was; and the spirit shall return unto God who gave it." It would be in vain to attempt to describe the manner in which these words were spoken; and which fell upon those who heard them as though they were listening to one from the dead.

"My mother!—my mother!" at length faltered Aubrey.

"God bless thee, my son!" said she, solemnly. "And Catherine, my daughter—God bless thee"— she presently added, gently turning round her head towards the quarter whence a stifled sob issued from Miss Aubrey, who rose, trembling, and leaning over, kissed her mother. "Agnes, are you here—and your little ones?—God bless"— Her voice got fainter, and her eyes closed. Mr. Whately gave her a few drops of ether, and she presently revived.

"God hath been very good to you, Madam," said Dr. Tatham, observing her eye fixed upon him, "to restore you thus to your children."

"I have been long absent—long!—I wake, my children, but to bid you farewell, forever, upon earth."

"Say not so, my mother—my precious mother!" exclaimed her son, in vain endeavoring to suppress his emotions.

"I do, my son! Weep not for me; I am old, and am summoned away from among you"—She ceased, as if from exhaustion; and no one spoke for

some minutes.

"It may be that God hath roused me, as it were, from the dead, to comfort my sorrowful children with words of hope," said Mrs. Aubrey, with much more power and distinctness than before. "Hope ye, then, in God; for ye shall yet praise him who is the health of your countenance, and your God!"

"We will remember, my mother, your words!" faltered her son.

"Yes, my son—if days of darkness be at hand"—She ceased. Again Mr. Whately placed to her white lips a glass with some reviving fluid—looking ominously at Mr. Aubrey, as he found that she continued insensible. Miss Aubrey sobbed audibly; indeed all present were powerfully affected. Again Mrs. Aubrey revived, and swallowed a few drops of wine and water. A heavenly serenity diffused itself over her emaciated features.

"We shall meet again, my loves!—I can no longer see you with the eyes of"—Mr. Whately observing a sudden change, came nearer to her.

"Peace! peace!" she murmured almost inarticulately. A dead silence ensued, interrupted only by smothered sobs. Her children sank on their knees, and buried their faces in their hands, trembling.

Mr. Whately made a silent signal to Dr. Tatham, that life had ceased—that the beloved spirit had passed away. "The Lord gave, and the Lord hath taken away: blessed be the name of the Lord!" said Dr. Tatham, with tremulous solemnity. Mrs. Aubrey and Miss Aubrey, no longer able to restrain their feelings, wept bitterly; and overpowered with grief, were supported out of the room by Dr. Tatham and Mr. Aubrey.

As soon as it was known that this venerable lady was no more, universal reverence was testified for her memory, and sympathy for the afflicted survivors, by even those, high and low, in the remoter parts of the neighborhood who had no personal acquaintance with the family. Two or three days afterwards, the undertaker, who had received orders from Mr.

Aubrey to provide a simple and inexpensive funeral, submitted to him a list of more than thirty names of the nobility and gentry of the country, who had sent to him to know whether it would be agreeable to the family for them to be allowed to attend Mrs. Aubrey's remains to the grave. After much consideration, Mr. Aubrey accepted this spontaneous tribute of respect to the memory of his mother. 'Twas a memorable and melancholy day on which the interment took place—one never to be forgotten at Yatton. What can be more chilling than the gloomy bustle of a great funeral, especially in the country; and when the deceased is one whose memory is enshrined in the holiest feelings of all who knew her? What person was there, for miles around, who could not speak of the courtesies, the charities, the goodness of Madam Aubrey?

"When the ear heard her, then it blessed her; and when the eye saw her, it gave witness to her:

"Because she delivered the poor that cried, and the fatherless, and him that had none to help him.

"The blessing of him that was ready to perish came upon her, and she caused the widow's heart to sing for joy.

"She was eyes to the blind, and feet was she to the lame.

"She was a mother to the poor."——

Pale as death, the chief mourner, wrapped in his black cloak, is stepping into the mourning-coach. No one speaks to him; his face is buried in his handkerchief; his heart seems breaking. He thinks of her whose dear dust is before him;—then of the beloved beings whom he has left alone in their agony till his return—his wife and sister. The procession is moving slowly on—long, silent rows of the tenantry and villagers, old and young, male and female—not a dry eye among them, nor a syllable spoken—stand on each

side of the way; no sound heard but of horses' feet, and wheels crushing along the wet gravel—for the day is most gloomy and inclement. As they quit the gates, carriage after carriage follows in the rear; and the sorrowful crowd increases around them. Many have in their hands the Bibles and prayer-books which had been given them by her who now lies in yonder hearse; and a few can recollect the day when the late lord of Yatton led her along from the church to the Hall, his young and blooming bride—in pride and joy—and they are now going to lay her beside him again! They are met at the entrance of the little churchyard, by good Dr. Tatham, in his surplice, bareheaded, and with book in hand; with full eye and quivering lip he slowly precedes the body into the church. His voice frequently trembles, and sometimes he pauses while reading the service. Now they are standing bareheaded at the vault's mouth—the last sad rites are being performed; and probably, as is thinking the chief mourner, over the last of his race who will rest in that tomb!

Long after the solemn ceremony was over, the little churchyard remained filled with mournful groups of villagers and tenants, who pressed forward to the dark mouth of the vault, to take their last look at the coffin which contained the remains of her whose memory would live long in all their hearts. "Ah, dear old Madam," quoth Jonas Higgs to himself, as he finished his dreary day's labors, by temporarily closing up the mouth of the vault, "they might have turned thee, by-and-by, out of yonder Hall, but they shall not touch thee *here!*"

Thus died, and was buried, Madam Aubrey; *and she is not yet forgotten.*

How desolate seemed the Hall, the next morning, to the bereaved inmates, as, dressed in deep mourning, they met at the cheerless breakfast-table! Aubrey kissed his wife and sister—who could hardly answer his brief inquiries. The gloom occasioned throughout the Hall, for the last ten days,

by the windows being constantly darkened—now that the blinds were drawn up—had given way to a staring light and distinctness, which almost startled and offended the eyes of those whose hearts were dark with sorrow as ever. Every object reminded them of the absence of *one*—whose chair stood empty in its accustomed place. There, also, was her Bible, on the little round table near the window! The mourners seemed relieved by the entrance, by-and-by, of the children; but they also were in mourning! Let us, however, withdraw from this scene of suffering, where every object, every recollection, every association, causes the wounded heart to bleed afresh.

Great troubles seem coming upon them; and now that *they have buried their dead out of their sight*, and when time shall have begun to pour his balm into their present smarting wounds, I doubt not that they will look those troubles in the face, calmly and with fortitude, not forgetful of the last words of her for whom they now mourn so bitterly, and whom, beloved and venerable being! God hath mercifully taken away from evil days that are to come.

After much consideration, they resolved to go, on the ensuing Sunday morning, to church, where neither Mrs. Aubrey nor Kate had been since the illness of her mother. The little church was crowded; almost every one present, besides wearing a saddened countenance, exhibited some outward mark of respect, in their dress—some badge of mourning—such as their little means admitted of. The pulpit and reading-desk were hung in black, as also was Mr. Aubrey's pew—an object of deep interest to the congregation, who expected to see at least *some* member of the family at the Hall. They were not disappointed. A little before Dr. Tatham took his place in the reading-desk, the well-known sound of the family-carriage wheels was heard as it drew up before the gate; and presently Mr. Aubrey appeared at

the church door, with his wife and sister on either arm; all of them, of course, in the deepest mourning—Mrs. and Miss Aubrey's countenances concealed beneath their long crape veils. For some time after taking their seats, they seemed oppressed with emotion, evidently weeping. Mr. Aubrey, however, exhibited great composure, though his countenance bore traces of the suffering he had undergone. Mrs. Aubrey seldom rose from her seat; but Kate stood up, from time to time, with the rest of the congregation; her white handkerchief, however, might have been seen frequently raised to her eyes, beneath her black veil. As the service went on, she seemed to have struggled with some success against her feelings. To relieve herself for a moment from its oppressive closeness, she gently drew aside her veil; and thus, for a few minutes, exhibited a countenance which, though pale and agitated, was inexpressibly beautiful. She could not, however, long bear to face a congregation, every one of whom she felt to be looking on her, and those beside her, with affectionate sympathy; and rather quickly drew down her veil, without again removing it. There was one person present, on whom the brief glimpse of her beauty had produced a sudden, deep, and indelible impression. As he gazed at her, the color gradually deserted his cheek; and his eye remained fixed upon her, even after she had drawn down her veil. He experienced emotions such as he had never known before. *So that was Miss Aubrey!*

Mr. Gammon—for he it was, and he had gone thither under the expectation of seeing, for the first time, some of the Aubrey family—generally passed for a cold-blooded person; and in fact few men living had more control over their feelings, or more systematically checked any manifestations of them; but there was something in the person and circumstances of Miss Aubrey—for by a hurried inquiry of the person next to him he learned that it was she—which excited new feelings in him. Her

slightest motion his eye watched with intense eagerness; and faint half-formed schemes, purposes, and hopes, passed in rapid confusion through his mind, as he foresaw that circumstances would hereafter arise by means of which—

"Good heavens! how very—very beautiful she is!" said he to himself, as, the service over, her graceful figure, following her brother and his wife with slow sad step, approached the pew in which he was standing, on her way to the door. He felt a sort of cold shudder as her black dress rustled past, actually touching him. What was he doing and meditating against that lovely being? And for whom—disgusting reptile!—for Titmouse? He almost blushed from a conflict of emotions, as he followed almost immediately after Miss Aubrey, never losing sight of her till her brother, having handed her into the carriage, got in after her, and they drove off towards the Hall.

The reader will not be at a loss to account for the presence of Mr. Gammon on this occasion, nor to connect it with an impending trial at the approaching York assizes. As he walked back to Grilston to his solitary dinner, he was lost in thought; and on arriving at the inn, repaired at once to his room, where he found a copy of the *Sunday Flash*, which had, according to orders, been sent to him from town, under his assumed name, "Gibson." He ate but little, and that mechanically; and seemed to feel, for once, little or no interest in his newspaper. He had never paid the least attention to the *eulogia* upon Miss Aubrey of the idiot Titmouse, nor of Snap, of whom he entertained but a very little higher opinion than of Titmouse. One thing was clear, that from that moment Miss Aubrey formed a new element in Mr. Gammon's calculations; and for aught I know, may occasion very different results from those originally contemplated by that calm and crafty person.

As it proved a moonlight night, he resolved at once to set about the important business which had brought him into Yorkshire; and for that purpose set off about eight o'clock on his walk to Yatton. About ten o'clock he might have been seen gliding noiselessly into the churchyard, like a dangerous snake. The moon continued to shine—and at intervals with brightness sufficient for his purpose, which was simply to reconnoitre, as closely as possible, the little sequestered locality—to ascertain what it might contain, and *what were its capabilities*. At length he approached the old yew-tree, against the huge trunk of which he leaned with folded arms, apparently in a reverie. Hearing a noise as of some one opening the gate by which he had entered, he glided farther into the gloom behind him; and turning his head in the direction whence the sound came, he beheld some one entering the churchyard. His heart beat quickly; and he suspected that he had been watched: yet there was surely no harm in being seen, at ten o'clock at night, looking about him in a country churchyard!—It was a gentleman who entered, dressed in deep mourning; and Gammon quickly recognized in him Mr. Aubrey—the brother of her whose beautiful image still shone before his mind's eye. What could he be wanting there?—at that time of night? Gammon was not kept long in doubt; for the stranger slowly bent his steps towards a large high tomb, in fact the central object, next to the yew-tree, in the churchyard—and stood gazing at it in silence for some time.

"That is, no doubt, where Mrs. Aubrey was buried the other day," thought Gammon, watching the movements of the stranger, who presently raised his handkerchief to his eyes, and for some moments seemed indulging in great grief. Gammon distinctly heard the sound of deep sighing. "He must have been very fond of her," thought Gammon. "Well, if we succeed, the excellent old lady will have escaped a great deal of trouble—that's all! *If we*

succeed," he inwardly repeated after a long pause! That reminded him of what he had for a few moments lost sight of, namely, his own object in coming thither; and he felt a sudden chill of remorse, which increased upon him till he almost trembled, as his eye continued fixed on Mr. Aubrey, and he thought also of Miss Aubrey—and the misery—the utter ruin into which he was seeking to plunge them both—the unhallowed means which they—which—if necessary—he—contemplated resorting to for that purpose.

Gammon's condition was becoming every moment more serious; for VIRTUE, in the shape of Miss Aubrey, began to shine momentarily in more and more radiant loveliness before him—and he almost felt an inclination to sacrifice every person connected with the enterprise in which he was engaged, if it would give him a chance of winning the favor of Miss Aubrey. Presently, however, Mr. Aubrey, evidently heaving a deep sigh, bent his steps slowly back towards the old gate, and quitted the churchyard. Gammon watched his figure out of sight, and then, for the first time since Mr. Aubrey's appearance, breathed freely. Relieved from the pressure of his presence, Gammon began to take calmer and juster views of his position; and he reflected, that if he pushed on the present affair to a successful issue, he should be much more likely, than by prematurely ending it, to gain his objects. He therefore resumed his survey of the scene around him; and which presented appearances highly satisfactory, judging from the expression which now and then animated his countenance. At length he wandered round to the other end of the church, where a crumbling wall, half covered with ivy, indicated that there had formerly stood some building apparently of earlier date than the church. Such was the fact. Gammon soon found himself standing in a sort of enclosure, which had once been the site of an old chapel. And here he had not been long making his observations, before he achieved a discovery of so extraordinary a nature; one so unlikely,

under the circumstances, to have happened; one so calculated to baffle ordinary calculations concerning the course of events, that the reader may well disbelieve what I am going to tell him, and treat it as absurdly improbable. In short, not to keep him in suspense, Gammon positively discovered evidence of the death of Harry Dreddlington in his father's lifetime; by means of just such a looking tombstone as he had long imaged to himself; and as he had resolved that old Quirk should have got prepared, before the cause came into court. He almost stumbled over it. 'Twas an old slanting stone, scarcely a foot above the ground, partly covered with moss, and partly hid by rubbish and long damp grass. The moon shone brightly enough to enable Gammon, kneeling down, to decipher, beyond all doubt, what was requisite to establish that part of the case which had been wanting. For a moment or two he was disposed to imagine that he was dreaming. When, at length, he took out pencil and paper, his hands trembled so much that he felt some difficulty in making an exact copy of the inestimable inscription. Having done this, he drew a long breath as he replaced the pencil and paper in his pocket-book, and almost fancied he heard a whispering sound in the air—"Verdict for the plaintiff." Quitting the churchyard, he walked back to Grilston at a much quicker rate than that at which he had come, his discovery having wonderfully elated him, and pushed all other thoughts entirely out of his mind. But, thought he, doubtless the other side are aware of the existence of this tombstone—they can hardly be supposed ignorant of it; they must have looked up their evidence as well as we—and their attention has been challenged to the existence or non-existence of proof of the time of the death of Harry Dreddlington:—well—if they are aware of it, they know that it cuts the ground from under them, and turns their conveyance, on which, doubtless, they are relying, into waste paper; if they are *not*, and are under the

impression that that deed is valid and effectual, our proof will fall on them like a thunderbolt. "Gad,"—he held his breath, and stopped in the middle of the road—"how immensely important is this little piece of evidence! Why, if they knew of it—why in Heaven's name is it there still? What easier than to have got rid of it?—why, they may still: what can that stupid fellow Parkinson have been about? Yet, is it because it has become unimportant, on account of their being in possession of other evidence? What *can* they have to set against so plain a case as ours is, with this evidence? Gad, I'll not lose one day's time; but I'll have half a dozen competent witnesses to inspect, and speak to that same tombstone in court." Such were some of the thoughts which passed through his mind as he hastened homeward; and on his arrival, late as it was—only the yawning hostler having sat up to let him in—he wrote off a letter to Mr. Quirk, and made it into a parcel to go by the mail in the morning, acquainting him with the amazing discovery which he had just made, and urging Mr. Quirk to set about getting up the briefs, for the trial, without delay; he himself—Gammon—purposing to stop at Grilston a day or two longer, to complete one or two other arrangements of an important nature. As soon as Mr. Quirk had read this letter, he devoutly thanked God for his goodness; and, hurrying to his strong-box, unlocked it, took out a small sealed packet, and committed it to the flames.

Mr. Aubrey, as soon as he had recovered from the first shock occasioned by Mr. Parkinson's communication of the proceedings against him, set about acquainting himself, as minutely as he could, with the true state of the case. He had requested that gentleman to obtain from one of the counsel in London, Mr. Crystal, a full account of the case for his—Mr. Aubrey's—own guidance; and on obtaining a remarkably clear and luminous statement, and also consulting the various authorities cited in it—such at least as could be supplied to him by Mr. Parkinson—the vigorous practical understanding of

Mr. Aubrey, aided by his patient application, soon mastered the whole case, and enabled him to appreciate his perilous position. Since he could derive no title through the conveyance of Harry Dreddlington (which had been got in by Geoffrey Dreddlington,) owing to the death of the former in his father's lifetime,[[29](#)] as he (Mr. Aubrey) understood from his advisers could be easily proved by the present claimant of the property; the right of accession of Geoffrey Dreddlington's descendants depended entirely upon the fact whether or not Stephen Dreddlington had really died without issue; and as to that, certain anxious and extensive inquiries instituted by Messrs. Runnington and Mr. Parkinson, in pursuance of the suggestions of their able and experienced counsel, had led them to entertain serious doubts concerning the right of Geoffrey's descendants to have entered into possession. By what means his opponents had obtained their clew to the state of his title, neither Mr. Aubrey nor any of his advisers could frame a plausible conjecture. It was certainly possible that Stephen Dreddlington, who was known to have been a man, like his uncle Harry, of wild and eccentric habits, and to have been supposed to leave no issue, might have married privately some woman of inferior station, and left issue by her, who, living in obscurity, and at a distance from the seat of the family property, could have no opportunity of inquiring into or ascertaining their position with reference to the estates, till some acute and enterprising attorneys, like Messrs. Quirk, Gammon, and Snap, happening to get hold of them, and family papers in their possession, had taken up their case. When, with impressions such as these, Mr. Aubrey perused and re-perused the opinions of the conveyancer given on the occasion of his (Mr. Aubrey's) marriage, he was confounded at the supineness and indifference which he had even twice exhibited, and felt disposed now greatly to overvalue the importance of every adverse circumstance. The boldness, again, and

systematic energy with which the case of the claimant was prosecuted, and the eminent legal opinions which were alleged, and with every appearance of truth, to concur in his favor, afforded additional grounds for rational apprehension. He looked the danger, however, full in the face, and as far as lay in his power, as a conscientious man, prepared for the evil day which might so soon come upon him. Certain extensive and somewhat costly alterations which he had been on the point of commencing at Yatton, he abandoned. But for the earnest interference of friends, he would at once have given up his establishment in Grosvenor Street, and applied for the Chiltern Hundreds, in order to retire from political life. Considering the possibility of his soon being declared the wrongful holder of the property, he contracted his expenditure as far as he could, without challenging unnecessary public attention; and paid into his banker's hands all his Christmas rents, sacredly resolving to abstain from drawing out one farthing of what might soon be proved to belong to another. At every point occurred the dreadful question—if I am declared never to have been the rightful owner of the property, how am I to discharge my frightful liabilities to him who is? Mr. Aubrey had nothing except the Yatton property. He had but an insignificant sum in the funds; Mrs. Aubrey's settlement was out of lands at Yatton, as also was the little income bequeathed to Kate by her father. Could anything be conceived more dreadful, under these circumstances, than the mere danger—the slightest probability—of their being deprived of Yatton?—and with a debt of at the very least SIXTY THOUSAND POUNDS, due to him who had been wrongfully kept out of his property? That was the millstone which seemed to drag them all to the bottom. Against *that*, what could the kindness of the most generous friends, what could his own most desperate exertions, avail? All this had poor Aubrey constantly before his eyes, together with—his wife, his children, his sister. What was to become

of *them*? It was long before the real nature and extent of his danger became known among his friends and neighbors. When, however, they were made aware of it, an extraordinary interest and sympathy were excited throughout almost the whole county. Whenever his attorney, Mr. Parkinson, appeared in public, he was besieged by most anxious inquiries concerning his distinguished client, whose manly modesty and fortitude, under the pressure of his sudden and almost unprecedented difficulty and peril, endeared him more than ever to all who had an opportunity of appreciating his position. With what intense and absorbing interest were the ensuing assizes looked for!---- At length they arrived.

The ancient city of York exhibited, on the commission day of the spring assizes for the year 18—, the usual scene of animation and excitement. The High Sheriff, attended by an imposing retinue, went out to meet the judges, and escorted them, amid the shrill clangor of trumpets, to the Castle, where the commission was opened with the usual formalities. The judges were Lord Widdrington, the Lord Chief-Justice of the King's Bench, and Mr. Justice Grayley, a puisne judge of the same court—both admirable lawyers. The former was possessed of the more powerful intellect. He was what may be called a great scientific lawyer, referring everything to *principle*, as extracted from precedent. Mr. Justice Grayley was almost unrivalled in his knowledge of the *details* of the law; his governing maxim being *ita lex scripta*. Here his knowledge was equally minute and accurate, and most readily applied to every case brought before him. Never sat there upon the bench a more painstaking judge—one more anxious to do right equally in great things as in small. Both were men of rigid integrity: 'tis a glorious thing to be able to challenge the inquiry—when, for centuries, have other than men of rigid integrity sat upon the English Bench? Lord Widdrington, however, in temper was stern, arbitrary, and overbearing, and his manners

were disfigured not a little by coarseness; while his companion was a man of exemplary amiability, affability, and forbearance. Lord Widdrington presided at the Civil Court, (in which, of course, would come on the important cause in which we are interested,) and Mr. Justice Grayley in the Criminal Court.

Soon after the sitting of the court, on the ensuing morning—"Will your Lordship allow me," rose and inquired the sleek, smiling, and portly Mr. Subtle, dead silence prevailing as soon as he had mentioned the name of the cause about which he was inquiring, "to mention a cause of *Doe on the demise of Titmouse v. Jolter*—a special jury cause, in which there are a great many witnesses to be examined on both sides—and to ask that a day may be fixed for it to come on?"

"Whom do you appear for, Mr. Subtle?" inquired his Lordship.

"For the plaintiff, my Lord."

"And who appears for the defendant?"

"The Attorney-General leads for the defendant, my Lord," replied Mr. Sterling, who, with Mr. Crystal, was also retained for the defendant.

"Well, perhaps you can agree between yourselves upon a day, and in the mean time similar arrangements may be made for any other special jury causes that may require it." After due consultation, Monday week was agreed upon by the parties, and fixed by his Lordship, for the trial of the cause.—During the Sunday preceding it, York was crowded with persons of the highest distinction from all parts of the county, who felt interested in the result of the great cause of the assizes. About mid-day a dusty travelling carriage and four dashed into the streets from the London road, and drove up to the principal inn; it contained the Attorney-General (who just finished reading his brief as he entered York) and his clerk. The Attorney-General was a man of striking and highly intellectual countenance; but he looked, on

alighting, somewhat fatigued with his long journey. He was a man of extraordinary natural talents, and also a first-rate lawyer—one whose right to take the woolsack, whenever it should become vacant, was recognized by all the profession. His professional celebrity, and his coming down "*special*" on the present occasion, added to the circumstance of his being well known to be a personal friend of his client, Mr. Aubrey—whence it might be inferred that his great powers would be exerted to their utmost—was well calculated to enhance the interest, if that were possible, of the occasion which had brought him down at so great an expense, and to sustain so heavy a responsibility as the conduct of a cause of such magnitude as this.

He came to lead against a formidable opponent. Mr. Subtle was the leader of the Northern circuit, a man of matchless tact and practical sagacity, and consummately skilful in the conduct of a cause. The only thing *he* ever looked at, was THE VERDICT; to the gaining of which he directed all his energies, and sacrificed every other consideration. As for display, he despised it. A *speech*, as such, was his aversion. He entered into a friendly, but exquisitely crafty *conversation* with the jury; for he was so quick at perceiving the effect of his address on the mind of each of the twelve, and dexterous in accommodating himself to what he had detected to be the passing mood of each, that they individually felt as if they were all the while reasoning with, and being convinced by him. His placid, smiling, handsome countenance, his gentlemanly bearing and insinuating address, full of good-natured cheerful confidence in his cause, were irresistible. He flattered, he soothed, he fascinated the jury, producing an impression upon their minds which they often felt indignant at his opponent's attempting to efface. In fact, as a *nisi prius* leader he was unrivalled, as well in stating as in arguing a case, as well in examining as cross-examining a witness. It

required no little practical experience to form an adequate estimate of Mr. Subtle's skill in the management of a cause; for he did everything with such a smiling, careless, unconcerned air, equally in the great pinch and strain of a case, as in the pettiest details, that you would be apt to suspect that none but the easiest and most straightforward cases fell to his lot!

Titmouse, Titmouse, methinks the fates favored you in assigning to you Mr. Subtle!

Next came Mr. QUICKSILVER, who had received what may be called a *muffling* retainer. What a contrast was he to Mr. Subtle! Reckless, rhetorical, eloquent, ready, witty—possessing a vast extent of general knowledge, but rather slenderly furnished with law—he presented to the jury, *himself*—not his client, or his client's case; infinitely more anxious to make a splendid figure in public, than to secure, by watchful activity, the interests of his clients. Why, then, was such a man retained in the cause? 'Twas a fancy of Quirk's, a vast political admirer of Quicksilver's, who had made one or two most splendid speeches for him in libel cases brought against the *Sunday Flash*. Gammon most earnestly expostulated, but Quirk was inexorable; and himself carried his retainer to Mr. Quicksilver. Gammon, however, was somewhat consoled by the reflection, that this wild elephant would be, in a manner, held in check by Mr. Subtle and Mr. Lynx, who, he hoped, would prevent any serious mischief from happening. Lynx possessed the qualities which his name would suggest to you. I have partly described him already. He was a man of minute accuracy; and "got up" every case in which he was engaged as if his life had depended on the result. Nothing escaped him. He kept his mind constantly even with the current of the cause. He was a man to *steer* a leader, if ever that leader should get, for an instant, on the wrong tack, or be uncertain as to his course. His suggestion and interference—rare, indeed, with such a man as

Mr. Subtle, incessant with Mr. Quicksilver—were always worth attending to, and consequently received with deference.

For Mr. Aubrey also was retained a formidable "BAR." Mr. Attorney-General was a man much superior, in point of intellect and legal knowledge, to Mr. Subtle. His mind was distinguished by its tranquil power. He had a rare and invaluable faculty of arraying before his mind's eye all the facts and bearings of the most intricate case, and contemplating them, as it were, not successively, but simultaneously. His perception was quick as light; and, at the same time—rare, most rare accompaniment!—his judgment sound, his memory signally retentive. Inferior, possibly, to Mr. Subtle in rapid and delicate appreciation of momentary advantages, he was sagacious, where Mr. Subtle was only ingenious. Mr. Attorney-General had as much weight with the judge as Mr. Subtle with the jury. With the former there was a candor and straightforwardness—a dignified simplicity—which insensibly won the confidence of the judge; who, on the other hand, felt himself obliged to be ever on his guard against the slippery sophistries of Mr. Subtle, whom he thus got to regard with constant suspicion.

Mr. STERLING, the second counsel for the defendant, was a king's counsel, and a rival of Mr. Subtle upon the circuit. He was a man of great power; and, on important occasions, no man at the bar could acquit himself with more distinction. As a speaker, he was eloquent and impressive, perhaps deficient in vivacity; but he was a man of clear and powerful intellect; prompt in seizing the bearings of a case; a capital lawyer; and possessing, even on the most trying occasions, imperturbable self-possession.

Mr. CRYSTAL, with some faults of manner and bearing, was an honorable high-minded man; clear-sighted and strong-headed; an accurate and ready lawyer; vigilant and acute.

See, then, the combatants in this memorable encounter; for *Titmouse*—Mr. SUBTLE, Mr. QUICKSILVER, Mr. LYNX; for *Mr. Aubrey*—Mr. ATTORNEY-GENERAL, Mr. STERLING, Mr. CRYSTAL.

The consultation of each party was long and anxious.

About eight o'clock on the Sunday evening, at Mr. Subtle's lodgings, Messrs. Quirk, Gammon, and Snap, accompanied by Mr. Mortmain, whom they had brought down to watch the case, made their appearance shortly after Mr. Quicksilver and Mr. Lynx.

"Our case seems complete, *now*" said Mr. Subtle, casting a penetrating and most significant glance at Messrs. Quirk and Gammon, and then at his juniors, to whom, before the arrival of their clients and Mr. Mortmain, he had been mentioning the essential link which, a month before, he had pointed out as missing, and the marvellous good fortune by which they had been able to supply it at the eleventh hour.

"That tombstone's a godsend, Subtle, isn't it?" said Quicksilver, with a grim smile. Lynx neither smiled nor spoke. He was a very matter-of-fact person. So as the case came out clear and nice in court, he cared about nothing more; at that moment he felt that he should be *functus officio*!—But whatever might be the insinuation or suspicion implied in the observation of Mr. Subtle, the reader must, by this time, be well aware how little it was warranted by the facts.[\[30\]](#)

"I shall open it very quietly," said Mr. Subtle, putting into his pocket his penknife, with which he had been paring his nails, while Mr. Quicksilver had been talking very fast. "What do you think, Mr. Lynx? Had I better allude boldly to the conveyance executed by Harry Dreddlington, and which becomes useless as soon as we prove his death in his father's lifetime?"

"Ah! there's that blessed tombstone again," interposed Quicksilver, with a sarcastic smile.

—"Or," resumed Mr. Subtle, "content myself with barely making out our pedigree, and let the conveyance of Harry Dreddlington come from the other side?"

"I think, perhaps, that the latter would be the quieter and safer course," replied Lynx.

"By the way, gentlemen," said Mr. Subtle, suddenly, addressing Messrs. Quirk, Gammon, and Snap, "how do we come to know anything about the mortgage executed by Harry Dreddlington?"

"Oh! *that* you know," replied Quirk, quickly, "we first got scent of in Mr."—— Here he paused suddenly, and turned quite red.

"It was suggested," said Gammon, calmly, "by one of the gentlemen whose opinions we have taken in the case—I forget by whom—that, from some recital, it was probable that there existed such an instrument; and that put us on making inquiry."

"Nothing more likely," added Mortmain, "than that it, or an abstract, or minute of it, should get into Stephen Dreddlington's hands!"

"Ah! well! well!" said Mr. Subtle, shrugging his shoulders,—"I must say there's rather an air of mystery about the case. But—about that tombstone—what sort of witnesses will speak"——

"Will the evidence be requisite," inquired Lynx, "in the plaintiff's case? All we shall have to do will be to prove the fact that Harry died without issue, of which there's satisfactory evidence; and as to the *time* of his death, that will become material only if *they* put in the conveyance of Harry."

"True—true; ah! I'll turn that over in my mind. Rely upon it, I'll give Mr. Attorney-General as little to lay hold of as possible. Thank you, Lynx, for the hint. Now, gentlemen," said he, turning to Messrs. Quirk, Gammon, and

Snap, "one other question—What *kind of looking* people are the witnesses who prove the later steps of the pedigree of Mr. Titmouse? Respectable? eh?—You know a good deal will depend on the credit which they may obtain with the jury!"

"They're very decent creditable persons, you will find, sir," said Gammon.

"Good, good. Who struck the special jury?"

"We did, sir."

"Well, I must say that was a *very* prudent step for *you* to take! considering the rank in life and circumstances of the respective parties! However, to be sure, if *you* didn't, they would—so—well; good-night, gentlemen, good-night." So the consultation broke up; and Messrs. Quirk, Gammon, and Snap returned home to their inn in a very serious and anxious mood.

"You're a marvellous prudent person, Mr. Quirk," said Gammon, in a somewhat fierce whisper, as they walked along, "I suppose you would have gone on to explain the little matter of Steggars, and so have had our briefs thrown at our heads"——

"Well, well," grunted Quirk, "that *was* a slip!" Here they reached their inn. Titmouse was staying there; and in Messrs. Quirk, Gammon, and Snap's absence, he had got very drunk, and was quarrelling under the archway with "Boots;" so they ordered him to bed, they themselves sitting up till a very late hour in the morning.

The consultation at the Attorney-General's had taken place about three o'clock in the afternoon, within an hour after his arrival; and had been attended by Messrs. Sterling, Crystal, and Mansfield—by Mr. Runnington, and Mr. Parkinson, and by Mr. Aubrey, whom the Attorney-General received with the most earnest expressions of sympathy and friendship;

listening to every question and every observation of his with the utmost deference.

"It would be both idle and unkind to disguise from you, Aubrey," said he, "that our position is somewhat precarious. It depends entirely on the chance we may have of breaking down the plaintiff's case; for we have but a slender one of our own. I suppose they can bring proof of the death of Harry Dreddlington in his father's lifetime?"

"Oh yes, sir!" answered Mr. Parkinson, "there is an old tombstone behind Yatton church which establishes that fact beyond all doubt: and a week or two ago no fewer than five or six persons have been carefully inspecting it; doubtless they will be called as witnesses to-morrow."

"I feared as much. Then are ours no more than watching briefs. Depend upon it, they would not have carried on the affair with so high a hand if they had not pretty firm ground under foot! Messrs. Quirk, Gammon, and Snap are tolerably well known in town—not *over*-scrupulous, eh, Mr. Runnington?"

"Indeed, Mr. Attorney, you are right. I don't doubt they are prepared to go all lengths."

"Well, we'll sift their evidence pretty closely, at any rate. So you really have reason to fear, as you intimated when you entered the room, that they have valid evidence of Stephen Dreddlington having left issue?"

"Mr. Snap told me," said Mr. Parkinson, "this morning, that they would prove issue of Stephen Dreddlington, and issue of that issue, as clean as a whistle—that was his phrase."

"Ay, ay—but we mustn't take all for gospel that *he* would say," replied the Attorney-General, smiling sarcastically.

"They've got two houses filled with witnesses, I understand," said Mr. Runnington.

"Do they seem Yorkshire people, or strangers?"

"Why, most of them that I have seen," replied Parkinson, "seem strangers."

"Ah, they will prove, I suppose," said the Attorney-General, "the later steps of the pedigree, when Stephen Dreddlington married at a distance from his native county."

They then entered into a very full and minute examination of the case; after which,—*"Well,"* said the Attorney-General, evidently fatigued with his long journey, and rising from his chair, "we must trust to what will turn up in the chapter of accidents to-morrow. I shall be expected to dine with the bar to-day," he added; "but immediately after dinner—say at half-past seven o'clock, I shall be here and at your service, if anything should be required." Then the consultation broke up. Mr. Aubrey had, at their earnest entreaty, brought Mrs. Aubrey and Kate from Yatton, on Saturday; for they declared themselves unable to bear the dreadful suspense in which they should be left at Yatton. Yielding, therefore, to these their very reasonable wishes, he had engaged private lodgings at the outskirts of the town. On quitting the consultation, which, without at the same time affecting over-strictness, he had regretted being fixed for Sunday—but the necessity of the case appeared to warrant it—he repaired to the magnificent MINSTER, where the evening prayers were being read, and where were Mrs. Aubrey and Kate. The prayers were being chanted as he entered; and he was conducted to a stall nearly opposite to where those whom he loved so fondly were standing. The psalms allotted for the evening were those in which the royal sufferer, David, was pouring forth the deepest sorrows of his heart; and their appropriateness to Mr. Aubrey's state of mind, added to the effect produced by the melting melody in which they were conveyed to his ears, excited in him, and, he perceived, also in those opposite, the deepest

emotion. The glorious pile was beginning to grow dusky with the stealing shadows of evening; and the solemn and sublime strains of the organ, during the playing of the anthem, filled those present, who had any pretensions to sensibility, with mingled feelings of tenderness and awe. Those in whom we are so deeply interested, felt at once subdued and elevated; and as they quitted the darkening fabric, through which the pealing tones of the organ were yet reverberating, they could not help inquiring, should they ever enter it again,—and in what altered circumstances might it be?

To return, however—though it is, indeed, like descending from the holy mountain into the bustle and hubbub of the city at its foot—Mr. Parkinson, being most unexpectedly, and as he felt it unfortunately, summoned to Grilston that afternoon, in order to send up some deeds of a distinguished client to London, for the purpose of immediately effecting a mortgage, set off in a post-chaise, at top-speed, in a very unenviable frame of mind; and by seven o'clock was seated in his office at Grilston, busily turning over a great number of deeds and papers, in a large tin case, with the words "Right Honorable the Earl of Yelverton" painted on the outside. Having turned over almost everything inside, and found all that he wanted, he was going to toss back again all the deeds which were not requisite for his immediate purpose, when he happened to see one lying at the very bottom which he had not before observed. It was not a large, but an old deed—and he took it up and hastily examined it.

We have seen a piece of unexpected good-fortune on the part of Gammon and his client; and the reader will not be disappointed at finding something of a similar kind befalling Mr. Aubrey, even at the eleventh hour. Mr. Parkinson's journey, which he had execrated a hundred times over as he came down, produced a discovery which made him tremble all over with

agitation and delighted excitement, and begin to look upon it as almost owing to an interference of Providence. The deed which he looked at, bore an indorsement of the name of "*Dreddlington*." After a hasty glance over its contents, he tried to recollect by what accident a document, belonging to Mr. Aubrey, could have found its way into the box containing Lord Yelverton's deeds; and it at length occurred to him that, some time before, Mr. Aubrey had proposed advancing several thousand pounds to Lord Yelverton, on mortgage of a small portion of his Lordship's property—but which negotiation had afterwards been broken off; that Mr. Aubrey's title-deeds happened to be at the same time open and loose in his office—and he recollected having considerable trouble in separating the respective documents which had got mixed together. This one, after all, had been by some accident overlooked, till it turned up in this most timely and extraordinary manner! Having hastily effected the object which had brought him back to Grilston, he ordered a post-chaise and four, and within a quarter of an hour was thundering back, at top-speed, on his way to York, which, the horses reeking and foaming, he reached a little after ten o'clock. He jumped out, with the precious deed in his pocket, the instant that his chaise-door was opened, and ran off, without saying more than—"I'm gone to the Attorney-General's." This was heard by many passers-by and persons standing round; and it spread far and wide that something of the utmost importance had transpired, with reference to the great ejectment cause of Mr. Aubrey. Soon afterwards, messengers and clerks, belonging to Mr. Runnington and Mr. Parkinson, were to be seen running to and fro, summoning Mr. Sterling, Mr. Crystal, Mr. Mansfield, and also Mr. Aubrey, to a second consultation at the Attorney-General's. About eleven o'clock they were all assembled. The deed which had occasioned all this excitement, was one calculated indeed to produce that effect; and it filled

the minds of all present with astonishment and delight. It was, in a word, a DEED OF CONFIRMATION by OLD DREDDLINGTON, the father of Harry Dreddlington, of the conveyance by the latter to Geoffrey Dreddlington, who, in the manner already mentioned to the reader, had got an assignment of that conveyance to himself. After the Attorney-General had satisfied himself as to the account to be given of the deed—the custody whence it came, namely, the attorney for the defendant; Mr. Parkinson undertaking to swear, without any hesitation, that whatever deeds of Mr. Aubrey's he possessed, he had taken from the muniment room at Yatton—the second consultation broke up. Mr. Aubrey, on hearing the nature and effect of the instrument explained by the Attorney-General and Mr. Mansfield—all his counsel, in short, concurring in opinion as to the triumphant effect which this instrument would produce on the morrow—may be pardoned for regarding it, in the excitement of the moment, as almost a direct interference of Providence.

A few minutes before nine o'clock on the ensuing morning, the occasional shrill blasts of the trumpets announced that the judges were on their way to the Castle, the approaches to which were crowded with carriages and pedestrians of a highly respectable appearance. As the Castle clock finished striking nine, Lord Widdrington, in a short wig and plain black silk gown,[\[31\]](#) took his seat, and the swearing of the special jury commenced. The court was crowded almost to suffocation; all the chief places being filled with persons of distinction in the county. The benches on each side of the judge were occupied by ladies, who—especially the Countess of Oldacre and Lady De la Zouch—evinced a painful degree of anxiety and excitement in their countenances and demeanor. The bar also mustered in great force; the crown court being quite deserted, although "a great murder case" was going on there. The civil court was on the present

occasion the point of attraction, not only on account of the interesting nature of the case to be tried, but of the keen contest expected between the Attorney-General and Mr. Subtle. The former, as he entered—his commanding features gazed at by many an anxious eye with hope, and a feeling that on his skill and learning depended that day the destination of the Yatton property—bowed to the judge, and then nodded and shook hands with several of the counsel nearest to him; then he sat down, and his clerk having opened his bags, and taken out his huge brief, he began turning over its leaves with a calm and attentive air, occasionally conversing with his juniors. Every one present observed that the defendant's counsel and attorneys wore the confident looks of winning men; while their opponents, quick-sighted enough, also observed the circumstance, and looked, on that account alone, a shade more anxious than when they had entered the court. Mr. Subtle requested Gammon, whose ability he had soon detected, to sit immediately beneath him; next to Gammon sat Quirk; then Snap; and beside him Mr. Titmouse, with a staring sky-blue flowered silk handkerchief round his neck, a gaudy waistcoat, a tight surtout, and white kid gloves. He looked exceedingly pale, and dared hardly interchange a word with even Snap, who was just as irritable and excited as his senior partners. It was quickly known all over the court which was Titmouse! Mr. Aubrey scarcely showed himself in court all day, though he stood at the door near the bench, and could hear all that passed; Lord De la Zouch and one or two other personal friends standing with him, engaged, from time to time, in anxious conversation.

The jury having been sworn, Mr. Lynx rose, and in a few hurried sentences, to the lay audience utterly unintelligible, intimated the nature of the pleadings in the cause. The Attorney-General then in a low tone requested that all the witnesses might leave the court.[\[32\]](#) As soon as the

little disturbance occasioned by this move had ceased, Mr. Subtle rose, and in a low but distinct tone said, "May it please your Lordship—Gentlemen of the Jury,—In this cause I have the honor to appear before you as counsel for the plaintiff; and it now becomes my duty to state as briefly as I can, the nature of his case. It is impossible, gentlemen, that we should not be aware of the unusual interest excited by this cause; and which may be accounted for by the very large estates in this county which are sought this day to be transferred to a comparative stranger, from the family who have long enjoyed them, and of whom I am anxious to say everything respectful; for you will very soon find that the name on the record is that of only the nominal defendant; and although all that is *professed* to be this day sought to be recovered is a very trifling portion of the property, your verdict will undoubtedly in effect decide the question as to the true ownership and enjoyment of the large estates now held by the gentleman who is the substantial defendant—I mean Mr. Aubrey, the member of Parliament for the borough of Yatton; for whatever answer he might make to an action brought to recover his whole estate, he must make upon the present occasion." Aware of the watchful and formidable opponent who would in due time answer him, and also of being himself entitled to the general reply—to the last word—Mr. Subtle proceeded to state the nature of the plaintiff's case with the utmost brevity and clearness. Scarcely any sound was heard but that of the pens of the short-hand writers, and of the counsel taking their notes. Mr. Subtle, having handed up two or three copies of the pedigree which he held in his hand to the judge, the jury, and his opponents, pointed out with distinctness and precision every link in the chain of evidence which he intended to lay before the jury; and having done this—having presented as few salient points of attack to his opponent as he possibly could—he sat down, professing his entire ignorance of what case

could be set up in answer to that which he had opened. He had not been on his legs quite half an hour; and when he ceased—how he had disappointed every one present, except the judge and the bar! Instead of a speech apparently befitting so great an occasion—impressive and eloquent—here had been a brief dry statement of a few uninteresting facts—of dates, of births, deaths, marriages, registers, entries, inscriptions, deeds, wills—without a single touch of feeling, or ray of eloquence. The momentary feeling of disappointment in the audience, however—almost all of whom, it may easily be believed, were in the interest of the Aubreys—quickly yielded to one of satisfaction and relief; as they thought they might regard so meagre a speech as heralding as meagre a case. As soon as he had sat down, Mr. Quicksilver rose and called the first witness. "We're safe!" said the Attorney-General to Mr. Sterling and Mr. Crystal, with his hand before his mouth, and with the very faintest whisper that could be audible to those whom he addressed; and the witness having been sworn, they all resumed their seats and their writing. The first and the subsequent witness established one or two preliminary and formal points—the Attorney-General scarcely rising to put a question to them. The third witness was examined by Mr. Subtle with apparent unconcern, but really with exquisite anxiety. From the earnestness and attention with which the words of the witness were watched and taken down by both the judge and the counsel, who knew somewhat better than the audience where the strain of the case commenced, it must have appeared to the latter, that either Mr. Subtle under-estimated, or his opponents over-estimated, the value of the evidence now in process of being extracted by Mr. Subtle, in short, easy, pointed questions, and with a bland and smiling countenance.

"Not so fast, sir," gruffly interposed Lord Widdrington, addressing the witness.

"Take time, Mr. Jones," said Mr. Subtle, kindly, fearful of ruffling or discomposing an important witness. The Attorney-General rose to cross-examine; pressed him quietly but closely; varied the shape of his questions; now he soothed, then he startled by his sternness; but sat down, evidently having produced no impression. Thus it was with one or two succeeding witnesses; the Attorney-General, on each occasion, resuming his seat after his abortive efforts with perfect composure. At length, however, by a very admirable and well-sustained fire of cross-questioning, he completely demolished a material witness; and the hopes of all interested in behalf of his clients rose high. Mr. Subtle, who had been all the while paring his nails, and from time to time smiling with a careless air, (though you might as safely have touched a tigress suckling her cubs as attempted at that moment to disturb him, so absorbed was he in intense anxiety,) believing that he could establish the same facts by another and, as he thought, a better witness, did not re-examine; but calling that other, with an air of nonchalance, succeeded in extracting from him all that the former had failed in; baffling all the attempts of the Attorney-General to affect his credit. At length, another witness being in the box,—

"I object, my Lord, to that question," said Mr. Attorney-General, as Mr. Subtle, amid many indifferent and apparently irrelevant questions, quietly slipped in one of the greatest possible importance and advantage to him—had it been answered as he desired. 'T was quite delightful to see the Attorney-General and his experienced and watchful juniors all rise at one and the same instant: showing how vain were the tricks and ingenuity of their sly opponent. Mr. Attorney-General stated his objection briefly and pointedly; Mr. Subtle answered him, followed by Quicksilver and Lynx; and then Mr. Attorney-General replied, with great force and clearness. This keen encounter of their wits over—

"I shall allow the question to be put," said Lord Widdrington, after a pause—"But I have great doubts as to its propriety. I will therefore take a note of Mr. Attorney-General's objection." Four or five similar conflicts arose during the course of the plaintiff's case:—now concerning the competency of a witness—then as to the admissibility of a document, or the propriety of a particular question. On each of these occasions there were displayed on both sides consummate logical skill and acuteness, especially by the two leaders. Distinctions, the most delicate and subtle, were suggested with suddenness, and as promptly encountered; the most artful manœuvres to secure dangerous admissions resorted to, and baffled; the most recondite principles of evidence brought to bear with admirable readiness on both sides. To deal with them, required, indeed, the practised, penetrating, and powerful intellect of Lord Widdrington. Some points he disposed of promptly to the satisfaction of both parties; on others he hesitated, and at length reserved them. Though none but the more experienced and able members of the bar could in the least degree enter into and appreciate the nature of these conflicts, they were watched with untiring attention and eagerness by all present, both ladies and gentlemen—by the lowly and the distinguished. And though the intensity of the feelings of all was manifest by a mere glimpse round the court, yet any momentary display of eccentricity on the part of a witness, or of petulance or repartee on the part of counsel, would occasion a momentary merriment which, in point of fact, served only as a sort of *relief* to the strained feelings of the audience, and instantly disappeared. The tombstone part of the case was got through easily; scarcely any attempt being made on the part of Mr. Aubrey's counsel to resist or interfere with it. But the great—the hottest part of the fight—occurred at that point of the case, where Titmouse's descent from Stephen Dreddlington was sought to be established. This gentleman, who

had been a very wild person, whose movements were very difficult to be traced or accounted for, had entered the navy, and ultimately died at sea, as had always been imagined, single and childless. It was proved, however, that so far from such being the case, he had married a person at Portsmouth, of inferior station, and that by her he had a daughter, only two years before his death. Both mother and daughter, after undergoing great privation, and no notice being taken of the mother by any of her late husband's family, removed to the house of a humble and distant relative in Cumberland, where the mother afterwards died, leaving her daughter only fifteen years old. When she grew up, she lived in some menial capacity in Cumberland, and ultimately married one Gabriel Tittlebat Titmouse; who, after living for some years a cordwainer at Whitehaven, found his way to Grilston, in Yorkshire, in the neighborhood of which town he had lived for some years in very humble circumstances. There he had married; and about two years afterwards his wife died, leaving a son—our friend Tittlebat Titmouse. Both of them afterwards came to London: where, in four or five years' time, the father died, leaving the little Titmouse to flutter and hop about in the wide world as best he could. During the whole of this part of the case, Mr. Gammon had evinced deep anxiety; and at a particular point—perhaps the crisis—his agitation was excessive; yet it was almost entirely concealed by his remarkable self-control. The little documentary evidence of which Gammon, at his first interview with Titmouse, found him possessed, proved at the trial, as Gammon had foreseen, of great importance. The evidence in support of this part of the case, and which it took till two o'clock on the ensuing afternoon to get through, was subjected to a most determined and skilful opposition by the Attorney-General, but in vain. The case had been got up with the utmost care, under the excellent management of Lynx; and

Mr. Subtle's consummate tact and ability brought it, at length, fully and distinctly out before the jury.

"That, my Lord," said he, as he sat down after re-examining his last witness, "is the case on the part of the plaintiff." On this the judge and jury withdrew, for a short time, to obtain refreshment. During their absence, the Attorney-General, Mr. Sterling, Mr. Crystal, and Mr. Mansfield, might have been seen, with their heads all laid close together, engaged in anxious consultation—a group gazed at by the eager eyes of many a spectator, whose beating heart wished their cause godspeed. The Attorney-General then withdrew for a few moments, also to seek refreshment; and returning at the same time with the judge, after a moment's pause rose, bowed to the judge, then to the jury, and opened the defendant's case. His manner was calm and impressive; his person was dignified; and his clear, distinct voice fell on the listening ear like the sound of silver. After a graceful allusion to the distinguished character of his friend and client, Mr. Aubrey, (to whose eminent position in the House of Commons he bore his personal testimony,) to the magnitude of the interests now at stake, and the extraordinary nature of the claim set up, he proceeded: "On every account, therefore, I feel sensible, gentlemen, to an unusual and most painful extent, of the very great responsibility now resting upon my learned friends and myself; lest any miscarriage of mine should prejudice in any degree the important interests committed to us, or impair the strength of the case which I am about to submit to you on the part of Mr. Aubrey; a case which, I assure you, unless some extraordinary mischance should befall us, will, I believe, annihilate that which, with so much pains, so much tact, and so much ability, has just been laid before you by my learned friend Mr. Subtle; and establish the defendant in the safe possession of that large property which is the subject of the present most extraordinary and unexpected litigation. But, gentlemen,

before proceeding so far as that, it is fitting that I should call your attention to the nature of the case set up on the part of the plaintiff, and the sort of evidence by which it has been attempted to be supported; and I am very sanguine of being successful in showing you that the plaintiff's witnesses are not entitled to the credit to which they lay claim; and, consequently, that there is no case made out for the defendant to answer." He then entered into a rigorous analysis of the plaintiff's evidence, contrasting each conflicting portion with the other, with singular cogency; and commenting with powerful severity upon the demeanor and character of many of the witnesses. On proceeding, at length, to open the case of the defendant—"And here, gentlemen," said he, "I am reminded of the observation with which my learned friend concluded—that he was entirely ignorant of the case which we meant to set up in answer to that which he had opened on the part of the plaintiff. Gentlemen, it would have been curious, indeed, had it been otherwise—had my friend's penetrating eye been able to inspect the contents of my client's strong-box—and so become acquainted with the evidence on which he rests his title to the property now in dispute. My learned friend has, however, succeeded in entitling himself to information on that point; and he shall have it—and to his heart's content." Here Mr. Subtle cast a glance of smiling incredulity towards the jury, and defiance towards the Attorney-General. He took his pen into his hand, however, and his juniors looked very anxious. "Gentlemen," continued the Attorney-General, "I am ready to concede to my learned friend every inch of the case which he has been endeavoring to make out; that he has completely established his pedigree.—At all events, I am ready to concede this for the purpose of the case which is now under discussion before you." He then mentioned the conveyance by Harry Dreddlington of all his interest—"You forget that he died in his father's lifetime, Mr. Attorney-General,"

interposed Mr. Subtle, with a placid smile, and the air of a man who is suddenly relieved from a vast pressure of anxiety.

"Not a bit of it, gentlemen, not a bit of it—'tis a part of my case. My learned friend is quite right; Harry Dreddlington *did* die in his father's lifetime:—but"—— Here Mr. Subtle gazed at the Attorney-General with unaffected curiosity; and when the latter came to mention "the *Deed of Confirmation* by THE FATHER of Harry Dreddlington," an acute observer might have observed a slight change of color in Mr. Subtle. Lynx looked at the Attorney-General as if he expected every instant to receive a musket-ball in his breast!

"What, '*confirm*' a NULLITY, Mr. Attorney-General?" interrupted Mr. Subtle, laying down his pen with a smile of derision; but a moment or two afterwards, "Mr. Mortmain," said he, in a hasty whisper, "what do you think of this? Tell me—in four words"—Mortmain, his eye glued to the face of the Attorney-General the while, muttered hastily something about "*operating as a new grant—as a new conveyance.*"

"Pshaw! I mean what's the *answer* to the Attorney-General?" muttered Mr. Subtle, impatiently; but his countenance preserved its expression of smiling nonchalance. "You will oblige me, Mr. Mortmain," he by-and-by whispered in a quiet but peremptory tone, "by giving your utmost attention to the question as to the effect of this deed—so that I may shape my objection to it properly when it is tendered in evidence. If it really have the legal effect attributed to it, and which I suspect it really to have, we may as well shut up our briefs. I *thought* there must be some such cursed point or other in the background!"

Gammon saw the real state of Mr. Subtle's mind, and his cheek turned pale, but he preserved a smile on his countenance, as he sat with his arms folded. Quirk eyed him with undisguised agitation, scarce daring to look up

at Mr. Subtle. Titmouse, seeing a little dismay in his camp, turned very white and cold, and sat still, scarce daring to breathe; while Snap looked like a terrier consciously going to have its teeth pulled out!

At length the Attorney-General, after stating that, in addition to the case which he had intimated, as resting mainly on the deed of confirmation, he should proceed to prove the pedigree of Mr. Aubrey, sat down, having spoken about two hours and a half, expressing his conviction that when the defendant's evidence should have been closed, the jury, under his Lordship's direction, would return a verdict for the defendant; and that, too, without leaving the jury-box, where, by their long and patient attention, they had so honorably acquitted themselves of the important duty imposed upon them by the constitution.

"James Parkinson!" exclaimed Mr. Sterling, quietly but distinctly, as the Attorney-General sat down. "You are the attorney for the defendant?" inquired Mr. Sterling, as soon as the witness had been sworn. "Do you produce a conveyance between Harry Dreddlington and Moses Aaron?" &c. (specifying it.) It was proved and put in, without much opposition. So also was another—the assignment from Moses Aaron to Geoffrey Dreddlington.

"Do you also produce a deed between Harry Dreddlington the elder and Geoffrey Dreddlington?" and he mentioned the date and names of all the parties to the deed of confirmation. Mr. Parkinson handed in the important document.

"Stay, stay; where did you get that deed, Mr. Parkinson?" inquired Mr. Subtle, sharply, extending his hand for the deed.

"From my office at Grilston, where I keep many of Mr. Aubrey's title-deeds."

"When did you bring it hither?"

"About ten o'clock last night, for the purpose of this trial."

"How long has it been at your office?"

"Ever since I fetched it, a year or two ago, with other deeds from the muniment room of Yatton Hall."

"How long have you been solicitor to Mr. Aubrey?"

"For this ten years; and my father was solicitor to his father for twenty-five years."

"Will you swear that this deed was in your office before the proceedings in this action were brought to your notice?"

"I have not the slightest doubt in the world."

"That does not satisfy me, sir. Will you *swear* that it was?"

"I *will*, sir," replied Mr. Parkinson, firmly. "It never attracted any more notice from me than any other of Mr. Aubrey's deeds, till my attention was drawn to it in consequence of these proceedings."

"Has any one access to Mr. Aubrey's deeds at your office but yourself?"

"None that I know of; I keep all the deeds of my clients which are at my office, in their respective boxes; and allow no one access to them, except under my immediate notice, and in my presence."

Then Mr. Subtle sat down.

"My Lord, we now propose to put in this deed," said the Attorney-General, unfolding it.

"Allow me to look at it, Mr. Attorney," said Mr. Subtle. It was handed to him; and he, his juniors, and Mr. Mortmain, rising up, were engaged most anxiously in scrutinizing it for some minutes. Mortmain having looked at the stamp, sat down, and opening his bag, hastily drew out an old well-worn volume which contained all the stamp acts that had ever been passed from the time of William the Third, when, I believe, the first of those blessings was conferred upon this country. First he looked at the deed—then at his book—then at the deed again; and at length might be seen, with earnest

gestures, putting Mr. Subtle in possession of some opinion which he had formed on the subject. "My Lord," said Mr. Subtle, after a pause, "I object to this instrument being received in evidence, on account of the insufficiency of the stamp." This produced quite a sensation in court. Mr. Subtle then proceeded to mention the character of the stamp affixed to the deed, and read the act which was in force at the time that the deed bore date; and, after a few additional observations, sat down, and was followed by Mr. Quicksilver and Mr. Lynx. Then arose the Attorney-General, having in the mean time carefully looked at the act of Parliament, and submitted to his Lordship that the stamp was sufficient; being followed by his juniors. Mr. Subtle replied at some length.

"I certainly entertain some difficulty on the point," said his Lordship, "and will mention the matter to my brother Grayley." Taking with him the deed, and Mr. Mortmain's copy of the stamp acts, his Lordship left the court, and was absent a quarter of an hour—half an hour—three quarters of an hour; and at length returned.

"I have consulted," said his Lordship, as soon as he had taken his seat amid the profoundest silence, "my brother Grayley, and we have very fully considered the point. My brother happens, fortunately, to have by him a manuscript note of a case in which he was counsel, about eighteen years ago, and in which the exact point arose which exists in the present case." He then read out of a thick manuscript book, which he had brought with him from Mr. Justice Grayley, the particulars of the case alluded to, and which were certainly almost precisely similar to those then before the court. In the case referred to, the stamp had been held sufficient; and so, his Lordship and his brother Grayley were of opinion, was the stamp in the deed then before him. The cloud which had settled upon the countenances of the Attorney-General and his party, here flitted over to, and settled upon, those

of his opponents. "Your Lordship will perhaps take a note of the objection," said Mr. Subtle, somewhat chagrined. Lord Widdrington nodded, and immediately made the requisite entry in his notes.

"Now, then, we propose to put in and read this deed," said the Attorney-General, with a smile of suppressed triumph, holding out his hand towards Mr. Lynx, who was scrutinizing it very eagerly—"I presume my learned friend will require only the operative parts to be read"—here Lynx, with some excitement, called his leader's attention to something which had occurred to him in the deed: up got Quicksilver and Mortmain; and presently—

"Not quite so fast, Mr. Attorney, if you please," said Mr. Subtle, with a little elation of manner—"I have another, and I apprehend a clearly fatal objection to the admissibility of this deed, till my learned friend shall have accounted for an ERASURE"——

"Erasure!" echoed the Attorney-General, with much surprise—"Allow me to see the deed;" and he took it with an incredulous smile, which, however, disappeared as he looked more and more closely at the instrument; Mr. Sterling, Mr. Crystal, and Mr. Mansfield also looking extremely serious.

"I've hit them *now*," said Mr. Subtle to those behind him, as he leaned back, and looked with no little triumph at his opponents—"Was there ever anything so lucky in this world before?" From what apparently inadequate and trifling causes often flow great results! The plain fact of the case was merely this. The attorney's clerk, in copying out the deed, which was one of considerable length, had written eight or ten words by mistake; and fearing to exasperate his master, by rendering necessary a new deed and stamp, and occasioning trouble and delay, had neatly scratched out the erroneous words, and over the erasure written the correct ones. As he was the party

who was intrusted with seeing to and witnessing the execution of the instrument, he of course took no notice of the alteration, and—see the result! The ownership of an estate of ten thousand a-year about to turn upon the effect of this erasure!

"Hand me up the deed," said the judge; and inspected it minutely for a minute or two, holding it up, once or twice, to the light.

"Has any one a magnifying-glass in court?" inquired the Attorney-General, with a look of increasing anxiety. No one happened to have one.

"Is it necessary, Mr. Attorney?" said Lord Widdrington, handing down the instrument to him with an ominous look.

"Well—you object, of course, Mr. Subtle—as I understand you—that this deed is void, on account of an erasure in a material part of it?" inquired Lord Widdrington.

"That is my objection, my Lord," said Mr. Subtle, sitting down.

"Now, Mr. Attorney," continued the judge, turning to the Attorney-General, prepared to take a note of any observations which he might offer. The spectators—the whole court—were aware that the great crisis of the case had arrived; and there was a sickening silence. The Attorney-General, with perfect calmness and self-possession, immediately addressed the court in answer to this very critical and unexpected objection. That there *was* an erasure, which, owing to the hurry with which the instrument had been examined, had been overlooked, was indisputable. The Attorney-General's argument was, first, that the erasure was in a part not material; secondly, that even if in a material part of the deed, it would not be avoided, but the alteration would be presumed to have taken place before the execution of the deed.[\[33\]](#) It was easy to see that he spoke with the air of a man who argues *contra spem*. What he said, however, was pertinent and forcible; the

same might be said of Mr. Sterling and Mr. Crystal; but they were all plainly *gravelled*. Mr. Subtle replied with cruel cogency.

"Well," said Lord Widdrington, when Mr. Subtle had concluded, "I own I feel scarcely any doubt upon the matter; but as it is certainly of the greatest possible importance in the present case, I will just see how it strikes my brother Grayley." With this he took the deed in his hand and quitted the court. He touched Mr. Aubrey, in passing to his private room, holding the deed before him! After an absence of about ten minutes, Lord Widdrington returned.

"Silence! silence there!" bawled the crier; and the bustle had soon subsided into profound silence.

"I think, and my brother Grayley agrees with me," said Lord Widdrington, "that I ought not to receive this deed in evidence, unless the erasure occurring in an essential part of it be first accounted for. Unless, therefore, you are prepared, Mr. Attorney, with any evidence of that kind, I shall not receive the deed." The Attorney-General bowed, in silence, to his Lordship.

There was a faint buzz all over the court—a buzz of excitement, anxiety, and disappointment; during which the Attorney-General consulted for a moment or two with his juniors.

"Undoubtedly, my Lord," said he at length, "we are not prepared with any evidence to explain a circumstance which has taken us entirely by surprise. After this length of time, my Lord, of course"——

"Certainly—it is a great misfortune for the parties—a great misfortune. Of course you tender the deed in evidence?" he continued, taking a note.

"We do, my Lord, certainly," replied the Attorney-General; and sitting down, he and his juniors took a note of the decision; Lord Widdrington and the Attorney-General's opponents doing the same.

You should have seen the faces of Messrs. Quirk, Gammon, and Snap, as they looked at Mr. Parkinson, with an agitated air, returning the rejected deed to the bag from which it had been lately taken with so confident and triumphant an air!—The remainder of the case, which had been opened by the Attorney-General on behalf of Mr. Aubrey, was then proceeded with; but in spite of all their assumed calmness, the disappointment and distress of his counsel were perceptible to all. They were now dejected—they felt that the cause was lost, unless some extraordinary good fortune should yet befall them. They were not long in establishing the descent of Mr. Aubrey from Geoffrey Dreddlington. It was necessary to do so; for grievously as they had been disappointed in failing to establish the title paramount, founded upon the deed of confirmation of Mr. Aubrey, it was yet an important question for the jury, whether they believed the evidence adduced by the plaintiff to show title in himself.

"That, my Lord, is the defendant's case," said the Attorney-General as his last witness left the box; and Mr. Subtle then rose to reply. He felt how unpopular was his cause; that almost every countenance around him bore a hostile expression. Privately, he loathed his case, when he saw the sort of person for whom he was struggling. All his sympathies (he was a very proud, haughty man) were on behalf of Mr. Aubrey, whom by name and reputation he well knew, and with whom he had often sat in the House of Commons. Now, conspicuous before him, sat his little monkey-client, Titmouse—a ridiculous object; and calculated, if there were any scope for the influence of prejudice, to ruin his own cause by the exhibition of himself before the jury. That was the vulgar idiot who was to turn the admirable Aubreys out of Yatton, and send them beggared into the world! But Mr. Subtle was a high-minded English advocate; and if he had seen Miss Aubrey in all her loveliness, and knew that her *all* depended upon the

success of his exertions, he could hardly have exerted himself more strenuously than he did on the present occasion. And such, at length, was the effect which that exquisitely skilful advocate produced, in his address to the jury, that he began to bring about a change in the feelings of most around him; even the eye of scornful beauty began to direct fewer glances of indignation and disgust upon Titmouse, as Mr. Subtle's irresistible rhetoric drew upon their sympathies in that young gentleman's behalf. "My learned friend, the Attorney-General, gentlemen, dropped one or two expressions of a somewhat disparaging tendency," said Mr. Subtle, "in alluding to my client, Mr. Titmouse; and shadowed forth a disadvantageous contrast between the obscure and ignorant plaintiff, and the gifted defendant. Good heavens, gentlemen! and is my humble client's misfortune to become his fault? If he be obscure and ignorant, unacquainted with the usages of society, deprived of the blessings of a superior education—if he have contracted vulgarity, *whose fault is it?*—Who has occasioned it? Who plunged him and his parents before him into an unjust poverty and obscurity, from which Providence is about this day to rescue him, and put him in possession of his own? Gentlemen, if topics like these must be introduced into this case, I ask you *who is accountable* for the present condition of my unfortunate client? Is he, or are those who have been, perhaps unconsciously, but still unjustly, so long revelling in the wealth which is his? Gentlemen, in the name of everything that is manly and generous, I challenge your sympathy, your commiseration, for my client." Here Titmouse, who had been staring open-mouthed for some time at his eloquent advocate, and could be kept quiet no longer by the most vehement efforts of Messrs. Quirk, Gammon, and Snap, rose up in an excited manner, exclaiming, "Bravo! bravo, bravo, sir! 'Pon my life, capital! It's quite true—bravo! bravo!" His astounded advocate paused at this unprecedented

interruption. "Take the puppy out of court, sir, or I will not utter one word more," said he, in a fierce whisper to Mr. Gammon.

"Who is that? Leave the court, sir! Your conduct is most indecent, sir! I have a great mind to commit you, sir!" said Lord Widdrington, directing an awful look down to the offender, who had turned of a ghastly whiteness.

"Have mercy upon me, my Lord! I'll never do it again," he groaned, clasping his hands, and verily believing that Lord Widdrington was going to take the estate away from him.

Snap at length succeeded in getting him out of court, and after the excitement occasioned by this irregular interruption had subsided, Mr. Subtle resumed:—

"Gentlemen," said he, in a low tone, "I perceive that you are moved by this little incident; and it is characteristic of your superior feelings. Inferior persons, destitute of sensibility or refinement, might have smiled at eccentricities, which occasion gentlemen like yourselves only feelings of greater commiseration. I protest, gentlemen"—— his voice trembled for a moment, but he soon resumed his self-possession; and, after a long and admirable address, sat down, confident of the verdict.

"If we lose the verdict, sir," said he, bending down and whispering into the ear of Gammon, "we may thank that execrable little puppy for it." Gammon changed color, but made no reply.

Lord Widdrington then commenced summing up the case to the jury with his usual care and perspicacity. Nothing could be more beautiful than the ease with which he extricated the facts of the case from the meshes in which they had been alternately involved by Mr. Subtle and the Attorney-General. As soon as he had explained to them the general principles of law applicable to the case, he placed before them the facts proved by the plaintiff, and then the answer of the defendant: every one in court trembling

for the result, if the jury should take the same view which he felt compelled himself to take. The judge suggested that they should retire to consider the case, taking with them the pedigrees which had been handed in to them; and added that, if they should require his assistance, he should remain in his private room for an hour or two. Both judge and jury then retired, it being about eight o'clock. Candles were lit in the court, which continued crowded to suffocation. Few doubted which way the verdict would go. Fatigued as must have been most of the spectators with a two days' confinement and excitement,—ladies as well as gentlemen,—scarce a person thought of quitting before the verdict had been pronounced. After an hour and a half's absence, a cry was heard from the bailiff in whose charge the jury had retired—"Clear the way for the jury;" and one or two officers, with their wands, obeyed the directions. As the jury were re-entering their box, struggling with a little difficulty through the crowd, Lord Widdrington resumed his seat upon the bench.

"Gentlemen of the jury, have the goodness," said the associate, "to answer to your names.—*Sir Godolphin Fitzherbert*"—— and, while their names were thus called over, all the counsel took their pens, and, turning over their briefs with an air of anxiety, prepared to indorse on them the verdict. As soon as all the jurymen had answered, a profound silence ensued.

"Gentlemen of the jury," inquired the associate, "are you agreed upon your verdict? Do you find for the plaintiff, or for the defendant?"

"FOR THE PLAINTIFF," replied the foreman; on which the officer, amid a kind of blank dismayed silence, making at the same time some hieroglyphics upon the record, muttered—"Verdict for the Plaintiff.—*Damages, one shilling. Costs, forty shillings;*" while another functionary bawled out, amid the increasing buzz in the court, "Have the goodness to

wait, gentlemen of the jury. You will be paid immediately." Whereupon, to the disgust and indignation of the unlearned spectators, and the astonishment of some of the gentlemen of the jury themselves—many of them the very first men of the county—Snap jumped up on the form, pulled out his purse with an air of wild exultation, and proceeded to remunerate Sir Godolphin Fitzherbert and his companions with the sum of two guineas each. Proclamation was then made, and the court adjourned till the next morning.

NOTES.

NOTE 1 [Page 11](#).

Thomas De Quincey—a man whose genius and diversified and profound acquirements constitute him one of the most remarkable men of the age; and the book quoted in the text is worthy of him.

NOTE 2 [Page 20](#).

The legislature hath since shown many indications of agreement with the opinion of my unhappy swell: having lately abolished arrest on *mesne* process altogether, as affording creditors too serious a chance of preventing the escape of a fraudulent debtor; and having still more recently made a step towards the abolition of arrest on *final* process! [1844.]

NOTE 3 [Page 60](#).

[Greek: Τοῦ καὶ ἀπὸ γλώσσης μέλιτος γλυκίων ῥέεν αὐή: Του_ kai\ a)po\ glô/ssês me/litos glyki/ôn r(e/en au)ê/]

NOTE 4 [Page 107](#).

Blackstone's Commentaries, vol. iv. pp. 134-5.

NOTE 5 [Page 108](#).

Blackstone, vol. iii. p. 400, where it is stated, however, that "that practice is now disused."

NOTE 6 [Page 110](#).

Blackstone's Commentaries, vol. iv. p. 135.

NOTE 7 [Page 113](#).

By a very recent statute (6 and 7 Vict. c. 73, §§ 37, 43)—passed in 1843—salutary alterations have been made in the law regulating the taxation of the bills of attorneys and solicitors. Except "under special circumstances," a client cannot now have his attorney's or solicitor's bill taxed, after the lapse of twelve months since it was delivered. If as much as one-sixth of the bill be struck off, the attorney or solicitor must pay the costs of the operation; if less than one-sixth, the client will have that satisfaction.

NOTE 8 [Page 122](#).

This was written about the year 1838-9.

NOTE 9 [Page 124](#).

This mode of treating the remains of a *felo de se* was (on the 8th July 1823) abolished by Act of Parliament (stat. 4 Geo. IV). The remains of a *felo de se* are ordered by that act to be buried privately in the churchyard, but without the performance of any rites of Christian burial. The Prayer-book also prohibits the "office for the burial of the dead from being used for any that have laid violent hands upon themselves."

NOTE 10 [Page 160](#).

I suppose myself to be alluding here to a very oppressive statute, passed to clip the wings of such gentlemen as Mr. Snap, by which it is enacted that, in actions for slander, if the jury find a verdict under forty shillings, *e. g.* as in the case in the text, for one farthing, the plaintiff shall be entitled to recover from the defendant only as much costs as damages, *i. e.* another farthing; a provision which has made many a poor pettifogger sneak out of court with a flea in his ear. Since this was written, a still more stringent statute hath been made, which, 'tis to be hoped, will put down the nuisance.

NOTE 11 [Page 196](#).

"Can the author of Ten Thousand a-Year," asked some anonymous person during its original appearance—"point out any class of Dissenters who allow their members to frequent theatres?" The author believes that this is the case with Unitarians—and also with many of the members of other Dissenting congregations—especially the younger members of even the stanchest Dissenting families.

NOTE 12 [Page 212](#).

This fearful-looking word, I wish to inform my lady-readers, is an original and monstrous amalgamation of three or four Greek words—[Greek:κυανο-χαιτ-ανθρωπο-ποιων:kyano-chait-anthrôpo-poiôn]—denoting a fluid "*which can render the human hair black*." Whenever a barber or perfumer determines on trying to puff off some villanous imposition of this sort, strange to say, he goes to some starving scholar, and gives him half-a-crown to coin a word like the above; one which shall be equally unintelligible and unpronounceable, and therefore attractive and popular.

NOTE 13 [Page 243](#).

"Vitas hinnuleo me similis, Chloë,
Quærenti pavidam——
Matrem.
—— et corde et genibus tremit."—HOR. i. 23.

NOTE 14 [Page 264](#).

See *ante*, [p. 138](#).

NOTE 15 [Page 307](#).

So much curiosity has been excited among lay readers in this country and in America, and also among professional persons in France and Germany, as to the real nature of the species of action mentioned in the text, that the author is induced here to give some further account of a matter which enters so considerably into the construction of this story. The action of Ejectment is described with minute accuracy in the text; has been in existence for at least five hundred years, (*i. e.* since the close of Edward II., or beginning of Edward III., A. D. 1327;) and its venerable but tortuous fiction has been scarcely even touched by the "amending hand," which lately (1834) cut away so many cumbrous, complicated, and *quasi* obsolete portions of the law of action, (see Stat. 3 and 4 Will. 4, c. 27, § 36.) The progress of this action is calculated to throw much light on some of our early history and jurisprudence. See an interesting sketch of it in the first chapter of Mr. Sergeant Adams' Treatise on Ejectment. It was resorted to for the purpose of escaping from the other dilatory, intricate, and expensive modes of recovering landed property anciently in existence. The following is the description given of it by Lord Mansfield—and is equally terse and correct, and applicable to the present mode of procedure. "An EJECTMENT is an ingenious *fiction* for the Trial of Titles to the possession of Land. In *form* it

is a trick between two, to dispossess a third by a sham suit and judgment. The artifice would be criminal, unless the *Court* converted it into a *fair* trial with the *proper* party. The control the Court have over the judgment against the Casual Ejector, enables them to put any *terms* upon the plaintiff which are *just*. He was soon ordered to give *notice* to the *tenant in possession*. When the tenant in possession *asked* to be admitted defendant, the Court was enabled to add CONDITIONS; and therefore obliged him to *allow* the fiction, and go to Trial on the *real merits*."—(*Fair Claim v. Sham Title*,[*] 3 Burr. 1294.) This action is now, in effect, the only direct common-law remedy for the recovery of land in England and Ireland; in many of the United States of America the action of Ejectment is retained—"with its harmless, and—as matter of history—curious and amusing English fictions."—(4 *Kent's Comment.* p. 70, note *e*;) but in New York, the action of Ejectment is "stripped of all its fictitious parts."—(*Id. ib.*)

[*]These fantastical names are now almost invariably abandoned for those of "John Doe" and "Richard Roe."

NOTE 16 [Page 309](#).

Blackstone's Commentaries, vol. iii. App. pp. ix. x.

NOTE 17 [Page 310](#).

"A warranty will not extend to guard against defects which are plainly and obviously the object of one's senses: as if a horse be warranted perfect, and wants either a *tail*, or an *ear*: unless the buyer in this case be blind."—3 *Blackst. Comm.* 166.

NOTE 18 [Page 310](#).

On the 22d August, 1843, (since the publication of this work,) a brief but most important statute (6 and 7 Vict. c. 85) was enacted, "for improving the

Law of Evidence"—the chief object of which was, to remove all such difficulties as that which formed the subject of Mr. Parkinson's inquiries. Witnesses are now no longer "incompetent" to give evidence by reason of *crime* or of any *interest* which they may have in, or in respect of, the subject-matter of the action.

NOTE 19 [Page 346](#).

Whether Mr. Aubrey was *justified* in doing this, under his circumstances, is a question which the author has seen, and heard, several times keenly discussed. It is surprising how much may be said on both sides of the question, by ingenious casuists.

NOTE 20 [Page 405](#).

For this glorious and inestimable safeguard of the liberty of the subject, we are indebted to the ancient common law of England, strengthened from time to time by the legislature, and now made secure against the insidious encroachments of tyranny. The chief statute passed with this view is known as *The Habeas Corpus Act* (31 Car. II. c. 2), and "has been incorporated into the jurisprudence of every state in the Union" in America.—STORY, *Commentaries on the Constitution of the U. S.*, vol. iii. p. 208.

"It is a very common mistake," says Mr. Hallam, and the Lord Chief-Justice of the Queen's Bench had occasion, during Michaelmas Term 1844, publicly to make a similar observation, "not only among foreigners, but many from whom some knowledge of our constitutional laws might be expected, that the statute of Charles II. enlarged in a great degree our liberties, and forms a sort of epoch in their history; but though a very beneficial enactment, it introduced no new principle, nor conferred any right upon the subject.... It was not to bestow an immunity from arbitrary imprisonment, which is abundantly provided in Magna Charta (if, indeed,

not much more ancient,) that the statute of Charles II. was enacted; but to cut off the abuses by which the government's lust of power, and the servile subtlety of crown lawyers, had impaired so fundamental a privilege."—3 HALL. *Const. Hist.*, pp. 16, 17.

NOTE 21 [Page 421](#).

The general character of the Newspaper Press, both in London and the country, has so greatly improved of late years, as (with a very few despicable exceptions) to render the appearance now-a-days, of such a paragraph as that in the text, exceedingly rare. The Press is now, in most instances, presided over by educated and gifted *gentlemen*. It was far otherwise in 18—(the period named in the text.)

NOTE 22 [Page 433](#).

Before perusing this opinion, the reader should refer to the pedigree, [post 441](#); without which the opinion will not be fully understood.

NOTE 23 [Page 435](#).

See the note (24) on page 437.

NOTE 24 [Page 437](#).

Till within a few years before the period in question, the law of England regarded the act done by Mr. Steggars as amounting only to a *breach of trust*, and consequently subjecting him to no *criminal* liability; on the ground that the £700 *never having been actually in his master's possession*, could not be the subject of a *felonious taking*. The alarming consequences of this doctrine led to the passing of stat. 39 Geo. III. c. 85, [passed on the 12th July 1799,] which declared such an act of embezzlement to be felony, punishable with fourteen years' transportation: this was lately repealed, but

re-enacted by stat. 7 and 8, Geo. IV. c. 29, § 47, [passed on the 21st June, 1827,] on the occasion of consolidating that branch of the criminal law.—See 4 COLERIDGE'S *Blackst. Comment.* p. 231 (*note*).

NOTE 25 [Page 442](#).

The popular maxim that "possession is nine-tenths of the law," is founded on the salutary and reasonable doctrine of the law, that the party *in possession* of property is presumed to be the owner until the contrary shall have been proved. Consider how intolerable, and, in fact, destructive of civil society would be an opposite rule—if every one in the enjoyment of property were liable to be called upon to explain to any one challenging his right, how that right had been acquired! By the operation of the rule laid down in the text, a defendant in ejectment may (except in the case of landlord and tenant) always defeat the action, simply by showing the real title to be in *some third party*—without showing that the defendant holds possession with the consent, or under the authority of the real owner.—(*Roe v. Harvey*, 4 Burr. 2484; *Doe v. Barber*, 2 T. R. 749.) The defendant's evidence is thus altogether confined to falsifying his adversary's proofs, or rebutting the presumptions which arise out of them.—ADAMS *on Ejectment*, p. 319.—(3d Ed.)

NOTE 26 [Page 443](#).

See the note to Vol. II., Chapter V.

NOTE 27 [Page 443](#).

Lynx is here glancing at a rule of the Roman law on a point of great difficulty, interest, and importance—*i. e.* where two persons above the age of puberty perished by the same accident, the younger was presumed to have been the survivor; but if one was *under* the age of puberty, the other

was presumed to have been the survivor.—(Dig. lib. 34, tit. 5, §§ 9, 22, 23.) It is very curious to see how this question is dealt with in modern times. The *Code Civile* (in France) adjusts the presumption to specific periods of life. If those who perished were all under 15 years of age, the eldest is presumed to have survived; if all above 60 years, the youngest. If some under 15, and others above 60, the former shall be presumed to have survived. If all were between 15 and 60 years of age, the male, (when the ages are equal, or within a year of being so) shall be presumed the survivor. If of the same sex, that presumption shall be admitted which opens the succession in the order of nature—of course the younger being presumed to have survived the elder.—(*Code Civ.* §§ 720-722.) It has been objected, that, though these rules are generally equitable, they are imperfect: for a man above sixty ought surely to be held to have survived a mere infant; and no provision is made for the case of persons under 15, and under 60 years of age perishing together. By the *Mohammedan law of India*, "when relations perish together, it is to be presumed that they all died at the same moment, and the heir of each immediately succeeds." The difficulty of the case arises, of course, from the circumstance of there being no evidence whatever as to the *actual fact* of survivorship. Our English law has not adopted any definite rule on the subject, but leans in favor of the survivorship of the party possessed of the property in dispute; and *some* regard seems to be had to the probability of the survivorship of the stronger party. Several very interesting cases of this kind have arisen in this country; and, generally speaking, our courts appear to have required some evidence of the *fact*. A singular case occurred in Queen Elizabeth's time, (1596.) Father and son were hanged at the same time, in one cart; being joint tenants of property, which, on their death, was to go to the *son's* heirs. According to one report (Noy) the *father's* feet were seen moving after the son's death; but other witnesses

swore to the son's "shaking his legs" after his father's death. This the jury believed; found that the son survived; and his widow was therefore held entitled to her dower!—(*Broughton v. Randall*, Cro. El., p. 502.)

NOTE 28 [Page 443](#).

Chapter X., *ante*, [p. 411](#).

NOTE 29 [Page 470](#).

See the note prefixed to Chapter V. Vol. II., for a full explanation of the above, and another important legal topic introduced into this work.

NOTE 30 [Page 477](#).

Not many years ago, the fate of an important case turned upon the existence of a tombstone: and a forged one was produced in court!—The validity of a great Peerage case is at this moment depending upon the genuineness of one of these dumb and gloomy witnesses. [1844.]

NOTE 31 [Page 485](#).

When the Judges of Assize preside in the *Crown* side (*i. e.* in the Criminal Court,) they wear their scarlet and ermine robes, and full-bottomed wigs.

NOTE 32 [Page 486](#).

This is a step often taken in trials of importance, when the counsel for either party apprehends danger to his client, from his opponent's witnesses remaining in court and hearing all the evidence which they are afterwards called to contradict. Either counsel has a *right* thus to exclude witnesses. The Court usually, in such cases, orders all the witnesses to withdraw.

NOTE 33 [Page 499](#).

See, for a discussion of this point, the preliminary note to Vol. II. ch. v.

END OF VOL. I.

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